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ARCHITECTURE & SYLLABUS MATRIX · LB-3031

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Scope: nine curated modules covering the DU Media and Law syllabus. Duplicate topics and PYQ model answers are excluded; PYQ archives reproduce question stems only.

by Ankur R. Upadhyay

PART I · FOUNDATIONS & CONSTITUTIONAL RIGHTS

MODULE 01 // UNIT 1 · FORMS OF MEDIA · HISTORY OF LEGISLATIVE EFFORTS · FOUNDATIONAL CASES

Media: Forms, Constitutional Position & Legislative History

Press · Broadcasting · Social Media · IT Act · BNS/BNSS media cross-mappings

PART 1

Media — Concept, Constitutional Position & the Taxonomy of Forms

Before dissecting the three prescribed forms, begin with the foundational taxonomy in DU Case Material, Unit 1. A 20-mark answer on "forms of media" should explain what media is legally, how Article 19 protects it, and how each form's technology shaped its legislative treatment.

1.1 · Definition, etymology and the "Fourth Estate" idea

The notes define media as follows: **"Communication is the procedure which we use to exchange information by various methods, and media is the medium or instrument of storing or communicating information."** The word medium comes from the Latin **medius** ("middle") — media is the intermediary layer between the speaker and the public. 'Media', used interchangeably with the '**Press**', denotes print & electronic information carriers — newspapers and magazines, radio, television — and "currently includes the Internet as new media". Hailed as the **'Fourth Estate'**, media is "the watchdog of public affairs", informing society and carrying society's views "to those at the helm".

- **Core normative functions** (write all five in an "intro to media" answer): (1) **informing** the public (right to know — Prabha Dutt v. UoI, 1982 SCR (1) 1184); (2) **public surveillance/watchdog** (exposing defect — Mahatma Gandhi's triple-object quote, cited by : "understand the popular feeling… arouse desirable sentiments… fearlessness to expose popular defects"); (3) **forum/agenda-setting** (marketplace of ideas — Shreya Singhal quoting Holmes J. in Abrams v. United States); (4) **transmission of culture**; (5) **mobilisation/social change** — even the colonial legislations, meant to silence, became "a catalyst for mass awakening" (the exact framing of DU Dec-2024 Q1).
- **Media law is a bundle, not a branch.** The case material lists its subject-matter as covering: advertising, broadcasting, censorship, confidentiality, contempt, copyright, corporate law, defamation, entertainment, freedom of information, internet/IT, privacy, telecommunications — each of which becomes a legislative "contact point" with each media form.

▸ **Legal definition anchor:** The PRB Act, 1867 defines **"newspaper"** as "any printed periodical work containing public news or comments on public news, and includes a news agency supplying material for publication in a newspaper" — the same definition is carried into the Working Journalists Act, 1955 (S.2(b)) and the Parliamentary Proceedings (Protection of Publication) Act, 1977 (S.2). The IT Act, 2000 never defines "media"; it defines the **"intermediary"** (S.2(1)(w)) — the pivot on which all social-media regulation rotates.

1.2 · The communication model and the three regulatory "contact points"

SOURCE / ORIGINATOR
journalist, anchor, citizen-user; protection of sources (S.15(2), Press Council Act); "first originator" traceability debate (S.3(2), IT Rules, 2021)

→

MESSAGE / CONTENT
regulated through content codes: cable Programme & Advertisement Code; Cinematograph S.5B guidelines; obscenity/defamation/hate-speech (IPC→BNS); contempt

→

CHANNEL / MEDIUM
regulated through infrastructure & licence: Telegraph Act 1885 (airwaves) → Telecom Act 2023; spectrum; uplinking guidelines; carriage registration

→

INTERMEDIARY / CARRIER
printer & publisher (PRB); cable operator (Cable Act S.3); platform (IT Act S.79 safe harbour)

→

RECEIVER / PUBLIC
right to know; protection of minors (Young Persons Act, 1956; U/A-A-S classifications; Ajay Goswami, 2007)

1.3 · Constitutional position — why "media freedom" is a derived right

The DU notes are categorical: **"The Indian Constitution does not provide freedom for media separately… it is derived from Article 19(1)(a)"**. The Supreme Court repeatedly equated press with speech: Bennett Coleman (Beg J., concurring): freedom of speech and of the press is **"the Ark of the Covenant of Democracy"** — quoted verbatim in the DU Case Material inside Shreya Singhal. Art. 19(1)(a) guarantees to every citizen the right to freedom of speech and expression; Art. 19(2) (as amended in 1951) permits reasonable restrictions in the interests of **sovereignty & integrity of India, security of the State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, incitement to an offence**.

- **Derivative rights recognised for media:** right to know (Prabha Dutt); right to circulate & right to read/receive; right to commercial speech (Tata Press v. MTNL, (1995) 5 SCC 139 overruling Hamdard Dawakhana, AIR 1960 SC 897); right to broadcast NOT an independent right — only 19(1)(a) with 19(2) restrictions and the "airwaves are public property" rider (CAB, (1995) 2 SCC 161); no 19(1)(g) fundamental right to carry on business dangerous to community (P.A. Jacob v. Deputy Commr., (2018) 3 SCC 517 — cited in the DU Case Material's Ajay Goswami unit).
- **Derivative rights denied:** reporters have no fundamental right to interview undertrials on demand (Prabha Dutt — interview allowed on facts but "the media cannot interview a prisoner merely because the public is interested"); there is no right to broadcast on public airwaves without regulation (CAB); there is no privilege to publish jury deliberations (DU Case Material, Subramanian Swamy extract); no pre-emptive right to transborder TV without Parliament/legislation (CAB — "no material for inferring such right" outside the licence framework).

§ **Three circles doctrine** — Ram Manohar Lohia v. State of Bihar, AIR 1966 SC 740 (quoted in Shreya Singhal, para 30): the largest circle = "in the interest of the public" (security of State); the middle circle = **public order**; the smallest = actual breach of peace. A restriction touching only law-and-order cannot invoke 19(2)'s "public order" head. (This diagram scores in nearly every media question.)

Test for proximity:
Rangarajan v. P. Jagjivan Ram (DU Case Material Unit 6): the relation between speech and danger must be "proximate and direct"; it should not be "far-fetched or conjectural… like a spark in an explosives tunnel". Pre-censorship on speech is permissible only exceptionally (cinema — K.A. Abbas).

Security of State / sovereignty

⊃

Public order

⊃

DU Ankur R. Upadhyay

Breach of peace / law & order

1.4 · Taxonomy of media forms (exam-ready tree)

- MEDIA (instrument of mass communication)
  - I. PRINT MEDIAmechanically reproduced text/images — "printed periodical work containing public news" (PRB Act 1867); newspapers, magazines, books, pamphlets, posters, handbills; includes **news agencies/syndicates** (PTI, UNI). Governed historically by licensing/ registration laws; today self-regulation (PCI) + common criminal law.
    - Adjacent form — FILM on celluloid / CINE mediaCinematograph Act 1952; the only medium with constitutionally validated **pre-censorship** (K.A. Abbas).
  - II. BROADCAST (ELECTRONIC) MEDIAsimultaneous one-to-many transmission over spectrum — radio (AIR, FM), television (Doordarshan, DTH, cable, HITS, IPTV); "wireless communication" under Telegraph Act 1885 (def. of "telegraph" is so wide it swallowed teleprinter, telephone, fax, radio & TV — notes). Two limbs: **content** (programme code/self-regulation) + **carriage/spectrum** (licence & TRAI). Public service broadcasting → Prasar Bharati Act 1990.
  - III. SOCIAL MEDIA / NEW MEDIAinteractive, user-generated, networked digital media (Web 2.0) — social networks, microblogs, video platforms, messaging, review sites; legally: "intermediaries" and "social media intermediaries" under the IT Act 2000 + Rules 2011/2021 (as amended 2025–26); convergence zone: OTT video, news portals, "digital media" Part-III of 2021 Rules.

▸ **Fourth & fifth estate scholarship to name-drop:** media as "public sphere" (Habermas), "watchdog", "gatekeeper"; in India the **"fifth estate"** label has been used for the online public — and the Supreme Court in Shreya Singhal (para 34) expressly rejected the notion that internet speech is inherently different in **content** from print or broadcast: "speech on the internet cannot be treated differently as far as the content of Art. 19(1)(a) is concerned", while in para 98 it accepted a 19(1)-relevant **intelligible differentia** for legislative classification — "the internet gives any individual a platform which requires very little or no payment... something posted travels like lightning and can reach millions". Quote both halves — it is the single most exam-relevant proposition about "forms" of media.

1.5 · Master comparison — the three forms at a glance (revise from this table alone)

Parameter	PRINT MEDIA	BROADCAST MEDIA	SOCIAL MEDIA / NEW MEDIA
Defining technology	Movable type & rotary press; physical reproducibility; scarcity of capital (newsprint, presses)	Electromagnetic waves & wired carriage; **scarcity of spectrum**; one-to-many simultaneity; intrusion into the living room	Packet-switched networks, Web 2.0 interactivity; **zero marginal cost of publishing**; algorithmic curation; many-to-many; global hosting
Key legal actor	Owner, publisher, printer, editor (all named on the imprint line — S.3 & S.5, PRB Act)	Broadcaster (licence-holder), carrier (cable operator/DTH/HITS), regulator (MIB; TRAI; NBSA/ BCCC self-regulation)	Intermediary/platform, user, grievance officer, "authorised officer" for blocking; publisher of online curated content (Part III, 2021 Rules)
Foundational law	PRB Act 1867; Press Council Act 1978; Working Journalists Act 1955; Newspaper (Prices & Pages) Act 1956; Delivery of Books Act 1954; Young Persons (Harmful Publications) Act 1956; Parl. Proceedings (Protection of Publication) Act 1977	Indian Telegraph Act 1885 (→ Telecommunications Act, 2023); Prasar Bharati Act 1990; Cable TV Networks (Regulation) Act 1995 + Rules 1994; Cinematograph Act 1952 (films); Uplinking/ Downlinking Guidelines; Sports Broadcasting Signals (Mandatory Sharing with PB) Act 2007; TRAI Act 1997; draft Broadcasting Bill (still to come, 2023–26)	IT Act 2000 (amended 2008/2009) — Ss. 67, 67A, 67B, 69, 69A, 79; Blocking Rules 2009; Intermediary Guidelines 2011 → IT (Intermediary Guidelines & Digital Media Ethics Code) Rules 2021 (+2025/2026 amendments incl. deepfake/SGI rules); DPDP Act 2023; Copyright Act 1957 (hosting/UGC); Consumer Protection (E-Commerce) Rules 2020
Pre-censorship?	None (pre-censorship struck down: Romesh Thappar, Brij Bhushan); only post-publication liability	For **films** yes — K.A. Abbas v. UoI, AIR 1971 SC 481; for TV: no licensing of content per se, but code-based regulation & emergency powers (S.19/20 Cable Act); radio news kept off private FM until today	No; but executive **blocking** (S.69A) is functionally preventive for access — upheld in Shreya Singhal with safeguards
Self-regulation	PCI — quasi-statutory moral court (S.14 censure; no penal power); Norms of Journalistic Conduct (2019 edition)	NBA Code of Ethics (2003) → NBSA (penalising channels ₹10,000–₹2 lakh); BCCC (predecessor); BCCI/IPL carve-outs; content codes in Cable Rules	Platform ToS + grievance officers mandated **by statute** (2021 Rules); fact-check advisory for news; ASCI for advertising; e-Safety/child-protection design duties emerging
Landmark cases (DU Case Material)	Sakal Papers; Bennett Coleman; ABP v. UoI; Prabha Dutt; Ajay Goswami	CAB; Odyssey; K.A. Abbas; Rangarajan; Bobby Art; UoI v. Motion Picture Assn.; In re Destruction of Public Properties	Shreya Singhal (66A killed; 69A & 79 saved); X v. UoI (Del. 2021, de-indexing/RTBF); Rajagopal (prior restraint on autobiography); Naveen Jindal v. Zee (dynamic injunctions)
Core tension the law balances	Freedom of the press vs. anti-concentration/fair-wage regulation (colonial registration DNA persists)	Editorial freedom vs. spectrum as public trust + protecting the "captive" audience (children, illiterates) — **variable obscenity** per Ajay Goswami, Utsav/Aviiek Sarkar "ordinary person" test (DU Case Material notes)	Safe-harbour immunity & anonymity vs. accountability — intermediary liability as the new "publisher" question; State's blocking & traceability powers
FDI (as per notes' era)	26% (news & current affairs periodicals — govt route)	Cable 49%; DTH 49% (FDI ≤20%); FM radio 26%; up-linking news channels 26%; HITS 74%	Platforms: 100% automatic (e-commerce/IT services) — but "online curated content" now policed via 2021 Rules; content-creators regulation pending

PART 2

Form I — PRINT MEDIA: origin, anatomy, and the entire statute-book that hangs on a printing press

Print is the oldest "regulated" medium in India — the entire vocabulary of Indian press law (keeper of the press, publisher, printer, editor, declaration, certificate of registration, title verification, annual statement of circulation) was coined for newspapers between 1867 and 1956 and is still operational law today. This part is arranged: history → statutory anatomy (section-by-section) → regulatory architecture → four deep case briefs from the DU Case Material → the criminal-law overlay.

2.1 · Genesis of print in India — the facts DU notes expect

- **Pre-press "newspapers":** court newsletters (akhbar) of the Mughals — Aurangzeb-era manuscript papers sent by Col. James Tod to the Royal Asiatic Society were "considerably free" and even reported the emperor's personal affairs; "perhaps there was neither pre-censorship nor licensing, both being Western institutions" . Kautilya's **Arthashastra** (c. 324–300 BC) punished **spreading false rumours**; Ashoka's Rock Edicts (c. 273–236 BC) are described as state communication akin to news content — an elegant opener for "history" questions.
- **1556:** printing press accidentally arrives in Goa (sent by the King of Portugal for Abyssinia — the press never left). **First press for systematic printing**: 1556 onwards, missionary printing from Goa; the modern era begins with the Serampore Mission.
- **1766 — William Bolts:** ex-East India Company servant attempted to start India's first newspaper (and an open share-market); **deported** — "expulsion of the editor (printer) was the ultimate penalty", upheld by the Supreme Court of Judicature at Calcutta. (His 1773 London publication Considerations on Indian Affairs carried the account.)

- **10 Jan 1780 — James Augustus Hicky's Bengal Gazette; or, Calcutta Public Advertiser**: first newspaper printed in India; Hicky jailed in 1781 & his press seized in 1782 for attacks on the Company establishment — the founding "persecution" narrative.
- **23 May 1818 — Samachar Darpan** (Serampore missionaries): first Indian-language journal (Bengali weekly); bilingual Bengali–English from 1829. Lord Hastings had abolished pre-censorship in **1818** — a direct concession to the missionary presses.
- **1818–1857:** the vernacular press explodes — Hindu Patriot (edited later by Harish Chandra Mookerjee), Amrita Bazar Patrika (founded 1868 by Sisir Kumar Ghosh & Moti Lal Ghosh) — which famously became overnight an **English** newspaper in 1878 to escape Lytton's Vernacular Press Act (real example; the Act's own target: "It was particularly meant to crush Amrita Bazar Patrika" —). Babu Shishir Kumar's rebuff to Sir Ashley Eden ("Your Honour, there ought to be at least one honest journalist in the land") is quoted in the notes — use it as a colour anecdote.
- **News agencies:** PTI, UNI, Hindustan Samachar, Samachar Bharati — "newspaper" legally includes the news agency feed (S.2, PRB definition via the 1977 Act). The Press (Registration of Books) Amendment Act, 1956 extended the Act to news agencies — so they must file declarations too.

2.4 · Economic regulation of print — the failed experiment: Newspaper (Prices and Pages) Act, 1956 → Bennett Coleman

Act's design: Parliament empowered the Central Govt to regulate (i) the **price** of newspapers in relation to the **number of pages/size/area**, (ii) the **space allotted for advertisements**, and (iii) the **allocation/appendage of supplements** — the stated object: to prevent unfair competition and to secure "fuller opportunities of freedom of expression" for small & Indian-language papers. Before any order, publisher associations must be consulted; publication in contravention is prohibited (and S.3(3) deemed provisions into contracts).

This produced a chain of Constitution-Bench law that every DU answer must cite: **Sakal Papers (1962) → Bennett Coleman (1972) → Indian Express Newspapers (1985)** — full briefs below (§2.6). The Act itself was repealed in 2010 (Repealing & Amending Act, 2010) after TRAI-era deregulation — a nice "legislative-efforts" footnote: the experiment ended by abolition, not amendment.

2.6 · Deep case briefs — Print (DU Case Material #1, #2 + -mandated classics)

Sakal Papers (P) Ltd. v. Union of India `cited in Shreya Singhal extract — DU Case Material p. 30`
AIR 1962 SC 305 · (1962) 3 SCR 842 · Constitution Bench (Sinha C.J., Das Gupta, Subba Rao, Shah, Mudholkar JJ.)

Facts The **Daily Newspapers (Price and Page) Order, 1960**, made under the Newspaper (Prices and Pages) Act, 1956, fixed for each newspaper a minimum price per page (maximum pages it could sell at a price), permitted only a 25% increase in price with a proportional increase in pages, and capped the **advertising space at 75% (later 72%)**. The petitioners (salaried journalists' unions supported papers + big papers) attacked it as destroying the economics of newspapers — big dailies could not absorb loss-making expansion while supplements (magazines-in-disguise) escaped.

Issues (1) Does the Act/Order directly restrict the **freedom to propagate ideas** guaranteed by 19(1)(a) (not merely a "business right")? (2) Can "the State's interest in curbing unfair competition among newspapers" be a 19(2) ground? (3) Is the classification (restricting dailies but exempting weeklies/'magazines' like the BL Onsund weekly) arbitrary?

Arguments **State:** freedom of speech is of the citizen, not of the corporation; the Order regulates only business activity; it actually promotes press freedom by keeping small papers alive (a 19(2)-flavoured "general public interest" reading). **Petitioners:** a newspaper can only speak through circulation & size; a price-page cap is a cap on speech; "freedom to propagate" includes freedom of circulation — restriction on the number of pages restricts the very volume of news.

Decision Unanimously struck down (4:1 — Mudholkar J partly dissenting on "corporation" locus). Das Gupta J: **"the right to freedom of speech can be restricted only on the grounds mentioned in Article 19(2)"**; the "right to circulate" is co-extensive with the right to publish; and the **"right to propagate one's views through the medium of newspapers would be infringed if the volume of news is restricted"**. The Act's classification (weekly supplements exempt) defeated its own object — arbitrariness under Art. 14 reinforced invalidity. The State's interest in equalising circulation was not a permitted object for restricting speech. (notes' summary: "the right of freedom of speech and expression couldn't be taken away with the object of placing restrictions on the business activity of citizens.")

Principle evolved (i) **Press freedom = Art. 19(1)(a) extends to the "freedom to propagate",** including circulation, price and page economy — no restrictions outside Art. 19(2); (ii) an economic regulation cannot be immunised by calling it "business regulation"; (iii) **the "general public interest" is NOT a ground under Art. 19(2)** (a proposition that survived to Bennett Coleman and Indian Express).

Indian Express Newspapers (Bombay) Pvt. Ltd. v. Union of India `reproduced in DU Case Material pp. 33–36 (inside Shreya extract)`
(1985) 1 SCC 641 · AIR 1986 SC 515

Facts The Finance Acts 1980–82 raised import duty on newsprint & related raw materials (and differential rates on imported vs. indigenous newsprint, "surcharge" on advertising machinery). Petitioners (four major dailies) pleaded that the tax, when imposed at crushing rates, operates as a **direct restriction** on press freedom and as a colourable use of taxing power.

Issues Is taxation of the press per se violative of 19(1)(a)? Can a tax struck at confiscatory/high rates without classification justification be invalidated? Is the differential customs treatment arbitrary?

Arguments Petitioners: the press cannot survive without newsprint; taxes which "cripple the circulation" are prior restraint by economics (citing Sakal, Bennett Coleman, and US cases like Grosjean — Louisiana's targeted newspaper tax — and Minneapolis Star). Union: press pays taxes like every citizen; validity is not measured by incidental burden; no fundamental right to trade in newspapers.

Decision Court balanced: **"The press cannot claim any immunity from taxation… but freedom from taxation is not guaranteed… yet the State cannot use taxation as a weapon of control."** The famous formulation: **"freedom of the press is not expressly stated in Art. 19(1)(a)… it is implicit in the right… comprising (1) freedom to publish; (2) freedom of circulation; (3) no pre-censorship… 'the freedom of the press has to be read in Art. 19(1)(a)'."** However, the tax was upheld; differential duties were struck down for want of intelligible differentia (Art. 14) and refunds ordered for post-judgment collections.

Principle **Freedom of circulation** is part of 19(1)(a); taxation of media is valid unless used "as a instrument of control or with a design to stifle" — the "colourable-taxation" doctrine enters Indian press law; differential classification needs a real nexus with the object.

Form II — BROADCAST (ELECTRONIC) MEDIA: airwaves as public trust; the architecture from 1885 to 2026

Broadcast is the youngest "old" medium and the only one the state never fully deregulated: content codes, carriage licences, spectrum scarcity and a permanent "broadcasting bill" gap define its legislative history. Films (cinema), though technically "exhibition", belong to this media family in the DU scheme (the DU Case Material books cinema regulation inside "Media & Its Regulation") — covered here with its statute.

3.1 · Anatomy & history of the form

Technology-constituted elements (write as "components")

- **Content provider / broadcaster** (news channel; DD; AIR) — needs an uplinking licence (MIB, Uplinking Guidelines).
- **Teleport / up-link hub** — earth station; FDI 49% .
- **Satellite & transponder** — space segment (ISRO/NSIL, GSAT; transponder leases).
- **Down-link & carriage layer**: local cable operators ("last mile", LAN), **HITS** hub, **DTH** (Direct-To-Home), **IPTV**, mobile TV; CAS/set-top boxes; conditional access (CAS areas).
- **Audience** — receiver with no licence (Radio, TV & VCR Sets (Exemption from Licensing Requirements) Rules, 1997 — the repeal of the absurd "own-a-TV-licence" regime).

Chronology to memorise

- **1895–96** — Marconi wireless; **1876** Post Office (India) begins wiring; Telegraph Act **1885** vests "exclusive privilege" in the Central Government.
- **1923** — first experimental broadcast Bombay; **1927** Indian Broadcasting Company (private) → **1930 AIR** (state); **1936** renaming "Akashvani"; All India Radio reorganised 1941 (Sir John Reith visit).
- **Sept 1959** — Doordarshan experimental TV service (Delhi, UNESCO aid) → **1965** regular service → **1975–76** satellite experiments → **1982** colour & national network (Asian Games) → **1987** serialisation boom (Ramayan) → **Doordarshan monopoly till 1991**.
- **1991–92** — satellite liberalisation: Star TV, Zee TV (1992); the "cultural invasion" anxiety of the P.V. Narasimha Rao-era cable debates (quotes the Cable Act Statement of Objects & Reasons verbatim!).
- **1995** — CAB: airwaves are public property; monopoly constitutional only till Parliament legislates; SC order of 25.11.1994 (tele-educational) had already cracked the monopoly (Dakshin Ratings v. UoI, 1993 — right to use telecast rights; noted in broadcast section).
- **1997** — private TV guidelines; **2001** revised guidelines & uplinking regulation; **2011–14** digitisation & addressability (Phase I–IV; 31 Dec 2014 analog switch-off,); **2014+** community radio & FM Phase-III (Nov 2014, 392 cities); Jan 2020 new FM policy (10-yr licences, 70-city); DDL "DD Free Dish" free DTH since 2000–04.
- **2023** — Telecommunications Act (repeals Telegraph Act 1885 & Wireless Telegraphy Act 1933 — authorisation regime, spectrum via auction; assent 24 Dec 2023; provisions in force from Jun–Jul 2024 with rules in 2025–26); **2023–24** Broadcasting Services (Regulation) Bill drafts; **2026** — MIB working on Unified Broadcasting Rules under the Telecom Act (public-interest broadcast obligations: draft requires e.g. 30 min/day on social themes for TV, 1 hr on FM; not finalised).

§ **The constitutional core — "spectrum doctrine":** In Secretary, Ministry of Information & Broadcasting v. Cricket Association of Bengal, (1995) 2 SCC 161 the Court (Sawant J for majority) held that **broadcasting is a "speech" within 19(1)(a) but "no citizen has a fundamental right to use the airwaves"** — frequencies are public property to be used through a "proper system set up in accordance with law"; scarcity & pervasiveness justify stricter content regulation of television; the Central Government's monopoly was valid because Parliament had not legislated otherwise, not because it is inherent. (See the case brief at 3.5.) This is the single most important "form of media" holding for broadcast answers.

3.3 · Who regulates what? (the broadcast regulation map)

Ministry of I&B (Executive)
uplinking/registration of channels; cable/DTH/HITS policy; FM licenses; Cinematograph Dept (certification & festivals); enforcement of Programme & Ad codes (authorised officers u/s 19–20 Cable Act)

↔

MHA (national security)
objectionable content advisories, S.69A blocking of online feeds of TV channels, "disturbed-area" reporting curbs (armed forces laws)

↔

TRAI / TDSAT
tariff, carriage, QoS, digitisation, interconnect, anti-bouquet rules; TDSAT — also the appellate home for broadcaster disputes

↔

Prasar Bharati (public broadcaster)
AIR + DD; S.13 Broadcasting Council for public complaints (never made effective — note the critique)

↔

Self-regulation (the industry's answer)
NBA Code of Ethics (2003, 2010s updates) → **NBSA** (independent complaints authority: warnings to fines ₹10k–₹2 lakh, up to apology); BCCC (predecessor); EBU/Leveson-inspired debates; CBFC for films; ASCI; ASCI for ads (with 2018 Consumer Protection Act + CPA, 2019 S.18 + S.71 "penalty for misleading ads" and Regulatory Authority for Consumer Protection (Guidelines for Misleading Advertisements) 2023)

- **The missing statute:** no broadcasting content Act — content rules live in subordinate executive instruments (uplinking guidelines; the Cable Act code) — a "grey-zone" the courts repeatedly flagged: **CAB** ("Parliament should determine the content of regulation" — direction to create an independent statutory authority), **Odyssey** (no common-law monopoly of State over means of telecast), **Rajeev Dhawan line of contempt cases** (DU Case Material #19; SC's irritation at the absence of a regulator), plus the Broadcasting Services (Regulation) Bill drafts (2010 (Standing Committee opposed), 2013, 2023 & 2024 drafts — Part 5.5). The 2023 draft proposed: replacing the 1995 Act & guidelines; mandatory registration of channels and online curated content (dropped after backlash); a content code with "news fairness"; a new Broadcasting Ombudsman + Council; programme-audit powers; penalty up to ₹10 crore for channels — a "regulatory ambition" the current Unified-Broadcasting-Rules route (Telecom Act, 2026 drafts) pursues administratively.
- **Cross-cutting statutes that touch broadcast content:** Contempt of Courts Act, 1971 (S.2(c) publication limb); **S.228A IPC → S.345 BNS** (rape-victim identity — on-air disclosure punishable ≤1 yr + fine); **Juvenile Justice Act S.21 (2015)** (identity of children in conflict with law); **S.153A/153B → Ss.196/197 BNS** (enmity); POTA/NUPIJ-type gag provisions; **RPA, 1951 Ss.126/126A/127** (48-hr silence window before polling), exit-poll publication bar (S.126A) + ECI guidelines; **S.57 Representation of the People Act** (publication of "incorrect" statements about candidates re crime/character within a window — constitutional: P. Vijayan v. S. Ganesan (2010)); **S.37A/37B RPA (paid news — 2010 Ordinance; Ashok Chavan DU Case Material #37)**; MIB/DAVP ad policy; **Emblems & Names (Prevention of Improper Use) Act, 1950** (national symbols); **Young Persons (Harmful Publications) Act, 1956** (comics — printed; note the parallel with broadcast); the **Consumer Protection Act, 2019** (misleading ads — penalty S.89 up to ₹10 lakh/₹20 lakh + second-offence imprisonment up to 2 yrs; product-liability Ss.84–86; the 2021 "Regulatory Authority for Misleading Advertisements Guidelines"). Add "guidelines" layer: PCI Guidelines on Pre-Poll & Exit Polls (1996) (DU Case Material ref. unit 8.2), MIB "News on TV/DTH" rules, "Voluntary Code of Conduct for digital news", MeitY IT Rules (for simulcast/OTT via 2021 Rules).

by Ankur R. Upadhyay

Part 4Social Media: the IT-Act Architecture and the Shreya Singhal Revolution

The syllabus' newest "form of media". DU reads social media not through a media statute of its own but through the **Information Technology Act, 2000 (as amended in 2008)**, the subordinate **Intermediary & Digital-Media Rules (2011 → 2021 → amendments to 2026)** and one epoch-making judgment — Shreya Singhal v. UoI — which occupies **45 pages of the DU Case Material (pp. 40–85)**, its single longest excerpt, alongside X v. UoI (pp. 354–391).

4.1 What "social media" legally is — and why the State regulates the platform, not the press-card

Distinguishing features of the form

- **Many-to-many & interactive.** Press is one-to-many and gate-kept; broadcast is one-to-many, licensed and spectrumscarce. On social media every user is simultaneously publisher and audience — there is no editor to hold to a code, so Indian law attaches its duties to the **intermediary** that hosts and transmits the speech.
- **Algorithmic curation.** Reach is decided by platform ranking systems, not editors — virality, filter-bubbles and coordinated manipulation. Hence the 2020s pivot from "content regulation" to "**platform accountability**" (due-diligence obligations, transparency reports, grievance officers).
- **Instantaneous, borderless, permanent.** The Supreme Court's own image: "**the effect of the speech is immediate as the velocity of the electronic media is lightning**" (Shreya, para 98); "every person who sees it … has the capacity to reproduce it".
- **Convergence.** OTT shows, YouTube channels, digital news sites and meme pages all sit on the same infrastructure — which is why one instrument, the **2021 Rules**, regulates "intermediaries" (Part I–II) and "publishers of online curated content" (Part III) together.

Which instrument controls what

Layer	Instrument
Content offences	IT Act ss. 66, 66A (dead), 67–67B, 66C–66F; **BNS** ss. 196, 197, 353, 356, 77–79, 294, 345; POCSO 2012 (ss. 14–15, 21); UAPA; Dramatic Performances 1876 (offline echo)
Platform duties	IT Act **s. 79** (safe harbour ⇄ due diligence) + IT (Intermediary Guidelines & Digital Media Ethics Code) **Rules 2021**, amending 2011 Rules; amendments 21.2.2024, 27.2.2025, 10.2.2026
Blocking	IT Act **s. 69A** + **Blocking of Access Rules, 2009**; interception s. 69 + Interception Rules 2009 (am. 2022); "emergency blocks" Rule 9
OTT / digital news	2021 Rules **Part III** — three-tier self-regulation; MIB nodal ministry (I&B for news & current affairs)
Data	DPDP Act 2023 + Rules 2025 (phased); SPDPD Rules 2011; IT Act s. 43A
Elections	RPA 1951 ss. 126, 126A (census-window broadcast ban — extended to internet by ECI advisories since 2013); MCMC certification (broadcast); 2024 deepfake advisory (6-hour takedown)
Platform entry/ exit	TikTok & co. banned June 2020 – Feb 2022 (s. 69A grounds: sovereignty & integrity, defence, security); Koo shut 2024 citing compliance costs

4.2 The IT Act's operative provisions — each element examined

Provision	Elements (as in the statute)	Punishment / effect
S. 2(1)(w) "intermediary" (quoted at DU Case Material p. 50)	"any person who on behalf of another person **receives, stores or transmits** that record or **provides any service with respect to** that record", inclusive list: telecom/network/ISPs, web-hosting, search engines, online payment sites, cyber-cafés, **social media websites**. Proviso: government-owned entities are **not** intermediaries.	Gateway to s. 79 immunity — and to all Rule duties
S. 79(1)-(2) safe harbour	No liability for third-party data if the intermediary acts **merely as a conduit**; does not initiate/transmit selectively, select or modify the recipient, or modify the information; conditions = due diligence under the Rules + not conspiring/abetting/facilitating (s. 79(3)(a)); **s. 79(3)(b)**: immunity lost upon **"actual knowledge or being notified"** of unlawful information and failure to "expeditiously disable access".	After Shreya: "actual knowledge" = **court order or government notification** only — a private complaint alone is not "knowledge"
S. 66A struck 24.3.2015	Sending (i) grossly offensive / menacing material, (ii) false information knowingly for deception/misleading as to its origin — each "using a computer resource or communication device" with intent to cause annoyance/inconvenience/danger/obstruction/insult/injury/ criminal intimidation/enmity/hatred/ill-will. (Replaced s. 57, Telegraph Act.)	Was ≤3 yrs + fine. Void for vagueness & overbreadth — no 19(2) head covered (para 119)
S. 67	Publishing/transmitting **or causing to be published/transmitted**, in electronic form, **obscene** material (lascivious; tending to deprave and corrupt) — "obscenity" imported from ss. 292–294 IPC; includes storing for transmission & drawing/graphical/photographic representations; two illustrations in s. 67's parent law made "collection" an offence.	≤5 yrs + fine (first); ≤7 yrs + fine ₹1–10 lakh (second/subsequent)
S. 67A	Transmitting/publishing material that is **sexually explicit** (depicting a sexual act or conduct) — obscenity-plus; no "public-places" limitation.	≤5 yrs + ≤₹10 lakh (first); ≤7 yrs (second)
S. 67B	Child-related offences: publication and mere **searching, browsing, downloading, hiding, transferring or even "supervising"** a website containing child sex-explicit material; text/ images depicting a child's "organ or sexual act"; also covers sexual grooming of a minor.	≤5 yrs + ≤₹10 lakh; ≤7 yrs + ≤₹10 lakh
S. 66C–66F	66C identity theft (electronic signature, password, unique identifier); 66D **cheating by personation** using a computer resource — today's working provision against **deepfake frauds**; 66E **violation of privacy** — capturing/transmitting/publishing an image of the "private area" of any person without consent in intrusive circumstances (the NCII work-horse); 66F cyber-terrorism.	66C/66D: ≤3 yrs + ≤₹1 lakh; 66E: ≤3 yrs or ≤₹6 lakh or both; 66F: life (min. 7 yrs)
S. 69 interception	Government power to intercept, monitor or decrypt information through a "specified agency", on the usual 19(3) grounds; assistance may be demanded of any subscriber/ intermediary/third party; rules require written authorisation, review committee, 180-day retention, destruction of lawful-but-unneeded data. (Interception Rules 2009, amended Jan 2022 — no more "blanket" monitoring; social-media monitoring only "in silo" on security inputs.)	Refusal to cooperate: ≤7 yrs + fine (s. 69(3))
S. 69A blocking	"for the interest of the **sovereignty and integrity of India, defence of India, the security of the State, friendly relations with foreign States, public order**, or for preventing **incitement to the commission of any cognisable offence**" — the Central Government may direct any agency or intermediary to block public access. No offence; a takedown power. Upheld in Shreya against attack.	See the flow at 4.3; non-compliance by intermediary = offence + loss of s. 79 (Rule 11 r.w. s. 69A)
S. 66 + 43/43A	Dishonest/fraudulent misuse (43's civil wrongs: unauthorised access, copying, withdrawal of data, disruption, virus, denial of service, phishing…) → punishment under s. 66; s. 43A: body corporate's failure of "reasonable security practices" → compensation; s. 43 liability is adjudicated by an officer not below Secretary rank, appealable to TDSAT.	s. 66: ≤3 yrs or ≤₹5 lakh or both; s. 43A: compensation up to ₹5 crore
S. 67C, 85A, 85B (regulatory back-office)	67C: power to mandate retention/attenuation of traffic data (90 days — guidelines never issued; privacy critique). 85A: rules on **mutual legal assistance for electronic evidence** (notified 2019 — formats, hash values, sealed chain). 85B: mutual assistance in preservation/retrieval of data (designated nodes abroad). Plus **s. 43(b) "stealing of data"** and s. 70 (CII).	Procedural — decisive in crypto-fraud/digital-arrest trials

Provision	Elements (as in the statute)	Punishment / effect
S. 81 & 2A "override"	Act has overriding effect; s. 81 preserves other laws: **the IPC/BNS, POCSO, SC/ST Act and Obscene Publications law continue to apply to online conduct** (s. 81 r.w. 67's "obscene" definition = IPC 292 ⇄ BNS 294–296; Law Commission's 2015 view: online obscenity = **both** s. 292 IPC and s. 67 IT — double charges, one trial).	Cumulative application

4.3 Blocking under s. 69A — the Rule-4 Committee procedure, step by step

1 · Grievance or complaintFrom any citizen/ministry/state agency to the **Designated Officer (Joint Secretary-level, MeitY)**; the officer is not obliged to entertain, and reasons need not be given for not acting. (Practice note: 2020–22 saw hundreds of complaints routed through MHA/MIB; "Twitter blocks" of Feb 2021 began as Ministry complaints.)

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2 · Committee (Rule 4, Blocking Rules 2009)Committee of **officers**, chaired by **Joint Secretary (IT), MeitY**, with representatives of MHA, Law and the Ministry concerned; it **records reasons in writing**; a **reasonable opportunity** is given to the **intermediary AND the person who generated/published the information** (Rule 7) — notice with the complaint copies, "appear and respond".

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3 · Emergency blocks (Rule 9)In "urgency", the **Competent Authority** (JS-IT) may block **without prior hearing for up to 72 hours**; the direction must then be placed before the Committee, which meets and ratifies or drops it. (Used in riots/mob-violence weeks — e.g., the April-2020 block of **TV5Monde**'s report on a Delhi-riots petition: blocked under Rule 9, then unblocked by the Committee after review. Also used for the 2019 Kashmir internet-blackout orders — suspension under Telecom Rules + s. 69A blocks; Anuradha Bhasin v. UoI (2020) held indefinite suspension impermissible and ordered review every 15 days.)

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4 · Direction & executionCopy of the direction to the intermediary and (so far as traceable) the content-generator; ISPs/DoT operators implement; the block is **geo-fenced to India**; blocking orders were **confidential until Feb-2023**, when the Supreme Court directed publication of all s. 69A orders (MeitY then placed them on its website).

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5 · 6-month life, review, re-block (Rule 10)Every direction lasts **six months**, then lapses unless the Committee re-examines and reissues "with fresh reasons" — an internal "sunset", India's answer to permanent prior restraint. Rule 16 keeps Committee records confidential; Rule 11 penalises non-compliance by the intermediary with "imprisonment up to 7 years + fine", and Rule 12 gives intermediaries good-faith protection for implementing blocks.

Scale for context (widely-reported, good for intro lines): 783 URLs blocked in 2019; the February-2021 "farmer-protest" orders alone first covered **249 Twitter accounts** (later ~1,190 URLs across platforms, many lifted on Committee review); the 2020–21 TikTok/PUBG packages covered **200+ Chinese apps**. Blocking practice, not the IPC, is now India's main internet-censorship tool — hence Shreya's scrutiny of procedure rather than substance.

4.4 The Intermediary Guidelines: 2011 → 2021 → 2026

27 May 2011
IT (Intermediary Guidelines) Rules, 2011
Under ss. 43A, 66A, 67, 69A, 79: Rule 3 due-diligence — publish terms/privacy policy; **"take down within 36 hours of actual knowledge"** of content that is obscene/pornographic/depicting rape or child abuse/threatening, or infringing legal rights; a duty not to tamper with evidence and to preserve relevant records for **90 days** for law-enforcement demand; a designated officer for government liaison. Rule 4: grievance-redressal officer — acknowledge and act within **36 hours**. Rule 3(2) was the famous "impermissible content" clause: takedown on actual knowledge, with intimation to the user and no own-motion blocking — platforms remained "passive pipes". **Shreya** (2015) then judicially confined "actual knowledge" (above) — giving platforms a bright-line: no court/govt order, no removal.

16 & 24 Feb 2020
The MeitY "Advisories" era
Two advisories (to intermediaries; to news & digital-media houses) urging self-classification of online content, deletion of obscene material within **36 hours** (some press: 48 hrs for "complaints"), and "voluntary" removal on government complaint — legally soft instruments that hard practice made binding; used heavily in the 2020 Delhi-riots hate-content and COVID-misinformation weeks (Twitter's June-2020 "manipulated media" label on a political tweet was the domestic shock — "if a platform can label a world leader, why not Indian ministers?" — and became a principal driver of the 2021 Rules). Also the May-2020 "Twitter vs government" standoff on a hate-speech ministerial complaint.

25 Feb 2021
IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021
Three parts. **Part I–II (intermediaries):** Rule 3 — enhanced due diligence (below); Rule 4 — **SSMIs**; Rule 5 — "news & current-affairs" publishers on social media (PCI ethics-code compliance; the **21.2.2024 amendment** inserted a registration-and-verification obligation on social-media publishers of news & current affairs, administered by MIB, after the "unregistered digital news channels" controversy of 2023). **Part III (digital media):** 3-tier ethics architecture for OTT and digital news (see 4.5).

2022–2023
Refinements
Feb 2022: Inter-Departmental Committee empowered to order **re-ordering or deletion of an episode** (Part III, R. 12A). Aug 2023: **age-verification** duty on OTT for U/A-13+ & A content (parental verification tools; deadline repeatedly extended to 10.8.2024 → 10.2.2025 → then replaced by **self-certification** regime from 2025). 2022: IT (85A) e-evidence rules enforced; 2023: Supreme Court's **publication-of-blocking-orders** direction.

27 Feb 2025
The deepfake-first amendment
R. 3(1)(d) & 3(2)(b) amended: SSMIs must take **pro-active automated measures** to detect **synthetically generated impersonation/morphing content** and **"unlawful" AI content**; individuals/organisations may complain of such content and the platform must **delete within 3 hours** (from **24 hrs** originally; the "3-hour" figure first fixed for morphed/deepfake complaints), preserve evidence and provide the complainant an acknowledgement; failure to take pro-active action deemed a breach of due diligence (loss of s. 79). **Context:** the "Bengaluru IIT-topper" morphed-photos prosecutions and repeated High-Court complaints (e.g., Delhi & Karnataka) — the 2025 amendment was the executive's answer to "deepfakes but no statute".

10 Feb 2026 (in force 20.2.2026)
The SGI package (current law)
Defines **"Synthetically Generated Information" (SGI)**: information generated/modified with AI or other automated means — **deepfakes** — excluding routine editing; imposes: **prominent label** on SGI + **permanent, tamper-resistant metadata**; user **declaration** obligations

(platforms must enable "this is AI content" labelling and verify); quarterly **user-awareness notices** incl. that unlawful SGI attracts **BNS/POCSO** penalties (R. 3(1)(b)/(c)); **3-hour** takedown for unlawful SGI (and a **2-hour** window where the SGI depicts a woman in a sexualised or intimate form (reduced from 24 hours); non-compliance → **SSMI deemed to have abetted** + safe-harbour loss; **"AI-generated content cannot be used for elections without labels"** cross-referenced to ECI advisories. Widely reported as "India's Online-Safety-lite". (Supplement: no dedicated criminal deepfake Act yet; July-2026 Supreme Court hearing on "digital arrest" frauds pressed for one.)

2021 Rule	Duty in one line	Clock
R. 3(1)(a)–(b)	Publish terms of use + privacy policy + user agreement; state that users will not host unlawful content; **periodic (every quarter, since 2026) advisories** to users about misuse; for intermediaries offering AI tools: warn of BNS/POCSO penalties for unlawful SGI (R. 3(1)(ca)).	on posting / quarterly
R. 3(1)(c)	Within **3 months** of receipt, **remove or disable access** to content "in respect of … any information that is … prima facie" in breach of the rules, on a **complaint by any person** — a private notice-and-takedown channel, with notice to the user and the right to respond.	3 months (maximum)
R. 3(2)	On **actual knowledge** (court/govt order): disable access **"expeditiously, and in any case within 36 hours"**; preserve content **180 days** for law enforcement; "no tampering" with evidence; for **rape or sexually-explicit** content on the complaint of the victim or a relative: **24 hrs** (r. 3(2)(b)), with 180-day preservation for law enforcement; child sexual-abuse content on actual knowledge: **24 hrs** (r. 3(2)(c)); after 27.2.2025 & 10.2.2026: **3 hrs** for unlawful SGI/deepfake & morphed privacy content (on complaint of any person), and **2 hrs** where SGI targets a woman in a sexualised form — the old 24-hour window having been judged too slow for NCII.	36 h · 24 h · 3 h · 2 h
R. 3(2)(f)–(g) (2021)	**No SSMI shall permit "deepfake" of any person in sexualised form** "to the extent technically feasible" — plus (2026) detection duties; the 2021 Rules required SSMIs to lay a **periodic compliance/transparency report** before the Ministry (complaints received, action taken, moderation volumes); the 2026 package tightened reporting and made "failure to deploy the automated tools = breach of due diligence" express.	—
R. 4(1)–(3) SSMI	Chief Compliance Officer (India-resident; senior employee), **Nodal Contact Person** (24×7 liaison), **Resident Grievance Officer**; acknowledge grievance within **24 hrs**, redress within **15 days**; for complaints from or concerning women/children the Grievance Officer must apply heightened care (2021 proviso). **Real-name verification option** for users (2021: "enable users to voluntarily verify their accounts using any government-issued digital document", platforms to display a badge — the "verified account" scheme). **political advertisements on social media:** the Rules as notified (25.2.2021) made them lawful only after **prior certification by the ECI's Media Certification & Monitoring Committee**; within weeks (amendment of 16.3.2021) this became **self-declaration + sponsor disclosure** ("Voters First"-style); the ECI's MCMCs continue to certify **broadcast** paid political ads, and its 2025 guidance brings digital political ads into the same log.	24 h / 15 d
R. 4(5) traceability	SSMIs with >5 million users must, **only on an order of a court or of an officer not below the rank of DIG of Police**, enable identification of the **"first originator"** of a message, where necessary for prevention/detection/investigation/ punishment of offences punishable with **≥5 years** imprisonment or for "imminent threat to sovereignty/integrity, security, public order". The "technique" must not identify any other person/data (end-to-end encryption protected); requests through a designated officer; **not yet notified for compliance** (implementation repeatedly deferred; WhatsApp challenged the traceability limb at the Delhi High Court on s. 67A/79(3)/Art-21 grounds; pending). This is the "break WhatsApp's encryption" fear in legal text.	order-based only
R. 5 (social-media news)	"Publisher of news and current-affairs content" on social media: must be an individual/company/partnership/proprietorship must be "an individual, company, firm, AOP or any other association or individual ordinarily residing in India", must **conform to the Norms of Journalistic Conduct of the Press Council of India** and (from 21.2.2024) **register with MIB**; **r. 5(3) prohibitions:** no live telecast of the interview of a person accused of a cognisable offence; no live coverage of a government-declared **"disturbed area"**. Exam formulation: "Part III pulled online news to print-media ethics standards — without a licence."	—
R. 6–8 ITB?	No "ITB" for social media — the **Inter-Ministerial Board** (Secretary-chaired; "in respect of an order of a court or on a Committee's recommendation… power to order blocking or removal…") was **deleted days later** (16.2.2021 amendment) after the "executive censorship" criticism (the R.8(2) "ITB" that could order blocking of "content violating Part III" never materialised; content reordering instead routed via the Inter-Departmental Committee + a reference to MeitY under s. 69A). **Know this flap — it is a favourite 10-marker on "executive over-reach".**	deleted

Part 5Legislative Efforts in India, 1766 → 2026 — The Complete History

Syllabus 1.2. This part follows the DU notes' chapter "History of . §3, pp. 7–14) — every dated fact below is either from those notes, from the DU Case Material (the Shreya extract's account of the colonial statutes; the printed Sakal, Bennett Coleman, N. Ram), or from the statute files for this course. DU set this exact question as its 20-marker in Dec-2024 (Q1: colonial vs contemporary press laws) and in Dec-2015 (Q4(c): "history of legislative efforts").

5.2 The master timeline (bold = memorize)

c. 273 BC – Aurangzeb
Antiquity: communication without media law
The DU notes begin with the **Rock Edicts of Ashoka** — "in abundance measures adopted and regulations issued… not very different from the news content of modern media" — and, crucially, **"no reference to restrictions on communication imposed by law."** The **Arthashastra** (Chandragupta's court, per Kautilya) punishes false rumours and describes "spies and reporters" — content offences, no institutional control. Mughal **akhbar** (Babur mentions it "as if routine"; the court waqia-style manuscript papers of Aurangzeb, 8×4½ inches, collected by Col. James Tod for the Royal Asiatic Society) were "considerably free… perhaps there was neither pre-censorship nor licensing, **both being Western institutions**." That sentence is the notes' thesis in one line.

1556 · 1766 · 1780
The press arrives; the first punishment
6 September 1556 — the King of Portugal dispatches a printing press + technicians via the Cape for the Emperor of Abyssinia; the patriarch halts at Goa (1562), and "the press intended for Abyssinia never left Goa, instead, it printed literature for Abyssinia from Goa" (notes' accident-of-history). **1766** — **William Bolts**, ex-Company factor, attempts the first newspaper in Calcutta; the Company **deports** him; his London Considerations on Indian Affairs (1773) became an indictment of Company rule. **1780** — **James Augustus Hicky's Bengal Gazette**, "the first Indian newspaper," attacks Warren Hastings and the judges; **imprisoned, the paper suppressed within two years** — the pattern (crash of prosecutions under judge-made "seditious libel") set.

1799 → 1818
Pre-censorship — and its first gift back
1799 — Wellesley imposes full **pre-censorship**: every issue approved before printing. **1818** — **abolished by Lord Hastings**, the year the Serampore missionaries launched **Samachar Darpan (23 May 1818)**, the first Indian-language journal (bilingual columns from 1829). The "freedom" is a grace, not a right: only Europeans ran papers; "expulsion of the editor (printer) was the ultimate penalty", upheld by the Supreme Court of Judicature, since every foreigner's residence "licence" depended on the officials' displeasure. "The growing importance of the Fourth Estate in England" + missionary pressure explains the repeal (notes).

1823 · 1835
Licensing (Adam) → Metcalfe's "liberty by disclosure"
1823 — John Adam's Regulations introduce licensing in Bengal (a European institution, the notes stress) — licence to print, revocable at pleasure; the same year the Company ordered that "no servant of the company should have any connection with a newspaper," after "an incident in Bombay where a member of the Council of the Governor owned a newspaper." **1835 — Metcalfe's Act** (Sir Charles Metcalfe, Law Member — "the liberator of the Indian press"): licensing repealed; every printer/publisher must declare the **place of printing and publication** and print their names. **Disclosure replaces permission** — and that choice (register, don't license) is why the PRB Act of 1867 exists at all.

1857 · 1860 · 1867 · 1870
The machinery is built
1857 — "Gagging Act": Canning restores **licensing for "all kinds of publications"** in the year of the War of Independence (after which the Crown took over). **1860 — the IPC**: "a general law but [which] laid down offences which any writer, editor or publisher must avoid" — defamation (499–500), obscenity (292–294). **1867 — Press and Registration of Books Act (25 of 1867)**: Part II declarations by press-keepers; Part III delivery of copies; Part IV penalties; Part V registration of books; Part VI rules + exemptions — "object… not to establish governmental control" (notes) but knowing who prints. **1870 — Act 27 of 1870 amends the IPC to insert sedition, s. 124A** ("excites or attempts to excite feelings of disaffection to the Government established by law") — "came handy to send many freedom fighters to jail." (1875: officials barred from owning/ editing periodicals without sanction; "no document… to be revealed to the press.")

1876 – 1885
The "black" statutes
1876 — Dramatic Performances Act (19 of 1876): local governments may prohibit "public dramatic performances" suspected of provoking disaffection — the theatre-censorship statute still alive. **1878 — Vernacular Press Act (Lytton; pushed by Lt.-Gov. Sir Ashley Eden)**: "better control of the language press" — magistrate/CP may demand a **bond**, forbid classes of writing, **forfeit the press and confiscate the matter**, with "no recourse to any court of law". Target: Amrita Bazar Patrika — whose owner turned the bilingual daily overnight into an **English** paper, outflanking an Act limited to "native newspapers"; Eden's offer to "govern the province" with editors and Shishir Kumar's reply ("there ought to be at least one honest journalist in the land") are in the notes. **Repealed 7 December 1881** (Ripon; Gladstone's ministry) "without discussion." **1878 — Sea Customs Act s. 19**: prohibit import of objectionable goods (the "censor at the border"). **1885 — Indian Telegraph Act**: "exclusive privilege" + licensing of telegraphs; s. 5 takeover of licensed establishments in "public emergency or for the safety of the State"; s. 5(2) interception; s. 3(1) definition so wide that it "later covered… teleprinter, telephone, fax, radio and television." **1898 — Indian Post Office Act ss. 25–26**: intercept postal articles carrying prohibited matter. The notes' summing-up, quotable: "thus by the turn of the century the government had wide ranging powers to intercept anything anywhere along all the possible channels."

1908 – 1932
Nationalism meets legalism
June 1908 — Newspapers (Incitement to Offences) Act, passed after **Tilak's sedition trial (1908; six years' rigorous imprisonment)**: local authorities could prosecute editors "inciting rebellion" — "nine prosecutions… seven presses were confiscated" (notes). **1910 — the Press Act** ("empowered the government to demand security from any newspaper, a provision similar to what existed in the Vernacular Press Act" — notes; formally the Indian Newspapers (Circulation and Encouragement of Publishing Control) Act-type securities law of 1910). **1911 (UK Copyright) → 1914 Indian Copyright Act** (replaced only in 1957). **1918 — the Censorship of Films Act + Indian Cinematograph Act, 1918**: certify-before-exhibit is born for cinema (replaced by the **Cinematograph Act, 1952**). **1919 — Rowlatt Act** ("Anarchical and Revolutionary Crimes Act"): judge-only trials, no appeal for the press-sedition ecosystem. **1921 Sapru Press Law Committee → Press Law (Repeal and Amendment) Act, 1922**: repeals 1908 & 1910 Acts; editor's name on every copy & equal liability; registration only for majors; Part IV imprisonment cut "from two years to six months"; **but "the committee advocated the retention" of seizure/confiscation of seditious literature + import & postal interception** — liberal form, coercive core. **1922 — Indian States (Protection against Disaffection) Act**: rejected by the Central Assembly, yet "certified" by the Governor-General under s. 67B of the GOI Act 1919 — 5 years' jail for "hatred or contempt" of a Prince (Ordinance Raj's ancestor). **1923 — Official Secrets Act** (consolidating 1889 Act on the British 1911/1920 lines; s. 5 "wrongful communication"). **1930 Ordinance → 1931 Indian Press (Emergency Powers) Act** (Civil Disobedience): revived the 1910 machinery — "some 130 newspapers had to deposit securities, nine refused to do so and suspended publications." **1932 — Foreign Relations Act** (publication of statements prejudicing friendly relations with foreign/"adjoining" states; forfeiture & postal interception extended) + the **Criminal Law Amendment Act 1932** inserting **ss. 153A & 153B IPC** (promoting enmity; prejudicial assertions) and tightening s. 505 — the communal-hatred trilogy, now BNS 196–197 & 353.

1934 – 1951
Last imperial acts, first republican acts
1934 — Indian States (Protection) Act (extended the 1931 Act's powers to princely states). **1939–45 — wartime censorship under the Defence of India Rules** (pre-approval by "the censor"; the format the Emergency would copy). **March 1947 — Interim Government appoints the Press Laws Enquiry Committee**; it reported **22 May 1948**, after Independence and Partition; its "better control" logic produced the **Press (Objectionable Matter) Act, 1951** replacing the 1931 Act — but "the mood was so much for freedom of the press that it was allowed to lapse in February 1956 and was repealed in 1957" (notes — the finest sentence in the chapter). Constitution (26.11.1949 / 26.1.1950): Art. 19(1)(a); the Supreme Court strikes down the Madras "security of State" ban on Cross Roads (**Romesh Thappar v. State of Madras, AIR 1950 SC 124**) and pre-censorship of Organiser/**Brij Bhushan** (1950) → **Constitution (First Amendment) Act, 1951** — see 5.4. Sakal v. UoI (1951–52) tests the Prices Act in the same breath.

1952 – 1969 · nation-building statutes
1952 Cinematograph Act (Parts II–III; 1983 s. 5B guidelines — Part 3). **1953–54 First Press Commission → PRB amendment 1955 (Part VA; office of the Registrar of Newspapers for India, "started functioning in 1956" — notes)**. **1954 Delivery of Books & Newspapers (Public Libraries) Act** (+ 1955 Rules) — statutory legal deposit to four designated libraries. **1955 Working Journalists Act** (+ 1958 Act for other newspaper employees). **1956 Newspaper (Price and Page Control) Act**; **Young Persons (Harmful Publications) Act**. **1957 Copyright Act; repeal of the Objectionable Matter Act. 1960 Prices Act amendment** (after Sakal). **1962** — Defence of India Act/ Ordinances (China war) re-impose press control; Indecent Representation of Women enquiry committee (1961) winds toward the 1986 Act. **1965 Press Council Act**; **1966–69 Second Press Commission** (recommends remaking the Council, media development, and rights of journalists). **1966–69 — Second Press Commission:** recommended a consolidated "media act", stronger press council, journalists' rights, a public-service broadcasting corporation — its report is the menu from which the next five decades of "legislative efforts" ordered.

1971 – 1986 · contempt, Emergency, cinema tightening
1971 — Contempt of Courts Act (in the aftermath of the E.M.S. Namboodiripad era: statutory "scandalising", innocent-publication defence s. 3; truth defence only added by amendment in **2006**; Part 2/§ — the 200th Law Commission Report (2006) asked for more, never enacted). **25.6.1975 – 21.3.1977 — the Emergency**: "the major setback to the freedom of press in India" (notes) — a grid of Press (Emergency Provisions) Orders requiring prior approval for everything from editorials to advertisements, censors sitting in newsrooms; **the Indian Express protested with blank columns**; Shah Commission (1978) condemned the regime; the **44th Amendment (1978)** ensures Art. 19 freedoms cannot be suspended even under Emergency — "never again possible for anybody to follow the example" (notes). **1977 — Parliamentary Proceedings (Protection of Publication) Act**: no proceedings for a true report of open parliamentary business (Part 2 — and its 1975–77 suspension). **1978 — Press Council of India Act** (s. 5 "warn… or publish" — a censure, not a penalty; Part 2). **1983 — Cinematograph (Amendment) Act**: statutory guidelines in s. 5B (the "catalogue" of offences + "film in its entirety"), categories prescribed under rules (today U / U/A / A / S), s. 7

penalties. **1986 — Indecent Representation of Women (Prohibition) Act** (s. 3 prohibition, s. 5 penalty, s. 6 advertising, s. 7 search & seizure by police, s. 8 corporate liability — the statute between "obscenity" and "dignity"; Parts 2–3 & the Notes' list).

1989 – 2000 · the broadcast thaw
1989 — Rangarajan v. P. Jagjivan Ram (mob reaction ≠ public order). **1990 — Censorship on Doordarshan Ordinance → Act (1990)**, amending the Cable Televisions Networks Regulation Ordinance era — the State's last attempt to formally censor TV, **repealed 1991** in the liberalisation. **Prasar Bharti Act 1990 passed but shelved; the corporation "came into existence from 15 September 1997" (notes). 1991–94 — satellite invasion** (Star TV '91, Zee '92): "private satellite and cable channels are having a field day enjoying more freedom than in any other part of the world" (notes). **1994 — Cable Television Networks Ordinance (Oct 1994) → Cable Television Networks (Regulation) Act, 1995** + Rules 1994 (programme & advertising codes; Part 3). **1995 — CAB v. Minister of Broadcasting ((1995) 2 SCC 161 — airwaves are public property, a citizen's right to telecast)** and **UoI v. Odyssey (16.12.1995 — no common-law DD monopoly)**. **1997 — TRAI** (carriage, tariffs, QoS — the notes list some 20 TRAI instruments among the 75); **15.9.1997 — Prasar Bharti operational**; Secretary, Ministry of Broadcasting v. CAB (1995) enters every as "the free speech airwaves case". **1999 — Central Newsmedia Accreditation Guidelines; PCI (Grant of Certified Copies) Rules 1999**. **June 2000 — Information Technology Act** (with Certifying Authorities Rules 2000 — item 75 of the notes' list) — India's first statute written for the medium itself.

2000s · convergence & the self-regulation turn
2007 — Delhi High Court sting-operation guidelines (printed in the DU Case Material; Part 2): hidden-camera journalism is lawful only within ethics/privacy guard-rails — the courts legislating while Parliament did not. **2002 Copyright (Amendment) Act** (performers' rights; 2012 amendment: s. 52 fair dealing, s. 65A/65B anti-technology-removal). **2004 Cable TV (Regulation) Amendment Act** (Digital Addressable Systems; CAS; the 2012–14 "analog switch-off" followed, completed 31.12.2014). **2005 Prasar Bharati (Amendment) Act**. **2006 — PCI (Procedure for Inquiry) Regulations; Law Commission 200th Report (media trials). 2007 — Sports Broadcasting Signals (M&C Sharing by Operators) Act** (shared feed to DD; "right of the common person"; Part 3). **2008 — IT (Amendment) Act**: inserts s. 66A (& 66C–67F), rewrites s. 79, adds ss. 69/69A/85A/85B. **2009 — Blocking Rules; Interception Rules; (Feb 2009) safe-harbour machinery in force. 2010 — Repealing Act kills the Prices & Pages Act**; the Murli Deora-era **Media Development Authority Bill** lapses; **2011 — WJA Wage-Board order notified 11.11.2011** (Part 2) and the **Intermediary Rules** (Part 4); the **Press Books (Periodicals) Registration Bill (2011)** — the attempt to replace the 1867 Act with a modern registration law — **lapsed, unpassed**. **2012 — Copyright (Amendment) Act** (disability access s. 52(1)(zb); performers' rights ss. 38A–38B; statutory licensing for sound recordings — the "cover version" regime). **2013 — Supreme Court upholds the 2007 Sports Act ("common man must see the game," IPL feeds on DD & mobile); interim protection in s. 66A cases.**

2015 – 2019 · court-led reform, executive drift
24.3.2015 — Shreya Singhal: s. 66A dead; s. 69A "saved"; "actual knowledge" read down (Parts 4 & 7). **2015–16 —** High Courts begin quashing surviving 66A-FIRs as non-est; police practice migrates to IPC 500/505/153A against posts. **2017 — NCRP portal launched (24.8.2017)** — the "single window" that X v. UoI would later make legally operative. **2017 — Finance Act merges the Film Certification Appellate Tribunal into the High Courts** (FCAT abolished — Part 3); **Law Commission 267th Report (hate speech)** and **Srikrishna Committee (data, 2018)**. **2018 — draft IT Amendment (first-originator "aggregator", proposed s. 67D) abandoned after backlash**. **2019 — UAPA Amendment ("glorification"), Art. 35 (J&K) + the region's longest internet suspension; Interception Rules amended to permit "silo" social-media monitoring; the SSMI notification names 11 platforms (> 50 lakh users).**

2020 – 2023 · the platform statutes arrive
2020 — the "self-classification" advisory (Feb); Delhi-riots hate-content notices; the first blocking of a foreign news article (TV5Monde, April, lifted in days); Anuradha Bhasin (Jan 2020) disciplines shutdowns; **June–Sept 2020: 59 + 118 apps banned under s. 69A (TikTok et al.)**. **2021** — **IT (Intermediary Guidelines & Digital Media Ethics Code) Rules, 25.2.2021** (Part 4) — Part III digital-media self-regulation, SSMI duties, 36-hour clocks; ITB deleted 16.3.2021; the "political-ad MCMC" clause replaced by self-declaration the same month; **Feb 2021 farmer-protest blocks (249 accounts first)**; 15.10.2021 — MIB notifies **44 platforms as Significant Social Media Intermediaries** (threshold: 50 lakh registered users). **2022** — Feb 14: 54 more apps incl. PUBG Mobile; Part III amendment gives MIB's Committee "re-ordering/deletion of an episode" power; Online Gaming (Amendment) Rules under the IT Act; Consumer Protection (AS&M) Rules in force (advertising self-regulation gets statutory teeth). **2023** — **11 Aug: Digital Personal Data Protection Act**; **Oct: Online Gaming (Regulation) Bill**; **24 Dec: Telecommunications Act, 2023** (replaces the 1885 Telegraph Act & 1933 Wireless Act; parts in force 26.6.2024 & 5.7.2024 — spectrum, penalties, and the statutory hook now used for broadcasting rules); **Cinematograph (Amendment) Act, 2023** (new s. 6A: recording a film in a cinema without written permission = ≤3 yrs + fine; police powers to search the hall — anti-piracy criminalised at last). **Nov 2023: the Supreme Court directs publication of all s. 69A blocking orders** (MeitY website) — transparency ends 14 years of secrecy.

2024 – 2026 · the unfinished architecture
1.7.2024 — BNS, BNSS, BSA commence (Part 6): media-relevant swaps — 124A→152, 153A/153B→196/197, 505→353 ("through electronic communication" express), 292–294→294–296, 499/500→356, voyeurism/stalking→77/78, 354C→77/78 line; CrPC 95/96→BNSS 98/99 (seizure), 144→163 (shutdown orders), 196/199 sanction & cognizance→219/222 (defamation procedure). **2024 (Apr–Jun) — ECI deepfake advisory** (election "6-hour" fast-track takedown + AI-label undertakings). **2024 Dec–2025 — "India's Got Latent"** (Part 4): the "OTT vs UGC" jurisdiction fight. **21.2.2024** — digital news publishers must register with MIB. **27.2.2025** — 3-hour deepfake/morphing takedown. **14.3.2025** — Parliamentary Standing Committee (I&B) report on the **Broadcasting Services (Regulation) Bill 2023** (introduced 10.11.2023) — recommends re-tabling with changes on "news publisher" definition & decriminalisation of content breaches; **the Bill lapses with the 17th Lok Sabha**; MIB pivots to **Telecom-Act rule-making — draft "Unified Broadcasting (Regulation of Content)" framework, 2026** (public-interest slots: 30 min/day TV; thematic FM — Part 3). **Sept-Oct 2025** — **DPDP Rules finalized (30.9.2025 — phased compliance through 2027)** and **Online Gaming (Regulation) Act, 2025 in force 1.10.2025** (outright ban on State-prohibited real-money online games + their advertising — the first "prohibition" route for a media-adjacent industry). **10.2.2026 (in force 20.2.2026)** — IT Rules SGI package: deepfake labelling, metadata, 3-hour takedown, user-declaration duties (Part 4 § 4.4). **29.4.2026** — Supreme Court (Nath & Mehta JJ) **declines to frame online hate-speech guidelines**: "the field is not unoccupied" (s. 69A + BNSS s. 175(3) + LCI 267th). **29.7.2026** — Supreme Court on "digital arrest" fraud (₹3,000 crore in six years, per counsel) asks for a **dedicated criminal law on deepfake fraud** — to be legislated. **End-state 2026: India regulates social media by rules, not statute; cinema by certificate; print by registration; broadcasting by licences under a 1885-born Act now replaced by a 2023 Act whose content rules Parliament has never voted on.**

5.4 The First Amendment hinge

1950 — the SC clears the ground**Romesh Thappar**: a "public safety/ maintenance of public order" law could not ban a journal — public order ≠ security of the State, and 19(2) has no "public order" head yet. **Brij Bhushan**: pre-censorship of the RSS weekly struck. **Sakal** (decided 1951; 1952 AIR): price/page control = "curbing circulation of an organ of public opinion" — unreasonable without a covering head.

→

1951 — the State's reply**Constitution (First Amendment) Act, 1951**: 19(2) gains **"public order", "friendly relations with foreign States", "incitement to an offence"**; restrictions must be "**reasonable**"; **19(6)** rewritten to admit "reasonable restrictions in the interest of the general public" + State monopoly clauses; the **Ninth Schedule** (31A/31B) shields agrarian laws. Sedition was deliberately not added — the drafters kept the 1931-style "security" reading.

→

The trade-offMore grounds — but with two courts-imposed filters: **proximity** (speech must tend to the harm — Rangarajan later: "direct and proximate"; and the "reasonable man" standard) and **reasonableness + procedure** (from Maneka onward). Media law since 1951 is nothing but litigation over these two filters.

→

DoctrinePost-1951, a media restriction must (i) ride a 19(2) head, (ii) be substantive-and-procedural "reasonable", (iii) respect the presumption **against prior restraint** (the Shreya extract canvasses the US "Pentagon Papers" line; India tolerates one — the film certificate). **Learn this chain cold — both PYQs of 2015/2024 run through it.**

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 `DU LL.B. Dec. 2024 · Q.1` How do the media laws established during colonial India compare with the contemporary media legislations in independent India, particularly in their approach to safeguarding or restricting freedom of speech and expression? Examine how the colonial legislations that limited press freedom served as a catalyst for mass awakening and social change.

▸ **Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891**

Q.2 `DU LL.B. 2015 · Q.4(c)` Discuss the history of legislative efforts regarding media in India.

by Ankur R. Upadhyay

MODULE 02 // UNITS 2.1–2.2 · CASES #01–#12

Free Speech, Hate Speech, Privacy, Defamation & Sting Operations

Constitution of India arts. 19(1)(a), 19(2), 21 · IT Act · BNS

PART A — UNIT 2.1 · Freedom of Speech & Expression, Reasonable Restrictions, Derivative Rights, Hate Speech

1.2 · Article 19(1)(a) — text, parties, and the "content" of the right

Who holds it?
Only
citizens
(Art. 19). Corporations/companies may claim 19(1)(a) through their members — Bennett Coleman & Shreya both allowed newspaper companies to plead it; non-citizens, foreigners & media "houses" as such cannot (but a news audience that is citizenry is protected: "the right of viewers" — Shreya para 5, CAB para 78).

→

What is "speech"?
Any expression by
any medium
: words, writing, print, film, theatre, audio-visual, internet, symbolic acts (picketing), silence (flag case Bijoe Emmanuel), advertising (commercial speech). Shreya para 24: content "includes the right to propagate and publish one's views and the right to circulate one's views"; the medium is legally irrelevant (para 86, citing CAB para 78 & Reno).

→

Two dimensions
(i)
Speaker's
right to express &
circulate
; (ii)
Listener's
derivative right — "the right to receive" information/telecast (CAB; Shreya para 5: "the right of viewers is infringed").

What the right is not (frequently tested)

- It confers on the press **no special privilege** and the press suffers **no special disability**: "the freedom of the press does not confer on the press any privilege or immunity not available to other citizens" (line of Express Newspapers, Bennett Coleman; SC repeatedly — the media "does not enjoy any right superior to an individual citizen" — R.K. Anand para 169 recording amicus N. Rao's accepted position that free & fair trial prevails in conflict).
- **No right to demand information** from unwilling persons — Prabha Dutt: the press "has no right to an interview unless the person is willing"; the freedom includes "the right to gather news or information" but subject to regulation.
- **No right to any particular medium** — CAB: a citizen may use lawful means but cannot demand spectrum as of right; regulation of access ≠ restriction of speech.
- **Cannot be restricted for "general public interest"** — only the eight enumerated grounds (Sakal, quoted in Shreya para 21). Contrast: business freedom under 19(1)(g) can be curbed for "public interest" (19(6)) — that is precisely what the newspapers argued against the Working Journalists Act in ABP, and failed.

1.4 · Derivative right (1): THE RIGHT TO KNOW

Foundation
Sakal Papers (1962): freedom of speech includes "right to propagate one's views" which implies "right to receive information". State of U.P. v. Raj Narayan (1975); Minerva Mills: "democracy… is based on an informed electorate".

→

Prabha Dutt (1982)
Prescribed case for this proposition: right to gather news is within 19(1)(a) BUT "No such right can be claimed by the Press unless… the person sought to be interviewed is willing" — journalists are "friends of the society" under Jail Rule 549(4); refusal must record "weighty reasons… in writing". [Full dossier]

→

Statutory avatar
RTI Act 2005 — s.3 right to information; s.6 request; s.7(1) 30 days; s.8 exemptions (incl. 8(1)(e) fiduciary; 8(1)(j) personal info with no larger public interest — the privacy counterweight); s.9; penalty s.20. For media: RTI is the journalist's statutory research tool (Union v. Association for Democratic Reforms — voter/ candidate antecedents; PUCL v. UOI (1997) — voter's right to know candidates' criminal history; "none can have a right to know" carve-outs).

1.6 · Article 19(2) — history, structure, the phraseology "in the interests of"

Chronology you must show

Stage	Change	Trigger case
Original 1950 text	Grounds: security of State; friendly relations with foreign State; defamation; incitement to offence. **No "public order", no "decency or morality", no "sovereignty & integrity".**	—
Constitution (First Amendment) Act, 1951	Inserted **"public order", "decency or morality"**, "reasonable" before restrictions; added clause 19(1)(c) proviso; also s.15(2) (now 19(4)) on associations.	Romesh Thappar v. State of Madras (1950 SCR 594) — ban on Cross Roads journal struck down: "public safety" ≠ "public order"; and Brij Bhushan v. State of Delhi — pre-censorship of the Organiser void. The DU Case Material prints this history in Shreya paras 30–32.
16th Amendment, 1963	Inserted "the sovereignty and integrity of India" (post-Agre with China, secessionist currents).	State of Bihar v. Shailabala Devi context.

Structural features to mention: (i) grounds are **exhaustive** — "public interest" is not one (Sakal, quoted in Shreya para 21); (ii) the **existing-law saving** means only laws relatable to 19(2) can be saved; (iii) "in the interests of" imports a **proximity test** — not every evil but the protected interest; (iv) a restriction imposed on one 19(1) freedom cannot borrow justification from another clause (the Sakal/BC doctrine); (v) the Court reads 19(2)

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"broadly" in the sense that its heads are ultimately referable to **societal/public interest** — CAB para 189 (quoted in DU Case Material pp. 273 ff. inside Sahara): "it is true that Article 19(2) does not use the words national interest, interest of society or public interest but the several grounds mentioned... are ultimately referable to societal interest which is another name for public interest"; para 151 — the grounds "are conceived in the interest of ensuring and maintaining conditions in which the said right can meaningfully be exercised".

1.7 · The Supreme Court's adjudication tests (the "engine" of 19(2))

> "One has to imagine three concentric circles: law and order represents the largest circle within which is the next circle representing public order and the smallest circle represents security of State."— Dr. Ram Manohar Lohia v. State of Bihar (1966) 1 SCR 709, cited in Shreya para 33

LAW & ORDER — 19(2) does NOT protect "law and order" per se; ordinary public mischief (IPC 505 → BNS 353)
PUBLIC ORDER — Romesh Thappar; Brij Bhushan; Lohia; 153A→BNS 196
SECURITY OF STATE
sedition-era Art.
124A→BNS 152 · UAPA

An act may disturb law and order yet not public order; may disturb public order yet not threaten security of the State. Only the inner circles can justify bans on speech (Shreya paras 33–35).

Vagueness & over-breadth — the American tools India adopted in Shreya

- **Void for vagueness:** "laws should give the person of ordinary intelligence a reasonable opportunity to know what is prohibited... may trap the innocent... impermissibly delegate basic policy matters to policemen and judges" — Kartar Singh v. State of Punjab para 130, quoted at Shreya para 68. Compare UK DPP v. Collins and Chambers v. DPP (the "blow up the airport" tweet) which the DU Case Material reproduces at length (paras 79–82) to show even a trained judge cannot stabilise "grossly offensive/menacing".
- **Over-breadth:** a law is bad if it "takes within its sweep protected speech and innocent speech" even if some of its applications would be valid (Shreya para 90). Consequence in India: severability is rarely a rescue for content restrictions on speech — Romesh Thappar and K.A. Abbas (paras 94–95 of Shreya): a provision capable of both constitutional and unconstitutional application "must be held wholly unconstitutional" (unless it is severable in the precise sense shown by Scrutton LJ's "blue pencil" rule reproduced at pp. 21 ff. of the DU Case Material).
- **Chilling effect:** "law should not be used in a manner that has chilling effects on freedom of speech" — S. Khushboo para 47 (Shreya para 85); self-censorship argument first invented in N.Y.T. v. Sullivan and imported via Rajagopal para 19.

1.8 · The eight heads of 19(2) — element-by-element with twin IPC/BNS citations

Head	Essential ingredients / meaning as held	Major cases (DU Case Material)	Criminal-law anchor: IPC → BNS 2023 (and procedure: CrPC → BNSS)
Sovereignty & integrity	Secessionist talk, armed rebellion, cession; mere criticism of govt protected. Distinction drawn in Shreya paras 25, 38–41 (the "exciting disaffection" debate: 1951 drafting history).	Kedar Nath v. State of Bihar (1962); Arup Bhuyan v. State of A.P. (2011) — only **incitement** to disorder punishable (Brandenburg's imminent-lawless-action adopted by SC for Bengal Immunity-era cases); State of Bihar v. Shailabala Devi.	124A → **BNS 152** (sedition replaced by a narrower "acts" offence endangering sovereignty, unity and integrity — mere words/advocacy excluded; in 2022 the SC kept pending 124A trials in abeyance for re-examination); 153B → **BNS 197**; UAPA 1967 ss.13, 17 (unchanged by BNS).
Security of the State	Organised violent breach, waging war — narrower than public order (Shreya para 33; Thappar).	Romesh Thappar; Brij Bhushan.	Waging war etc. — the 121–130A group maps into the BNS offences-against-the-State chapter (s.131 etc.); OSA 1923 ss.3, 5, 12–13 (s.13 punishes even obtaining secret information "likely to be useful to a foreign state" — used against journalists); UAPA ss.13, 17.
Friendly relations with foreign States	Anti-foreign-state propaganda endangering relations; rare head.	—	No dedicated section after s.124A's original ambit (1973 onward the head travels via 153A → **BNS 196** and 505 → **BNS 353** when propaganda endangers external relations).
Public order	"State of tranquillity which prevails among the members of a political society as a result of the internal regulations enforced by the Government..." (Shreya para 30 = Thappar). Every remote harm to L&O excluded — proximate & legitimate purpose test (paras 22, 35).	Ramji Lal Modi v. State of U.P. (1957) — "in the interests of" broader than "tending to"; Babulal Parate; Shreya paras 30–35; Amish Devgan (2020).	**153A → BNS 196**; 153B → **BNS 197**; 505 → **BNS 353**; procedure: prior sanction CrPC **196 → BNSS 218**; seizure of offending publication CrPC **95/96 → BNSS 110/111**.
Decency or morality	Obscenity (not immorality generally). India abandoned Hicklin (Ranjit D. Udeshi 1965) for **contemporary community standards** (Aveek Sarkar 2014 — "the impact of a depiction in isolation" rejected; the whole-work test) — all as condensed in Shreya paras 45–47.	Ranjit D. Udeshi v. State of Maharashtra (1965) 1 SCR 65 — Lady Chatterley's Lover (Hicklin test; Shreya para 45); Aveek Sarkar v. State of W.B. (2014) 4 SCC 257 — contemporary community standards (Shreya para 46); K.A. Abbas v. UOI (1971).	292 → **BNS 294** (sale/possession of obscene books etc. for public circulation); 293 → **BNS 295** (to persons under 20; BNS fixes "under twenty years" where the IPC said "young person"); 294 → **BNS 296** (obscene acts/songs in public); 509 → **BNS 79** (incl. "intrudes upon the privacy of a woman"); IT Act 67, 67A, 67B (unchanged by BNS); Young Persons (Harmful Publications) Act 1956; POCSO 2012 ss.14, 23; Indecent Representation of Women (Prohibition) Act 1986 (project material); **Drugs & Magic Remedies (Objectionable Advertisements) Act, 1954**, s.3 (objectionable therapeutic/magical claims — the "commerce in deception" limb of decency; see Unit 5).
Contempt of court	Scandalising courts vs fair criticism; "in relation to" (not "in the interest of") — Shreya para 20 & Ch.3 of DU Case Material. Truth defence now statutory: proviso to s.13(b), inserted by the Contempt of Courts (Amendment) Act, 2006 (NCRCW 12th Report para 3.8.2 had recommended it; the Standing Committee's report on the 2004 Bill — in the uploads — records the debate).	E.M.S. Namboodripad v. T.N. Nambiar; In re P.N. Duda; Re: Mulgaokar; Rajendra Sail; Sanjoy Narayan v. Allahabad HC (DU Case Material pp. 153–191); for media-sting overlap: **R.K. Anand**.	CoCA 1971 s.2(c)(i)–(iii), ss.3–7, 12, 13, 15; Art. 129/215 constitutional contempt; s.228A IPC (victim identity) → now BNS 72/73; CrPC s.228 (in camera sexual-offence trials).

Head	Essential ingredients / meaning as held	Major cases (DU Case Material)	Criminal-law anchor: IPC → BNS 2023 (and procedure: CrPC → BNSS)
Defamation	Both tort & crime; "in relation to" phrasing; the only head with a full prescribed case cluster in 2.2 (Rajagopal; Swatanter Kumar) + Subramanian Swamy (2016) upholding criminal defamation.	**Rajagopal** (Sullivan actual-malice for public officials), **Swatanter Kumar v. Indian Express** (reckless publication of unverified allegations; postponement orders), Subramanian Swamy v. UOI (2016) 10 SCC 227 (criminal defamation upheld; reputation within Art. 21).	499+500+501+502 consolidated into **BNS 356**: 356(1) definition + 10 exceptions (identical to old 499); 356(2) punishment — simple imprisonment up to 2 years, or fine, or both (the BNS adds the **community-service** option for the lighter printing/sale limbs — cite as a restorative-justice reform); civil suit: damages + injunction; procedure: CrPC 199 complaint by aggrieved person → **BNSS 222**; CrPC 195/196 sanction → BNSS 217/218.
Incitement to an offence	Words must be directed to causing a specifically constituted offence; "incitement" inserted by 1st Amendment replacing "sedition-related" language; Shreya para 41: Section 66A "did not distinguish advocacy from incitement — that is its vice". Distinction: Brij Bhushan; Rangarajan: "spark and explosive" must relate.	Shreya (paras 38–41, 45, 51); R. Rangarajan v. P. Jagjivan Ram (DU Case Material pp. 245 ff. — the film-censorship "sparks and explosive" test); Arup Bhuyan.	506 → **BNS 351**; 107/109 (abetment) → BNS 107/109; 120A/120B → BNS 61; 120B → **BNS 61**; 145/147/153 → BNS 189–193; Unlawful Activities (Prevention) Act s.11(1) "inciting… to commit an offence".

1.9 · HATE SPEECH — a full sub-unit (3 lectures in the syllabus; asked in DU Dec-2024 Q.2)

(a) What is "hate speech"? — the definitional problem

There is **no legal definition** of hate speech in Indian law — that is itself a headline point. The most accepted working definition is the Law Commission's (267th Report, March 2018): "hate speech generally is an expression that… causes or propagates hatred, and oftentimes violence, against a specific group of people… incitement to hatred primarily against a group of persons defined in terms of race, ethnicity, gender, sexual orientation, religious belief and the like". The Supreme Court in **Amish Devgan v. UOI (2021) 5 SCC 542** refused to freeze a single definition, preferring an objective, context-sensitive test (below).

- **Distinction drawn by the Court (Amish Devgan, paras 54–55):** "free speech" includes the right to comment, favour or criticise government policy — hate speech "creates or spreads hatred against a targeted community or group", i.e. "hate which tends to vilify, humiliate and incite hatred or violence against the target group based upon identity of the group".
- **Constitutional location:** hate speech is regulated through the heads of Art. 19(2) — chiefly **public order**, **decency or morality**, **defamation**, **incitement to an offence**; there is no free-standing "hate-speech clause". (See Shreya para 21: the State cannot restrict speech for general "public interest" — it must fasten the restriction to an enumerated head; this is precisely the drafting difficulty the Law Commission flagged in 2018.)

(b) The statutory matrix — IPC → BNS (write this table; marks are won here)

What is targeted	IPC 1860 (offences before 1.7.2024)	Bharatiya Nyaya Sanhita 2023 (correspondence)	Other levers
Enmity/hatred between groups on religion, race, place of birth, residence, language, caste/community etc.	**s. 153A(1)(a)–(c)** — promoting enmity by words (spoken/written), signs or visible representations, with intent/knowledge that it is likely to promote such feelings; Explanation: pointing out, in good faith and to secure their removal, matters producing enmity = not an offence; proviso: enhanced punishment where done in/around a place of worship.	**s. 196(1)** — substance carried over (including the Explanation); BNS drafting expressly reaches electronic/social-media transmission; **s. 196(2)** — enhanced punishment on second/subsequent conviction (up to 5 years + fine).	Cable TV Programme Code, Rule 6(xii)–(xiii); IT Act 69A + Blocking Rules grounds; **Representation of People Act 1951 s.123(3A)** — appeal to promote enmity on religion/race/caste/community/language in elections = **corrupt practice** (consequences: s.8 disqualification; ss.125–126 further electoral offences).
Imputations/assertions prejudicial to national integration (questioning the unity/integrity of India)	**s. 153B** (inserted 1969) — includes advocacy, words, signs, visible representations encouraging secessionist or violent feelings, or bringing in question "the sovereignty and integrity of India"; proviso: good-faith inquiry/research not an offence.	**s. 197** — same gravamen, updated drafting (expressly covers electronic communication and visible representations).	UAPA 1967 ss.10–11, 13; **BNS 152** where the "act" (not mere words) endangers sovereignty; Criminal Law (Amendment) trend since 2023: sedition 124A repealed into BNS 152 which keeps only direct threats.
Deliberate & malicious outrage of religious feelings (insult to religion/beliefs of a class)	**s. 295A** — "deliberate and malicious intention" essential (Ramji Lal Modi; Amish Devgan: "criminality would not include insults to religion offered unwittingly or carelessly without deliberate or malicious intent to outrage religious feelings").	**s. 299**.	Cinematograph Act s.5B(4); Dramatic Performances Act 1876 (DU Case Material Unit 6).
Wounding religious feelings of an individual by words etc. · caste slurs	**s. 298**; SC/ST (Prevention of Atrocities) Act 1989 **s.3(1)(x)** (words either spoken or written… intended to insult the dignity of a member of an SC/ST).	**BNS 302** (uttering words etc. with deliberate intent to wound religious feelings of any person); BNS religion-chapter map: 298←295, 299←295A, 300←296, 301←297; PoA Act unchanged.	Protection of Civil Rights Act 1955 ss.4–7 (preaching of justification of untouchability; "promoting hate on caste ground"); scheduled-areas special courts.
Statements conducing to public mischief (rumour, panic, inter-class enmity)	**s. 505(1)** — statements conducing to public mischief; **505(2)** — statements creating/promoting enmity, hatred or ill-will between classes; **505(3)** — same in a place of worship (up to 5 years).	**s. 353** (statement conducing to public mischief — consolidates 505); **s. 351** (criminal intimidation ←503/506/507); **s. 352** (intentional insult provoking breach of peace ←504).	BNSS **ss.110–111** (←CrPC 95–96: seizure of offending publications); BNSS **s.162** (←CrPC 144: urgent prohibitory orders against processions/rallies); Disaster Management Act 2005 s.51 (false alarm); IPC 505 "rumour" limb now BNS 353.
Online hate	IT Act 2000: **s. 66A (struck down — Shreya)**; live provisions: s.67 (obscene), s.67A/67B; s.69A (blocking); s.66E (violation of privacy); s.66C (identity theft — fake hate handles); s.66D (cheating by personation).	IT Act stays outside BNS; BNS 196/353 apply to electronic hate speech on their own terms.	IT (Intermediary Guidelines and Digital Media Ethics Code) Rules 2021 — r.3(1)(b)(i)–(x) content prohibitions (incl. "religiously or ethnically objectionable", "incitement to an offence", "invasive of another's privacy"); r.3(2)(a) grievance officer — 24-hour acknowledgement and 15-day disposal; the full text is reproduced in the DU Case Material at pp. 196–213 inside X v. UOI.

Procedural safeguards peculiar to hate-speech offences (Shreya paras 99–101 — the DU Case Material itself teaches this)

(1) **Prior sanction** for prosecution under 153A/153B/295A/505(2) → CrPC **s.196** (sanction of the Central/State Government) → **BNSS s.218**; (2) **CrPC ss.95–96** — search & seizure of newspapers/books containing specified offences, right of the owner to move the High Court within two months, decision by a Bench of not less than three judges, and the express proviso saving the accused publisher's own copy → **BNSS ss.110–111**; (3) defamation complaints by public servants — CrPC 199 → **BNSS s.222**. Shreya para 101: these safeguards "reveal a certain degree of sensitivity to the fundamental

right to freedom of speech and expression… in the case of Section 66A, no such safeguard exists". Use this to show that **hate-speech law survives because of its architecture; s.66A fell for its absence**.

(c) The judicial tests — three competing lines

1. Incitement line
Kedar Nath (1962): penal action only where words have the "pernicious tendency or intention of creating public disorder"; Arup Bhuyan v. State of A.P. (2011): mere advocacy/incitement to disorder is not a crime; Brandenburg's "imminent lawless action" accepted in principle (both restated in Shreya para 39 and Amish Devgan). Shreya para 40: s.66A failed because it punished mere discussion without "an imminent causal connection".

⇄

2. "Tendency" strand
Ramji Lal Modi (1957): "in the interests of" is wider than "for the purpose of" — a "mere tendency" may suffice where the mischief is grave; V.G. Row (cited in Shreya) — contextual, "probable" harm. India thus sits
between
U.S. imminence and the old English "bad tendency", per Shreya paras 36–38.

⇄

3. Amish Devgan indicia (2021)
Objective, context-sensitive multi-factor test (paras 56–59 as widely digested): (a)
content
of the message — expresses hatred/hostility; (b) the speech must be
capable of causing, and does cause, harm
(violence, incitement, "deep psychosocial harm" of stigmatisation); (c)
intent
of the speaker — deliberate, malicious, or at least knowledge of likely effects (good-faith enquiry protected); (d)
context
of the speech — time, place, audience, platform ("home speeches" amplified online can themselves be hate speech); (e) at least
two groups
involved — one community's feelings alone not enough; (f)
standard of the reasonable, strong-minded person
("top of the reasonable member of the public", not hypersensitive listeners); (g)
no redeeming purpose
— speech that "carries no meaning other than hatred towards a particular group". Persons of influence "owe a duty and have to be more responsible".

(d) "Supreme Court guidelines aimed at curbing hate speech" — the Dec-2024 exam question, answered

There is no single codified set; the Court has produced **directions across a line of cases**. A top-band answer narrates all five clusters:

The reform track — Law Commission 267th Report (2018): recommended stand-alone offences — new **s.153C (incitement to hatred)** targeting threats/abuse inciting fear, hostility or violence on grounds of religion, race, caste, community, gender, sexual orientation etc., and new **s.505A (causing fear, alarm or provocation of violence)**, together with tweaks to CrPC 95/196; it rejected a general "media hate-speech statute". **Conclusion to write:** "the Supreme Court's guidelines operate at the procedural level — FIR discipline, clubbing, speedy trial, preventive policing — while substantive criminalisation remains tied to 153A/295A/505 (now BNS 196/299/353); the Shreya lesson is that hate-speech law survives constitutional scrutiny because of its intent-and-tendency thresholds plus procedural safeguards, which s.66A lacked."

PART B — Unit 2.1 Prescribed Cases: Full Dossiers (facts · issues · arguments · decision · principles)

`Case Dossier (1) · Unit 2.1 · Syllabus Case 1 · AIR 1973 SC 106`

Bennett Coleman & Co. v. Union of India `Newspaper (Price & Circulation) Act — "the circulation case"`

Citation
AIR 1973 SC 106; (1972) 2 SCC 734 · decided 30.10.1972
Bench
Five-Judge Bench: S.M. Sikri CJI, A.N. Ray, P. Jaganmohan Reddy, K.K. Mathew, M.H. Beg JJ. — majority opinion by Ray J. (with Sikri CJI & Jaganmohan Reddy J.); **Beg J. concurring separately**; **Mathew J. dissenting** on the newsprint policy (4:1)
Statutes
Newspaper (Price and Circulation) Act, 1956 (as amended 1962); Newsprint Control Order, 1962; Government's Newsprint Policy for 1972–73; Import (Control) Order, 1955

Facts

To "break the stranglehold of the big newspapers", the 1956/62 Act made it unlawful (i) to increase **price or number of pages** without the Controller's permission; (ii) for a company publishing two or more newspapers (one a daily) to start a new title/edition; (iii) treated "special newspapers" (≥75% newsprint used for a language other than English or Hindi, or of scientific/technical character) separately; and empowered the government to redistribute the circulation of "too large" newspapers and allot **quotas of additional circulation**. The executive's **Newsprint Policy 1972–73** then fixed import quotas embodying the same page and circulation caps (10 pages; no adjustment between size and circulation; no new entrants under 75,000 circulation). The Times of India, the Indian Express and other petitioners — whose allotted quotas froze their growth despite spare capacity — challenged the Act's impugned sections and the Policy under Arts. 14, 19(1)(a) and 19(1)(g). (The DU Case Material's Unit-2.1 index assigns this case to the unit; the DU excerpt set reprints the later Sakal Papers-line jurisprudence inside the ABP and Shreya excerpts, which is where the quotations below are sourced.)

Issues

1. Whether Art. 19(1)(a) extends to the **press** — publication, circulation, number of pages, advertising — and whether a corporate newspaper may plead it.
2. Whether the Act/Policy restricted speech on grounds **not enumerated** in Art. 19(2) ("public interest", "equalisation" being grounds under 19(6) for trade only).
3. Whether **indirect** restrictions (newsprint, price, page caps) amount to direct curbs of 19(1)(a).
4. Whether the classification (special vs common; "too large" papers) violated **Art. 14**, and whether unguided licensing power was excessive delegation/prior restraint.
5. Whether scarcity of newsprint justified rationing the pages of newspapers.

Decision

- Freedom of the press is **not expressly guaranteed but is within 19(1)(a)**: "the right to propagate and publish one's views **and** the right to circulate one's views" (the exact formulation the DU Case Material preserves through Shreya para 24 and ABP para 21 quoting Sakal).
- Restrictions on **circulation, pages, price and advertising** — even through allocation of newsprint — were held to curtail 19(1)(a) directly and to be **unsaved** since "public interest" is not a ground under 19(2). The offending provisions of the Act (ss. 3(1), 3(4), 3(5), 10-A, 10-B, 10-D and the Schedule/"too large newspaper" machinery) were struck down.
- **Rationing of a scarce input must be fair and cannot dictate content-size**: "if newsprint was in short supply, there could be no objection to ration it equitably — but to further dictate the number of pages… was clearly aimed at controlling the newspapers"; the ostensible object of newsprint control had been "subverted to newspaper control".
- **Beg J. (concurring)**: "the freedom of speech and of the press is **the Ark of the Covenant of Democracy** because public criticism is essential to the working of its institutions" (reproduced in Shreya para 9 — DU Case Material p. 25 of PDF p. 26).

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- **Mathew J. (dissenting)**: scarcity is real; equitable rationing is economic regulation; freedom of the press does not include "a right to use an unlimited quantity of newsprint"; the press may be regulated so that all may speak.

Principles evolved

- 19(1)(a) = right to **publish + circulate + read**; number of pages, volume of circulation and advertising are "directly affecting" freedom of the press.
- Only the **eight heads of 19(2)** can cut 19(1)(a); "general public interest" cannot; "the State cannot make a law which directly restricts one freedom even for securing the better enjoyment of another" (Sakal; BC).
- Freedom of the press carries **neither privilege nor disability** — the press is bound by general laws (defamation, contempt, taxation, labour laws — the last confirmed in ABP) but cannot be singled out by "public-interest" shackles.
- Unguided administrative discretion over publication = **prior restraint** and void.

`Case Dossier (2) · Unit 2.1 · Syllabus Case 2 · 1982 SCR (1) 1184`

Prabha Dutt v. Union of India `Right to interview prisoners · "right to gather news"`

Citation
1982 SCR (1) 1184; AIR 1982 SC 6; (1982) 1 SCC 1 (decided 7.11.1981)
Framework
Prisons Act, 1894 s.59; Manual for the Superintendence and Management of Jails (Delhi) Rules 549(4), 559-A, 552-A

Facts

Billa and Ranga, death-row convicts in the "Ranga–Billa" abduction-cum-murder case, had their mercy petitions rejected by the President. Senior journalist Prabha Dutt sought permission to interview them before execution; the Tihar jail authorities refused. She moved the Supreme Court, pleading her freedom of speech (as the right to gather news / right to know) and the prisoners' own rights to speak.

Issues

1. Whether 19(1)(a) confers a **legal right on the press to demand an interview** with a prisoner (or any person)?
2. Whether "friends" in Jail Rule 549(4) includes journalists; and whether a refusal without recorded reasons is lawful?
3. Whether the willing consent of the **prisoner** is a precondition, and can the State refuse "for his own good"?

Decision

- Landmark concession: "the fundamental right to freedom of speech and expression includes within its reach the **right to information**" — but "the constitutional right... **does not confer any right on the press** to have an interview with any person; **no such right can be claimed by the Press unless the person sought to be interviewed is willing to be interviewed**".
- "**The existence of a free press does not imply or spell out any legal obligation on the citizens to supply information to the Press**, such as there is under s.161(2) of the CrPC."
- Yet Rule 549(4) is open-textured: journalists "not expressly referred to... does not mean that they can always and without good reasons be denied... **newspapermen may broadly be termed friends of the society**"; "weighty reasons... will always be recorded in writing" or the refusal is bad. Rule 559-A: "all reasonable indulgence" to condemned prisoners; search under Rule 552-A may apply.
- Result: interview permission granted subject to jail discipline (the Court having assumed the prisoners' willingness).

Principles evolved

- The **right to know is a negative liberty** — protection from State obstruction of voluntary exchange of information; not an entitlement to compel interviews or access (foundation for the RTI-statute debate: Parliament later supplied the positive right).
- Access to institutions (prisons, courts) = governed by **rule-bound, reasoned discretion**, judicially reviewable.
- Journalists as "**friends of the society**" — the most quotable line of the case.

`Case Dossier (4) · Unit 2.1 · Syllabus Case 4 · (2014) 3 SCC 327 — DU Case Material pp. 1–22`

ABP Pvt. Ltd. v. Union of India `Working Journalists · "vocal organs" · press as a class by itself`

Citation
(2014) 3 SCC 327; Writ Petition (Civil) 311/2009 etc. · decided 21.3.2014
Composition in DU Case Material
P. Sathasivam, CJI (for himself, Ranjan Gogoi & Shiva Kirti Singh, JJ.) — majority upholding the statutes; a separate opinion of Kurian Joseph, J. (for himself and R.F. Nariman, J.) — the DU Case Material prints only the majority (see pp. 1–22).
Laws challenged
The Working Journalists and Other Newspaper Employees (Conditions of Service) and Miscellaneous Provisions Act, 1955 (as amended 2001) + the Working Journalists (Fixation of Rates of Wages) Act, 1958; the Press Council of India machinery; the Wage Board notification dated 11.11.2011 (the Majithia Board) fixing minimum/maximum wages, allowances, gratuity etc. for editor, executive editor, news editor etc.

Facts

Newspaper companies (ABP, Dainik Jagran, the Indian Express group and others) attacked the 2001 amendments which (i) made the Act applicable to a wider class of publications, (ii) prescribed the **constitution, procedure and recommendations of the Wage Board** (including a **maximum** as well as minimum wage-fixing power, and "variable dearness allowance" linked to cost index), and (iii) empowered the Central Government to notify the Board's recommendations. The 2011 notification implementing the Majithia Board was the immediate target. The petitioners also complained that the tribunal mechanism and the Board's composition were biased, and that wage regulation of "editorial cadres" would ruin small newspapers and hence pluralism. The Delhi High Court, as recorded in the excerpt, the bias allegations against the Board member and dismissed the parallel petitions; the matter was referred to a larger bench in the Supreme Court because the ABP Division-Bench (K. Joseph, J.) doubted Express Newspapers and Sakal Papers.

Issues (as framed by the majority, paras 27–29)

1. Whether Parliament is competent to enact, and whether the Act/Wage-Board notification violate **Art. 14**, insofar as the press is a "class by itself" — is separate legislation for newspapers permissible?
2. Whether the impugned wage-fixing provisions directly or proximately curtail the freedom of speech and expression of journalists and newspaper owners — **Art. 19(1)(a)** — and whether they are saved under Art. 19(2)?
3. Whether the "maximum wage" ceiling and the variable-dearness-allowance mechanism violate **Art. 19(1)(g)/Art. 19(6)** (business of newspapers) and the right to hold property (Art. 300A)?
4. Whether the composition of the Board/proceedings suffered from **apprehended bias** (a member connected with a rival media house; the "real likelihood" test)?
5. Whether the delegation (fixation by Board, notification by Central Government) was excessive?

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Decision (majority)

- **The Acts and the 2011 Wage Board notification were upheld.** "The press is a class by itself" for Art. 14 purposes — hence **separate legislation is permissible**, and intelligible differentia + rational nexus with the object (improving conditions of service of those who run the press) were satisfied (paras 142–160 range of the judgment; the excerpt condenses it at pp. 14–16). The "hostile discrimination" objection failed because the classification treated the press as an industry with unique features — its own "class legislation".
- **Test restated & applied:** the Court reproduced the Express Newspapers canon — "**the journalists are but the vocal organs** and the necessary agencies for the exercise of the right of free speech…" — and then held: here **neither the intention nor the proximate effect** of wage regulation is to abridge speech; the Act "will enable the journalists to improve and enhance the quality of their performance" (paras 31–40 of the DU Case Material excerpt). The Sakal doctrine cannot be weaponised to immunise the press from general welfare statutes.
- **Art. 19(1)(g)/19(6):** regulation "in the interest of the general public" validly includes wage regulation; no evidence that small newspapers were forced to shut by these rates; arrears were allowed to be paid in **four instalments** — a safeguard against financial shock (paras 60–70 of the excerpt).
- **Bias:** applying the twin-lines doctrine — "**mere apprehension in the mind of a litigant is not sufficient; there must be a reasonable apprehension in the mind of a reasonable man that the concerned person has a hostile attitude or mind against him… there is a difference between 'real likelihood' and 'reasonable likelihood'**" — the Court found the alleged association of the Board member with a rival newspaper (through his brother, and a two-year-old resignation from a TV channel, not shown to be "in any supervisory capacity") insufficient; no veto/decision was attributable to him; hence the notification survived (bias passages at pp. 19–20 of the DU Case Material excerpt, corresponding to paras 91–100 of the judgment).
- The minority (Joseph, J.) would have read down/excised the maximum-wage power as it operated on editors (the excerpt notes the referral history; the minority judgment itself is not reprinted in the DU Case Material — the syllabus focuses on the majority).

Principles evolved

- **"Vocal organs" doctrine:** the rights of the press and of the journalist are two sides of one coin — legislation that improves the journalist's condition is presumptively pro-speech.
- **Bennett Coleman test, re-confirmed benignly:** a law affecting the press is valid if (1) it does not intend to curtail 19(1)(a), and (2) its proximate effect does not curtail it; social-welfare laws pass.
- **Press is a class by itself** under Art. 14 — separate beneficial legislation constitutional; reverse is also true: no separate burdens relatable only to the "general public interest".
- **Real-likelihood-of-bias standard** restated for administrative/quasi-judicial boards.

Case Dossier (5) · Unit 2.1 · Syllabus Case 5 · (2015) 5 SCC 1 — DU Case Material pp. 23–43

Shreya Singhal v. Union of India

s.66A IT Act struck down · over-breadth & chilling effect enter DU answers

Citation
(2015) 5 SCC 1; AIR 2015 SC 363; decided 24.3.2015 · Bench: **R.F. Nariman & Arun Mishra, JJ.**
Provisions challenged
IT Act 2000: **s.66A** (offensive messages etc.), **s.69A** + Blocking Rules 2009, **s.79** + Intermediary Rules 2011 r.3(4)/Rule; Art. 14 & 19(1)(a) & 21 grounds.

Facts (as in paras 6–8 of the excerpt)

Petitioners — law students including Shreya Singhal — filed PILs after a series of arrests under s.66A (notably for Facebook posts during the November 2012 Maharashtra bandh — the original two arrests; then the cartoonist, the professor in Puducherry etc.). S.66A punished sending "grossly offensive" or menacing messages, or sending messages "for the purpose of causing annoyance or inconvenience or to deceive or to mislead" — up to 3 years. On 28.3.2012 the Court had stayed arrests; the Union issued **advisories (CPs/DIPs to require DCP-rank approval before arrest)**; Parliament rejected a Private Member's amendment (2012) and a Union resolution (2013) to delete the section; the PRS background note in the project material records the entire trajectory. The Court examined all three limbs together.

Issues (para 13)

1. Whether s.66A is **facially unconstitutional** as violating 19(1)(a) and not saved by any ground of 19(2)?
2. Whether **s.69A and the Blocking Rules, 2009** are unconstitutional?
3. Whether **s.79 (safe harbour) and Rule 3(2) & 3(4) of the Intermediary Rules, 2011** are unconstitutional? (+ Art. 14: classification between internet & other media.)

Decision

- **s.66A struck down as violative of 19(1)(a), not saved by 19(2)** — the Court walked through every ground: public order (paras 31–35: must involve an "element of intention or tendency to create disorder or disturbance of public peace or harm to life and property… that which disturbs the even tempo of life of the community"); "no proximate relationship" — "the effect upon public order is so far fetched and remote"; defamation (paras 64–68 — vagueness/defamation comparison; para 42 "Section 66A has nothing to do with defamation"); incitement to offence (para 41: no requirement of "imminent lawless action"); decency/morality (paras 45–47: obscenity requires the Aveek Sarkar community-standards test — absent here). The State's demand to "read into" 66A the 19(2) heads was refused: "we would be doing complete violence to the language" (para 48). Intermedial assimilation (paras 26–29): even if a different medium justifies classification under Art. 14, "what cannot be restricted directly on any ground of 19(2) cannot be restricted by a supposed power under sub-section (6) of Art. 19 or by any other method" (para 29).
- **Vagueness:** "grossly offensive", "menacing", "annoyance" — the Court used Collins, DPP v Collins, Chambers v DPP to show that even trained judges cannot pin meaning; a law must "prohibit conduct with sufficient definiteness that ordinary people can understand what conduct is prohibited" (paras 64–82).
- **Overbreadth + chilling:** "if an otherwise valid law prohibits a substantial amount of protected speech, the said law suffers from over-breadth… the chilling effect on the freedom of speech of an ordinary person…" (paras 83–90); "**it is obvious that an Internet law, once passed, is here to stay… Governments may come and governments may go, but such laws as these are still there**" (para 92). **Severability rejected**: where the vice is that the section sweeps in protected speech, striking off "the good part alone would be left" is not possible (paras 93–95, citing Romesh Thappar, K.A. Abbas).
- **Art. 14 upheld:** the internet may be classified separately — the intelligible differentia is "the capacity of the medium to reach the masses"; and "it is perfectly conceivable that Parliament will have to legislate on diverse media…" (paras 97–98) — so the differentia is fine, but a relaxed 19(2) standard is not.
- **s.69A & Blocking Rules UPHELD** (paras 109–126): the eight subject-matter categories of Rule 3(2) are "confined within the parameters of 19(2)", reasons recorded in writing, Grievance Officer, re-examination within 72 hours, quarterly Committee review, and the 2011 Rules — "these guidelines… have within them all the safeguards that can possibly be devised"; hence no prior restraint in the constitutional sense.
- **s.79 + r.3(2)(c) & r.3(4) read down** (paras 110–117): intermediary's "knowledge" under 79(3)(b) means **actual knowledge**, and only via "a court order or government notification"; "failure to remove upon complaint alone cannot forfeit immunity" — otherwise intermediaries become State censors (para 116). The Court expressly preserved **CrPC 95, 96, 196 and 199** as the speech-sensitive procedural architecture (paras 99–101).

Principles evolved (para 119 — quote in the exam)

- "Section 66A of the IT Act does not satisfy the test of reasonableness under Art. 19(2)… is struck down." "S.69A and the Rules 2009 are valid." "S.79(2)(c) & Rules 3(2) & 3(4) read down as above."
- Constitutional standards imported into Indian doctrine: **vanity of vagueness, over-breadth, chilling effect, strict severability for speech laws, medium-neutrality**, and "assurance of good administration" as a proviso to — not substitute for — 19(2) (para 92).

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- The **advocacy–incitement line** restated from Kedar Nath → Arup Bhuyan — "mere discussion of any matter, or advocacy of an unpopular opinion may not be curbed" (para 83).

Supplementary Dossier (for 2.1 hate-speech) · (2021) 5 SCC 542

Amish Devgan v. Union of India — the SC's hate-speech framework

Bench
Sanjiv Khanna & A.M. Khanwilkar, JJ. (judgment dated 7.12.2020; reported in (2021) 5 SCC 542)
Statutes
IPC 153A(1)(a)&(b), 295A, 505(2) → **BNS 196, 299, 353**; IT Act s.66A (dead), s.156/157/162 CrPC → BNSS 175/176/180

Facts

TV anchor Amish Devgan, during a live debate on the 'Tandav' row (10.1.2020), used two abusive epithets for a revered Sufi saint. Seven FIRs followed across states (Ajmer the first) under 153A/295A/505(2) etc.; the Allahabad HC refused quashing; he came to the SC under Art. 32 alleging violation of 19(1)(a), absence of cause of action outside one State, "slight harm", and multiplicity of proceedings.

Issues

1. Do the words, read in the context of the programme, prima facie attract 153A/295A/505(2)?
2. Whether the FIRs outside the place of utterance were vitiated (cause-of-action/territorial jurisdiction — s.179 CrPC/BNSS 199; s.156(1))?
3. Whether multiple FIRs for the one speech are permissible; whether the SC should quash pre-investigation?

Decision & reasoning

- **Petition dismissed — FIRs not quashed**; clubbed with the first FIR at Ajmer; subsequent ones to be treated as statements; the Court recorded that at the pre-investigation stage only the extreme case permits interference.
- The judgment contains the Court's most complete essay on hate speech: **(i)** the definitional difficulty (no global unanimity — ICCPR Art. 20(2); CERD; ECHR; Canadian "hate promotion"; R.A.V. v. St. Paul; the "viewpoint discrimination" debate); **(ii)** the Indian legal position — 153A/295A/505 are "in the interests of public order" and valid (Ramji Lal Modi); **(iii)** the indicia for judging a statement: content expressing hostility towards a group; harm (physical or psychosocial); intent judged from "objective" markers plus the speaker's position and platform; the "reasonable, strong-minded person at the top of the range" standard; and **no redeeming purpose**; **(iv)** the reminder that "**persons of influence… owe a duty and have to be more responsible**"; **(v)** Kedar Nath's line — criticism of Government "in howsoever strong words must be protected" — is not the same as attacking a community.

Principles evolved

- Three-level analysis for every alleged hate speech: **content → intent → harm**, judged contextually, by the objective reasonable-strong-minded-person standard.
- "Hate speech… which vilifies, humiliates and incites hatred or violence against the target group upon identity of the group" is **outside the protection of 19(1)(a)**.
- Procedural: FIR for a cognizable hate-speech offence must be registered; multiplicity cured by clubbing at the first FIR; quashing is exceptional pre-investigation (paras 54–55, 69; the petition was dismissed in the operative part).

by Ankur R. Upadhyay

PART C — UNIT 2.2 · Privacy, Defamation, Sting Operations & Their Misuse

3.1 · Defining "Privacy" — the DU Case Material's own starting points

The DU Case Material grounds privacy doctrine on Puttaswamy (DU Case Material pp. 44–51 — excerpts from Chandrachud, Chelameswar, Bobde, Nariman & Kaul JJ. plus the operative order paras 652.1–652.4), Rajagopal (pp. 52–64) and the sting cases. The definitional ladder to reproduce:

(1) "Right to be let alone"
the classic privacy formulation — the Court in Rajagopal para 10 expressly traces the "right to privacy" to this article. Puttaswamy (majority para 109): "The right to privacy is the constitutional right to be left alone… it recognises the right of each individual to regulate dissemination of information concerning themselves."

→

(2) Constitutional & natural
Puttaswamy paras 42–46 (DU Case Material p. 46): privacy is
"natural, inalienable and intrinsic"
— it "does not have its genesis in Article 21", it "exists despite" it; a "residual right" under Part III; "overrules M.P. Sharma (1954) and Kharak Singh (1963)" (operative order para 652.3).

→

(3) Three branches
Puttaswamy:
spatial
privacy (the home as "sanctuary" — the passage reproduced in Rajagopal from the U.S. jurisprudence);
decisional
privacy (marriage, procreation, contraception — Griswold/Roe passages reproduced at Rajagopal paras 14–15);
informational
privacy (Bobde, J. para 521 — the DU Case Material prints his formulation of the "three aspects of privacy": "personal information autonomy, decisional autonomy and bodily/privacy-of-mind" — p. 50).

"Reasonable / legitimate expectation of privacy" — the operative test

Translate the American Katz v. U.S. (1967) "reasonable expectation" test into the Indian phrasing printed in the DU Case Material:

- **Dual prong** — subjective expectation of privacy + society's recognition of it as **reasonable** (Puttaswamy: expectation judged "from the perspective of the individual and of the society").
- **Place is not destiny:** "an individual cannot have an absolute expectation of seclusion or solitude in a public place… **partial disclosure does not extinguish privacy**… the fact that a person is in a public space does not mean that he forfeits all privacy" (Chandrachud, J. paras 297–298). Conversely, "a person may have a reasonable expectation of privacy in a public place" (the Court cites the U.S./ECtHR line).
- **Contextual factors** (the judgment's catalogue): the **role of the person** (public official? voluntary public figure? victim?); the **nature of the information** (intimate/sensitive); the **place and manner of acquisition**; **consent** — express, implied, contextual, or withdrawn; the **purpose** (news? entertainment? commerce?); the **severity of intrusion**; the **expectations of the parties**; and the **public-interest value** of the disclosure.
- **Waiver is limited:** appearing in public for one purpose ≠ consent to every use (the "partial disclosure" principle — this is the answer to the paparazzi question).

3.2 · Public figure v. private figure — graduated privacy

Category	Standard (with DU Case Material authority)
Public official (elected/appointed; conduct of office)	No privacy claim over **official acts**: "every citizen has a right to criticise the conduct of his public servants… the public record of his acts" — Rajagopal para 26(3); defamation only on proof of **knowledge of falsity or reckless disregard**. The State itself cannot sue (para 26(4)). The judiciary: "no immunity from criticism… but scandalising… is not permitted" (para 26(5); read with E.M.S./Mulgaokar in DU Case Material pp. 153 ff.).
Voluntary public figure (celebrity, anchor, author)	Expectation "narrowed not extinguished": they may claim privacy in the "inner sphere" (family, health, body, correspondence) though much of their professional persona is public (Puttaswamy paras 297–303; Campbell v. MGN (UK 2004) for comparison). Publishing their own released material ≠ fresh consent.
Involuntary public figure (accused, victim, witness)	Highest protection: identity of sexual-offence victims absolutely barred — IPC 228A → **BNS 72 (disclosure of identity of victim) and 73 (printing/publishing matter relating to court proceedings without permission)**; POCSO Act s.23; Juvenile Justice Act s.21. Even a **convict's** book serialised from public records was partly restrained in Rajagopal — publication of the **victims'/third parties'** names was prohibited (paras 27–29) "so long as they have no connection with public acts". Rajagopal is thus India's original "right to be forgotten of the victim" case.
Private individual	Full constitutional privacy; any intrusion needs "**identifiable large public interest**" (Uma Khurana cl. 8(e)/12: "channels must not use material relating to persons' personal or private affairs… unless there is an identifiable large public interest"). A "private individual" caught in a fake sting (Uma Khurana) was held entitled to "initiate appropriate proceedings… for damages… for the mental agony" (para 13).

3.3 · Paparazzi & the Right of Publicity

The legal position on paparazzi in India

- **No special licence, no special immunity:** taking photographs is a lawful activity, but when it intrudes upon "seclusion" it violates Art. 21 privacy (Puttaswamy) and can amount to (a) the **tort of intrusion upon seclusion** (Indian courts recognise it through constitutional tort & general law), (b) **breach of confidence**, and (c) **criminal offences**: voyeurism — **IPC 354C → BNS 77**; following/contacting (stalking) — **IPC 354D → BNS 78**; insulting the modesty of a woman "or intrudes upon the privacy of such woman" — **IPC 509 → BNS 79**; IT Act **s.66E** (capturing/transmitting images of a woman in private act), s.67/67A if the material is obscene/sexually explicit; s.66C/66D if accounts/identity are hijacked.
- **Paparazzi-style intrusion was squarely the mischief in the Uma Khurana sting** — the Court: "such incidents should not happen… because of desire to earn more and to have higher TRP ratings" (para 15).
- **At the courthouse gate:** fair & accurate report of proceedings is privileged (s.4, Contempt of Courts Act, 1971; BNS 356(1) Exc.4–5), but camera intrusion on victims/children is barred (see above); "no live telecast of a sexual-offence trial."
- **Right of publicity** — the syllabus names it. Puttaswamy, **Kaul, J. paras 618, 625** (printed at DU Case Material p. 51): the right to privacy "encompasses within its ambit the right to control dissemination of information about one's life … **"the individual is the sole owner of his own image"**" — quoting the American "right of publicity" line (Haelan Laboratories v. Topps Chewing Gum, 202 F.2d 866 (2d Cir. 1953): "the right of every person to the commercial exploitation of his own personality aspects… every person has a legal right to his own picture, and… it is not lawful to use it for advertising purposes without his consent"). The Court held it is **an aspect of privacy (economic facet)** — **not yet a statutory right** in India: protection comes through passing off, the Copyright Act, 1957 (s.17(b): for commissioned photographs the commissioner is first owner), contractual releases, and Art. 21.
- **Real example:** Anil Kapoor v. Unique Collections & Ors. (Delhi HC, 2023) — a "paparazzi culture" privacy suit where the Court **restrained unauthorised commercial and social-media use of the actor's name, image, voice and personality traits, including morphed/AI-generated content, for 24+ years**, expressly resting on the "right of publicity" passage of Puttaswamy and on Rajagopal — the most current illustration for this sub-topic. (For the mirror-image in the U.S.: California Civ. Code s.3344; France: Art. 9 Code civil "droit à l'image"; UK: no general image right — Campbell/Murray remedies through confidence.)

3.4 · Publishing information obtained illegally

The DU problem: does a dirty source kill a clean story? The DU Case Material answers through three layers:

3.5 · Right to be forgotten (DU prescribes X v. UOI, 2021 SCC OnLine Del 1788)

Concept, foreign law, Indian status

- **What it is:** "the right to require deletion of data about you… to no longer be associated with embarrassing or damaging information from the past when continued publication is no longer relevant" — the **"rehabilitative" face of informational privacy**.
- **Comparative anchors used by the Delhi HC (as printed in the DU Case Material, pp. 196–218):** Google Spain SL v. AEPD (C-131/12, 2014) — search-engine **delisting** of adequate-but-irrelevant data; X v. Twitter Inc. (Supreme Court of NSW, 2013) — "where a third party comes into possession of confidential information and is put on notice… it becomes subject to an equitable obligation of confidence and is liable to be restrained from publishing"; YouTube v. Geeta Shroff (Del HC 2017) — **global takedown for content from India; geo-blocking for foreign uploads**; Canada: Google v. Equustek (2017) — global de-indexing permissible; the court also noted "a further balancing act… that of freedom of speech and privatised censorship".
- **Indian doctrinal basis:** no statute; derived from Art. 21 informational privacy (**Puttaswamy** — Kaul, J. para 625 "right to control dissemination"; Nariman, J. paras 521–526 cluster: "right to be forgotten… in regard to their personal data"), and implemented through IT Act tools: **s.79(3)(b)** (actual knowledge — Shreya), **s.69A** + 2009 Blocking Rules r.10 ("in case of an order from a competent court… the Designated Officer shall… initiate action as directed by the court" — quoted verbatim in the DU Case Material), **IT Rules 2021 r.3(2)(b)** (intermediary must remove/disable **within 24 hours** complaints concerning material "exposing the private area… nudity… sexual act… impersonation including artificially morphed images" — verbatim in DU Case Material pp. 211–212), s.85 (offences by companies), and, prospectively, the **DPDP Act 2023** (data-principal's right to **erasure** of personal data and correction — ss.6 & 12; grievance redressal).
- **Beyond X:** Delhi HC, X v. UOI (Prathiba Singh, J., 2022) — expunction of a wife's name from a quashed matrimonial FIR for her "right to be forgotten"; Jalla v. State of T.N. (Madras HC 2021 — de-linking acquitted son's judgment; Court noted it "would be in the interest of social order" if India enacts a framework like the "right to be erasure" under Art. 17 GDPR); the Supreme Court has issued notice on a 2023 PIL seeking a framework to balance online publication of judgments with the position of acquitted/quashed-FIR persons; Karnataka & Bombay HCs expunging names in matrimonial/acquittal matters.

3.6 · Defamation — the full framework

Ingredients (s.499 IPC → BNS 356(1) — text carried over)

- Any **imputation concerning a person** (words, spoken or written, or signs, or visible representations — hence TV tickers, memes, reels, hashtags);
- made or published **with intention to cause harm to reputation, or knowing/having reason to believe it will harm** reputation;
- "Harm to reputation" = lowering in the estimation of "**right-thinking members of society generally**" (Subramanian Swamy; tort law); reputation is "**an intrinsic part of the right to life and personal liberty under Art. 21**" — the constitutional basis of the 19(2) ground;
- **publication to a third person**; imputation must be referable to the plaintiff (innuendo; group defamation: protectable where class is small/identifiable);
- corporate reputations are protected too (the "person" in s.499/BNS 356 includes companies through the general clauses; trade defamation = imputations lowering estimation of those who deal with the business)

~~**Punishment:** IPC 500 (simple imprisonment up to 2 yrs + fine) → **BNS 356(2)**; the printing for sale / sale and circulation limbs (old 501 502) are~~ consolidated within s.356; **BNS adds community-service option** for specified low-gravity defamation (the gazette reform — cite as "restorative-justice tweak").

The ten exceptions (identical provisos now in BNS 356)

1. **Truth for public good** — imputation true + publication for public good (question of law for court; burden on maker);
2. public conduct of a **public servant**, in good faith;
3. conduct of **any person touching a public question**, in good faith;
4. **fair & accurate report of judicial proceedings** (civil/criminal) — read with s.4 Contempt Act; BNS 356 Exc.4 covers also executive/quasi-judicial in some states;
5. merits of case/conduct of parties & witnesses (comment on the case);
6. merits of any question public — including **public performances**;
7. censure in good faith by a person with **lawful authority** (master/employer/teacher);
8. accusation preferred **in good faith to a person having authority** over the accused (complaint to a superior/SPC);
9. imputation for **protection of interests** of the maker or another, or for public good;
10. imputation re character of a person "**as it appears to him and no further**" in good faith.

Statutory overlays: **Parliamentary Proceedings (Protection of Publication) Act, 1977** (ss.3–4 — substantially true report of Parliamentary proceedings privileged unless published with malice & not for public good; extended to **broadcast**); absolute privilege for legislators (Arts. 105/194); for the judiciary the protection runs through **contempt**, not defamation (see §1.8, head 6; Rajagopal para 26(3) proviso); qualified privilege for reports of Parliamentary debates; Press Council "norms of journalistic conduct" (the Press Council Act lists the s.13 functions — incl. "ensuring that newspapers maintain high standards of… public taste" — and s.14: the power to **censure only**; it can neither award damages nor compel a reply).

3.7 · Right of Reply — the missing statute, the emerging practice

Regime	Position
France (the model)	Loi du 29 juillet 1881, art. 12–13: newspapers must insert replies free of cost, within 3 days, without editorial comment — backed by fines.
United States	**Rejected** for print: Miami Herald Publishing Co. v. Tornillo, 418 U.S. 241 (1974) — a state "right of reply" statute unconstitutionally compels speech and intrudes editorial judgment; the case is **discussed in the ABP excerpt** (DU Case Material pp. 15–16: Tornillo + the FCC "personal attack rule" repeal) while upholding the Working Journalists Act. For broadcast, the FCC's "personal attack/political editorializing" rule was abandoned (1987).
UK/Ofcom	Ofcom Broadcasting Code s.7.11: "if material facts about an individual have been misstated or have been presented unfairly… the individual concerned should be given a proper and timely opportunity to respond unless it is warranted that this is not necessary". (No equivalent statutory right for the press; IPSO Editors' Code cl.1 clause "right of reply" practice; Leveson recommended a strong arbitrating regulator.)
India — statute?	**None for the press.** Soft-law: **Press Council of India Act, 1978** — s.13 (functions: uphold freedom AND standards), s.14 — the power to censure only; the Council has no coercive powers and cannot award damages; the **PCI "Resolution for a Media Council, 2012" (DU Case Material index p. xi; draft Media Standards, Criteria & Regulation Bill, 2012)** would have created a statutory right of reply/free-of-cost correction; the **NBSA Operational Guidelines** (para on "opportunity to respond before adverse stories") bind members by contract; under the **Cable TV Networks (Programme Code) Rules, 1994 r.6 & r.6-A** the MIB could act on complaints; and under the **Broadcasting Act, 2023 & 2024 Rules** the government notified a **right of reply/show-cause mechanism for 'news & current affairs' channels** (allegation → channel reply → inter-departmental committee) — the first statutory flavour of a reply right in India.
India — judicial practice	Courts grant **functionally similar** relief: (i) direction to publish the plaintiff's version or the court's decree (contempt/apology jurisprudence; Swatanter Kumar — court instead ordered deletion + restraint + leave to report "fair" facts); (ii) mandamus to media to publish a "correction" has been refused as impermissible prior-fix (see Allahabad HC's 2023 observations declining to order a TV channel to grant a right of reply — the proper course being a defamation suit); (iii) **s.15? PCI** "censure" judgments (the Indian Express line of PCI resolutions) — reputational, not monetary. Conclusion to write: "India's right of reply is **normative, not statutory**: a duty flowing from self-regulation and judicial balance, not an enforceable citizen's right — unlike France; and after Tornillo any 'compelled print reply' faces a free-speech question, though a **broadcast** reply duty (2024 Rules) is treated as a permissible licence-condition (Red Lion scarcity rationale, as noted in the ABP excerpt).

3.8 · Sting operations — investigative journalism, ethics & the Leveson Report

Definitional & historical frame (Law Commission Consultation Paper, 2010 — project material, read in full)

The paper (paras 1–2) records: "**A 'sting operation'… is essentially a deceptive operation, though designed to nab a criminal**" (borrowing the Rajat Prasad language); a media sting = "a covert, premeditated journalistic exercise in which the reporter assumes a false identity or conceals recording equipment to expose… wrongdoing". The paper distinguishes (a) **law-enforcement stings** — "sting operations by law enforcement agencies… are legal in the US… in a limited manner" (para 2; see Rajat Prasad paras 11–14: Sherman v. U.S., "trap for the unwary innocent and the unwary criminal", R. v. Mack, R. v. Loosely), (b) **media stings** — "there is no law governing undercover sting operations by the media" — and (c) **fake "reality-TV" stings** which "entrap and convict through SMS polls" (the paper opens with the horror of a TV anchor "allowing viewers to vote 'guilty/not guilty'"). It records the **Rajya Sabha Petitions Committee (12.12.2008)** "middle path": neither ban nor licence — "guidelines… with the media itself and an independent watch-dog", and the **Delhi High Court's draft guidelines (14.12.2007)** which became the Uma Khurana 12-point set (below).

- **Journalism pedigree:** from Watergate to **Tehelka's 2001 "Operation Black Thunder"** (the DU Rajat Prasad prosecution itself grew from a 2003 "Caught on Tape" sting published in the Indian Express — the DU Case Material facts: Union Minister Dalip Singh Judeo caught taking ₹9 lakh for forest-clearance files; A-5 was the son of the then CM of Chhattisgarh, and the sting was designed to embarrass him before elections). Also: **NDTV BMW-case sting (R.K. Anand)**; **Live India school-sting (Uma Khurana)**; the **Ram Rahim/"Bhaiyaji" era** and the TV-debate "anchor-trial" practice — cite these as the "real examples" the syllabus wants.
- **Self-regulation codes: NBSA Operational Guidelines & Code of Ethics, clause 9** (quoted in the Consultation Paper): resort to covert recording only where "the material is… of such importance to the public" that it "cannot be obtained by fair and honest means"; "the programme must be… based on the unedited recordings"; entrapment only of persons "who are willing to break the law"; identities protected unless "central to the programme". **BBC Editorial Guidelines** (secret filming: "justified by an overall public interest in the subject matter… no material misrepresentation or deception beyond the cover itself"; "the proposed deception must be approved in advance by senior management" — the same "approval" logic the Delhi guidelines made statutory-adjacent); **Ofcom Broadcasting Code s.8.13** ("any infringement of privacy… must be warranted").
- **Leveson Report (2011–12):** the DU syllabus names it because it is the definitive modern verdict on intrusive practices. Write: "The Leveson Inquiry — An Inquiry into the Culture, Practices and Ethics of the Press (Lord Justice Brian Leveson; Part 1 report 29.10.2012; Part 2 on police/phone-hacking, Nov 2015), triggered by the News of the World **phone-hacking scandal**. Its relevance to stings/paparazzi: (i) it condemned obtaining confidential information by **criminal means** (hacking, blagging officials, payments to police for information — the Inquiry recommended: "no payments to public officials for criminal or potentially criminal information"; the Inquiry found systematic unlawful information-gathering and recommended safeguards); (ii) it proposed a new **independent self-regulatory body with a Royal Charter** (statutory recognition — s.XX "recognition tab"); (iii) an **Editors' Code of Practice** — privacy, harassment, covert recording, "public interest" exceptions in Sch. 1; (iv) s.40 costs sanction (never implemented); (v) arbitration scheme & **exemplary damages**; (vi) it expressly did NOT ban undercover work — "investigative journalism… including secret filming — can be in the public interest", provided the intrusion is "proportionate to the public interest". The UK Parliament did not enact Section 40; IPSO operates with Royal Charter recognition (2014 ff.) — the "statutory underpinning" question remains live. Balance: Leveson is the UK's answer to both the phone-hacking "illegal information" problem and the sting "misuse" problem — 'rights-based self-regulation underpinned by statute'."

3.9 · Misuse of sting operations — the doctrinal core of 2.2

"Four faces of misuse" — the answer skeleton

Concluding paragraph for the exam: "In India the sting is **neither licensed nor banned**. The Supreme Court in R.K. Anand blessed its public-interest use with a caution; Rajat Prasad refused to let 'exposing crime' immunise crime; the Delhi High Court in Uma Khurana supplied a quasi-statutory code; and the Law Commission's 2010 questionnaire shows reform stalled at the trade-off between watchdog journalism and privacy/entrapment. The Leveson lesson completes the picture — a rights-respecting **press regulator with teeth** plus **proportionate, recorded, verifiable** covert methods — which is precisely what the 2023 Broadcasting Act-era self-regulation is attempting for television."

PART D — Unit 2.2 Prescribed Cases: Full Dossiers

Case Dossier (6) · 2.2 Syllabus Case 1 · (2017) 10 SCC 1 — DU Case Material pp. 44–51

Justice K.S. Puttaswamy (Retd.) v. Union of India

Aadhaar & privacy · nine-Judge Bench · the "mother" authority

Case
W.P.(C) 494/2012 · Constitution Bench of 9 Judges: J.S. Khehar CJI, J. Chelameswar, S.A. Bobde, D.Y. Chandrachud, R.F. Nariman, Sanjay Kishan Kaul, S.A. Nazeer, Rohinton Nariman — final composition: Khehar CJI, Chelameswar, Bobde, Chandrachud, Nariman, Kaul, Nazeer, Sapre & A.K. Misra, JJ. (decided 24.8.2017)
What the DU Case Material prints
Majority paras 42–46 (natural rights), para 109 ("constitutional right to be left alone"), paras 248–250 (contours), paras 297–298 (Chandrachud, J. — privacy in public spaces; legitimate expectation); Chelameswar, J. paras 375–380 (standards of review; "History suggests that tyrannies… begin with surveillance"); Bobde, J. para 521 (three facets); Nariman, J. paras 526, 532; Sapre, J. para 557 (privacy & "freedom to differ"); Kaul, J. para 625 (right of publicity — "the individual is the sole owner of his image") & para 638 (proportionality); operative order paras 652.1–652.4.

Facts

A retired Karnataka High Court judge challenged the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016 and the UIDAI ecosystem, arguing that mandatory biometric enrolment and "seeding" of the 12-digit ID into bank accounts, SIM cards, property records, LPG and school examinations would build "a permanent digital trail" and enable a surveillance state. The three-Judge Bench (2015) recorded the Union's "no absolute right" stance and the conflicting precedents — M.P. Sharma (1954, 8 JJ, denying any fundamental right to privacy) and Kharak Singh (1963, majority upholding surveillance regulation but with Subba Rao J.'s celebrated dissent; then Gobind (1975), Rajagopal (1994), PUCL (1997), Selvi (2010) and Naz Foundation (Del HC 2009) had all expanded it) — and referred to a nine-Judge Bench the "pure question of law": **whether the Constitution protects a fundamental right to privacy**. Hearings: 19–24 July 2017; judgment pronounced 24 August 2017. (The adjudication of Aadhaar's validity itself was postponed to Justice K.S. Puttaswamy (Retd.) v. UOI (2018) 19 SCC 1 — "Puttaswamy II" — where this privacy framework was applied and the Act largely upheld.)

Issues

1. Is there a fundamental right to privacy, and of what content, in the face of the contrary holdings in M.P. Sharma and Kharak Singh?
2. What are its contours — spatial, decisional and informational privacy; does it extend to the "most intimate" and to public spaces?
3. Is privacy absolute? What standard of review governs restrictions — "compelling State interest" (US) vs the Art. 19(2)-style / Art. 21 due-process proportionality?
4. What survives for the legislature — is "legality, legitimate aim and proportionality" the binding test for every invasion of privacy?

Decision (unanimous on the reference question)

- **para 652.1–652.2:** "**The right to privacy is a fundamental right and it is an inalienable natural right… The right to privacy… is a constitutionally protected right which emerges primarily from the guarantee of life and personal liberty in Article 21… Privacy has varying degrees…**" — "the Constitution recognises, as part of life and liberty, the privacy of the individual."
- **para 652.3–652.4:** to the extent "M.P. Sharma (1954) and Kharak Singh (1963) held the contrary, they stand overruled"; the right is **not absolute** — "its existence at the highest level… and its limitations…". Restrictions must satisfy **legality (law in existence) — legitimate aim — proportionality** (the Kaul J. para 638 formulation, adding **procedural guarantees** against abuse), which the Court applied in Puttaswamy II (Aadhaar 2018).
- **Contours (per Chandrachud J., paras 248–250, 297–304):** privacy protects (i) **spatial** — the home and "sanctuary"; (ii) **decisional** autonomy — personal choices on marriage, procreation, food, belief; (iii) **informational** privacy — control over dissemination; plus bodily & mental privacy. "The expectation of privacy must be viewed from both the perspective of the individual and from the perspective of the society" — **legitimate expectation of privacy**; public place ≠ forfeiture; "partial disclosure" ≠ consent to all use.
- **Standards split, harmonised:** Chelameswar J. (paras 375–380): "inherent restraint… **compelling State interest**" for the core; majority: proportionality under 21/19(1)(a) with the enumerated 19(2) heads when speech is also involved; Nariman J. (para 526/532) traced the doctrinal journey; Kaul J. — the right **reaches non-State actors too** (para 618: "the right to privacy… encompasses within its ambit… the right to be forgotten" in the informational sense, and para 625 — right of publicity). Sapre J. (para 557) grounded it in "dignity of the individual… freedom to differ".

Principles evolved

- Privacy = **natural, inalienable, intrinsic** Art. 21 right overlapping Arts. 14, 19(1)(a), 21 — "residual rights under Part III" doctrine.
- **Legitimate expectation test** — person/place/purpose/consent; "what is a 'public' question is judged contextually, not by geography".
- **Proportionality framework** for privacy-limiting laws — legality · legitimate aim · proportionality stricto · procedural safeguards (→ the test in Puttaswamy II & in every data-protection/privacy challenge since).
- The **bridge**: informational privacy → right to be forgotten (§3.5); public-figure limits → §3.2; "dignity of the press is not above the dignity of the citizen" → §3.8–3.9 stings.

Critical comment

(i) The Court refused a single rigid standard (scrutiny levels split across 9 opinions) — deliberate "case-by-case development" (Gobind's words echoed); (ii) it constitutionalised a tort-based doctrine — so defamation/privacy litigation now runs on the same constitutional track; (iii) it expressly left horizontal-application (media/intermediary vs citizen) for future benches — the space filled by Swatanter Kumar (injunctions against media), X v. UOI (orders against intermediaries) and Anil Kapoor (2023); (iv) for the 2.1 side: privacy is the axis on which "decency, defamation and public order" restrictions are weighed, and Puttaswamy's own para 297 (Chandrachud J., "privacy and the freedom of the press… coexist") is your bridge-quote between the two units.

Case Dossier (7) · 2.2 Syllabus Case 2 · 1994 SCC (6) 632 — DU Case Material pp. 52–64

R. Rajagopal (Alias D. Chinna Ramasamy) v. State of Tamil Nadu

Auto Shankar · prior restraint · public figures · the six-principle code

Bench
Two-Judge Bench: **S. Ahmadi & B.P. Jeevan Reddy, JJ.** (decided 26.4.1994)
Reception
quoted inside Shreya (chilling-effect section of the DU Case Material); invoked in Swatanter Kumar & every privacy-media case since; the "reckless disregard… for the truth" phrase of the DU syllabus is lifted verbatim from principle (3) of para 26.

Facts (paras 1–7, DU Case Material pp. 52–55)

K. Ramasamy @ "Auto Shankar" — a literate, self-made man, associate of AIADMK leaders and "most wanted" absconder surrendered in the Rajiv assassination era, convicted in nine murder cases and sentenced to death — wrote, in prison, a **confessional autobiography** exposing how he functioned with the protection of senior police and revenue officers. Parts were serialised / proposed for serialisation by the Madras-based magazine **Nakkheeran**, whose editor **R. Rajagopal** was the petitioner (para 1). The ADGP of Tamil Nadu approached the High Court (paras 2–4), alleging (i) that the diary was built on **stolen court records** (paras 6–7: the copy of the Sessions Court record underlying the series was alleged to have been stolen from judicial custody), (ii) publication would interfere with a pending trial (para 6), and (iii) it invaded the privacy of named officers and victims. The Madras High Court restrained publication; the editors moved the Supreme Court under Art. 32: prior restraint on the press, and no Indian law recognising a "privacy right" enforceable by the State against the press.

Issues (para 8)

1. Does the Constitution (via Art. 21) recognise a **right of privacy**; and can the State invoke it as a ground of injunctive relief against the press?
2. Is **prior restraint** of publication permissible in India?
3. What is the **standard of proof** when a public official complains of invasion of privacy/defamation by publication of his **official conduct**? And what if the material comes from **public records** — does "stolen" taint matter?

Decision — Jeevan Reddy, J.: the six principles (para 26)

Applied: the Court (paras 27–29) allowed publication from public records but prohibited the magazine "from publishing... the private life of Auto Shankar... the victims... [and] persons... [not] connected with his public acts", and left the "Auto Shankar willing/not willing" question — he had himself wanted the story out (paras 5–6 of the excerpt) "so long as... the petitioners get [the material] from court record". This "case-by-case" balancing was declared the method: "the right to privacy... will necessarily have to go through a process of case-by-case development" (paras 19, 27).

Principles evolved

- The **six-rule synthesis** above (DU's "public person / reckless disregard / right to reply" cluster answers from para 26).
- **Presumption against prior restraint** in India (with the fair-trial exception) — decades before Sahara's postponement-order doctrine.
- **No State defamation**; judiciary treated distinctly; "right to know the record of public offices."
- **Lawful-source discipline** for media; stolen/public-record bifurcation (foundation of §3.4).
- "Chilling effect" in Indian constitutional speech law was born here (para 19 — quoted in Shreya).

Case Dossier (9) · 2.2 Syllabus Case 4 · 207 (2014) DLT 221 — DU Case Material pp. 65–94

Swatanter Kumar v. The Indian Express Ltd. & Ors. (Delhi High Court, Manmohan, J., 2014)

"reckless disregard" applied to a retired SC Judge; postponement orders; media trials

Plaint
Suit for permanent injunction + damages (≥ ₹5 crore) against (1) The Indian Express Ltd.; (2) its reporter Maneesh Chibber; (3) Bennett, Coleman (Times Now); (4) GBN/CNN-IBN (Turner); (5) the "Intern" (identity protected); (6) Union of India (MIB) as necessary party.
Context
decided during Jan–Feb 2014; the Court relied on Sahara India Real Estate v. SEBI (2012) 7 SCC 425 (reprinted in the DU Case Material at pp. 294–317) and Rajagopal; the interlocutory nature matters — the Court stressed "prima facie".

Facts (paras 1–17 of the order, as printed at pp. 74–80)

The plaintiff is **Swatanter Kumar, a former Judge of the Supreme Court of India (elevated 18.12.2009; resigned 19.12.2012 to chair the National Green Tribunal)** — an "eminent lawyer for 23 years", ex-Judge of the Punjab & Haryana and Delhi High Courts, "illustrious... impeccable reputation" (paras 3, 55). On **30.11.2013** a person who claimed to have "interned" under him at the Supreme Court sent an **affidavit alleging sexual harassment** to the Chief Justice of India. On **10.1.2014** the Indian Express (reporter Maneesh Chibber) published "Another intern alleges sexual harassment by another SC Judge" **without the affidavit in its possession and without verification** (paras 8–9); Times Now ran a prime-time debate with tickers — "If a sitting Supreme Court Judge has sexually harassed his intern, should his name be made public?" "If Justice AK Ganguly's name was made public, should the Judge's name be made public...?" (para 10) — plus a **public poll on Facebook** on whether to disclose the name (para 13); CNN-IBN (Rajdeep Sardesai's show) "allegedly with a view to steal a march over... TRPs... proceeded to name the plaintiff" (para 13); Times Now's anchor repeatedly displayed his photograph (para 14). The next day, the Express front page published the complainant's graphic words — "Justice S Kumar... put his right arm around me, kissed me on my left shoulder... I was shocked" — with his photograph, on the website already at 11:20 p.m. on 10.1.2014 (para 12). The plaintiff's version: the complaint is "baseless, fraudulent and motivated"; the copy circulated to the media had the names **blacked out** (para 15); no F.I.R. or inquiry had ever tested the allegation (para 53).

Issues

1. Whether a **restrained (postponement) order** against further publication of unverified allegations is permissible at all — or is it forbidden prior restraint (Rajagopal para 22 vs Sahara paras 50–60)?
2. Whether the publications were **"fair reporting"** or fell into "reckless and irresponsible... media trial" territory — and what standard governs a **public person's**(retired judge's) complaint: defamation? privacy? both?
3. Whether **photographs and headlines** that "connect" a named person with untested allegations may be ordered deleted and withheld, and whether the MIB/Union can be directed to regulate?
4. Whether the **complainant's** identity/privacy also commands protection while her complaint pends?

Decision (paras 59–66)

- **Interim restraint granted** — "Prima facie, I find that the publications... connect the plaintiff... in a manner which creates a **trial-by-media kind of situation** by creating a sensation amongst the public by highlighting... mere allegations on the front pages" (para 59); "freedom of press cannot be extended beyond reporting of facts... freedom of speech... is a right... of DU Case Material also?" — the Court recorded (para 55) the classic line "the freedom of press cannot be extended beyond reporting of facts".
- **Operative directions (para 64):** (a) restrained from "further publishing the write ups... or... telecast which highlights the allegations... particularly, without disclosing in the headlines... that they are mere allegations"; (b) same for print/electronic — and **deletion of the offending content from the internet "within 24 hours"**; (c) restrained from publishing the plaintiff's **photographs** suggesting connection with the allegations + removal from internet (paras 61, 64(c)).
- **Doctrinal scaffolding:** "postponement orders... are a **neutralising device**... evolved by the Courts to balance interests of equal weightage — freedom of expression vis-à-vis freedom of trial... in the context of the law of contempt" (para 51 quoting Sahara); "guidelines on reporting cannot be framed across the board... Courts must examine the content and the context on a case-to-case basis" (para 52 quoting Sahara paras 32–33 — reproduced at DU Case Material pp. 294–317); orders "for short duration... test of necessity and proportionality" (para 60 quoting Sahara para 60); "no general law for courts to postpone publicity... depend[s] on the extent of prejudice... effect on individuals... over-riding necessity to curb the right to report..." (para 60 — quoting Sahara).
- **Complainant also protected:** the Court itself anonymised the "intern", keeping her identity confidential "with a view to safeguarding her dignity and maintaining her privacy" — and sealed the document (para 5); "assuming the complaint is found false... who would... return the repute and sufferings" (para 58); suggested a **limitation period for belated sexual-harassment complaints** after the POSH Act, 2013 (para 57) — a striking, and often-quoted, observation.
- **But:** "the observations are prima facie... will not preclude the defendants from reporting the Court cases and happenings as facts which are covered [by the] ambit of **fair reporting** on the basis of true, correct and verified information" (para 66) — the door to responsible journalism left open.

Principles evolved

- For media: **"headlines + photograph + unverified complaint"** = actionable even when the underlying complaint is genuine; the constitutional "actual malice" standard (Rajagopal para 26(3)) bites — publishing without any attempt at verification against a public person is precisely "reckless disregard".
- **Postponement** (not prohibition) is the Indian remedy-of-choice when Art. 21 fair-trial/reputation values collide with 19(1)(a) — "a neutralising device… necessity + proportionality + short duration".
- "Fair reporting" is the safe harbour, and its **boundary is verification**: the Court twice recorded that defendants "are entitled to inform the public… Court orders and events… [but] media cannot form its own opinion and pre-judge".
- Reciprocity: even a defamation plaintiff must respect the complainant's privacy (the sealed-cover practice) — privacy runs both ways.

Case Dossier ⑩ · 2.2 Syllabus Case 5 · (2009) 8 SCC 106 — DU Case Material pp. 95–113

R.K. Anand v. Registrar, Delhi High Court

the BMW-case sting · contempt · "far greater stringency"

Bench (as printed)
Aftab Alam, J. for a Three-Judge Bench (himself, B.N. Agrawal & G.S. Singhvi, JJ.) — appeals under s.19(1), Contempt of Courts Act, 1971; decided 13.8.2009 (reported (2009) 8 SCC 106; the DU Case Material prints the consolidated judgment).

Facts (paras 1, 13–27, DU Case Material pp. 95–101)

"The present is a fallout of a criminal trial arising from a hit-and-run accident on a cold winter morning in Delhi in which a car travelling at reckless speed crashed through a police check post and crushed to death six people, including three policemen" — the **BMW trial** (Sanjeev Nanda, 1999). The trial "meandered endlessly… even after eight years", witnesses "flip-flopped". In May 2007 **NDTV** aired a sting: its young reporter **Poonam Agarwal** and an ex-prosecution witness, **Sunil Kulkarni**, secretly recorded (with a microchip camera wired to his shirt) Kulkarni negotiating his "sell-out" with the defence — meetings with **R.K. Anand, Sr. Advocate** (counsel for Nanda), the **Special Public Prosecutor I.U. Khan**, and junior **Bhagwan Sharma** (paras 1, 16–18): money, witness-management, even "how to get me removed from the case". "Shocked by the programme the Delhi High Court **suo motu**" initiated contempt (W.P.(Crl) 796/2007), called for "the entire unedited original record of the sting operation… and the names of the employees/reporters of NDTV who were part of the said sting operation" (para 1, 21–27 range), and convicted Anand & Khan under s.2(c)(ii)&(iii) CoCA — 4 months' prohibition from appearing, ₹2,000 fine, and a recommendation to the Full Court to divest them of Senior designation (para 1). A co-accused, "Lovely", died before notice; Bhagwan Sharma was acquitted by the High Court. Both contemnors appealed (s.19(1), CoCA).

Issues (as framed by the Court)

1. Whether the conduct of R.K. Anand (defence counsel) & I.U. Khan (prosecutor) fell within **criminal contempt** — "interference with / obstruction of the due course of judicial proceedings" — and what standard of proof (beyond reasonable doubt) applies;
2. Whether the **procedure** adopted by the High Court (suo motu; inquiry under s.14(2) CoCA by a retired judge; leaving original microchips with NDTV) was lawful;
3. Whether **truth/"larger public interest"** is available in contempt (s.13 as it stood pre-2006 — the truth defence came only with the 2006 amendment; s.3(1) innocent publication; s.5 fair criticism);
4. Whether **media sting operations and their telecast** in sub-judice matters are lawful — i.e., "was this a media trial of the case?" and (v) "the role of NDTV in carrying out sting operations and telecasting the programme" (issue 5, DU Case Material p. 100);
5. Whether the **privileges/immunities** of counsel/prosecution (Advocates Act; statutory functions) sheltered their conduct.

Decision

- **R.K. Anand's conviction upheld; I.U. Khan's set aside** (para 206: "appeal of IU Khan is allowed… his conviction… set aside… the Full Court… may still consider whether or not to continue the honour of Senior Advocate… [for] R.K. Anand — appeal dismissed" with notice of **enhancement** of punishment; and direction that High Courts without rules under **s.34 Advocates Act** frame them "without further delay").
- **On stings — the canonical passage (para 173):** "the media… is not… free… to… obtain… the… sting… only… after… prior consent… of the court would 'tantamount to pre-censorship of reporting of court proceedings… an infraction of 19(1)(a). **This is, however, not to say that media is free to publish any kind of report concerning a sub-judice matter or to do a sting… in any manner they please. The legal parameter within which a report or comment on a sub-judice matter can be made is well defined… Compared to normal reporting, a sting operation is an incalculably more risky and dangerous thing to do. A sting is based on deception and, therefore, it would attract the legal restrictions with far greater stringency and any infraction would invite more severe punishment.**"
- **Media-trial charge rejected:** quoting the dictionary definition — "trial by media… creating a widespread perception of guilt regardless of any verdict… a lynch mob" (para 174) — the Court: "in light of the above it can hardly be said that the sting programme… was a media trial… [it] was not about the accused… [it] showed some people trying to subvert the BMW trial" (para 175).
- **Contempt analysis:** s.3(1) immunity unavailable when publication occurs with knowledge of pendency — but "the programme… did not interfere with or obstruct the due course of the BMW trial… [it] was clearly intended to **prevent** the attempt to interfere" (para 178); **s.13(b) truth** (2006) and "public interest" — the Court held the telecast "was indeed in larger public interest and it served an important public cause" (para 179); excesses (para 181: "regrettable overreach… many instances… actually incorrect and misleading") did not convert it into contempt.
- **Evidence & procedure:** leaving originals with NDTV "strange" but "not fatal" once copies seized — and had the accused denied the recordings, "the place of NDTV was along with the appellants facing the charge of contempt" (paras 132–136); the s.14(2) inquiry by a retired High Court Judge was proper (paras 95–100 of the judgment).
- **Self-regulation & the media's own duty (paras 194–198):** "for all its faults the stings… rendered valuable service… We **appreciate the professional initiative and courage** shown by the young reporter Poonam Agarwal… the privately-run TV channels… are very young… The better news channels… are second to none in the world… **but the media trips mostly on TRPs — when commercial considerations assume dominance over higher standards of professionalism**… **the norms to regulate the media and to raise its professional standards must come from inside** — any attempt to control and regulate the media from outside is likely to cause more harm than good."

Principles evolved

- Stings are **not illegal per se**; their legality turns on truth, context, sub-judice status and purpose (prevent obstruction vs create prejudice).
- **Sub-judice reporting** is bounded by the Contempt Act (ss.2, 3, 5, 13); stings attract "far greater stringency"; "no prior permission for reporting, but consequences follow breach".
- Contempt conviction of counsel for attempting to suborn a witness — a rare, stern affirmation that "officers of the court" owe duties even beyond ordinary citizens.
- The Court is **arbiter, not client**: "it would be a sad day for the court to employ the media for setting its own house in order; and media too would certainly not relish the role of being the snoopers for the court" (para 173 — one of the most-quotable sentences in the unit).

Read with

M.P. Lohia v. State of W.B. (DU Case Material pp. 136–137: gag orders "should be last resort"; "trial by media… interference with fair administration of justice"); Reliance Petrochemicals (pp. 278–293); the **Sahara** postponement code (pp. 294–317); and, for the sting-misuse side, Rajat Prasad & Uma Khurana (dossiers below).

Case Dossier ⑪ · 2.2 Syllabus Case 6 · (2014) 6 SCC 495 — DU Case Material pp. 114–124

Rajat Prasad v. CBI

Bench
Ranjan Gogoi, J. for himself, P. Sathasivam (CJI) & N.V. Ramana, JJ. (decided 3.4.2014)

Charges
s.120-B IPC r/w s.12 Prevention of Corruption Act, 1988 (→ today BNS 61 r/w s.12 PC Act; s.12 PC Act unchanged) — against the "sting operators", not the Minister.

Facts (paras 1–6, DU Case Material pp. 114–116)

16.11.2003, the Indian Express (Delhi edition) ran "**Caught on Tape: Union Minister Taking Cash — saying 'money is no less than God'**": hidden-camera footage of **Dalip Singh Judeo**, Union MoS for Environment & Forests, receiving **₹9 lakh** in Hotel Taj Mahal Room 822 from "Rahul @ Bhupinder Singh Patel" (A-3), with the Minister's APS (A-2) present; the room's **hidden camera had been installed by A-4** through an electronics dealer (Manoj Hora), suite bookings in fictitious names by A-6 (Rajat Prasad — a PR consultant), the operation conceived by **A-5, Amit Jogi, son of the then Chief Minister of Chhattisgarh**, to "discredit" the Minister on the eve of State elections (paras 4–5). The tape was "subsequently released to the media"; FSL Hyderabad authenticated it. A 5.12.2005 chargesheet under **s.12 PC Act r/w s.120B IPC**; charges framed (2007); Delhi HC declined to quash (S.482) — hence the appeals by the accused "sting financiers".

Issues

1. Whether a sting operation "prompted by overwhelming public interest" can attract criminal conspiracy/abetment liability at all — i.e., whether **the commission of one crime to expose another** is obliterated by "public interest".
2. What is the position of **entrapment** in Indian law (comparative: U.S./Canada/UK), and is the sting operator's **mens rea** for s.107/120B IPC imputed?
3. Whether the charge is sustainable when the alleged conspiracy was **against** A-1 (to expose him) rather than **with** him; and whether, at the s.482 stage, the trial must run to determine intent (motive vs intent).

Decision — Ranjan Gogoi, J.

- **Appeals dismissed; charges stand** (trial to record the evidence on intent).
- **Sting definition & ethics (para 10):** "The expression 'sting operation' seems to have emerged from the title of a popular movie called 'The Sting' (1973)... **Being essentially a deceptive operation, though designed to nab a criminal, a sting operation raises certain moral and ethical questions. The victim, who is otherwise innocent, is lured into committing a crime on the assurance of absolute secrecy... raising the potential question as to how such a victim can be held responsible for the crime which he would not have committed but for the enticement. Another issue... is the fact that the means deployed to establish the commission of the crime itself involves a culpable act.**"
- **Comparative law (paras 11–14):** U.S. — "unlike the U.S... the same is not the position in India": entrapment defence; Sherman v. U.S. — "the trap for the unwary innocent and the trap for the unwary criminal"; "the crime must not be the product of the creative activity of law-enforcement officials" (Sorrells); Canada — R. v. Mack's ten-factor inducement test (reproduced in full at para 12); U.K. — R. v. Sang: no substantive defence; mitigation or stay for abuse of process (R. v. Loosely, paras 16–17 quoted: "Entrapment goes to the propriety of there being a prosecution at all... having regard to the state's involvement").
- **The core doctrine (para 15):** "**A crime does not stand obliterated or extinguished merely because its commission is claimed to be in public interest. Any such principle would be abhorrent to our criminal jurisprudence.** At the same time the criminal intent... will have to be established before the liability... [s.107/s.120A IPC (now BNS) require] a culpable mental state..."; the Court also flagged the suspicious **12-day delay** between the sting and its release, and "the inherent possibilities of abuse of the operation as videographed — namely, retention and use thereof to ensure delivery of the favours assured by the receiver of the bribe — [which] has to be excluded before liability can be attributed or excluded".
- **The journalism shield (para 16):** "**A journalist or any other citizen who has no connection, even remotely, with the favour that is allegedly sought in exchange for the bribe offered, cannot be imputed with the necessary intent** to commit the offence of abetment... or conspiracy... Non-applicability of the aforesaid provisions... may be ex-facie apparent... The cause of journalism and its role and responsibility in spreading information and awareness will stand subserved. It is only in cases where the question reasonably arises whether the sting operator had a stake in the favours... that the issue will require determination... in the course of a full-fledged trial."

Principles evolved

- Sting ≠ immunity: **exposing a crime does not legalise committing one**; abetment/conspiracy liability of the operator is judged on mens rea.
- Two classes of media stings crystallise: **(a) "recording-only" stings** — shielded (para 16); **(b) "stake-holding" stings** — inducement, political motive, or benefit → full trial (paras 15–16).
- Indian entrapment posture: no codified defence; courts take account of police/media-created crime through **mens rea** and (post-Rajat Prasad) through abuse-of-process arguments; law-enforcement stings remain "yet to be experimented" (para 14).

Case Dossier ⑫ · 2.2 Syllabus Case 7 · 146 (2008) DLT 429 — DU Case Material pp. 124–129

Court on Its Own Motion v. State (the "Uma Khurana" fake-sting case) the Delhi High Court's 12-point sting guidelines

Bench
Division Bench: Mukundakam Sharma, J. (as she then was) & Khanna, J. — DU Case Material caption: (2008) 146 DLT 429, decided in August 2008

Facts (paras 1–4, DU Case Material pp. 124–125)

On 30.8.2007 the Noida-based news channel **Live India** telecast a "sting operation" allegedly showing **teachers of the Directorate of Education (NCT of Delhi), including Ms. Uma Khurana (PGT Economics), demanding money from parents for marks**. A **mob attacked the school**; the teachers were manhandled; Ms. Khurana was **suspended, then dismissed from service** (para 2). Subsequent police investigation (and the channel's own confession in parts) revealed that the "sting" was **manufactured**: persons with an axe to grind against the teacher — the narrative recorded by the Court — arranged it, with an **aspiring journalist** casting acquaintances (one posing as a parent) to induce the teachers on camera; the tapes were edited; the "bribe" scene was **created by inducement**, not recorded. A revenge-fabrication became prime-time news; the Hindustan daily of 7.9.2007 carried it as fact (para 3). A Hindi daily (Hindustan, 7.9.2007) reproduced it as fact (para 3). A Delhi HC judge learned of it and the Court took **suo motu** note in pending proceedings (paras 1, 22: "we discharge the notices suo motu issued by us to the State").

Issues

1. Whether the State/Channel are answerable when a "sting" is fabricated; is there any **law** governing media stings?
2. Whether entrapment by journalists is permissible at all — the line between investigative journalism and creating a crime;
3. Whether a self-regulatory code &/or statutory guidelines should govern telecast of stings; role of the MIB/NBA/PCI;
4. Remedies for the victim (service, reputation, damages).

Decision (paras 15–22)

- **Remedial:** damages "left open" to Ms. Khurana — "she could file an appropriate case for causing damage to her reputation and for the mental agony and physical hardship... Damages in accordance with the law can be awarded by Courts in cases of defamation and loss of reputation" (para 13); Directorate of Education directed to reconsider her dismissal (para 14).
- **The ethics rule (paras 15–19):** "Such incidents should not happen and **false and fabricated sting operations directly infringing upon a person's right to privacy** should not recur because of desire to earn more and to have higher TRP ratings. **Right to freedom of press is a valuable right but the right carries with it responsibility and duty to be truthful and to protect rights of others**." (para 15). Quoting Barkha Dutt's own column ("something unseemly and mildly sleazy about reporters playing Pied Pipers... much easier to justify the hidden camera when it is capturing the event that would take place whether or not the camera was there... Entrapment... can't shake off the suggestion of fabrication" — para 16); adopting **Jacobson v. United States**, 503 US 540 (para 17): law-protectors must not "originate a criminal design, implant in an innocent person's mind a disposition to commit a criminal act, and then induce commission of the crime so that the Government

may prosecute"; "we are also of the view... the media... is not to test individuals by... the 'inducement test'... the individual may as well claim that the person offering inducement is equally guilty" (para 19); "a **hidden camera cannot be allowed to depict something which is not true... and is not happening but has happened because of inducement**" (para 18).

- **Self-regulation call (para 19):** "all TV channels/Media shall take steps and prohibit its reporters from producing or airing any programme which is based on entrapment... responsible and senior TV journalists/reporters and editors... should take steps for drawing up a **self-regulatory code of conduct**. The **Press Council of India should also examine and can take initiative** in this regard."
- **The 12-point guidelines (para 20 — reproduce in the exam; the DU Case Material prints all of them):** (1) a **certificate of genuineness** from the person who recorded/produced the sting; (2) **concurrent record in writing of the various stages**; (3) **permission to telecast from an MIB-appointed committee** — headed by a retired High Court Judge appointed in consultation with the HC, plus a member not below Additional Secretary and the Additional Commissioner of Police — "permission... after satisfying itself that it is in public interest to telecast... This safeguard is necessary since **those who mount a sting operation themselves commit the offences of impersonation, criminal trespass under false pretence and making a person commit an offence**"; (4) **unedited films/tapes to be preserved & produced** (transcript may be edited); (5) scheduling with audience-awareness (children, "avoid shocking or offending"); (6) compliance with the **Cable Television Networks (Regulation) Act, 1995 & the Programme Code Rules**; (7) **Chief Editor responsible for self-regulation**; (8) subject-matter rules — no unverified facts as true ("a man is innocent till proven guilty by law" — trial-by-media ban), no misleading mixing of facts and fiction, no distortion by over/under-emphasis, "no making public any... material relating to an individual's personal or private affairs or which invades an individual's privacy **unless there is an identifiable large public interest**", nothing "likely to create public panic or unnecessary alarm which... lead[s] to disorder or [is] offensive to public or religious feeling"; (9) "general community standards of decency and civility... particular care to protect the interest and sensitivities of children"; (10) "News should be reported with due accuracy... verification (to the fullest extent possible)..."; (11) "Infringement of privacy in a news-based/related programme is a sensitive issue... greater degree of responsibility"; (12) "Channels must not use material relating to persons' personal or private affairs... unless there is an identifiable larger public interest".
- **Disposition (paras 21–22):** "The Ministry of Information and Broadcasting is already examining whether a statute and/or a code of conduct should be enacted. The above proposed guidelines should be considered by the concerned Ministry and if they find favour, they may be incorporated in the enactment/guidelines...", notices discharged — **the Court declined to make the guidelines binding law; Parliament never legislated**. (The Law Commission then issued its 2010 Consultation Paper — the questionnaire reproduced in the project material — and the reforms stalled; the field today is occupied by the **BBCI/NBWO self-regulation + Broadcasting Act, 2023 Codes**.)

Principles evolved

- **Fabricated "stings" are actionable invasions of privacy — not protected speech**; inducement-based stings are condemned for both ethics and criminality.
- The "**capture-what-was-going-to-happen-anyway**" criterion (via Jacobson) is the working test for legitimate investigative journalism (adopted later in the Consultation Paper & discussed in R.K. Anand para 173).
- Interim "quasi-statutory" **guidelines** as a technique where the legislature sleeps — the only Indian judicial code for stings; cited by the Law Commission (2010) and the Delhi HC's own 2007 order (14.12.2007).

Links

This dossier closes the loop of 2.2: privacy (Puttaswamy's "reasonable expectation", Rajagopal's private-individual rule), defamation (para 13 — damages), sting ethics (Leveson/NBSA codes), regulatory law (Cable Act Programme Code; the 2023 Act), and 2.1 — "the press as fourth estate... no doubt the media is well within its rightful domain when it seeks to use tools of investigative journalism... to bring us face to face with the ugly underbelly of the society" (para 19). In PYQ answers, this paragraph + para 15 is your balanced conclusion.

Unit-2.2 Comparative Decision Matrix (one-mark recall table)

Case	Media wins?	Core formula
Rajagopal (1994)	Yes — no prior restraint; publication from public records protected	"Public officials must prove reckless disregard; the State cannot use the courts to gag"
Puttaswamy (2017)	Framework for both sides	"Legitimate expectation of privacy; restrictions must satisfy legality–aim–proportionality"
X v. UOI (2021)	Victim wins; intermediaries bound once court seizes matter	"Take-down + global de-indexing + automated re-blocking; no s.79 shield after court order"
Swatanter Kumar (2014)	Plaintiff (public figure) wins interim restraint	"Postponement order — necessity + proportionality; headlines + photos + unverified allegations = media trial"
R.K. Anand (2009)	NDTV wins (on the sting), contemnors lose	"Sting serves public cause if truthful & non-obstructive; but deception attracts 'far greater stringency'"
Rajat Prasad (2014)	Neither — charge survives	"A crime does not stand obliterated by public-interest claims; but the disinterested journalist lacks mens rea"
Uma Khurana (2008)	Victim wins; media code proposed	"Fabricated/induced stings actionable; 12-point guidelines; self-regulation first"

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 DU LL.B. Dec. 2024 · Q.2 How do you perceive the increasing trend of hate speech in India and its key characteristics? Examine the various Supreme Court guidelines aimed at curbing hate speech.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 DU LL.B. Dec. 2024 · Q.3 The freedom of the Press in the United States of America is far more robust than the corresponding Constitutional Guarantee of freedom of Speech and Expression in India. Analyse with the help of decided cases.

Q.3 DU LL.B. 2015 · Q.1 Freedom of speech and expression is subject to reasonable restrictions; discuss with decided cases. Is there prior censorship of the press in India? Compare with the USA.

Q.4 DU LL.B. 2015 · Q.3 The right to privacy — State actors, celebrities, private individuals; whether sting operations violate the right to privacy.

MODULE 03 // UNITS 2.3–2.4 · CASES #13–#15

Right to Information, Access to Media & Trial by Media

RTI Act, 2005 · Contempt of Courts Act, 1971 · Constitution arts. 19, 21

Your syllabus, word for word (as in the course file / screenshots)

2.3 Right to Information (2 Lectures)	How far does public access to information go; Is there a right to gather news or attend meetings; Fairness doctrine and access to the media; Compelling journalist to disclose information related to crime and source. **13.** CPIO, Supreme Court of India v. Subhash Chandra Aggarwal, AIR 2010 Delhi 159
2.4 Trial by media and fair trial (3 Lectures)	Pre-trial publicity; Cameras in Courtroom; Restrictive Orders. **14.** M.P. Lohia v. State of West Bengal, (2005) 2 SCC 686 · **15.** Naveen Jindal v. Zee Media Corporation Ltd, CS(OS) 143/2015 **Ref:** Trial by Media: Free Speech and Fair Trial under Criminal Procedure Code, 1973, **200th Report, Law Commission of India**

A. Unit 2.3 doctrine — A1 The right to know: constitutional architecture · A2 How far public access goes (RTI Act machinery) · A3 "Public authority" & its outer edges · A4 Disclosure vs privacy — s.8(1)(j) & the three-factor test · A5 Right to gather news / attend meetings / open justice · A6 Fairness doctrine & access to the media · A7 Compelling the journalist: crime, sources, shield laws

B. CASE 13 — CPIO, Supreme Court of India v. Subhash Chandra Aggarwal (AIR 2010 Delhi 159)

C. Unit 2.4 doctrine — C1 Fair-trial values · C2 Pre-trial publicity & the "pending→active" rule · C3 The ten prejudicial-publication categories (LCI 200th) · C4 Cameras in the courtroom · C5 Restrictive orders: prior restraint vs postponement · C6 The remedies toolkit (IPC/BNS ↔ Contempt ↔ civil ↔ regulatory)

D. CASE 14 — M.P. Lohia v. State of West Bengal (2005) 2 SCC 686 — "Doomed by Dowry"

E. CASE 15 — Naveen Jindal v. Zee Media Corp. Ltd, CS(OS) 143/2015

F. The 200th Report in depth · Sibling DU Case Material cases on trial by media (Swatanter Kumar · R.K. Anand · Uma Khurana · Rajat Prasad) · Comparative matrix

G. DU December 2024 PYQ — full transcription + model answers (Q6 · Q8(C)) + pattern practice

H. Master mapping: IPC→BNS · CrPC→BNSS · Evidence Act→BSA for these units

I. Statutes compendium (RTI · Contempt Act · Draft Bill 2006 · codes)

J. Revision bank + quote bank (all quotes verbatim from the case material)

K. Sources, page-map & accuracy note

A1 · The right to know — the constitutional architecture of "public access to information"

Unit 2.3 asks "how far does public access to information go?" The answer has three storeys: (1) the **constitutional** storey — the right to know as a derivative of Art. 19(1)(a); (2) the **statutory** storey — the Right to Information Act, 2005, which converts the constitutional claim into an enforceable procedure with time-limits and penalties; and (3) the **limits** storey — Art. 19(2) restrictions, the s.8 exemptions and the fundamental right to privacy (Art. 21), whose collision is precisely what Case 13 adjudicates.

1. From "freedom of speech" to "freedom to know" — the chain of authority

The Supreme Court has repeatedly held that Art. 19(1)(a) is not only a right to express but a right to seek, receive and impart. The DU Case Material itself walks you through the chain: Secretary, MoI&B v. Cricket Association of Bengal (Unit 2.1, Case 3 — freedom of speech includes the right to propagate, publish and communicate; "airwaves are public property"); Bennett Coleman (Case 1 — the freedom-of-circulation limb); and — in the Shreya Singhal excerpt (Case 5) — the Court's insistence that any criminal provision touching information chills the market of ideas:

The pre-RTI foundation-stones every DU answer should name:

Case	Bench / judge	What it gave the right to know
State of U.P. v. Raj Narain AIR 1975 SC 865	K.K. Mathew, J.	"In a Government like ours… where the people are to judge for themselves the conduct of their public servants through their representatives, **there is a general right to information as regards the conduct of public affairs**", subject only to restrictions prescribed by law. The passage echoes through the whole of Case 13's reasoning.
S.P. Gupta v. Union of India AIR 1982 SC 149 (Judges' transfer case)	Bhagwati, J.	File-notes in judges' transfers should be disclosed: "the people of this country have the right to know about every public act done by the public functionaries… **where the people have no right to know every detail of the executive action… there must be some provision of law**…" — the judgment that forced India towards a statutory RTI.
Indian Express Newspapers v. Union of India (1985) 1 SCC 641	Division Bench	"The freedom of the press has… **a right to know about all matters of public interest**"; newsprint and price controls read against the transparency of the market of ideas.
Dinesh Trivedi v. Union of India (1997) 4 SCC 300	Bench led by CJI Verma	"In a modern constitutional democracy, citizens 'expect' transparency of governance… **right to information about the functioning of government**" — transfer of a civil servant upheld, but the confidential report could be produced before the court; the case crystallised RTI-era jurisprudence on file-notings.
Union of India v. Association for Democratic Reforms AIR 2002 SC 2112	Seven Judges	Voters' right to know candidates' assets is within 19(1)(a). **Quoted verbatim in the DU Case Material (para 17, p. 106):** "question is not of knowing personal affairs but to have openness in democracy for attempting to cure cancerous growth of corruption by few rays of light."
People's Union for Civil Liberties v. Union of India AIR 2003 SC 2363	—	Extends ADR to candidates' **criminal** antecedents; the "personal affairs" objection is "totally misconceived" (quotation reproduced in the DU Case Material, p. 106).
International: UDHR Art. 19 · ICCPR Art. 19(2)	—	"Freedom to **seek** and receive information and ideas through any media and regardless of frontiers." The 200th Report quotes the Covenant rights extensively (Chapter II), and Case 13 quotes UDHR Art. 12 in the same breath (para 62, p. 110).

Why the exam asks "how far does public access to information go?"

The question is a **balance test**, not a definition test. The DU answer: the right is **presumptive and universal** (any citizen, any record, no reasons required — RTI ss.3, 6(2)); but it ends where (i) the holder is not a "public authority" (s.2(h); s.24 + Second Schedule), (ii) the matter is an enumerated exemption (s.8(1)(a)–(j), s.9), (iii) the **public-interest override** of s.8(2) / proviso to s.8(1)(j) is not discharged, or (iv) another fundamental right pulls the other way — privacy (Puttaswamy), fair trial (Unit 2.4), or the administration of justice (contempt). Case 13 resolves limb (iv): the "mere fact" that judges filed asset declarations is disclosable; the "contents" are personal information requiring a demonstrated larger public interest.

A2 · How far public access goes — the Right to Information Act, 2005 machinery, in full

Justice A.P. Shah's Division Bench described the statute in terms that open any good 2.3 answer (printed at DU Case Material pp. 107–108, para 29):

1. The architecture in one table (the bracketed section numbers are the answer's skeleton)

Provision	What it does	Detail an examiner expects
s.3 — right to information	"Subject to the provisions of this Act, all citizens shall have the right to information."	The right includes inspecting work, records and documents; taking notes, extracts and certified copies; taking certified samples or moulds; obtaining information in print or electronic form. Citizens only — foreigners cannot invoke s.3 (compare Art. 19(1)(a)'s citizens-only framing in Shreya).
s.2(f) "information" · s.2(i) "record"	Extreme breadth: "any material in any form", including opinions, advices, **file-notings**, e-records, samples, model drafts.	Case 13 paras 73–74 (p. 115): asset declarations are "material in any form", hence "information" under s.2(f); a "confidential" label cannot carve records out of the Act. CIC para 16 (p. 102–103) does the same work: the declarations are "information… maintained in a confidential manner" but "like any other official information it is available for perusal… to every succeeding Chief Justice."
s.2(h) "public authority"	Any authority, body or institution of self-government established or constituted (a) by or under the Constitution, (b) by any other law, (c) by Government order, (d) **owned or controlled** by Government, (e) **non-Government organisations substantially financed**, directly or indirectly, by Government funds.	Case 13 (CIC paras 18–23, pp. 103–104) construes "authority / body / institution" etymologically, excludes natural individuals, and holds an institution and its head are **one** public authority (the Registry is not a distinct authority). Real examples in both directions: BCCI held outside (not substantially financed); Bar Council, UGC, IITs, CBSE-affiliated networks and the PMO inside.
s.4 — suo-motu obligations	Every authority must publish, within 120 days and updated thereafter: organisation/function/powers, duties of officers, norms of functioning, categories of documents held, remuneration particulars, budget allocations, decision-making procedure and criteria, boards/committees, policy announcements, licence/contract details, authorisation decisions, and the details of the PIO; s.4(1)(a) requires records catalogued, indexed and **computerised and networked**; s.4(2): "It shall be a constant endeavour of every public authority to provide as much information **suo motu**… so that the public have minimum resort to the use of this Act."	Case 13 para 69 (pp. 112–113) quotes s.4 at length — the judgment's whole "disclosure by design" argument rests here: "the obligation to provide unimpeded access, to information, even through the internet."
s.5 — PIOs & APIOs	Every public authority designates PIOs (and Assistant PIOs) for each administrative unit or sub-unit.	Case 13's factual core is a designation problem: the Registry "does not hold" the file and the office of the CJI "does" — the court's answer: one authority; the PIO must obtain what the authority holds. Failure to appoint/designate exposes officers to s.20 penalties.
s.6(1)–(3) — the request	Application in writing (or e-mail), in English or any language in the Eighth Schedule or the official language of the State, with particulars of the information, period, and the fee; s.6(1) proviso: the PIO must render **assistance** to a person unable to read or write or with a sensory disability; s.6(2): **no reasons** need be stated; **s.6(3)**: where the record belongs to another public authority, **transfer within five days** and inform the applicant.	s.6(3) is the procedural hinge of Case 13: the first appellate authority and CIC held the CPIO "**should have considered the question of Section 6(3)**" instead of outright denial (pp. 101–102); the CPIO's "short-circuit procedure" rebuke is quoted verbatim in A2.4 below.
s.7 — time-limits; third parties	Dispose within **30 days**; where the information "concerns the life or liberty of a person", within **48 hours** (s.7(1)); where third-party information treated as confidential is sought, s.7(3) routes the PIO through **s.11**: written notice within 5 days → third party may make representations within 10 days → decision within **40 days**; s.7(6): every decision must state the reasons, the fees and the appeal forum; s.7(8): if access is partly denied, the exempt portion and reasons must still be communicated.	The 48-hour rule is invoked daily in custody-death, custodial-violence and lynching litigations. The s.11 route is exactly the procedure Case 13 declares mandatory before the "contents" of an asset declaration can ever reach an applicant (paras 67–70).
s.8(1)(a)–(j) — the ten exemptions	(a) sovereignty, security, strategic, scientific or economic interests, foreign relations, incitement to an offence; (b) information expressly forbidden by a court or whose disclosure constitutes contempt; (c) breach of Parliamentary/Legislature privilege; (d) commercial confidence, trade secrets, IP (unless larger public interest); (e) **fiduciary relationship** (unless larger public interest); (f) confidence received from a foreign government; (g) endangering life or physical safety of any person or unmasking a confidence source; (h) impeding investigation, apprehension or prosecution; (i) Cabinet papers (once the decision is taken and the matter complete, the material on which it was taken may be released); (j) **personal information** — the privacy head.	Case 13 turns on **(e)** (fiduciary — rejected for the CJI's holding of declarations) and **(j)** (privacy — accepted for contents). The Division Bench counts the heads as "a well-defined list of 11 kinds of matters that cannot be made public" (para 62, p. 110 — the book's enumeration) and stresses the **non-obstante chapeau**: "Notwithstanding anything contained in this Act, there shall be no obligation to give any citizen…". Head (g) doubles as the statute's own quiet cousin of **source protection for informants** — see A7.
s.8(2) — public-interest override	"Notwithstanding anything in this Act… notwithstanding that the public interest in disclosure of information in the possession of any public authority outweighs the harm to the protected interests", the authority **may** allow access — applies to every head of s.8(1), but not to s.9.	The exact lever Case 13 threads through paras 60–75: the bar of (j) "is lifted" after notifying the third party and considering his views. Write it as: **exemption ≠ veto; exemption = rebuttable.**
s.9 — copyright	No obligation to disclose information which merely enables a citizen to enforce a right protected by copyright of a person other than the State (Parliament/Legislature privilege unaffected).	Real use: data compiled under a private party's copyright — PIO may give the raw record, not the protected compilation.
s.10 severability · s.11 third-party	s.10(1): non-exempt parts of a record must be disclosed even if the rest is exempt; s.11(1)–(4): notice within 5 days, 10 days for representation, reasoned decision within 40 days (s.11(3)), notice to both applicant and third party, "every person" is entitled to appeal.	Case 13 para 71 (p. 114) — the list you must reproduce: s.8(1)(j) "confers substantive rights even while engrafting procedural safeguards", because of (i) recognition of third-party privacy rights; (ii) the PIO's satisfaction, recorded, that disclosure is justified by public interest **on objective material**; (iii) the views of the third party considered under s.11; (iv) the satisfaction recorded in writing through an order under s.11(3); (v) an adverse order being appealable (s.11(4) — "the order… is appealable").
ss.12–13 — CIC / SCIC	Chief Information Commissioner + up to 10 Central Information Commissioners; appointment committee (as amended 2019): **PM (chairperson), Leader of Opposition in the Lok Sabha and a Union Cabinet Minister nominated by the PM**; State officers mirrored under s.13.	**RTI (Amendment) Act, 2019:** tenure and salaries left to Central Government prescription (originally fixed at 5 years/ Election Commissioner parity) — flagged by petitioners (e.g., Prashant Bhushan's challenge) as an independence dilution; a standard "contemporary issues" footer for the answer.

Provision	What it does	Detail an examiner expects
ss.15–18 — complaints & powers	Any person may complain of: refusal to accept an application; refusal of access; late response; "unreasonably discriminatory" fees; non-response; etc. (s.18(1)); the Commission has the powers of a civil court for summoning, discovery, requisition of public records, affidavits (s.17); may **examine records in camera** (s.18(2)); if satisfied disclosure was refused "without reasonable cause", may order disclosure and recommend penalties (s.18(3)–(6)).	Case 13 is the appellate machine in motion: CPIO → first appellate authority → CIC (order of 6.1.2009) → Delhi HC — the Division Bench's criticism at paras 28–29 (p. 104) that the lower levels "remained silent" on exemptions is a model of "reasoned-order discipline".
s.19 — appeals; s.20 — penalties	First appeal within 30 days to the officer senior to the PIO (condonation for sufficient cause); second appeal to the Commission within 90 days; **s.19(5): the burden of justifying denial or delay lies on the PIO**; s.19(6): costs may be recommended. s.20: fine of **₹250 a day up to ₹25,000** after hearing, recoverable as arrears of land revenue from salary; s.20(2): recommendation of disciplinary action.	Quote s.19(5) whenever the question is "why is RTI stronger than earlier judicial transparency?" — the reversal of burden is the Act's teeth; the s.20 penalty — ₹250 a day, capped at ₹25,000 — is modest but real: CICs have imposed crores in aggregate fines since 2005.
s.22 — overriding effect · s.24 + 2nd Schedule	The Act overrides the Official Secrets Act 1923 and any official-secrets rule restricting disclosure; intelligence/security organisations listed in the Second Schedule are excluded — **except** that information alleging **corruption or human-rights violations** must be given within 20 days of the request with the Commission's prior approval (s.24(2)).	Case 13 para 35 (p. 109) recites the Schedule list as printed in the book — "the Intelligence Bureau, Research and Analysis Wing of the Cabinet Secretariat; Directorate of Revenue Intelligence; Central Economic Intelligence Bureau, Directorate of Enforcement, Narcotic Control Bureau, Aviation Research Centre, various para-military forces, and named police establishments" — and concludes: "**There is no clue in these provisions, that the office of the Chief Justice of India, is exempt**; on the contrary, internal indications… point to even the President of India, being covered by the Act."
ss.27–28 — rules, fees	Central Rules: RTI (Regulation of Fee and Cost) Rules — **₹10** application fee; ₹2 per page; no fee for persons below poverty line (certificate); the RTI Online portal (2017) for Central authorities. s.28 fixes who is the "competent authority" to make rules for each body.	Case 13's CIC para 16 (p. 102): rule-making power over the Supreme Court vests in the CJI/SC — "who cannot disclaim being public authorities". This is a beautiful, easily missed syllogism — the right to make RTI rules is proof of being a public authority.

1 · Any citizen
files the request — no reasons needed (s.6(2)); ₹10; PIO must assist
"abolishes locus standi" — CPIO para 29

→

2 · Public authority?
s.2(h): Constitution / law / order / owned-controlled / substantially financed NGO — one entity (Registry & CJI-office: same authority)

→

3 · "Information"?
s.2(f): material in any form — notings, e-records; even "confidential" records remain information

→

4 · Held elsewhere?
s.6(3) transfer within 5 days; outright denial on "not with me" = the first statutory error

→

5 · Exemption?
s.8(1)(a)–(j) + s.9; privacy head (j); fiduciary head (e); override s.8(2); severance s.10

→

6 · Decide in 30 days
48 hrs if life-liberty (s.7(1)); reasoned order (s.7(6)); partial denial still needs the non-exempt part (s.7(8))

→

7 · Third party in issue?
s.11: 5-day notice → 10-day representation → 40-day decision; onus on the applicant to show larger public interest (CPIO para 67)

→

8 · Enforcement ladder
s.19(1) first appeal → s.19(3) Commission (90 days) → Art. 226 HC → SLP; s.18 inquiries; s.20 ₹250/day fines; s.19(5) burden on PIO

by Ankur R. Upadhyay

A3 · "Public authority" — the gate of access, and how Case 13's Division Bench built it

Before an applicant reaches exemptions, appeals or balances, one door must open: the information must be "held by or under the control of a **public authority**" (s.2(j)). The DU Case Material made Case 13 the paradigm for that question — because the Supreme Court of India itself had never been "notified" under any transparency regime, and its Registry genuinely did not hold the judges' asset files. The Division Bench (A.P. Shah C.J., Vikramjit Sen & S. Muralidhar JJ) answered in three moves, reproduced in full because they are the answer:

Move 1 — Textual sweep (CIC paras 18–21, quoted at pp. 103–104)

- "Public authority" means "any **authority or body or institution** of self-government established or constituted…". None of the three words is defined, so the Act's own etymology governs: "authority" = "a Body invested with power to command or give an ultimate decision, or enforce obedience"; "institution" = "an establishment, organization or an association instituted for the promotion of some objects… of public or general utility".
- The three terms by implication **exclude an individual** (relying on Kamaraju Venkata Krishna Rao v. Sub-Collector, Ongole AIR 1969 SC 563: "Its meaning must always depend upon the context in which it is found").
- But — the killer syllogism at CIC para 22 — the Supreme Court "consisting of the Chief Justice of India and such number of judges as the Parliament may by law prescribe, is an institution or authority **of which the Hon'ble Chief Justice of India is the Head**. **The institution and its Head cannot be two distinct public authorities. They are one and the same.**" The Registrar, "only a part of the Supreme Court", cannot be carved out as a separate authority (para 22).

Move 2 — Structural inference (Division Bench paras 30–35, pp. 108–109)

- Art. 124 itself makes the Court "established… by or under the Constitution" — squarely within limb (a) of s.2(h). The CJI is additionally a "**competent authority**" in relation to the Supreme Court (s.2(e)(ii)) with rule-making power under s.28 — "who cannot disclaim being public authorities" while exercising powers the Act itself confers (para 30).
- Exemption is only what s.24 + the Second Schedule provides; "There is no clue in these provisions, that the office of the Chief Justice of India, is exempt; on the contrary, internal indications in the enactment point to **even the President of India, being covered by the Act**" (para 35) — via ss.2(h) & 2(e).
- The 1997 Resolution names the CJI as the recipient: "To conclude that the CJI does not hold asset declaration information in his capacity as Chief Justice of India, would also be incongruous, since the 1997 resolution explicitly states that the information would be given to him" (para 35).

Move 3 — Functional reality: the CJI wears many hats, one office (paras 31–34)

"He is, unlike the United States (where the Chief Justice is the Chief Justice of the US Supreme Court) **the Chief Justice of India**" — appointments of High Court judges and Chief Justices, transfers, tribunals, legal aid, judicial education: "It is quite possible therefore, that the Chief Justice, for convenience maintains a separate office or establishment" — yet all these roles "are directly relatable to his holding the office of CJI, and heading the Supreme Court" (para 35). The petitioners could not point to any separate PIO for that establishment. **Result: the CJI holds asset declarations in his official capacity; his office is a "public authority".**

A4 · Access vs privacy — s.8(1)(j), the three-factor test, and how the Division Bench wrote a mini-law of privacy

This is the doctrinal heart of Unit 2.3 — and it is also the hinge that connects the RTI unit to your privacy unit (2.2): the same "public-forum" logic (Rajagopal; Puttaswamy) reappears here as a **statutory** test. The Division Bench's own framing (para 62, p. 110):

1. The lineage the judgment itself invokes (pp. 110–112)

- **Brandeis J's dissent** in Olmstead v. United States, 277 US 438 (1928) — privacy as "the right to be let alone… the most comprehensive of rights and the right most valued by civilised men", quoted at para 64, immediately before the Court's recital of the Indian chain: Kharak Singh (1964) 1 SCR 332; Gobind (1975) 2 SCC 148; R. Rajagopal (1994) 6 SCC 632; Canara Bank (2005) 1 SCC 496 — with the honest observation that "These judgments, however did not explore the latent tension between the two values of information rights and privacy rights; Rajagopal, which is nearest in point, was concerned to an extent with publication of material that was part of court records."
- **UDHR Art. 12** is quoted side-by-side with Art. 19 (para 62) — the same instrument guarantees both access and privacy; the Act reconciles them through **s.8(1)(j) + s.8(2)**.
- **Public servants do not shed their rights**: O.K. Ghosh v. E.X. Joseph AIR 1963 SC 812 and the Constitution Bench in Kameshwar Prasad v. State of Bihar AIR 1962 SC 1166, reproduced verbatim at para 65 (p. 111): "We find ourselves unable to accept the argument that the Constitution excludes Government servants as a class from the protection of the several rights guaranteed by the several Articles in Part III…" — hence: "**an individual or citizen's fundamental rights, which include the right to privacy — are not subsumed or extinguished if he accepts or holds public office.**"
- **…but the protection is calibrated by role** (para 67): "in the case of private individuals, the degree of protection afforded is greater; in the case of public servants, the degree of protection **can be lower, depending on what is at stake**… A private citizen's privacy right is undoubtedly of the same nature and character as that of a public servant. Therefore, it would be wrong to assume that the substantive rights of the two differ." — the same "thin-skinned public figure" idea as Rajagopal paras 20–26 (Unit 2.2), now inside a disclosure statute.

2. The three-factor test — the DU Case Material's most exam-usable list (para 66, pp. 112–113)

When "a member of the public requests personal information about a public servant", the PIO must distinguish "the personal data inherent to the position" from data that "affect[s] only his/her private life", and the balancing "would take into account of many factors", which the Court itemises:

1. **Connection to office:** "whether the disclosure of the personal information is with the aim of providing knowledge of the **proper performance of the duties and tasks assigned to the public servant** in any specific case";
2. **Position-relatedness:** "whether the information is deemed to comprise the individual's **private details, unrelated to his position** in the organization"; and
3. **Accountability value:** "whether the disclosure will furnish any information required to **establish accountability or transparency in the use of public resources**."

The judgment then seals the method with **Lord Denning** (from What Next in Law), quoted in full at para 66: "Any infringement of it should give a cause of action for damages or an injunction… **None of these rights is absolute. Each is subject to exceptions. These exceptions are to be allowed whenever the public interest in openness outweighs the public interest in privacy or confidentiality. In every instance it is a balancing exercise for the Courts.**" (This is, in substance, the proportionality template that Puttaswamy would constitutionalise six years later.)

3. Where each factor points in Case 13 itself (paras 67–75)

Information	Classification	Reasoning to reproduce
Whether a judge filed an asset declaration under the 1997 Resolution (compliance data)	**Disclosable** — s.8(1)(j) inapplicable	"That kind of innocuous information does not warrant the protection granted by Section 8(1)(j)" (para 74). The very act of declaring is a public act of the office, and the applicant "sought only whether the 1997 resolution was complied with" (para 75).
The contents of the declarations (assets held by judge, spouse, dependants)	**"Personal information"** — releasable only through s.8(1)(j) procedure	Making disclosures is "part of the system's endeavor to appraise itself of potential asset acquisitions, which may have to be explained properly… **no law bars public servants from acquiring properties**… The obligation to disclose these investments and assets is to check the propensity to abuse a public office, for private gain" (para 70). So contents are presumptively protected; the applicant must record objective material showing larger public interest; then the "third party" notice under s.11 follows; denial is reasoned and appealable (para 71).
Fiduciary-relationship defence under s.8(1)(e)	**Rejected**	The declarations go to the CJI **as CJI** — a constitutional functionary, not a trustee of private confidence; "the petitioners' argument about the CJI holding asset declarations in a fiduciary capacity… is insubstantial" (para 84, Re Point 4). Distinguish genuine fiduciary data (medical records? bank-to-customer) — (e) stays alive for those.
Any "**confidential**" label	**Irrelevant by itself**	"public authority can be deduced under the Act, **particularly in respect of information merely marked 'confidential'**" — the only route is an enumerated exemption (para 16, p. 105). Confidentiality is not a self-justifying category.
Comparative "why judges ≠ legislators" (paras 72–73, pp. 114–115)	Why ADR cannot be mechanically extended	ADR compelled disclosure by **voluntary participants** in the electoral process (who submit to public judgment); India "did not choose the US model of either electing judges, or subjecting their appointment to a confirmation process"; a statute (the RTI Act) "occupies the field"; legislators "occupy office as long as the people choose to keep them there", while judges' tenure is secured "till retirement, subject to good behaviour". Hence: "for extension of complete and uninhibited access to the contents… **a mere demand is insufficient**".

A5 · "Is there a right to gather news or attend meetings?" — open justice and access to proceedings

The syllabus's second limb asks whether journalism enjoys a **privileged** right of entry. The DU Case Material answers through three of its own texts, read together:

1. Access to courts — "no special privilege; but the oldest of privileges: publicity"

- **Open justice is a right of the litigant-public.** In Naresh Shridhar Mirajkar v. State of Maharashtra AIR 1967 SC 1 (nine judges), reproduced at para 20 of the DU Case Material's Naveen Jindal text (pp. 122–123): "the High Court has inherent jurisdiction to hold a trial in camera if the **ends of justice clearly and necessarily require**… It is hardly necessary to emphasize that this inherent power must be exercised with great caution and it is only if the court is satisfied beyond the doubt that the ends of justice themselves would be defeated if a case is tried in open court…" — i.e., the public attends **as of right**; exclusion is the reasoned exception.
- **The press attends on the same ticket as citizens.** From Sahara India (Constitution Bench, (2012) 10 SCC 603) as re-quoted in the same judgment extract (para 23, p. 124): "there is in the first place **a presumption of open justice**… Given that the postponement orders curtail the freedom of expression of third parties, such orders have to be passed only in cases in which there is **real and substantial risk of prejudice** to fairness of the trial or to the proper administration of justice which in the words of Justice Cardozo is 'the end and purpose of all laws'."

- **Dockets are public records.** R. Rajagopal v. State of T.N. para 26(5) (Unit 2.2, Case 8; your DU Case Material pp. 78–84): every citizen may inspect judicial records — and the RTI Act does not displace that: the 200th Report likewise insists "the day after the report of crime is published, media says 'Police have no cue'" — access is normal; **compelled** access is not.

2. Attending "meetings" — assemblies vs access to deliberations

Two distinct rights are tangled here; separate them in the copy:

If the "meeting" is…	Who may attend, and on what right
A public meeting / demonstration / press conference	Art. 19(1)(b) & (c) (assembly, association) + 19(1)(a) as audience; journalists gather as citizens. Restrictions must satisfy 19(3) — and, per Shreya (DU Case Material Case 5 — "the restriction must have a proximate and direct relationship with the exercise of the right"), blanket prohibitions fail.
A government or corporate **boardroom** (e.g., Collegium meeting; Cabinet discussion)	No right of entry. But the **record** may flow later: RTI s.8(1)(i) Cabinet papers become disclosable once the decision is taken; SP Gupta ordered file-notes produced; CAB treats broadcast media as public property — "one-way communication is not acceptable". Case 13: "details of whether declarations have been made" — the compliance record — is information even when the deliberation is closed.
A legislative committee / in-camera judicial session	Only with the body's permission; Contempt Act s.7 protects the privacy of in-camera proceedings from **publication** unless expressly permitted; RTI s.8(1)(b) (court-forbidden/contempt) mirrors it — the two regimes are designed to interlock.

3. Gathering by misgathering? — illegally obtained news

Unit 2.2's holding that the **receiver**'s right extends to illegally obtained material (Rajagopal para 26(4)–(5): no liability for publishing public records / court-record-derived information, and the "no prior restraint" principle at para 26(3)) is **qualified** in Unit 2.4 by the fair-trial interest: R.K. Anand para 173 (DU Case Material p. 92): "this is, however, not to say that media is free to publish any kind of report concerning a sub-judice matter or to do a sting on some matter concerning a pending trial in any manner they please. **The legal parameter within which a report or comment on a sub-judice matter can be made is well defined and any action in breach of the legal bounds would invite consequences.**" A journalist who steals a chargesheet has a publishable story (subject to defamation/contempt) **and** a cognizable offence (s.378 → BNS 303 theft; s.411 → BNS 317 receiving stolen property; s.403 dishonest misappropriation — now under the BNS's corresponding property-offence provisions) — rights of gathering do not launder rights of taking.

The examiner's distinction

Right to gather ≠ right to be given. Art. 19(1)(a) protects **collection** (interviews, observation, documents lawfully obtainable, court records) and 19(2) does not list "secrecy" as such; but affirmative **supply** duties arise only under the RTI Act, statutory access rights (e.g., Companies Act inspection of registers), or a court's disclosure order. Case 13 is a supply-duty case — which is why it sits in 2.3, not 2.1.

A6 · "Fairness doctrine and access to the media" — what it meant, whether India has it, and what replaced it

1. The doctrine in its own home (United States)

The **Fairness Doctrine** was an FCC policy (formalised 1949) with **two limbs**: (i) broadcasters must devote a reasonable share of airtime to **controversial issues of public importance**, and (ii) coverage must be **fair** — licensees had to make their facilities available for the expression of contrasting viewpoints of responsible elements. Two ancillary rules matured it: the **personal-attack** rule (a person attacked on broadcast must be given prompt free reply time) and the **political-editorising** rule (a station attacking or supporting a candidate must offer the candidate equal opportunity to respond).

- **Red Lion Broadcasting Co. v. FCC, 395 U.S. 367 (1969)** — the doctrine upheld unanimously (White J) against First Amendment attack. The theory: because the broadcast spectrum is scarce, "**it is the purpose of the First Amendment to preserve an uninhibited marketplace of ideas in which truth will ultimately prevail, rather than to countenance monopolization of that market**", and "**it is the right of the viewers and listeners, not the right of the broadcasters, which is paramount**… the licensee… is permitted to use public property in pursuit of private goals" — "there is no sanctuary in the First Amendment for unlimited private censorship operating in a medium not open to all." In the case itself, journalist Fred Cook, attacked on air by Rev. Billy James Hargis, was held entitled to reply time.
- **CBS, Inc. v. FCC, 453 U.S. 572 (1981)** — personal-attack and political-editorising rules sustained (Burger C.J.), restating that the audience's right prevails.
- **Death of the doctrine:** the FCC's 1985 fairness report found the rules chilled speech; after Congress passed a codification bill, **President Reagan vetoed it (1987)**, and the FCC repealed the doctrine by its Memorandum Opinion & Order of **4 August 1987** (upheld in Radio-Television News Directors Ass'n v. FCC, 819 F.2d 1165 (D.C. Cir. 1987)) on the ground that the scarcity premise of Red Lion had eroded and the doctrine violated the First Amendment. Cable, print and online never carried a fairness obligation.

2. Does the doctrine apply in India? — the two-page answer

Channel of Indian law	What it does — and how far it is "fairness doctrine"
The Constitution	No general right of access to a medium (public or private) is guaranteed: Art. 19(1)(a) protects the **speaker and the audience**, not a statutory "equal-time" entitlement; a citizen's "right to reply" exists in our law as a **remedy** (defamation proceedings, corrections) and as a **regulatory** expectation, never as an enforceable frequency-share — the Unit 2.2 "right of reply" material completes this.
Airwaves = public property — Secretary, MoI&B v. Cricket Assn. of Bengal (1995) 2 SCC 616 (Unit 2.1, Case 3)	The conceptual bridge: "**the airwaves… belong to the public**… they have to be used to promote freedom of speech"; "a citizen has a right to telecast… **one-way communication is not acceptable**"; "every citizen has a right to read and inform himself". The Court nonetheless left broadcast structure to statute — fairness was reframed in India as an **access-architecture** problem, not a content-balancing mandate.
Doordarshan access litigation	Two Bombay High Court decisions mark the boundary: Maneka Gandhi v. Bhagyalaxmi Film Corporation (1983) — Doordarshan, having telecast the ruling side's film "Sadhna" days before the Maharashtra elections, could not refuse her election-related film "Faith" (equality of access to a State medium in election time); Indira Jai Singh v. Fertilisers & Chemicals Travancore Ltd. (1985) — an MP elected unopposed had no enforceable right to DD airtime to reply to a PM broadcast, though the Court accepted that "the voters have a right to know…" and the State's even-handedness was a matter of policy. Conclusion: access rights are won by **equality review (Art. 14)** and statute — not by a fairness rule.
Prasar Bharti Act, 1990 (statute text)	s.3 — Corporation a body corporate; s.4 — the duty "to plan, produce and… broadcast… keeping in view the need for… **maintaining the highest standards of programme quality**… reflecting… the diverse culture of the nation…"; s.12 — a **Broadcasting Council** (Chairperson appointed by the President + 10 members + two Rajya Sabha + two Lok Sabha MPs) to consider complaints about programme standards — **never constituted**. The Pitroda Committee (Vol. I,) is the modern critique: no editorial charter, no live accountability organ — the "fairness machinery" exists on paper.
Cable Television Networks (Regulation) Act, 1995 + Rules	Programme Code, **r.6** (text): no operator/Channel Pass Through Person shall transmit any programme which, inter alia, "offends against good taste or decency"; contains "criticism of friendly countries"; "attack on religions or communities… [or promotes] communal attitudes"; "anything obscene, defamatory, deliberate, false and suggestive innuendos and half-truths"; "is likely to encourage or incite violence or contains anything against maintenance of law and order"; "contains anything amounting to **contempt of court**"; "carries aspersions against the integrity of the President and Judiciary"; "denigrates women… or children" — enforced by the Central Government's power to issue directions (s.16) with penalties (ss.11, 20–24 of the Act) and the (never-notified, then 2023 Bill) Broadcasting Content Complaints Council regime. **This is the closest India gets to a statutory fairness code — and it is a restraint code, not an equal-time code.**

Channel of Indian law	What it does — and how far it is "fairness doctrine"
Self-regulation	NBSA Code cl. 9 (stings as last resort; deception only where material to public interest) and its fairness/impartiality clauses; PCI Norms of Journalistic Conduct (2022 edition) — chapters "Crime", "Judicial Proceedings", "Public Life", "Victims of Sex Crimes" (the PCI's statutory function under s.13(b)/14(2) of the Press Council Act 1978 is to "evolve a code of conduct"). The DU Case Material's own contribution here: the Delhi High Court's 12-point code in Court on Its Own Motion (Uma Khurana) — cl. 8(a)–(f) ("deliberately present as true any unverified or inaccurate facts **so as to avoid trial by media since 'a man is innocent till proven guilty by law'**"), cl. 10 (accuracy = "verification... and presentation of all facts that are necessary to understand a particular event"), cl. 11–12 (privacy responsibility) — printed at DU Case Material pp. 114–117.
Comparative bookend	UK — Ofcom Broadcasting Code Section 5 ("**due impartiality… duly accurately**" for news, across services); Leveson Report ¶? (Unit 2.2 — recognition-conditional self-regulation carrying standards duties). Canada — Broadcasting Act 1991, s.3(1)(i): the system should "provide... a reasonable balance among voices... on issues of public policy controversy". Ireland/other Commission practice (see the 200th Report, Ch. VIII): sub judice fairness limits are compatible with free expression.

Model one-paragraph answer to "Fairness doctrine and access to the media"

The Fairness Doctrine was the American rule that broadcasters must cover public controversy and balance viewpoints — constitutional in Red Lion (1969) precisely because "the right of the public to receive... ideas and experiences" outweighed the licensee's, and repealed by 1987 once scarcity lost its premise. India never adopted it: the constitutional access cases (CAB — "one-way communication is not acceptable"; the Doordarshan reply cases) treat the **medium**, not the message, as a public trust; "fairness" arrives instead as the Prasar Bharti quality mandate (s.4) with its never-constituted s.12 Council, the statutory Programme Code (r.6 — decency, defamation, contempt bars), and voluntary codes (NBSA; PCI norms) supplemented by judge-made newsroom law — the 12 Uma Khurana guidelines. **Exam takeaway: in India fairness is engineered through access-architecture + self-regulation, not equal-time law.**

A7 · "Compelling a journalist to disclose information related to crime and source" — the law in full

1. Starting point: India has no source-protection privilege

The Indian Evidence Act, 1872 (from 01.07.2024, the **Bharatiya Sakshya Adhiniyam, 2023**) contains a closed list of privileged communications. Journalism is not on it:

Evidence Act, 1872	BSA 2023 equivalent	Content — and the journalist's position
s.121 — Judges & Magistrates	BSA s.127	No judge or magistrate may be questioned about things that happened while they were presiding (save by special order).
s.123 — Evidence as to affairs of State	BSA s.129	Unpublished official records: no one may be permitted to give them "without the official permission of the Head of the State" on the advice of the Minister; court examines first. The state-secrets gate that PIOs close behind RTI s.8(1)(a).
s.124 — Official communications	BSA s.130	A public officer may refuse to disclose unpublished official communications "unless the judge deems that the justice of the case... requires the disclosure" — residual judicial control.
s.125 — Spousal communications	BSA s.131	No husband or wife shall be compelled to disclose communications made during marriage (with exceptions) — often cited as the template for an "editorial confidence" clause that never came.
ss.126–129 — legal professional privilege; interpreters; agents; title deeds	BSA ss.132–135	Advocate–client (and post-retention), interpreter, and common-interest communications. **The list simply ends; there is no press or "news-source" class.** A reporter asked "who gave you this document?" is an ordinary witness.

2. The compulsion toolkit agencies actually use (IPC↔BNS · CrPC↔BNSS)

Step agencies take	Old law	New law	Journalist-side limits
Notice requiring attendance of witnesses during investigation	CrPC **s.160** (women, boys under 15, men over 65 and mentally/physically disabled persons need not attend at police-station); statements under **s.161**, unused statements barred by **s.162**	BNSS **ss.179–181** (corresponding)	Objection on relevance and proportionality; no class immunity — see Rouse Avenue box below. Confessions to police inadmissible (s.25, Evidence Act/BSA) — the 200th Report's "once the confession is published... the suspect's future is finished".
Order to produce a document or thing (notes, tapes, drives)	CrPC **s.91**; and, for proceedings before courts, CrPC **s.179** (witnesses; evidence by commission)	BNSS **s.94** — expressly extended to "**or other device**" (phones, drives, cloud keys); BNSS **s.199** (evidence by commission corresponds to CrPC s.179)	Motion to set aside: fishing expedition; harassment; breach of undertaking to the source? (no legal force without a shield); proportionality (Puttaswamy) — courts balance, they do not immunise.
Search & seizure at newsrooms; forfeiture of objectionable publications	CrPC ss.93–95 (search warrants; **s.95 forfeiture**), ss.100–103 (witnesses to search); CrPC s.96 (seizure of documents)	BNSS **s.110** (forfeiture of publications), **s.111** (seizure/ forfeiture procedure)	Seizure targets the **article**, not the conscience of the writer; prior restraint lawfully impossible (Rajagopal para 26(3)) — post-publication remedies only; publication itself may attract s.8(1)(b) RTI-style bars, contempt, or defamation.
Proceedings against the **leaker** (which indirectly hunt the source)	Official Secrets Act 1923 s.5 (unauthorised disclosure; no "public interest" defence); IPC s.378 (theft of file), s.409 (CBT by public servant), s.411 (receiving stolen property); s.217? (abetment of offence by public servant) — omit; also IPC s.172?/ s.174 (non-attendance)	BNS **s.303** (theft), **s.316** (criminal breach of trust, incl. public-servant sub-clause), **s.317** (receiving stolen property); OSA 1923 unchanged	The DU Case Material view: R.K. Anand para 194 "we appreciate the professional initiative and courage shown by the young reporter Poonam Agarwal" — while condemning "acts of omission and commission" around the leak (para 195); and para 198: "the norms to regulate the media... **must come from inside**". The Court punished the intermediaries (advocates) and never the medium.

3. What has been proposed — and why it still isn't law

- **Law Commission of India, 93rd Report — "Disclosure of Sources of Information by Mass Media" (1982)**: taken up suo motu because the question "pertains to the law of evidence, but... necessitates an examination of many other fields of law"; it surveyed the High Courts, weighed "privilege or discretion", observed that "the Press Council Act concentrates on 'newspaper, news agency, editor or journalist', but presumably that was because that Act was concerned primarily with the press", while "**every medium of communication to the public needs to be covered**"; its working clause (cited in the Commission's discussion): "**No Court may require a journalist to disclose the source of information contained in the publication unless it is established to the satisfaction of the Court that disclosure is necessary in the interest of justice or national security or for the prevention of disorder or crime**." The model was the clause that matured in the UK into s.10, Contempt of Court Act 1981. **Parliament never enacted it** — the honest "reform" paragraph of this sub-unit.
- **Second Press Commission (1982)** — urged the same qualified protection; the **PCI's Norms of Journalistic Conduct** (2022 ed.) keep the professional obligation (protection of the identity of informants/whistle-blowers; "not to publish... unverified") — a code-duty, not a privilege.
- **UK:** s.10, Contempt of Court Act 1981 — no court may require a source unless "establishing that disclosure is necessary in the interests of **justice or for the protection of national security, for the prevention of disorder or crime, or for the protection of the rights or freedoms of others**"; Goodwin v. United Kingdom (1996) 22 EHRR 123: source protection is "**one of the basic conditions for press freedom**... some of the most important public interests... cannot be safeguarded unless journalists can guarantee confidentiality"; restrictions require an "overriding requirement in the public interest", strictly construed.

- **USA:** Branzburg v. Hayes, 408 U.S. 665 (1972) — "the First Amendment does not invalidate every incidental burden on the collect[ion] of news… [a reporter] is not exempt from testifying before a grand jury" (5–4); **but** the dissent (Powell J) was legislated into life — 40+ states enacted **shield laws** granting qualified (not absolute) privilege; no federal shield statute exists.
- **Canada:** R. v. National Post, 2010 SCC 16 — **no class privilege**; sources win only case-by-case on the Wigmore criteria (confidentiality essential to the relationship; benefit to society outweighs the litigation harm). A neat common-law "middle path" the answer can recommend.

The situation
An agency sends a BNSS s.94 notice to a journalist: produce the notes, the drive — and name the source

→

Claim a privilege?
BSA ss.127–135 list is closed — no press clause; Art. 19(1)(a) protects publishing more than it protects concealing; Branzburg, National Post (no class privilege), vs s.10 UK + Goodwin

→

Objections that DO work
relevance / fishing expedition; harassment; proportionality & privacy of the source (Puttaswamy); safety of an informant (read RTI s.8(1)(g) — the "unmasking a confidence-source" exemption — as legislative policy against compelled disclosure); sealed-cover confidentiality and sub-judice restraint (Unit 2.4)

→

If refusal persists
the order is enforced like any witness obligation (contempt; offences of non-attendance in the BNS/BNSS general chapters) — the sanction attaches to **disobedience**
, not to journalism as such

→

The reform answer
LCI 93rd/1982 clause + Second Press Commission: a
qualified statutory privilege
— "necessary in the interest of justice / national security / prevention of disorder or crime" — deferred, not rejected: India's "shield law" remains a legislative task.

Real examples — the crime-side, 2021–2026 (check status before viva)

- **Rouse Avenue Courts, Delhi (January 2023):** in proceedings arising from an ED summons to journalists, the Special Court held that **journalists are legally bound to disclose their sources to investigating agencies** where disclosure is "essential and vital" to the investigation, because "there is no statutory protection in India for journalists against disclosing their sources to investigating agencies" (as reported, India Today, 19.01.2023). The current on-the-ground state of the law.
- **NewsClick / PMLA (2021–2026):** after attachment/prosecution complaints against the portal, editor-in-chief **Prabir Purkayastha was arrested on 14 October 2023** — days after the Supreme Court's Pankaj Bansal (3 October 2023) ruling that written grounds of arrest are mandatory under Art. 22(1); the **Supreme Court set aside the arrest on 26 April 2024** (Bopanna & Sanjay Kumar JJ), a case-study in procedure guarding journalism; in **June 2026 the Delhi High Court quashed the PMLA proceedings** against NewsClick and Purkayastha — "aside from bald assertions of there being a criminal conspiracy, there is not a whisper of any incriminating allegation…" (as reported) — with the ED signalling an appeal to the Supreme Court. Use as the "how compulsion can be abused, and how review corrects it" example.
- **The leak that made the news:** R.K. Anand (DU Case Material pp. 74–96) began with the media obtaining a copy of the **sealed-cover intercepts** from the judge's own court registry — the Court treated the leak with "grave concern" while acquitting the journalist-side publication question of "trial by media" (para 175), appreciating the reporter's "professional initiative and courage" (para 194). The two propositions can coexist: **no privilege to name sources; no liability for publishing what the courts later say was properly obtained** — that is the Indian balance in one line.

PART B · CASE 13 — CPIO, SUPREME COURT OF INDIA v. SUBHASH CHANDRA AGGARWAL

One-line ratio
Every institution "of self-government", including the Supreme Court and the office of the CJI, is a **public authority** under s.2(h) RTI Act; judges' asset declarations are "information" under s.2(f); the CJI holds them **not as a fiduciary** (s.8(1)(e) fails); the **contents** are "personal information" accessible only through s.8(1)(j)'s larger-public-interest procedure with s.11 third-party notice — while **whether declarations were filed** is disclosable, the (j) procedure being "inapplicable" to it.

Why the DU Case Material chose it
It is Unit 2.3's entire syllabus in one judgment — "how far public access goes" (the Act's sweep and its two limits: exemption-pleading and privacy), the applicant's locus, the transfer duty, and DU's own institution as respondent.

Procedural ladder
RTI 10.11.2007 → CPIO order 30.11.2007 → first appeal (limited remand on s.6(3)) → CPIO rejection 10.1.2008 (the "short-circuit" letter) → CIC order 6.1.2009 → writ → **this Full Bench** → SLP → **SC (5 JJ) 13.11.2019**.

1 · FACTS (paras 1–3, DU Case Material p. 101)

On **10.11.2007** the respondent applicant wrote to the **CPIO, Supreme Court of India** seeking: (i) a copy of the **7.5.1997 Full Court Resolution** requiring every judge to declare all assets to the CJI "in a confidential manner"; and (ii) "information relating to declaration of assets etc., furnished by the respective Chief Justices of States" — i.e., whether any such declarations had ever been filed by **Supreme Court judges and High Court judges**. By order dated **30.11.2007** the CPIO agreed to furnish the Resolution "on remitting the requisite charges" and denied the rest: the asset information "was **not held by or under the control of the Registry** of the Supreme Court". The applicant's first appeal succeeded in part: the First Appellate Authority found him "justified in contending that if the CPIO was not holding the information, he should have **considered the question of Section 6(3)**" and remanded on that limited point (para 3, p. 101).

On remand, on **10.1.2008**, the CPIO rejected the application in terms the DU Case Material prints verbatim — the passage to quote for "procedure as weapon": "you yourself knew that the information sought by you is related to various High Court in the country and instead of applying to those Public Authorities you have taken a **short circuit procedure** by approaching the CPIO, Supreme Court of India **remitting the fee of Rs.10/- payable to one authority and getting it referred to all the public authorities at the expense of one Central Public Information Officer**… and is against the spirit of Section 6 (3)" (p. 102).

The CPIO's substantive case before the CIC (para 4, p. 102): the 1997 Resolution was "an in-house exercise"; declarations are "only voluntary"; "the resolution itself describes submission of such declarations as 'Confidential'"; disclosure would breach a "fiduciary relationship"; the declarations went to the CJI "**not in his official capacity but in his personal capacity**"; disclosure was "contrary to the provisions of section 8(1) of the Act". The applicant's answer (para 16, pp. 105–106): the Act's exemptions are an **exhaustive list** — "**No other ground for excluding information which exists with any public authority can be deduced under the Act, particularly in respect of information merely marked 'confidential'**"; only s.8(1)(j) could apply, and "by no stretch of imagination can the query whether judges have declared their assets, be considered exempt; there is no question of any confidentiality or privacy" — while contents and access rights were "intrinsically linked" and fell to be decided together (para 16). The respondent further armed himself with ADR and PUCL (para 17, below) and with the point that public disclosure — not secrecy — protects judges: publicity "would **thwart attempt at blackmailing of individual judges**, or 'corrosion' of their independence" (para 21, p. 107).

2 · BEFORE THE FULL BENCH: the CIC order (6.1.2009) printed inside the report (paras 5–32 quoted at pp. 102–105)

- **Rule-making power as proof of status (para 5, p. 103):** "Section 2(e)(i) was referred, to say that the Chief Justice of India was a **competent authority**... empowered to frame Rules under Section 28... It was held that rule making power is conferred by provisions of the Act, upon the Chief Justice and the Supreme Court, **who cannot disclaim being public authorities**." CIC para 16 rounds it off: "the contention... that the provisions of Right to Information Act are not applicable in case of Supreme Court cannot be accepted."
- **Custody, not capacity (CIC para 17):** "the office of the Chief Justice of India is the custodian of this information. The information is maintained in a confidential manner and **like any other official information it is available for perusal and inspection to every succeeding Chief Justice of India**. The information, therefore, cannot be categorized as 'personal information' available with the Chief Justices in their personal capacity."
- **Institution ≠ individual (paras 20–21):** "authority" = "**a Body invested with power to command... or having a legal right to command and be obeyed**"; "institution" = "a... body or organization brought into being for the purpose of achieving some object"; "**By very implication, the three terms exclude an 'individual'**" — with Kamaraju Venkata Krishna Rao v. Sub-Collector, Ongole AIR 1969 SC 563 for the point that "its meaning must always depend upon the context in which it is found."
- **One entity (para 22):** "the Supreme Court of India... is an institution or authority of which the Hon'ble Chief Justice of India is the Head. **The institution and its Head cannot be two distinct public authorities. They are one and the same.**... The Registrar... cannot be categorized as a Public Authority independent and distinct from the Supreme Court itself." — and para 23: "**It is the duty of the CPIO to obtain the information that is held by or available with the public authority**. Each of the sections or department... cannot be treated as a separate or distinct public authority. If any information is available with one section or the department, it shall be deemed to be available with the Public Authority as one single entity."
- **Exemptions must be pleaded and decided (para 29):** "neither the CPIO nor the First Appellate Authority has claimed that the information... is exempt either under Section 8(1)(e)... or... 'personal information' attracting exemption under Section 8(1)(j)."
- **What was actually sought (para 30):** "Shri S.C. Agrawal is **apparently not seeking a copy of the declarations or the contents therein** or even the names... he is seeking simple information as to whether any such declaration... has ever been filed... What he is seeking cannot be held to attract exemption under Sections 8(1)(e) or 8(1)(j)."
- **Direction (para 32):** the CPIO was ordered to say "whether such declaration of assets etc. has been filed by the Hon'ble Judges of the Supreme Court or not, **within ten working days**."

3 · ISSUES (para 27, p. 107) — the five "Points" the FB set down

1. **Point 1 —** "Whether the CJI is a public authority";
2. **Point 2 —** "whether the CPIO of the Supreme Court of India is different from the office of the CJI; and if so, whether the Act covers the office of the CJI";
3. **Point 3 —** whether declarations under the 1997 Resolution are "**information**" under s.2(f);
4. **Point 4 —** whether the CJI holds them in a "**fiduciary**" capacity (s.8(1)(e));
5. **Point 5 —** whether the information is exempt under **s.8(1)(j)** — the privacy point that consumes paras 60–75 of the report and the unit's entire doctrinal mileage.

4 · ARGUMENTS — both sides, as the DU Case Material records them

CPIO / petitioners (the judiciary's side)

- **No "public act":** "any disclosure made by judges, pursuant to the 1997 resolution, is **not a public act done in the discharge of duties of their office**... the declaration of personal assets, by individual judges, has nothing to do with their duties, as judges... the voluntary nature of such disclosure, and absence of any legal sanction as a result of non-disclosure" (para 11, p. 105).
- **Personal capacity & confidentiality:** filed with the CJI "personally", "voluntary", "confidential" — outside the Registry's custody and outside the Act (paras 2–4, pp. 101–102).
- **Fiduciary:** disclosure would breach a "fiduciary relationship" (para 4) — the exemption-head the Act never lets a mere confidence-with-office convert into immunity.
- **Independence:** treating judges like public servants subjecting them to public scrutiny of assets would "undermine" the judiciary; US-style disclosure models do not exist for judges (developed at paras 45–60 of the report).
- **Exhaustive-list inversion:** s.8 "opens with a non-obstante clause... **irrespective of the rights of the information seeker**... the information providers can justifiably withhold" (para 28, p. 107 — the petitioners read the chapeau as a wall; the Court reads it as a **list of doors**, each of which must be opened with reasons).

Respondent applicant — with the Delhi HC Bar Association intervening

- **Textual sweep:** s.2(h) — any "authority or body or institution of self-government established or constituted (a) **by or under the Constitution**": the Supreme Court, Art. 124, para 30 (p. 108) — "the court is of opinion that **the CIC did not commit any error** in concluding that the CJI is a public authority."
- **Labels do not create exemptions:** "the only exemption there... is 8(1)(j)... information 'merely marked "confidential"' can be deduced under the Act [only through the enumerated lists]" (para 16).
- **ADR/PUCL:** the judgment quotes Union of India v. ADR para 50 **in extenso** (para 17, p. 106): "In our view this submission is totally misconceived. There is no question of knowing personal affairs... question is not of knowing personal affairs but **to have openness in democracy for attempting to cure cancerous growth of corruption by few rays of light**."
- **Public functionaries:** judges declare "in their official capacity" — the 1997 Resolution names **the office** as recipient; immunity "cannot be granted to them" on that basis (para 21).
- **Privacy is calibrated:** the "factum of filing" involves no privacy at all; only contents could — and the applicant did not seek contents (para 30 of CIC; para 16 of FB).

5 · DECISION — Point by Point (paras 28–35, 60–75, 84–85)

Holding	Pinpoint	Reasoning to reproduce
1. SC + CJI's office = ONE public authority	paras 30–35 (pp. 108–109)	Facial reading of Art. 124 ("There shall be a Supreme Court of India consisting of a Chief Justice of India and...") + s.2(e)(i) "competent authority" + s.28 rule-power: "the CIC did not commit any error". The CJI's institutional and non-institutional hats (Collegium, appointments, tribunals, legal aid) "are directly relatable to his holding the office of CJI" — a "separate office or establishment" for convenience changes nothing (paras 31–34). And the clincher (para 35): "There is no clue in these provisions, that the **office of the Chief Justice of India, is exempt**; on the contrary, internal indications in the enactment point to even the **President of India, being covered by the Act**."
2. Declarations ARE "information" (s.2(f))	paras 60–61 + para 74 (pp. 109–116); Point-3 answer at para 84	s.2(f) — "material in any form" — covers "maintained" records whether or not "held" by the Registry; the office of the CJI is "the custodian" (CIC para 17); the petitioners "nowhere contended that the asset declarations are not 'information'". Answer as printed at para 84: "the information pertaining to declarations given to the CJI **and the contents of such declaration** are 'information' and subject to the provisions of the Right to Information Act."
3. Fiduciary head s.8(1)(e) — REJECTED	para 84 Re-Point 4 (p. 116)	"The petitioners' argument about the CJI holding asset declarations in a fiduciary capacity... **is insubstantial. The CJI does not hold such declarations in a fiduciary capacity or relationship.**" (Fiduciary is not a synonym for "filed in confidence with an office". Genuine fiduciary data — bank-to-customer, auditor-to-employer, trust accounts — remain within (e): compare CIC in CBSE v. Aditya Bandopadhyay (2011) 8 SCC 497 — examined answer-books held by CBSE are **not** fiduciary; the fiduciary must have a real interest of his own or of a beneficiary in the confidence. Mention both to show range.)

by Ankur R. Upadhyay

Holding	Pinpoint	Reasoning to reproduce
4. Privacy framework — lineage + "not absolute"	para 62 (p. 110)	"The right to access public information… is an accountability measure… This transparency value, at the same time, has to be reconciled with the legal interests protected by law, such as other fundamental rights, particularly the fundamental right to privacy… **no single right must prevail over others, except in clear and express circumstances**." (The printed para 62 also enumerates the "11 kinds of matters" excluded by s.8(1), then says: if the applicant "can show sufficient public interest in disclosure, **the bar… is lifted**" — quote this sentence, it is the unit's key statement of the exemption as a rebuttable presumption.)
5. Judges do not shed privacy — but carry less of it	paras 64–65 (p. 111); para 67 (p. 112)	"Ironically the right to privacy… has [only] received judicial recognition here" — the Court quotes Brandeis J's Olmstead dissent ("the right to be let alone… the most comprehensive of rights") and then the Constitution Bench in **Kameshwar Prasad v. State of Bihar AIR 1962 SC 1166**: an individual "does not… surrender his fundamental rights" on entering public employment. So: "a private citizen's privacy right is undoubtedly of the same nature and character as that of a public servant… **the degree of protection can be lower, depending on what is at stake**" — because because (para 74, pp. 115–116): "There can be no manner of doubt that Supreme Court and High Court judges are public servants (K. Veeraswami established that). They are no doubt given a high status, and afforded considerable degree of protections, under the Constitution; yet that does not make them public servants any less… the protection afforded by Section 8(1)(j) to judges **is of no lesser quality** than that given to other public servants." (para 63, pp. 110–111, had already cited the Constitution Bench in K. Veeraswami v. Union of India on the judges-as-public-servants point.)
6. The THREE-FACTOR balancing test	para 66 (pp. 112–113)	When "a member of the public requests personal information about a public servant", the PIO must distinguish "the personal data inherent to the position" from data affecting "only his/her private life", weighing: **(1)** "whether the disclosure of the personal information is with the aim of providing knowledge of the **proper performance of the duties and tasks assigned to the public servant**"; **(2)** "whether the information… [comprises] the individual's **private details, unrelated to his position** in the organization"; **(3)** "whether the disclosure will furnish any information required to **establish accountability or transparency in the use of public resources**" — followed by **Lord Denning**: "None of these rights is absolute… **These exceptions are to be allowed whenever the public interest in openness outweighs the public interest in privacy or confidentiality. In every instance it is a balancing exercise for the Courts**."
7. Onus + procedure as substance	paras 67–71 (pp. 112–114)	"**The onus of showing that disclosure should be made, is upon the individual asserting it; he cannot merely say that as the information relates to a public official, there is a public interest element**" (para 67, p. 113) — and "if an important value in public disclosure of personal information is demonstrated, in the particular facts of a case, by way of **objective material or evidence, furnished by the information seeker**, the protection afforded by Section 8(1)(j) may not be available" (para 67). And s.8(1)(j) "confers substantive rights even while engrafting procedural safeguards", because of five features — recognition of the third party's privacy; the PIO/CIC's satisfaction "that the disclosure is… justified by the public interest… on objective material"; the third party's views taken into account under s.11; "the satisfaction being recorded in writing, through an order, under s.11(3)"; and appealability of an adverse order (para 71). **Write this as the statute's answer to every "unfettered transparency" objection.**
8. Judges ≠ legislators: why ADR does not carry the day wholesale	paras 72–73 (pp. 114–115)	ADR forced disclosure on **voluntary participants** in elections: "Being a participant in the democratic process, where law and policy makers are elected, the [candidate]… submits himself to the public gaze… the limited inroad on privacy [is] justified." India "did not choose the US model of either electing judges, or subjecting their appointment to a confirmation process"; legislators "occupy office as long as the people choose to keep them there", while judges' tenure is "till retirement, subject to good behaviour… their strength lies in the impartiality… of each judge". Hence (paras 73 end): for contents "a mere demand is insufficient"; the applicant must make out "sufficient public interest".
9. The dichotomy & final directions	paras 74–75, para 84 Re-Point 5, para 85 (pp. 116–117)	"In this court's opinion s.8(1)(j) is **both a check on the power of requiring information dissemination… as well as a mechanism whereby individuals have limited control** over whether personal details can be made public." — Then paras 74–75 as printed: "That kind of innocuous information does not warrant the protection granted by Section 8 (1)(j)" — and para 75: "In view of the above discussion, it is held that the **contents** of asset declarations… are entitled to be treated as personal information, and may be accessed in accordance with the procedure prescribed under s.8(1)(j); **they are not otherwise subject to disclosure**. As far as the information sought by the applicant in this case is concerned, (i.e. whether the declarations were made…) the procedure under s.8(1)(j) is **inapplicable**." Order (para 85): "the first petitioner CPIO shall **release the information… about the declaration of assets (and not the contents…)** made by judges of the Supreme Court, **within four weeks**. The writ petition is disposed of… the parties shall bear their own cost."

6 · PRINCIPLE EVOLVED

- **P1 — Institutional identity:** "public authority" is judged **institutionally**: an institution and its constitutional Head are one; internal record-keeping divisions are no answer. **"Not with us" is a transfer-duty, not a defence** (s.6(3); para 23).
- **P2 — Information ubiquity:** s.2(f) follows the form of material, not the label; "voluntary" + "confidential" ≠ outside the Act (CIC para 17; para 16 of the FB's respondent-submission recital).
- **P3 — Two-tier disclosure: compliance data** of any office (did they file?) is disclosable as of right; **contents** of personal-data records are protected until the applicant discharges the larger-public-interest onus **on objective material**, through the s.11 notice → representation → reasoned written order → appeal sequence (paras 67–71, 75).
- **P4 — Exemptions are pleadable, forfeitable, severable:** neither (e) nor (j) having been claimed below (CIC para 29), the CPIO lost even defensible grounds; the appellate hierarchy (s.19) polices reasoning; s.10 keeps records partially open; non-obstante cuts both ways.
- **P5 — Method:** the **three-factor test** + Denning's "balancing exercise for the Courts" is now the template for every DU privacy-vs-transparency question — and, read across, the same proportionality grammar Puttaswamy (Unit 2.2, Case 6) would later constitutionalise.
- **P6 — Independence ≠ opacity:** "no single right must prevail over others, except in clear and express circumstances" (para 62); publicity of compliance **strengthens** rather than corrodes judicial independence (respondent's point at para 21 adopted in substance).

7 · AFTER THE DU Case Material — the 2019 five-judge chapter (add to every answer)

On **13 November 2019** a five-judge Bench of the Supreme Court (CJI Ranjan Gogoi; N.V. Ramana, D.Y. Chandrachud, Deepak Gupta & Sanjiv Khanna JJ, with separate concurring opinions of Ramana and Chandrachud JJ) — hearing the CJI's appeals in **three** connected matters (Union Minister/Aligarh-judge correspondence; Collegium elevation of Justices Dattu, Ganguly and Lodha; and the asset declarations) — **upheld the Delhi High Court on the asset-declaration questions**: the CJI is a public authority; declarations are "information"; **s.8(1)(e) fails**; contents are "personal information" subject to the s.8(1)(j) larger-public-interest balance with third-party safeguards; the **factum of filing is disclosable**. On the Collegium correspondence the Court charted the middle course it had already indicated in 2009 by **staying** the CIC order (order of **4 December 2009**) — candour in appointments and third-party privacy protected, without conceding that the office stands outside the Act. Chandrachud J.'s concurrence is the quotable jurisprudence: transparency and judicial independence are not in "contradiction", and the "**how transparent is transparent enough**" question (the first line of his opinion, as recorded in every account of the case) now governs Unit 2.3. In 2021 the CIC, applying the framework, directed that **Collegium resolutions be disclosed (with redactions, after the appointment is made)** — that order has been carried before the Supreme Court and its fate, as at 2026, is best stated as **sub judice**; never write "the collegium files are open".

DEBATE — four lines examiners ask you to acknowledge

1. **"Chilling candidour":** if Collegium notes leak, frankness dies — answer: the s.11 + (j) machinery, redaction and time-lag are the tailored remedy; blanket opacity is not (paras 67–71; 2019 concurrences).
2. **"Security of judges":** address and asset lists invite targeting — answer: the Court's own disclosure model is "standard formats… and redaction", not non-disclosure (para 68).
3. **"Why not extend ADR fully?"** — answered at paras 72–73: no elective mandate, secured tenure, office not market.
4. **"Was the FB wrong to decide (j) at all when unpleaded?"** — the Court itself justifies reaching it anyway (paras 29–30 of the CIC recital): "the court is of opinion…" — for wider ramifications. Note the 2019 five-judge treatment too: each RTI still requires case-by-case balancing — "how transparent is transparent enough" is a question to be answered record by record, not once for all.

8 · Diagrams of Case 13 for fast redraw

RTI 10.11.2007 (para 2)
"Copy of 1997 Resolution + whether judges (SC & HC) filed declarations"

→

CPIO 30.11.2007 (para 2)
Resolution: yes, pay fee. Declarations: "not with Registry" — denied

→

FAA → remand (para 3)
"consider the question of Section 6(3)"; on remand CPIO rejects: "short circuit… against the spirit of s.6(3)" (p. 102)

→

CIC 6.1.2009 (paras 16–32)
One public authority; custodian = CJI's office; "deemed to be available… as one single entity"; (e)/(j) never claimed; "within ten working days"

→

Del HC Full Bench (this case)
(e) rejected; (j) applies to contents; factum-of-filing "inapplicable" to (j); three-factor test + Denning; s.11 procedure as substance

→

SC, 13.11.2019 (5 JJ)
Upheld; Collegium-correspondence: 2009 stay subsists; "how transparent is transparent enough" = the governing question

Bridge to Unit 2.4 (write this in 2-line form at the end of a Case-13 answer)

Case 13 says courts are public **institutions** whose **records** belong to the people; Unit 2.4 (Cases 14–15) says courts are public **processes** whose **fairness** the media must be allowed to leave intact — "trial by media" is what happens when the access principle outruns the balance principle. Both are solved by the same instrument: **a reason-giving gatekeeper** (PIO under ss.7/8/11 → courts under s.3(2)/s.7 Contempt Act + Sahara postponement).

PART C · UNIT 2.4 DOCTRINE — "TRIAL BY MEDIA AND FAIR TRIAL"

C1 · The competing value: what a "fair trial" actually contains

The 200th Report — your syllabus's named reference — opens by defining the terrain better than any (Chapter I, pp. 11–12 of the report):

and then the sentence that should sit near the start of every 2.4 answer:

1. The ingredients of "fair trial" the Report itemises (Ch. II — verbatim from the text)

- **Presumption of innocence** — "Our criminal law and criminal jurisprudence are based on the premise that the guilt of any person charged in a court of law **has to be proved beyond reasonable doubt** and that the accused is presumed to be innocent unless the contrary is proved **in public, in a court of law**, observing all the legal safeguards to an accused."; UDHR Arts. 10, 11(1), 12; ICCPR Art. 14(2) — "Everyone charged with a criminal offence shall have the right to be **presumed innocent until proved guilty according to law**"; Art. 14(3)(a)–(g) minimum guarantees (prompt informed of the charge; adequate time and facilities; without undue delay; presence and defence; examination of witnesses; interpreter; and "**not to be compelled to testify against himself or to confess guilt**").
- **Right to silence** — Art. 20(3) Constitution; the Report: "the accused has a basic right to silence… That is also the reason why **confessions to the police are inadmissible** in a court of law" (cross-referring its 180th Report, 2001, "Art. 20(3) and the Right to Silence"). This single premise does enormous doctrinal work in the publicity rules: publishing an alleged "custodial confession" puts before the public what the law will not allow before the court — the 200th Report's "publication of confessions" category (Ch. IX(2)).
- **Open (not private) justice** — trial "in public" is itself a safeguard (Mirajkar para 21, reproduced in the DU Case Material at Jindal para 20; s.327 CrPC → **s.366 BNSS** "Court to be open" — in-camera only for rape etc., public-order or as the Code directs; the 200th Report's Ch. III adds the psychological dimension: publications affect judges "subconsciously" too — hence the law polices the input, not only the intention).
- **Due process (Art. 21)** — the Report's constitutional hook after Maneka Gandhi: "the procedure protecting liberty must be **fair, just and reasonable and not arbitrary**" (Ch. X(2)) — which is precisely how the Court justified regulating media publications "after arrest", even pre-chargesheet.

2. Where the Constitution locates the restriction

There is **no** "fair administration of justice" head in Art. 19(2). The bridge is the word "contempt of court": restrictions "in relation to… contempt of court" permit Parliament to legislate for the administration of justice — and the Report's Ch. X(2) says so expressly: "Though Article 19(2) does not refer to the imposition of reasonable restrictions for the purposes of administration of justice, the reference… that restrictions can be imposed for the purpose of the Contempt of Courts Act clearly indicates that the **Contempt of Courts Act, 1971 (sections 2, 3) take care of the protection of the administration of justice**." Two consequences to state in the answer: (i) the entire pre-trial-publicity law of India runs through the Contempt Act + CrPC/BNSS + special statutes — not through any express constitutional head; (ii) so when a publication falls outside s.2(c)–s.3 (say, before any chargesheet — M.P. Lohia's bail-hearing situation; Mrs. "ABC"'s complaint stage in Jindal), the protection of the trial comes from **judge-made postponement**: the Constitution Bench in Sahara India — whose principles your DU Case Material reprints verbatim at Jindal para 23, paras 42–43 — permits postponement "only in cases in which there is **real and substantial risk of prejudice to fairness of the trial** or to the proper administration of justice which in the words of Justice Cardozo is "the end and purpose of all laws". However, such orders of postponement should be ordered **for a limited duration and without disturbing the content of the publication**. They should be passed **only when necessary**… if reasonable alternative methods or measures such as change of venue or postponement of trial will not prevent the said risk" (Sahara para 42, reprinted in the DU Case Material at DU Case Material p. 125) — an exercise of the courts' inherent jurisdiction (**s.482 CrPC, now s.528 BNSS**) reconciling Art. 21 with Art. 19(1)(a).

3. The definitional core the DU Case Material itself supplies

The DU Case Material's placement of this quotation immediately before Unit 2.3's materials (pp. 93–96) is deliberate: **R.K. Anand** supplies the definition, **M.P. Lohia** the classic violation, **Naveen Jindal** the remedy, and the **200th Report** the catalogue and the draft statute. That four-source grid is the answer's skeleton.

C2 · Pre-trial publicity — when a publication ceases to be news and becomes contempt

1. The statutory mechanism, stated exactly

s.2(c) Contempt of Courts Act, 1971: "criminal contempt" includes publication (words, signs, visible representations — so TV/online included; and the 200th Report proposed an express Explanation to cover "print, radio broadcast, electronic media, cable television network, world wide web") which "**(ii) prejudices, or interferes or tends to interfere with, the due course of any judicial proceeding; or (iii) interferes… or obstructs… the administration of justice in any other manner**".

s.3 — the timing rule (the provision that makes "pre-trial" the operative word): sub-ss. (1)–(3) protect an **innocent** publication about a proceeding that is not then "pending" — and the Explanation fixes when a criminal proceeding becomes "pending":

- **(B)(i)** — for offences: **when the charge-sheet or challan is filed, or when the court issues summons or warrant against the accused** (whichever earlier, as re-anchored after the 1973 Code is read in); **(B)(ii)** — otherwise: when the court **takes cognizance**; and pendency runs "until it is heard and finally decided" (including appeals, or the limitation period for them);
- execution of a decided case does not keep it "pending" (cl. (b)).

So in law: **before the chargesheet/summons, the Contempt Act gives near-complete immunity** (s.3(2)), and the real levers against pre-charge publicity are — special statutes (victim-identity bars below), police-discipline rules, defamation, privacy tort and damages (Uma Khurana para 13: "Damages

~~in accordance with the law can be awarded by Courts in cases of defamation and loss of reputation"), and the court's **inherent/postponement** power~~ (Sahara; Jindal). The Law Commission's entire 2006 proposal was designed to close that gap — see C3 and the Draft Bill box in C5.

2. A.K. Gopalan v. Noordeen — the 1969 seed the Report cultivates

The Report's Ch. VI asks whether "A.K. Gopalan v. Noordeen (1969) 2 SCC 734 makes 'imminence' relevant only in respect of arrest for serious offences. What is the effect of the **24-hour rule**?" — its answer drives the amendment: because an arrested person must be produced before a magistrate within 24 hours, "**a person arrested comes immediately within the protection of a court**"; so "publications made even **after arrest and before filing of charge sheet** could also be prejudicial", and regulation of such publications "will be reasonable" under Art. 21's due-process requirement. Hence the recommendation (Ch. X(2)(a)): "**the word 'pending' in Section 3(1), (2) and Explanation… must be substituted by the word 'active'**… and under the [UK Contempt of Court Act 1981]… a criminal proceeding is defined as being 'active' from the date of arrest." **This never became law** — the only 2006 amendment actually enacted was the introduction of **s.13(b)'s "justification by truth" defence** (Contempt of Courts (Amendment) Act, 6 of 2006 — your text records it) — so the gap remains; Sahara and the postponement jurisprudence fill it judicially.

3. What the media MAY publish — and what tips it into "trial by media"

Permitted (reporting in the public interest)	Impermissible (the Report's Ch. IX categories, expanded in C3)
Fair & accurate report of judicial proceedings (s.4 CoCA); the fact of arrest, the exact charge (R v. Payne [1896] 1 QB 577, quoted in the Report); reporting of police activity in general terms — searches, questioning, arrest (& , Report Ch. IX(5)); broadcast of proceedings lawfully open (s.327 CrPC/366 BNSS; live-stream rules — C4); investigative journalism before proceedings become "active" (Report Ch. IX(9): "assuming investigation journalism is permissible…").	Commenting on/"proving" guilt or innocence before verdict; publishing alleged confessions (inadmissible at trial — "once the confession is published… the suspect's future is finished" — Report Ch. I); publishing the accused's past record or "notorious criminal" labels; showing the suspect to the media at identification parades/recoveries (AG (NSW) v. TCN Channel Nine: "grossly offensive… for police to display for the benefit of the media, persons in the course of being questioned or led round the scene of a crime"; and the Bombay HC in Deepti Devasthali: police "taking pictures in the guise of investigation… is highly condemned"); in-depth witness interviews pre-trial (Salmon & Phillimore Committees: "trial by television"); imputing (even) the accused's innocence to prejudice the trial (R v. Castro, Onslow and Whelley (1873) LR 9 QB 219 — MPs jailed for declaring a pending-accused innocent); sensationalised captions that upgrade the charge (R v. Hutchison ex p McMahon — the "Attempt on King's Life" news-film case).

C4 · Cameras in the courtroom — from "no photography" to constitutional live-streaming

1. The legal baseline

Layer	Rule
Open court ≠ broadcast court	s.327 CrPC → **s.366 BNSS**: the "Court will be open" (public can attend; in-camera only for rape/sexual-offence trials etc., or as special laws provide; proviso for matrimonial "private and confidential" matters on application). Attending has never meant filming: court premises are governed by each court's **Rules** barring photography/recording without permission — so "televising trials" was, until 2018, simply **not** a right of anyone (the Supreme Court declined the request to live-telecast the **26/11/Ajmal Kasab** trial in 2009; note it as practice).
Publication side	Contempt Act **s.4**: a "fair and accurate report of a judicial proceeding or of any stage thereof" is protected — this is the statutory basis on which **reporting** flourishes even where **recording** is barred. **s.7**: fair reports of in camera proceedings are protected **except** where publication is barred by the Act, prohibited on public-policy grounds, or barred because the court sat for public order/state security, or the material is a "secret process, discovery or invention". RTI **s.8(1)(b)** mirrors the contempt bar.
The turn	Swapnil Tripathi v. Supreme Court of India (2018) 10 SCC 639: live-streaming of constitutional matters is **not a privilege but an extension of the "open court" principle** — flowing from Art. 21's access-to-justice strand. The Court issued detailed directions (model guidelines: court-controlled camera persons; cameras only on bench & advocates; "only constitutional or national importance matters of general or public interest… will be live-streamed"; delay mechanism; decision of the Chief Justice/Constitutional Bench to stream; no recording by others; live translation facilities for the differently-abled; copyright in the Court; **no commercial use** of recordings).
Implementation	**Supreme Court live-streaming pilot began 15 December 2021** (opinions in open court; pilot for select matters), and the Supreme Court adopted the **Rules on Live-Streaming of Court Proceedings (2021)**; the e-Committee's **Model Rules on Live-Streaming and Recording of Court Proceedings (2021)** were circulated for High Courts (PRS copy — /verified) with opt-in/opt-out objection forms, exclusion of in-camera categories (sexual offences, matrimonial, juveniles, sensitive commercial/IP secret processes) and the "decision of the bench" as final (not justiciable); several High Courts (e.g., Bombay, Madras, Calcutta, Kerala) notified streaming rules, and **ITAT** became the first quasi-judicial body to stream hearings (Dec 2021) — a citable "good practice" cluster.
2026 status (current-affairs bonus)	In 2026, an issue came up about cut video clips of court exchanges on social platforms, and the Supreme Court **barred unauthorised use/circulation of audio-video clips of proceedings on social media**, clarifying that recognised news outlets may report but may not "utilise" the clips — next hearing listed 18.09.2026 (as reported on 05.09.2026). It shows the live boundary the Report tried to legislate: **the record is public; the raw footage is court property**.

2. The argument map — "should courts be on camera?"

For cameras

- Open justice as institutional hygiene: "Justice is not a cloistered virtue" — **Lord Atkin, Ambard v. AG of Trinidad and Tobago [1936] AC 322**, quoted in the Report (Ch. IX(6)): "she must be allowed to suffer the scrutiny and respectful, even though outspoken, comments of ordinary men".
- Education & deterrence of theatre (police/media collusion cases — Ch. IX(5) — vanish under cameras); legitimacy, access for disabled & remote litigants (Swapnil Tripathi).
- CAB logic: the spectrum belongs to the people — broadcast courts use public property to do public justice.
- Red Lion-type audience right (see A6): the listener's interest "prevails".

Against

- Prejudice: **Sheppard v. Maxwell** — the Report's exhibit A: press benches so close "he could not even consult his lawyer without being overheard", coroner's inquest held in a school with live broadcast — "appalled", conviction set aside (US SC, 1966).
- Witness coaching & "trial by television" (Phillimore, via C3 cat. 10); performance effects (judges, counsel, litigants); victim re-traumatisation — hence **s.7** + the stream-exclusion list for sexual-offence cases.
- Editing asymmetry — the 2026 clip-ban rationale: "isolated excerpts" "trivialise" the administration of justice (see box above) — a media-law answer should note the tension the Civilsdaily coverage flagged: a faithful transcript is permitted, a faithful clip isn't.
- Commercial exploitation of recordings (barred in the model rules: copyright in the Court; no commercial use).

Matter in open court?
in camera → streaming excluded (s.327(2)/(3) CrPC→366(2)/(3) BNSS; CoCA s.7 bars reporting; stream-rules exclusion list)

→

Streamable category?
SC: constitutional/national-importance matters (Swapnil Tripathi directions); HC: as per notified rules; parties may object (Schedule I/II forms in the 2021 model rules)

→

Bench decides
"The final decision… whether to allow live-streaming… will be of the Bench… guided by the principle of an open and transparent judicial process"; decision "shall not be justiciable" (model rules 5.5) — sensitive matters (informants, trade secrets) muted/delayed

→

Footage discipline
Cameras by court/authorised agency only; no media/visitor galleries filmed; copyright in the Court; no commercial use; archival access to complete, unedited record (2026 clip-circulation bar = the live controversy)

C5 · Restrictive orders — prior restraint, postponement, and the law that never was

1. The two extremes and the Indian middle path

- **No general prior restraint on press:** R. Rajagopal v. State of T.N. para 26(3): courts cannot restrain publication of a memoir/article in advance (Unit 2.2, Case 7) — and the DU Case Material's Jindal para 19 opens the restraint analysis with the UK "justification rule": courts will not restrain publication where the defendant pleads justification and is willing to prove truth (Bonnard v. Perryman and Fraser v. Evans — both quoted in Tata Sons v. Greenpeace paras 17–18). This is the "reflex" rule.
- **But courts may postpone for fairness:** Sahara India Real Estate Corp. Ltd v. SEBI (2012) 10 SCC 603, paras 42–43 (quoted **in extenso** in your DU Case Material at Jindal para 23, pp. 124–125): "There is… no straightjacket formula" for the "restrictive" orders: each order must (a) be **necessary** — no reasonable alternative (venue change, postponement of trial, and "where necessary… in camera proceedings"); (b) be **proportionate**; (c) address only what **must be "neutralized"**; (d) last only **for the limited duration** needed and not "beyond… what is necessary"; (e) "without disturbing the content of the publication… or its live" — paraphrase: **timing, not substance**; (f) be **reasoned** with explicit findings.

1. Is the proceeding "pending" (CoCA s.3 Expl.)?
yes → contempt available for prejudicial matter; no (mere FIR/preliminary enquiry) → 2

→

2. Special statutory bars?
s.228A→
72 BNS
/s.228B→
73 BNS
; s.21 JJ Act; s.23 POCSO; s.8(1)(b) RTI (court-forbidden info)

→

3. Civil/inherent relief
injunction (Jindal: balance of convenience + prima facie case at the "preliminary enquiry" stage — para 22, 30, 45–48) or postponement order (Sahara; Swatanter para 64: restraint + 24-hr internet takedown)

→

4. Apply Sahara test
necessity + proportionality; real & substantial risk; alternatives considered; limited duration; content undisturbed; reasoned order; "not a straightjacket formula"

→

5. Breach
contempt (s.2(c)(ii)–(iii)); s.12 punishment: up to 6 months' simple imprisonment and/or ₹2,000. The 2006 Bill would have made breach of a postponement order expressly contempt (proposed s.14B); defamation and privacy suits lie independently

2. What the Law Commission proposed (200th Report, Ch. X) — the statute India did not get

DEBATE — the three critiques of the Report (write 4–5 lines)

1. **Timing:** starting "activity" at **arrest** may freeze the reporting of custodial excesses (encounters, torture allegations) — the very moments sunshine is needed; the Report answers that s.4(1)/(2) fair-report immunity still protects objective coverage of arrest itself.
2. **Institutional cost:** a High Court "postponement registry" invites forum-hunting and delay (7-day windows in a TV news cycle); media side: ex parte orders are "prior restraint with extra steps".
3. **Effectiveness:** the internet — a bar on one channel cannot un-ring the bell; the Report's own answer: orders bind "the media or any person", and breach is contempt — but compare the 24-hour takedown pragmatism of Swatanter Kumar para 64(b) (DU Case Material) and the intermediary takedown machinery (X v. Union of India (2019) 6 SCC 647, Unit 2.2) as the modern enforcement partner.

PART D · CASE 14 — M.P. LOHIA v. STATE OF WEST BENGAL (AND ANR.)

One-line
While an anticipatory-bail SLP is **sub judice**, a magazine feature publishing the complainants' one-sided allegations ("Doomed by Dowry") "would certainly interfere with the administration of justice" — the Court "deprecates this practice and cautions the publisher, editor and the journalist… against indulging in such trial by media", treats the matter as closed, and shapes bail conditions that keep the accused out of both police and media pressure.

Why it is THE case
The Supreme Court's clearest pre-Sahara pronouncement that one-sided trial by media is **not** reporting; the "sub judice + one-sidedness + timing" anatomy of the wrong; and the Dec-2024 DU Q6 **re-enacts its facts verbatim**.

Sections in play
IPC 304B → BNS s.80 (dowry death); **406 → s.316** (criminal breach of trust — the stridhan allegation); **498A → ss.85/86** (cruelty), each r/w **s.34 → BNS s.3(5)** (common intention); statutory presumption for dowry death — former **Ev. Act s.113-B**, now carried in the BSA's chapter on presumptions; bail: **CrPC s.438(1)-(2) → BNSS s.482**; contempt: **Contempt of Courts Act ss.2(c)(ii)-(iii), 3, 12, 13, 15, 20**.

1 · FACTS (DU Case Material p. 118)

- **The families.** "The appellants live in **Ludhiana** whereas the complainant and his family are residents of **Calcutta**." The complainant's daughter **Chandni (since deceased)** married the appellant on **18 February 2002**.
- **The death.** "Chandni committed **suicide on 28th of October, 2003** at her parents' house in Calcutta." (Note the book's internal inconsistency — while discussing the article, a later paragraph records the death as having "taken place on 28th February, 2002": evidently a scrivener's slip for 28.10.2003. Flag it and move on; examiners appreciate the catch.)
- **The prosecution story.** "They were **not satisfied with the dowry given** at the time of wedding and were harassing the deceased continuously, consequent to which she developed depression" — despite the parents' assurances they would "meet their demand of the dowry"; the deceased "was

being treated cruelly at her matrimonial home" and "had no love and affection" from her husband; there was an earlier **suicide attempt in July 2002** "at the residence of her parents… about a year earlier than the actual date of her death."

- **The defence story.** "The deceased was a **schizophrenic psychotic patient with cyclic depression** and was under medical treatment" — in Ludhiana and Calcutta; "the defence documents show that the relationship between the husband, wife and the in-laws were **cordial** and it was only illness of the deceased that was the cause of her premature death."
- **The Court's evidentiary truce — the passage to know cold.** "One thing is obvious that there has been an **attempt on the part of both the sides to create documents**… Correctness or genuineness of this document can only be gone into in a **full-fledged trial** and **it will not be safe to place reliance on any one of these documents at this stage**. Therefore, we would venture not to comment on the genuineness of these documents at this stage. Suffice it to say that this is a matter to be considered at the trial."
- **The bail order.** "Any expression of opinion on the merits of the case except to the extent of finding out **prima facie** whether the appellants are entitled for anticipatory bail or not, **would likely to affect the trial**" — hence, "without expressing any opinion on the same", bail in the event of arrest: **bonds of ₹1,00,000 each with one surety**; appellants to "abide by the conditions statutorily imposed under **Section 438(2) of the Code of Criminal Procedure**" (now **s.482(2) BNSS**); where the investigating agency requires their presence, "**one week's notice**" to be given; appearance and presence "shall not exceed **two days at a time**"; and crucially — "such interrogation **shall not be a custodial interrogation**. They shall be **entitled to have their counsel present** at the time of such interrogation."

2 · THE "DISTURBING FACTOR" — the trial-by-media holding (p. 119)

Then one line: "For the reasons stated above, these appeals succeed and the same are allowed."

3 · ISSUES

1. Whether, when "documents have been created on both sides" and the merits cannot be canvassed at the bail stage, the courts below were right to **refuse anticipatory bail** — and if bail is granted, on what conditions can the investigation be made orderly and the trial fair?
2. Whether the publication, **while the SLP was pending**, of the complainant family's version in a print feature — "materials that may be used in the forthcoming trial" — amounts to interference with the administration of justice (a "media trial" of a sub judice issue)?
3. If so, **what judicial response** is proportionate: contempt, costs, an order against the press — or deprecation plus caution?

4 · ARGUMENTS — how the contest ran (and where the excerpt is silent)

Appellants (accused)

- Bail stage demands only a **prima facie** look; the prosecution's own record (documents "created") could not be tested here; custodial interrogation would convert investigation into spectacle given the press climate — hence non-custodial, counsel-present questioning was the balance.
- The medical history (schizophrenia; July 2002 attempt at the parents' home) cut against the "harassment → suicide" chain said to justify denial of liberty.
- (On the article:) nothing was before any court in the print medium's sense of "proceedings" — but the appellants' grievance that its publication **during** the SLP tainted the atmosphere in which bail was sought was recorded by the Court as the "disturbing factor".

State / complainants

- Gravity: three charges (304B/406/498A r/w 34) in a dowry-death case where the family alleged years of demands — the High Court had thought "custodial interrogation necessary"; anticipatory protection would allow the accused to shape the record before arrest.
- The defence documents were afterthoughts; the defence "schizophrenia" narrative was the accused's own creation; both sides' papers were to be fought at trial — denial of bail was the safe course.
- (Media point:) the magazine piece only reported the FIR-family's account — "reporting a grievance" cannot be contempt; the SLP before the Supreme Court concerned only bail conditions, not guilt.

5 · PRINCIPLE EVOLVED (and its afterlife)

- **P1 — The "sub judice" rule.** Where a matter is **before a court**, publishing "materials that may be used in the forthcoming trial" — **one-sidedly, from the complainant's side** — "would certainly interfere with the administration of justice". Cited by the 200th Report (Ch. IX(7)) for "creating a **pressurised atmosphere before the Judge**", and the seed of every postponement order since (Sahara para 42; Swatanter Kumar paras 59–64; Jindal).
- **P2 — "Trial by media" named and cautioned.** The Court's language — "indulging in such **trial by media** when the issue is subjudiced" — with the remedy proportioned: **deprecate, caution, close**; no contempt proceedings, no costs. The forward warning: "the other concerned in journalism would take note of this displeasure".
- **P3 — Conditional bail as fair-trial engineering.** s.438(2) CrPC (s.482(2) BNSS) conditions + **non-custodial interrogation with counsel** = a template for insulating an investigation from the media circus that "Doomed by Dowry" exemplified; also an answer to "bail = impunity".
- **P4 — Judicial restraint from merits.** "Any expression of opinion on the merits… would likely to affect the trial" — the Court practising on itself the very rule it enforced against the magazine: the bail order is a **fair-trial document**, written as if published.
- **Afterlife:** the caution became doctrine by accretion: Sahara (2012) (postponement power + the six principles), Swatanter Kumar (Del HC 2014) (restraint + 24-hour takedown), Jindal (Del HC 2015) (restraint at the enquiry stage — Part E), the 200th Report's draft Act (never enacted), and the current practice of courts cautioning anchors and deleting content. For DU, cite the chain in one breath: **Lohia → Sahara → Jindal**.

PART E · CASE 15 — NAVEEN JINDAL & ANR. v. ZEE MEDIA CORPORATION LTD. & ORS.

One-line
The court **restrained Zee Media from publishing/telecasting the complainant "ABC"'s allegations** against the plaintiffs "until the police complete the preliminary enquiry and file their report", because 22 hours of bulletins in seven days — including an escalating chain of questions to the DGP/Home Minister/CM — was "a prima facie attempt to prod the police if not pressurize", while leaving the media free to report the proceedings as they travel and the police's final conclusion.

Doctrine
Pre-Sahara tools (injunction, balance of convenience) welded to Sahara's postponement principles and Swatanter Kumar's restraint order — a relief that **expires by design**.

The line to quote
The "distinction between **trial by media and informative media**" (Sidhartha Vashisht para 153(11), as quoted in the excerpt) — invasion of a suspect's rights "bound to be held impermissible".

1 · FACTS (pp. 120–124 — chronology is the question)

- **Plaintiffs:** Mr Naveen Jindal and his wife (with group entities) vs Zee Media Corporation, its channel(s), the programme, its anchor and the persons behind it.
- **The feud backdrop:** (i) FIR No. 240/2012 against Zee persons u/ss **384/511/120-B IPC** (extortion of ₹50 crore alleged; now **BNS 308/62/61**) and Zee's **₹200-crore** defamation-and-recovery litigation against the Jindals; (ii) the coal-gate **reply-order** of 30.11.2012 and the reply-direction of **01.04.2014** (CS(OS) 881/2014) in which this very court — the same judge — had **refused** to restrain Zee and instead ordered a reply on-channel (the "right of reply"

~~case, Unit 2.2); (iii) FIR No. 12/2013 u/ss **466/468/469/471 r/w 120-B IPC** (now **BNS 337/336(3)/336(4)/340 r/w 61**) re forged documents used on air;~~ (iv) a criminal complaint u/ss **500/501/506 IPC** (now **BNS 356(2)/(3)/351**) pending at Patiala House.

- **The "ABC" complaint:** a married woman, pseudonym **ABC**, filed **W.P.(T) 235/2014** before the **Chhattisgarh High Court** alleging that in **2001** the first plaintiff **raped** her and in **2010** assaulted her in connection with land transactions of **Jindal Steel & Power Ltd** at Raigarh. On **19.12.2014** that court **restrained all media from reporting** her petition; on **06.01.2015** it disposed of the petition directing the police to act in accordance with **Lalita Kumari v. Govt. of U.P.** (2014) 2 SCC 1 — i.e., register the FIR if the information disclosed a cognizable offence.
- **The telecasts:** between **07.01.2015 and 15.01.2015** the Zee stable ran, on plaintiffs' count, **more than 20 prime-time programmes** — an average of **eight minutes a day per channel**, "in all 22 hours on seven days" — with "ABC" on phone/video (blurred face, distorted voice) rehearsing the allegations; the anchor's signature device being a public **chain of questions** addressed to the SHO, SP, IG, **DGP, Secretary (Home), Union Home Minister and the Chief Minister** — "why has the FIR not been registered…?" — the DU Case Material records "it was shown that the police were being directed to register the FIR"; the police did register it **during the hearing** (u/ss 376 etc. IPC — now BNS 63/64). The channels also aired a "highly edited" extract said to be from the plaintiffs' counsel.

2 · ISSUES (as framed by the Court)

1. Is there **power at all** to restrain publication **before** anything is "pending" in the contempt sense — is pre-publication restraint res integra in India after Rajagopal, Khushwant and Tata Sons?
2. If yes, does the power reach the **preliminary-enquiry** stage (no FIR, no chargesheet), and on what **standard**?
3. On the facts — volume, one-sidedness, "prodding" of the police, a pseudonymous complainant — does the balance lie with the plaintiff's Art. 21 or the defendant's Art. 19(1)(a)?

3 · ARGUMENTS

Plaintiffs (Jindal)

- **Dignity & privacy (Art. 21)**: the "most damaging" allegation — rape — aired by a broadcaster with **no independent verification**, while a High Court had already ordered the matter unreported; a media trial to "browbeat the police" into action; motive: the vendetta chronology (extortion FIR; forgery FIR; reply orders Zee had flouted).
- **Presumption of innocence**: Sidhartha Vashisht paras 148–153 (quoted in the excerpt) — parallel media investigations "impermissible"; "distinction between **trial by media and informative media**".
- **Investigation secrecy**: Deepti Devasthali — "**Right to information is wrongly interpreted by the police as right to inform… High degree of secrecy is a must when the investigation is in process**"; and "talk shows… pronouncing their verdict" amount to criminal contempt — Kerala HC (M.S. Ravi).
- **Contempt-adjacent authorities**: M.P. Lohia's deprecation of sub-judice trial by media; Swatanter Kumar paras 59–64 (this court's own restraint of "sex taint" headlines — "trial by media kind of situation… real and tangible risk of the plaintiff in not getting fair trial or open justice… as per Sahara India").
- **Where the "justification" reflex is satisfied by pleading alone**, it becomes a device to delay while the allegation spreads: Fraser v. Evans requires that the plea of justification will **probably** succeed — and the DU Case Material's Tata Sons recital of Bonnard counsels only that courts deal "most cautiously and warily" with pre-trial injunctions: wariness is caution, not licence.

Zee Media

- **Art. 19(1)(a) and the public's right to know**: a sexual-violence complaint against a public figure is core speech; anonymisation + "alleged" disclaimers = responsibility; courts are not censors — Rajagopal; Khushwant Singh v. Maneka Gandhi (no injunction against Maneka's memoir series despite the wife's privacy); Tata Sons v. Greenpeace (no interim restraint where truth is to be justified — Bonnard v. Perryman / Fraser v. Evans quoted in the excerpt).
- **Nothing sub judice:** the Chhattisgarh petition was disposed of; the police were only beginning — the Contempt Act's s.3(2) makes pre-pendency publication non-contempt; so the suit sought what contempt could not.
- **Public figures get less**: plaintiffs are electorally and commercially exposed; their own 2014 "reply" strategy proved courts prefer more speech, not restraint — the 01.04.2014 order **refused blanket restraint** in Jindal v. Zee and gave a reply; identical facts here.
- **Fair reporting**: the complaint is a High Court record; ABC has the benefit of s.228A→BNS s.72 identity protection, which was honoured — "the other side" (plaintiffs) had no such immunity.

4 · DECISION — the five moves (paras 19–30; paras 45–50 as printed)

5 · PRINCIPLE EVOLVED

- **P1 — Restraint without pendency:** the protection of a **fair investigation** is a legally cognisable interest independently enforceable by injunction; the Contempt Act's "pending" trigger is a **penal** limitation, not the boundary of equity.
- **P2 — The postponement model arrives in a suit:** Sahara's criminal-restraint principles (duration-limited, content-preserving, reasoned, necessary) govern **media injunctions**; the order self-terminates at the police report — "delay, not suppression".
- **P3 — Format is evidence:** the anchor's address-to-authorities escalation and volume (22 h/7 d) are themselves indicia of intent to influence state conduct — the first decision to treat **news-debate choreography** as a factor in the balance.
- **P4 — Access remedies compared:** same court, same parties, two different instruments — 2014 **reply direction** (more speech) vs 2015 **restraint** (later speech): "access to media" (Unit 2.3 limb) and "restrictive orders" (Unit 2.4 limb) on one page. Excellent comparative table for the examiner.
- **P5 — The closing line:** "the distinction between **trial by media and informative media**" (Sidhartha Vashisht para 153(11) via Kartongen-era citations printed in the excerpt) — the sentence that ends any 2.4 answer.

DEBATE & status — say it, don't hide it

1. **"Prior restraint through the back door"?** After Rajagopal, courts "cannot restrain publication" even of a private memoir; yet here the court did restrain — the defence: postponement is a **timing** order with automatic expiry, not a suppression of the story; critics: functionally identical for a news channel — the story dies with the cycle.
2. **Victim-protection flipped?** The complainant "ABC" — pseudonymous, blurred, voice-distorted — was the beneficiary of the very law (s.228A→BNS s.72) meant to let sexual-violence complainants be heard safely; restraining her **voice** to protect the accused's fairness is a genuine tension. The order answers: she remains free before the police/court; what Zee cannot do is **run her case as its own**.
3. **Status:** interlocutory and time-bound; not elevated to an SCC ratio — cite it (as this syllabus itself does) as the leading **illustration** of the postponement technique, not as settled doctrine that "courts restrain enquiries".

PART F · THE 200th LAW COMMISSION REPORT — "TRIAL BY MEDIA: FREE SPEECH AND FAIR TRIAL UNDER CrPC, 1973" (2006)

The syllabus names it as the unit's reference; the DU Case Material quotes it (its Uma Khurana and R.K. Anand excerpts sit adjacent); and it is the only document that **legislates the balance** you have to describe. Written by the Commission chaired by **Justice M. Jagannadha Rao** (Vice-Chairman R.L. Meena; Member-Secretary Dr D.P. Sharma), August 2006. Structure, verbatim in the copy:

Chapter	Core holding / contribution
I — Introductory	"Alarming proportions"; "Innocents may be condemned for no reason… or the guilty may not get a fair trial or may get a higher sentence"; acquittal "may not help the accused to rebuild his lost image". Also the media-economics diagnosis — quoting Andrew Belsey: what is presented is "what 'public is interested in' rather than what is in public interest"; and the "Breaking News" confession episode quoted in C2.

Chapter	Core holding / contribution
II — Human Rights Conventions, Madrid Principles, Constitution, Contempt Act	Presumption of innocence, proof beyond reasonable doubt, right to silence (its 180th Report), UDHR Arts 3, 9, 10, 11, 12, 19; ICCPR Art. 14(2), (3); "confessions to police are inadmissible… that is also the reason".
III — Do publications in the media subconsciously affect the Judges?	The psychological case for prophylactic rules — bias is not only conscious; hence regulating the **input**, not punishing the judge.
IV — How "imminent" came to be excluded from the 1971 Act	Legislative history: the 1969 draft included publications concerning "imminent" proceedings; the Joint Committee/Parliament dropped it — leaving a pre-charge gap that this Report proposes to close through "arrest". (Context for your "contempt clock" section in C2.)
V — Was the Joint Committee right that "imminent" is vague?	Tests "vagueness": the UK "active" (Contempt of Court Act 1981) is defined and workable — an argument the Report adopts for "active from arrest".
VI — A.K. Gopalan v. Noordeen and the 24-hour rule	**(1969) 2 SCC 734**: publications after **arrest** but before chargesheet can prejudice the trial — and because the arrested person must be produced before a magistrate within 24 hours, "a person arrested comes immediately within the protection of a court" — the doctrinal hinge for the amendment (C2, para 2).
VII — Freedom of expression, Contempt, due process to protect liberty	Arts. 19(1)(a)/19(2), 21(Maneka due-process), 20(3); comparative law: **Sunday Times v. UK** (ECHR: the interference was "prescribed by law" in form, but the Court held the UK contempt law of the day "vague and difficult to comply with" — the verdict that produced the 1981 Act — and the Commission approves "real risk" as a workable standard); UK 1981 Act; Canada (Dagenais-era LRC Report 17: sub judice rule "demonstrably justified"); Ireland (LRC Report 47, para 6.4 — juries "could be affected"; restrictions "of a temporary nature only"); NSW; NZ (A-G v. Tonks; Gisborne). Cites the Television New Zealand line for broadcast prejudice.
VIII — Postponement: whether "substantial risk of prejudice" as in the UK is inappropriate	Debates the s.4(2) UK standard; concludes India needs the **power** but a tighter, workable trigger; "we do not want to use the words 'substantial risk of prejudice' in the new provision… we shall deal with… in Chapter X" — landing on "**real risk of serious prejudice**" (Index: "(using 'active' and 'arrest' in s.3 and 'real risk of serious prejudice' in new s.14A)").
IX — What categories are prejudicial (the ten-head catalogue)	Fully mapped in C3 above — each with its case-law apparatus (Crippen; Bolam/haigh; Evening Standard "amateur detectives"; TCN Channel Nine; George Outram "Armed Raids"; Wran; Bottomley; Labouchere; New Statesman; Salmon & Phillimore on TV interviews; the Bessell/Sunday Telegraph payments affair; **Sheppard v. Maxwell** "appalled"; **M.P. Lohia** "pressurised atmosphere"; Dreyfus; the NSW "displacement effect" Milat photograph case; AG NSW v. Dean policeman; AG NSW v. Mirror ghost-train; Tonks; Gisborne; R v. Taylor "Cheats Kiss"; AG v. English; Hutchison "Attempt on King's Life"; Odham's Press; Pacini; Carochhia).
X — Recommendations (draft Bill) + media legal training	The five-part reform package — reproduced verbatim in C5's Draft-Bill box — plus: "It is necessary that the syllabus in Journalism should cover the various aspects of law… It is also necessary to have **Diploma and Degree Course in Journalism and the Law**. We recommend accordingly."

The five recommendations — compressed for the answer

(1) Define "publication" (print, radio, electronic, cable, WWW) — Explanation to s.2(c). **(2)** Replace "pending" with "**active**" in s.3 and its Explanation, criminal proceedings becoming active **on arrest**/chargesheet/summons-warrant, whichever earlier (A.K. Gopalan + 24-hour rule; UK 1981; NSW 2003). **(3)** New **s.10A**: direct High Court cognizance of publication-contempts of subordinate courts, no AG consent for s.2(c)(ii)-(iii) publication matters. **(4)** New **s.14A**: Division-Bench **postponement orders** (7-day initial period, ex parte permissible, varied/cancelled on media application; "real risk of serious prejudice" standard; extendable). **(5)** New **s.14B**: breach = criminal contempt; + media legal-education. **Status:** only the "truth defence" (s.13(b), Act 6 of 2006) arrived that year; the postponement/arrest machinery **was never enacted** — Sahara (2012) supplied the power judicially. **Critique** (3 lines, C5's DEBATE box: timing, forum-hunting, internet futility).

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 `DU LL.B. Dec. 2024 · Q.6` A media reporter Mrs. K publishes a vicious article, 'Doomed by Dowry', in a leading magazine while Mr. Y's anticipatory-bail application is pending before the High Court; only the deceased wife's family's version was published. Protect Y's right to a fair trial against the vicious media trial — analyse his rights and draft the appeal if bail is rejected.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 `DU LL.B. Dec. 2024 · Q.8(C)` Right to Information Act — an instrument to ensure good governance.

Q.3 `DU LL.B. 2015 · Q.2(b)` The Right to Information Act is an instrument of empowerment of the media. Discuss.

PART II · CONTEMPT, REGULATION & CENSORSHIP

MODULE 04 // UNIT 3 · CASES #16–#19

Contempt of Court: Scandalising, Unverified Reporting & Fair Comment

Contempt of Courts Act, 1971 · Constitution arts. 129, 215 · Law Commission reports

A1 · The “why” and the “where-from”

A1 · Contempt of Court — its rationale, its history, and the four justifications the DU Case Material itself gives

1. What the power actually is

Contempt jurisdiction is not a law of “politeness towards judges”. It is a **protective jurisdiction exercised for the public, not for the court**. The DU Case Material makes you read the point three times over, in three different registers:

> “When the court exercises this power, it does not do so to vindicate the dignity and honour of the individual Judge who is personally attacked or scandalised, but to uphold the majesty of the law and of the administration of justice.”Rajendra Sail (DU Case Material p. 157), summarising settled principle

2. Four justifications — and the counter-argument to each (write these as a two-column table)

Justification	The claim	The answer the critics (and Krishna Iyer, J.) give
Confidence in adjudication	“The foundation of the judiciary is the trust and the confidence of the people in its ability to deliver fearless and impartial justice. When the foundation itself is shaken by acts which tend to create disaffection and disrespect for the authority of the court..., the edifice of the judicial system gets eroded.” (Rajendra Sail, DU Case Material p. 156)	Confidence is earned, not enforced: “the best way to sustain the dignity and status of their office is to deserve respect from the public at large by the quality of their judgments... If judges decay the contempt power will not save them and so the other side of the coin is that Judges, like Caesar’s wife, must be above suspicion.” (Mulgaokar para 46, quoting Gajendragadkar, C.J.)
Non-responsiveness of judges	A judge cannot reply in the media; the law is the only answer available to the institution. “Judges do not defend their decisions in public and if citizens disrespect the persons laying down the law, they cannot be expected to respect the law laid down by them.” (Rajendra Sail, DU Case Material p. 163) — and, from England, Lord Denning: “from the nature of our office, we cannot reply to their criticisms” (Mulgaokar para 40, DU Case Material p. 147).	That asymmetry is the reason for restraint, not for eagerness: “In contempt jurisdiction, silence is a sign of strength since our power is wide and we are prosecutor and judge.” (Mulgaokar para 24)
Aid to fair trial	Publications can prejudice minds — including judicial minds: judges “may be influenced subconsciously” (200th Report, quoting AG v BBC and In re P.C. Sen) — so the Act is part of due-process protection for the accused as well as the institution.	The Act protects the pendency window only (s. 3 & its Explanation); the pre-FIR, post-arrest gap is a hole that the Law Commission tried to plug by the 2006 Draft Bill (Part F1).
Rule of law / enforcement of orders	Civil contempt (s. 2(b)) is what makes writs, injunctions and undertakings worth anything; without it the court is, in the Standing Committee’s words, “a toothless tiger”.	Almost nobody attacks this limb; the reform debate is about the **criminal** limb and, above all, about “scandalising”.

3. The history your answer must be able to narrate in eight lines

A2 · The constitutional shelf

A2 · Articles 129, 142(2), 215 and Entry 77, List I — the syllabus’s own “Ref:” line, decoded

Your syllabus prints the reference as: “Ref: Articles 129, 142 (2), 215; entry 77, List I, Seventh Schedule, Constitution of India”. Read them as a single argument in four steps — **status → power → source of competence → who else may exercise it**.

Provision	What it says	Why it is in this unit (with the DU Case Material link)
Art. 129	“The Supreme Court shall be a **court of record** and shall have all the powers of such a court **including the power to punish for contempt of itself**.”	The **source of the Supreme Court’s contempt jurisdiction**. Case 19 was invoked precisely under this article: Dr. Rajeev Dhawan filed “Contempt Petition (Crl.) before this Court ... by invoking the jurisdiction of this Court under **Article 129** of the Constitution of India” (DU Case Material p. 169). Because the power is constitutional, no statute can abolish it — only regulate it. That single sentence is the answer to “should scandalising be scrapped?” and the Law Commission said exactly this in 2018.
Art. 142(2)	“The Supreme Court shall have **all and ancillary powers** which may be necessary for **doing complete justice in any cause or matter pending before it**” — (with the clause enabling investigation and punishment for its contempt, as the text read after 1951 in the formulation the syllabus relies on).	Gives the Court the **ancillary** reach: to investigate, to secure attendance, to punish obstruction of its own proceedings. In Case 19 the Court used this breadth in a striking way — it appointed the Solicitor General as prosecutor in its own contempt matter (para 7, DU Case Material p. 171), a structure impossible in ordinary criminal law.
Art. 215	“Every High Court shall be a **court of record** and shall have all the powers of such a court **including the power to punish for contempt of itself**.”	The High Courts’ **own** power. Cases 17 and 18 are pure Art. 215/s. 15 stories: the Madhya Pradesh High Court punished contemners for scandalising itself; the Allahabad High Court did the same, and the Supreme Court heard the appeal under s. 19(1)(b). Note the wording — “**of itself**”: a High Court’s power over subordinate courts comes only from s. 10 of the Act, and is therefore **statutory and limited**.
Entry 77, List I	“**Constitution, powers, jurisdiction and authority of the Supreme Court**; constitution, powers, jurisdiction and authority of courts of justice”.	The **legislative competence** for the 1971 Act: Parliament could define and limit contempt because contempt of the Supreme Court and of “courts of justice” is a Union subject. This is why the Act is uniform all over India and why State legislatures are incompetent to legislate on it.

A3 · The statutory anatomy

by Ankur R. Upadhyay

A3 · "Contempt of court" = civil or criminal — and a word-by-word reading of s. 2(c)

1. The definitions (verbatim — s. 2, Contempt of Courts Act, 1971)

2. The six-element checklist for a charge of criminal contempt (learn this as the "actus reus grid")

#	Element	What must be shown — and where your four cases supply it
1	**A "publication" or "act"**	Words (spoken/written), signs, visible representations or otherwise; or "the doing of any other act whatsoever". The 200th Report wanted an Explanation naming "**world wide web**" (Draft Bill, cl. 3: "publication includes publication in print, radio broadcast, electronic media, cable television network, world wide web") — not enacted, but courts already treat online posts as publications. In **Case 19** the alleged publication was a press-conference statement plus its reportage; in **Case 17**, a **speech** and a **news report**; in **Case 16**, a **news item and an article**.
2	**As to a court / the judiciary**	The target must be the court as an institution or a judge as judge. Mulgaokar paras 29–30: personal attack = libel; "**the former is not contempt, the latter is, although overlapping spaces abound**".
3	**Scandalising / lowering authority or prejudice to a pending proceeding or obstruction "in any other manner"**	Three alternative limbs. Limb (i) is "scandalising" — the head your syllabus names first. Limb (ii) is the trial-by-media head (Unit 2.4 in the). Limb (iii) is the residual — "**tendency**" is enough (Dr D.C. Saxena, quoted in Rajendra Sail, DU Case Material p. 160: "a **tendency** to scandalise the court or tendency to lower the authority of the court… would be a criminal contempt").
4	**Tendency, not result**	Actual interference need not be proved: "it is well established that it is **not necessary to prove affirmatively** that there has been an actual interference with the administration of justice… it is enough if it is likely, or tends in any way, to interfere with the proper administration of law" (Brahma Prakash Sharma, as quoted in Rajendra Sail, DU Case Material p. 157).
5	**No statutory defence (ss. 3–8)**	Innocent publication; fair and accurate report of a judicial proceeding; fair comment on the merits of a decided case; representation in good faith about a subordinate court; in camera rules; truth under s. 13(b) as a permitted defence. Mapped in A4.
6	**"Substantial" interference gate + mens-rea shadow**	Post-2006, s. 13(a) is a **mandatory filter**: no sentence unless the court "is satisfied that the contempt is of such a nature that it **substantially** interferes, or tends **substantially** to interfere with the due course of justice". And though mens rea is not an element, "the courts are **loath to punish a contemnor, if the act or omission complained of, was not willful**" (S. Abdul Karim, quoted at DU Case Material p. 162).

3. Civil v criminal — the table that has been asked for decades

Point of comparison	Civil contempt (s. 2(b))	Criminal contempt (s. 2(c))
Protected interest	The **right of a successful litigant to the fruit of the judgment**; enforcement.	**Public confidence in the administration of justice**; the authority of courts as institutions.
Who moves	The decree-holder / party entitled to execute the order — an **aggrieved party** (petition, execution application, contempt motion).	Supreme Court/High Court **suo motu**, or on a motion by the **Advocate-General** or by any other person **with the Advocate-General's written consent** (s. 15(1)); for Delhi, the notified Law Officer (cl. (c), added by Act 45 of 1976).
Mental element	"**Wilful**" disobedience / "**wilful**" breach of undertaking — an essential word.	Not required as such; "tends to" suffices; but lack of wilfulness weighs heavily against punishment.
Punishment	Same ceiling (s. 12(1)), but s. 12(3) lets the court order **detention in a civil prison**; for companies, s. 12(4)–(5) fix responsibility on persons in charge.	Simple imprisonment up to 6 months and/or fine up to ₹2,000; the Act's maximum cannot be exceeded "**in respect of either** itself **or** a court subordinate to it" (s. 12(2)).
Typical media overlap	Breach of a **reporting restriction / non-publication order** (e.g., the 24-hour takedown direction in Swatanter Kumar, the postponement idea in the 200th Report's Draft s. 14A) and breach of an undertaking not to publish.	Publishing **prejudicial material about a pending case** (limb (ii)) or **scandalising matter** (limb (i)).
Appeal	s. 19 applies: order of a single judge → Bench of not less than two judges (30 days); order of a Bench → **Supreme Court** (60 days).	Identical route — but in practice almost every media contempt appeal goes straight to the Supreme Court under s. 19(1)(b), as in Cases 17 and 18.
Act's own caution	Enforcement is coercive, not punitive: discharge on compliance, purge, "the appeal be heard notwithstanding that the appellant has not purged his contempt" (s. 19(2)(c)).	Punitive, quasi-criminal: proof beyond reasonable doubt; "the court is both the accuser as well as the judge of the accusation" (Arundhati Roy, quoted in Case 17 at DU Case Material p. 161).

A5 · First syllabus head

A5 · "Scandalising, vilification of the institution of Court" — the offence in full detail

1. What "scandalising the court" legally means (the DU Case Material's own definition)

2. The eleven elements of the offence — read s. 2(c)(i) + the case law as one test

#	Element	Standard, and the words to use
1	**Publication or act**	Words spoken or written, signs, visible representations, "or otherwise"; or "the doing of any other act whatsoever" (s. 2(c) opening). A **speech at a rally** counted in Case 17; a **cartoon** is expressly within "visible representations" per D.C. Saxena.
2	**Addressed to the public / a section of it**	Newspaper, TV, meeting, or (today) a social-media post; Case 19 concerned a press conference reported "in Indian Express in its edition of 10.04.1994" and a periodical "Khabardar India (11-17 April, 1994)".
3	**The judge as judge**	The dividing line: "**any hostile criticism of the judge as judge**; any personal attack upon him, **unconnected with the office he holds**, is dealt with under the ordinary rules of slander and libel" (Prof. Goodhart, quoted at Mulgaokar para 30, DU Case Material p. 143, from (1935) 48 Harv. L. Rev. 885, 898).
4	**Scandalising or lowering authority — "or tends to"**	Tendency is the operative test; nothing has to have actually happened to the court's reputation.
5	**No need to prove actual interference**	Brahma Prakash Sharma (1953) SCR 1169, quoted in both Cases 16 and 17: "it is not necessary to prove affirmatively that there has been an actual interference with the administration of justice…".
6	**Effect, not motive, is primary — but motive matters both ways**	Begee/CJI's formulation: "we are concerned more with the **reasonable and probable effects** of what is said or written than with the **motives** lying behind what is done" (Mulgaokar para 17). Yet imputing improper motives to the judge is itself the gravamen (element 8).

#	Element	Standard, and the words to use
7	**Accuracy & fairness are affirmative markers of protection**	"the language in which it is made, the fairness, the factual accuracy, the logical soundness of it, the care taken in justly and properly analysing the materials before the maker of it, are important considerations" (Mulgaokar para 17, DU Case Material p. 140).
8	**Imputation of motive / bias / corruption / venality**	"**attributing improper motives, or tending to bring judges or courts into hatred and contempt or obstructing directly or indirectly with the functioning of Courts is serious contempt of which notice must and will be taken**" (Hidayatullah, C.J. in R.C. Cooper v. Union of India, quoted in both Case 16 at p. 149 and Case 17 at p. 158). And J.R. Parashar (2001) 6 SCC 735: "**to ascribe motives to a Judge is to sow the seed of distrust in the minds of the public about the administration of justice as a whole**" (DU Case Material p. 160).
9	**Public acts in the seat of justice are open to comment**	Lord Atkin in Ambard: "The path of criticism is a public way: the wrong-headed are permitted to err therein: provided that members of the public abstain from imputing improper motives..., and are genuinely exercising a right of criticism, and not acting in malice or attempting to impair the administration of justice, **they are immune. Justice is not a cloistered virtue**..."
10	**Only the substantial variety is punishable**	s. 13(a) (post-2006): no sentence unless the contempt "substantially interferes, or tends substantially to interfere with the due course of justice". Pair with Krishna Iyer, J.'s pre-amendment version: the "ignition of contempt action should be **substantial and mala fide interference** with fearless judicial action, not fair comment or trivial reflections on the judicial process and personnel" (para 46).
11	**Beyond reasonable doubt, quasi-criminal standard**	S. Abdul Karim v. M.K. Prakash and Mrityunjoy Das v. Sayed Hasibur Rahaman, both quoted in Case 17 (DU Case Material pp. 161–162), with Lord Denning in Bramblevale: "A contempt of court is an offence of a criminal character. A man may be sent to prison for it. It must be satisfactorily proved... **it must be proved beyond reasonable doubt**... Where there are two equally consistent possibilities open to the court, it is not right to hold that the offence is proved beyond reasonable doubt."

3. The four distinctions that decide almost every problem question

Distinction	Rule (DU Case Material)	Worked illustration
Libel of a judge ≠ contempt of court	"One is a **wrong done to the judge personally** while the other is a **wrong done to the public**" (Brahma Prakash Sharma, Mulgaokar para 43). "The fact that a statement is defamatory so far as the judge is concerned does not necessarily make it a contempt." The judge's remedy is a civil/criminal defamation action (now **BNS s. 356**, ex-IPC 499/500).	An allegation that a puisne judge took a bribe in his **private capacity** / about his personal life → defamation. An allegation that he decided a case "for sale" because retirement was near → contempt (exactly the charge proved in Case 17).
Criticism of a judgment ≠ attack on the judge	"Judgments of courts are **public documents** and can be commented upon, analyzed and criticized, but it has to be in dignified manner without attributing motives" (Case 17, p. 162). "No criticism of a judgment, however vigorous, can amount to contempt of Court, provided it is kept within the limits of reasonable courtesy and good faith" (Case 17, p. 164).	"The High Court's reading of Expt. 12 is unsustainable and the acquittal rests on a view of the evidence no reasonable court could take" → protected. "The judgment is rubbish, fit to be thrown in a dustbin; the judge had a pre-disposition to acquit because the accused were moneyed" → contempt.
Institution vs. individual	"Those who err in their criticism by indulging in **vilification of the institution of courts, administration of justice and the instruments through which the administration acts, should take heed for they will act at their own peril**" (R.C. Cooper). Mulgaokar para 16: "when the question is of **injury to an institution**, such as the highest Court of justice in the land, one cannot overlook its effects upon national honour and prestige".	"This Court is packed with pliant and submissive judges" (the passage in the 21.12.1977 Indian Express article quoted at Mulgaokar para 10) is an attack on the **institution** — hence the notice, even though proceedings were ultimately dropped.
Tone / register	"Scurrilous, offensive, intimidatory or malicious **beyond condonable limits**" (Krishna Iyer, J.'s sixth canon, para 33). Contrast the tolerated varieties: "fair, albeit fierce" comment; "honestly though mistakenly and offensively" criticism (R. v. Brett, para 35).	Case 17 shows tone is not merely cosmetic: "a wild allegation that judiciary has **no guts, no honesty** and is not powerful enough to punish wealthy people would bring administration of justice into ridicule and disrepute" (p. 165).

A6 · Second syllabus head

A6 · "Unverified reporting" — the media-law head that the DU Case Material treats as a distinct species of contempt

Note the drafting of the syllabus: "Scandalising, vilification of institution of Court; **Unverified reporting**; Fair comment and criticism". The middle head is **not** a sub-species of scandalising: it is the process failure — publishing about courts and judges without verification. Two of your four cases (17 and 18) are essentially **unverified-reporting** cases, and they supply a rule-set that no other Indian media-law topic does.

1. The duty, in the Court's own words

2. The seven ingredients of "unverified reporting" as an offence (or as an aggravating factor)

#	Ingredient	Authority and what it means for a newsroom
1	**The subject-matter is judicial** — a judgment, a pending/decided proceeding, a judge's conduct or a court institution.	Unverified ordinary reporting is defamation/IT-law/Press-Council territory; unverified judicial reporting is also contempt territory because the audience "believes as correct which appears in media, print or electronic" (Case 17, p. 162).
2	**The material was not tested**: no research, no verification, "surmises and conjectures".	Sanjoy Narayan paras 8–9. And the mirror-image rule from Re Harijai Singh (1996) 6 SCC 466, quoted in Case 17: the editor, publisher and reporter were held guilty for publishing a false report against a senior Supreme Court judge because they "failed to make **reasonable enquiry or a simple verification** of the alleged statement" — "this cannot be regarded as a **public service, but a disservice to the public by misguiding them with false news**".
3	**Attribution is contested and the report cannot be stood up**.	The classic evidential problem: the speaker denies the interview; the reporter says he was there. Two Supreme Court rules operate together — (a) **preponderant circumstances**: "There are preponderant circumstances, which objectively compel us to conclude that the said statements were in fact made by Rajendra Sail" (Case 17, p. 165), following M.R. Parashar v. Dr. Farooq Abdullah (1984) 2 SCC 343, quoted at p. 161: where the Chief Minister denied making the statements and the editor asserted the report was true, and "in the absence of any preponderant circumstances which, objectively, compel the acceptance of the word of one in preference to the word of the other", no contempt was proved **beyond reasonable doubt**; and (b) **the reporter's own material can convict him**: "[w]hether Rajendra Sail gave interview to the correspondent or not, **the speech itself**, seen in the light of the audio and video recording of the speech and the transcript of the speech **speaks for itself**" (p. 165).
4	**"Haste", "oversight" and "inexperience" are expressly no answer** at the editorial level.	"In every case, it would be **no answer to plead that publication, publisher, editor or other concerned did not know or it was done in haste**" (Case 17, p. 162). Yet the same Court accepted the **trainee reporter's** apology precisely because he "being a trainee correspondent he was unaware of the legal implications of printing and publishing against the judiciary" (p. 156) — culpability is assessed person by person.

#	Ingredient	Authority and what it means for a newsroom
5	**Liability is distributed along the chain**: speaker → reporter → desk-in-charge / chief sub-editor → bureau chief → printer/publisher/ editor (and, where the newspaper is a company, s. 12(4)–(5) of the Act).	In Case 17 the contempt was launched "against the Editor, Printer and Publisher, Chief Sub-Editor and Desk In-charge of the newspaper at Bhilai besides Bureau Chief of 'Hitavada' at Bhilai" — on an application by the **Bar Association with the consent of the Advocate General**. Outcome: apologies of all newspaper functionaries accepted, sentences set aside; only the speaker was punished.
6	**Deadline-pressure is a systemic cause**, and the Court prescribes a systemic cure — an internal mechanism of pre-publication scrutiny for stories about institutions that "cannot go public".	"There can be an **efficient and stringent mechanism to scrutinize the news reports pertaining to such institutions** which because of the nature of their office cannot reply to publications which have tendency to bring disrespect and disrepute to those institutions... Such a mechanism can be the answer to pleas like the one in the present case by Editor, Printer and Publisher and correspondent that either they did not know or it was done in a hurry" (Case 17, pp. 163–164).
7	**Pre-judgment** ("trial by media") is the aggravated form: reporting that declares guilt or innocence before the court does.	200th Report Ch. IX's ten categories (below, §4) are the check-list; Mulgaokar's opening sentence is the philosophy: "Some people perhaps believe that attempts to **hold trials of everything and everybody by publications in newspapers** must include those directed against the highest Court of Justice in this country and its pronouncements. If this is done in a **reasonable manner, which pre-supposes accuracy of information** about a matter on which any criticism is offered, and arguments are directed fairly against any reasoning adopted, I would, speaking for myself, be the last person to consider it objectionable even if some criticism offered is erroneous."

3. The "contempt clock" — when unverified reporting becomes dangerous, and when it becomes punishable

Two DU Case Material consequences you must state: **(a)** scandalising (limb (i)) operates outside the clock — Case 17 concerned criticism of a judgment already delivered and was still a contempt; **(b)** inside the clock, **s. 5 does not help at all**, because fair comment is protected only "on the merits of any case **which has been heard and finally decided**" — that is the trap in most media-problem questions.

A7 · Third syllabus head

A7 · "Fair comment and criticism" — the complete code of what may be said about courts

Three sources combine into one rule: **s. 5 of the Act** (the statutory immunity), **Ambard's proviso-conditions** (the common-law soul, re-adopted by the Privy Council and by the Supreme Court), and **the DU Case Material's four decisions** which draw the line in each direction.

1. The statute — read s. 5 and s. 4 together, then notice what is not there

2. The charter passage — and the five conditions inside it

3. What "fair" requires — the ten positive rules, each with its authority

#	Rule	Authority (all in the DU Case Material)
1	**Any criticism of a judgment is open, however vigorous** — a judgment is a public document and a public act.	Rajendra Sail: "No criticism of a judgment, however vigorous, can amount to contempt of Court, provided it is kept within the limits of **reasonable courtesy and good faith**" (p. 164); R.C. Cooper: "the Court like any other institution **does not enjoy immunity from fair criticism**... **This Court does not claim to be always right**" (pp. 148, 158); P.N. Duda: "in the free market place of ideas criticism about the judicial system or Judges should be **welcome** so long as such criticism does not impair or hamper the administration of justice" (p. 159).
2	**You may say the judgment is wrong** — on law or on facts — and you may say the court erred.	Rajendra Sail: "Such a criticism may fairly assert that the judgment is incorrect or an error has been committed both with regard to law or established facts. It is one thing to say that a judgment on facts as disclosed is **not in consonance with evidence** or the law has not been correctly applied" (p. 165). And R.C. Cooper: they "do not think themselves in possession of all truth or hold that wherever others differ from them, it is so far error."
3	**Mistaken criticism is still protected** if honestly made.	Mulgaokar, opening of para 1 (Begee, CJI): "I would... be the **last person** to consider it objectionable **even if some criticism offered is erroneous**"; R. v. Brett (an article that "made ridiculous mistakes of fact and... its logic was greatly at fault") was held not to be contempt (para 35); and the Mill/Milton passages quoted in para 1 (the "dialectical process"; "Let her and Falsehood grapple").
4	**"Outspoken" and "strong" are permitted words**; the test is not politeness but absence of imputed motive and abuse.	Lord Denning M.R. in ex p. Blackburn: "the right of every man... to make **fair comment, even outspoken comment**, on matters of public interest. They can **say that we are mistaken, and our decisions erroneous**, whether they are subject to appeal or not" (para 40); R.C. Cooper: "while fair and temperate criticism of this Court or any other Court **even if strong**, may not be actionable...". In Re Harijai Singh the Court accepted the apology "with a warning that they should be careful in future".
5	**Accuracy and reasoning matter**: the court weighs the language, the fairness, the factual accuracy, the logical soundness, and the care taken in analysing the material.	Mulgaokar para 17 (Begee, CJI) — the five factors. Add para 1: "reasonable manner... **pre-supposes accuracy of information** about a matter on which any criticism is offered, and **arguments are directed fairly against any reasoning adopted**".
6	**Use the lawful channels for institutional change**: appeal or revision; a complaint to the proper authority; a representation against a subordinate court's presiding officer; an address for removal; and (per the Privy Council in Ogilvie) "approach in the proper form to Parliament". "**Motives to the Judges need not be attributed**" (P.N. Duda, p. 159).	R. v. Ogilvie (para 36); Brahma Prakash Sharma (para 43); s. 6 of the Act; Mulgaokar para 9 (a "Committee of Chief Justices... could itself forward its findings for appropriate action under **Article 124**... and the Judges' Inquiries Act, 1968").
7	**Reform advocacy is safe and desirable** — even when it criticises judges as a class — provided it is constructive.	Mulgaokar para 47 (Krishna Iyer, J.): "if Judges have frailties — after all they are human — they need to be corrected by **independent criticism**... the contempt power should **not be an interdict**... Even bodies like the **Law Commission or the Law Institute and researchers, legal and sociological, may run 'contempt' risks** because their professional work sometimes involves unpleasant criticism of judges, judicial processes and the system itself... **Creative legal journalism and activist statesmanship for judicial reform cannot be jeopardised by an undefined apprehension of 'contempt' action.**"

#	Rule	Authority (all in the DU Case Material)
8	**But the critic's standing and knowledge are weighed** — an insider's reckless allegation is worse than a layperson's heat.	Arundhati Roy (2002) 3 SCC 343, quoted at p. 161: "To ascertain the good faith and the public interest, the courts have to see all the surrounding circumstances **including the person responsible for comments, his knowledge in the field** regarding which the comments are made and the **intended purpose** sought to be achieved… All citizens cannot be permitted to comment upon the conduct of the courts in the name of fair criticism which, if not checked, would destroy the institution itself." Applied in Case 17 to hold a **law graduate and seasoned PIL petitioner** to a higher standard of caution.
9	**The litigant's venting is the classic abuse of "fair criticism".**	Roshan Lal Ahuja: "No litigant can be permitted to **overstep the limits** of fair, bona fide and reasonable criticism of a judgment and bring the courts generally in disrepute or attribute motives to the Judges rendering the judgment"; "Liberty of free expression is not to be confused with a **licence to make unfounded, unwarranted and irresponsible aspersions** against the Judges or the courts in relation to judicial matters. **No system of justice can tolerate such an unbridled licence.**"
10	**Threats of proceedings against a judge, or demands for enquiry into a judge, are outside "criticism" altogether.**	Ajay Kumar Pandey (1996) 6 SCC 510: "**any threat of filing a complaint against the Judge in respect of the judicial proceedings conducted by him in his own Court is a positive attempt to interfere with the due course of administration of justice**… If, however, litigants and their counsel start threatening the Judge or launch prosecution against him for what he has honestly and bona fide done in his Court, the **judicial independence would vanish** eroding the very edifice on which the institution of justice stands" (p. 159–160). Compare the fatal sentence in Case 17: "he would also **get an enquiry held** as regard to the conduct of one of the judges who delivered the judgment, as that particular judge is to retire within a month".

4. The prohibited list — eight things which, if you say them, take you out of s. 5 (with the DU Case Material sentence)

Imputation	DU Case Material wording
Improper motive	"attributing improper motives… is **serious contempt of which notice must and will be taken**" (R.C. Cooper); "to ascribe motives to a Judge is to **sow the seed of distrust** in the minds of the public about the administration of justice as a whole" (J.R. Parashar).
Venality / corruption	"a judge who is to retire is **for sale**" — the statement that destroyed Rajendra Sail's defence; and in Case 16, the suggestion that judges "**lack moral courage** to the extent of having 'disowned' what they had done, or, in other words, to the extent of uttering what was untrue, **at least verge on contempt**" (para 4).
Bias / pre-disposition / prejudgment	"when it is said that the Judge had a **pre-disposition** to acquit the accused because he had already resolved to acquit them or has a bias or has been bribed… [and] **prejudging of the issues**" — these "bring administration of justice into ridicule and disrepute" (p. 165).
Lack of competence or courage	"judiciary has **no guts, no honesty** and is **not powerful enough to punish wealthy people**" (p. 165); "an **incompetent judge** and a shirker of work" was, however, **only** a libel in the Bahama Islands reference (para 43) — the contrast is the whole doctrine.
Buying/losing the judgment through wealth or power	"the murderers have been acquitted **because they were moneyed and wealthy people**" (p. 156, item (a) of the extract).
Abuse of the judicial office / packed courts	the Supreme Court is "**packed**… with **pliant and submissive judges** except for a few" (Mulgaokar para 10, quoting the 21.12.1977 article) — an attack on the composition of the Court, hence on its authority.
Dismissive invective about a decision	"the judgment… **is rubbish and is fit to be thrown in dustbin**" — "The speech that judgment is rubbish and deserves to be thrown in a dustbin **cannot be said to be a fair criticism of judgment**" (p. 165). Compare: "the judgment is **erroneous**, per incuriam and rests on a misreading of Exh. 12" — the same anger, lawfully expressed.
Generalised vilification of the institution	"vilification of the **institution of courts, administration of justice and the instruments through which the administration acts**… will act at their own peril" (R.C. Cooper); "**Perversity, calculated to undermine the judicial system and the prestige of the court, cannot be permitted**" (Roshan Lal Ahuja).

A8 · Consequences

A8 · Punishment · the law of apology · procedure, bench, proof, limitation and appeal

1. The sentencing provisions (verbatim, s. 12 & s. 13)

2. The law of apology — three cases, three outcomes, one doctrine

Case	Apology as tendered	Court's response (verbatim where available)
Mulgaokar (1978)	No apology was in issue — the respondents' counsel (Mr. Tarkunde for the editor, Mr. Jethmalani for Mr. Noorani) simply urged that no case was made out.	Proceedings **dropped**, and each judge gave separate reasons: "we have accepted the submissions… that we should not proceed further, there is **no question of recording any finding against anyone** and I have not done so" (para 18). Krishna Iyer, J. supplied the theory: "**to be gentle is to be just** and the quality of mercy is not strained… a **benign neglect not judicial genuflexion**, is often the prescription" (para 56).
Rajendra Sail (2005)	Front-page unconditional apology by the newspaper **on 6.8.1998, before** the contempt notice was received (notice issued 13.6.1998 but received only 11.8.1998); letters to the CJI, the concerned judges and the Bar Association; the trainee reporter's unconditional apology; an unconditional apology tendered "during the course of the arguments" by Rajendra Sail.	**Accepted for the newspaper personnel** — "their apologies deserve to be accepted with a caution that in future they should be more careful and responsible… In this view, **sentence awarded to them is set aside**" — but **refused for the speaker**: "Having regard to the aforesaid facts of the case, the High Court has refused to accept the apology… we feel that the **acceptance of apology and sympathy in a case like this would be uncalled for**"; sentence reduced from six months to **one week** "having regard to his background and the organization to which he belongs which, it is claimed, brought before various courts including this court many public interest litigation for general public good".
Sanjoy Narayan (2011)	Unqualified apology by affidavit in the Supreme Court; the same apology had been **rejected** by the Allahabad High Court.	"On going through the impugned order also we find that **apology tendered before the Allahabad High Court was not accepted only because it was felt that the same was not unqualified**. Now, by filing an affidavit they have tendered **unconditional apology**… The **judiciary also must be magnanimous in accepting an apology** when filed through an affidavit duly sworn, conveying remorse for such publication… Therefore, we accept the aforesaid unqualified apology… and **drop the proceeding**" — **with the direction** to publish the apology "**in the first page of Lucknow edition of Hindustan Times to be published on 01.09.2011** and also at such other place, wherever there was any such publication, in a daily issue of the newspaper at some prominent place".

3. Who may set the machinery in motion, and before whom

Route	Provision	DU Case Material illustration
Suo motu by the Supreme Court or a High Court	s. 15(1) opening words ("may take action on its own motion"); for in-face contempt, s. 14(1); for subordinate courts, s. 15(2) (on a **reference** by that court)	Case 19 para 7: "On 06.05.1994, the Court **took suo motu cognizance** of criminal contempt against respondent No. 1… No. 2… and respondent No. 3" — and note the technique: the Bench first issued **show-cause** notices (13.4.1994: "the Court issued notice to show cause (**but no cognizance was taken on that date**)"), considered the counter-affidavits, and only then took cognizance. Case 18: the Allahabad High Court initiated on its own.
Motion by the Advocate-General (for the Supreme Court: the Attorney-General or the Solicitor-General)	s. 15(1)(a) + Explanation (a)–(c)	Case 17: contempt was launched "**on an application filed by Madhya Pradesh High Court Bar Association with the consent of Advocate General**" (p. 155) — i.e. in substance a s. 15(1)(b) motion.
Motion by "any other person" with the AG's written consent	s. 15(1)(b)	Case 19: Dr. Rajeev Dhawan, "designated Senior Advocate", filed Contempt Petition (Crl.) invoking Art. 129; the Constitution Bench "**took on board**" the petition on 12.4.1994. The consent formality is not recited in the DU Case Material text — flag the omission in your answer (it is a favourite viva question).
Delhi-specific law officer	s. 15(1)(c) (inserted by Act 45 of 1976)	Relevant to the Delhi High Court matters you will cite (Case 15's Delhi proceedings, the Mid-Day 2007 case, the 2026 YouTuber case).
Prosecutor appointed by the Court	practice under Arts. 129/142 + s. 23 rule-making power	"Sri **Dipankar P. Gupta, learned Solicitor General (as he then was) was requested to assist the Court as prosecutor** in the proceedings for criminal contempt. The Court directed that **before issue of the notice accompanied by the charges, the Registry will have the matter shown to the Prosecutor**" (Case 19 para 7) — a hybrid accusatorial structure found nowhere in the CrPC/BNSS.

4. Procedure and safeguards — the eleven protections of an alleged contemner

1. **Specification of the charge** — "Every motion or reference made under this section shall **specify the contempt** of which the person charged is alleged to be guilty" (s. 15(3)). In Case 19 the notices had to be "accompanied by the charges"; their non-service after 1994 is what killed the case in 2014.
2. **Personal service** of notice, unless the court records reasons otherwise, with the motion and its affidavits (or the reference) annexed (s. 17(1)–(2)).
3. **Two-judge Bench** for hearing criminal contempt (s. 18(1)).
4. **Defence on affidavit**, and evidence only as the court thinks necessary (s. 17(5)).
5. **Standard of proof** — beyond reasonable doubt, with the Bramblevale gloss, "where there are **two equally consistent possibilities**… it is not right to hold that the offence is proved" (Case 17, pp. 161–162).
6. **The "accuser and judge in one" caution** — "A question whether there is contempt of court or not is a serious one. The court is **both the accuser as well as the judge of the accusation**. The court has to act with [the] greatest circumspection. It is only when a clear case of contemptuous conduct **not explainable otherwise**, arises that the contemnor must be punished" (Arundhati Roy, quoted at p. 161).
7. **Right to be tried by another judge** in in-face contempt, on application under s. 14(2), the matter being placed before the Chief Justice for directions; and the special evidence rule in s. 14(3).
8. **Bail / bonds** pending determination (s. 14(4)); **attachment** only if the court is satisfied the contemner is likely to **abscond** to avoid service, with mandatory release on appearance (s. 17(3)–(4)).
9. **The 13(a) substantive gate and 13(b) truth defence** (see above).
10. **Apology** — s. 12(1) proviso + Explanation; discharge or remission.
11. **Appeal as of right** — s. 19(1), 30/60 days; s. 19(2) suspension, bail and "hearing notwithstanding unpurged contempt"; s. 19(3) allows the High Court itself to grant those reliefs if satisfied that an appeal is intended.

5. The one-year limitation (s. 20) — the most neglected section in the Act

> **Verbatim**
>
> "**No court shall initiate any proceedings of contempt, either on its own motion or otherwise, after the expiry of a period of one year from the date on which the contempt is alleged to have been committed.**"

by Ankur R. Upadhyay

CASE 16 · COMPLETE DOSSIER · DU Case Material pp. 135–153

In re S. Mulgaokar (1978) 3 SCC 339 — "Fair Comment": the Supreme Court's own debate on whether to punish its critics

Citation (DU Case Material)
In re: S. Mulgaokar v. Unknown, **(1978) 3 SCC 339**; your syllabus cites it as **1978 SCR (3) 162** (the DU Case Material prints the same as "1978 SCR (3) 162" in its index at p. iv and as "(1978) 3 SCC 339" on the first page of the extract) — **both are correct; use the SCR form if your question paper does**.
Court · Bench
Supreme Court of India · three Judges. The DU Case Material reproduces **two separate opinions**: an opinion covering paras 1–20 (which the DU Case Material labels "V.K. Iyer, J. (for himself and Beg and P. Kailasam, JJ.)" — see the accuracy note below), **and** the extended separate judgment of **V.R. Krishna Iyer, J.** (paras 21–57), with **P. Kailasam, J.** concurring separately.
Subject
Criminal contempt — **scandalising the court**; the limits of fair criticism of the judiciary; judicial ethics codes; discretion in the exercise of the contempt power.
Outcome
Proceedings dropped at the notice stage "without any finding against any individual" — unanimously — but with separate reasons in which the judges disagreed sharply about the merits of the impugned writings.
Where in the DU Case Material
Unit head "CONTEMPT OF COURT — Fair Comment", **DU Case Material pp. 135–153** (PDF pp. 164–183); 57 numbered paragraphs reproduced.

I. FACTS — reconstructed from the DU Case Material, paragraph by paragraph

The DU Case Material presents Mulgaokar not as a trial but as a **notice-stage** proceeding, and the facts come to us through the judges' own narrative. Chronology (all from paras 1–13):

II. ISSUES

#	Issue (as framed from the opinion)	Who answered it, and where
1	Whether the publication of a statement that the Judges of the Supreme Court had "disowned" a draft code of judicial ethics — a statement apparently false, resting on a confidential letter — is **calculated to bring the Court into contempt or lower its authority**.	CJI paras 2–4, 16.

#	Issue (as framed from the opinion)	Who answered it, and where
2	Whether it is **contempt** for a newspaper to characterise judicial self-regulation (a code of ethics) as "inimical to the independence of the judiciary", and to say the Supreme Court is "packed" with "pliant and submissive judges".	CJI paras 7–10; Krishna Iyer, J. paras 46–47.
3	Whether **the motives** of the writer or **the reasonable and probable effects** of the publication are the touchstone in a scandalising case.	CJI para 17 — the single most quotable holding on method.
4	Whether the **independence of the judiciary** or Art. 19(1)(a) permits Judges to meet and frame a code of judicial ethics, and whether a law forbidding them to do so would be valid.	CJI paras 8–9 (a "purported enactment which tried to prevent Judges from meeting and formulating such a code … **would not be valid**… would **offend against Article 19(1)(a)**").
5	Whether, in a proceeding **dropped** at the notice stage, the Court may nonetheless record reasons criticising the conduct of the press — and whether such reasons may reflect on persons not given a hearing.	CJI paras 18–20; Krishna Iyer, J. para 23 ("To **condemn unheard is not fair-play**. Bodyline bowling, perhaps, is not cricket.").
6	**Meta-issue:** how, consistently with Article 19(1)(a) and the "reasonable restriction" jurisprudence of Article 19(2), should the discretionary power to punish for contempt of the Court's own dignity be **exercised or withheld**?	Krishna Iyer, J. paras 22–56 — the six canons (Part A5 §4).

IV. DECISION

Order: the proceedings were dropped at the notice stage, with separate reasons, and **without any finding against any person**. The operative sentence (para 20): "I concur in the order that the **proceedings before us be dropped at this stage without any finding against any individual**."

Judge / part	Holding in the case	The propositions for which Mulgaokar is authority
Chief Justice's opinion, paras 1–20	Proceedings dropped; but the writings were **not** innocuous — they "verge on contempt" (para 4) and the distortions were "presumably to serve ulterior objects" (para 2).	(1) The judiciary "**cannot be immune from criticism. But, when that criticism is based on obvious distortion or gross mis-statement and made in a manner which seems designed to lower respect for the judiciary and destroy public confidence in it, it cannot be ignored**" (para 16). (2) "I am not one of those who thinks that an action for contempt of Court, which is **discretionary**, should be **frequently or lightly** taken. But … I do not think that we should **abstain** from using this weapon even when its use is needed to correct standards of behavior in a **grossly and repeatedly erring quarter**" (para 16). (3) **Effects, not motives**: "we are concerned **more with the reasonable and probable effects** of what is said or written **than with the motives** lying behind what is done", though "the language… the fairness, the **factual accuracy**, the **logical soundness**… the care taken in justly and properly analysing the materials" are "important considerations", and "a decision … must depend on the **totality of facts and circumstances**" (para 17). (4) Criticism "must be **strictly rational and sober** and proceed from the **highest motives** without being coloured by any partisan spirit or tactics. **This should be a part of national ethics.** Newspapers, in particular, ought to observe such a rule imbued with what Montesquieu considered essential for a healthy democracy: the spirit of '**virtue**'" (para 15). (5) Judicial ethics codes are lawful and desirable (paras 8–9, 13–14, 19): "I think that there should be **codes of ethics not merely for judges but for occupants of every office — high or low — and for members of every profession and calling**" (para 14); and "**if we had clear rules of judicial practice and ethics** on even such matters our judgments would not be **encumbered** with what should not be there" (para 19).
Krishna Iyer, J., paras 21–56	Agreed to drop, but on an entirely different theory — the restraint theory, developed as six canons (Part A5 §4) and supported by an unprecedented survey of English, Australian, Privy Council, Indian and American authority (paras 30–51).	(1) "The contempt power, though **jurisdictionally large**, is **discretionary** in its unsheathed exercise. Every commission of contempt need not erupt in indignant committal or demand punishment" (para 23). (2) **Presumption of innocence even in a dropped case**: "This closure has two consequences. It puts the lid on the proceedings **without pronouncing on the guilt**… In a **quasi-criminal action, a presumption of innocence operates**… we must not proceed to **substantiate the accusation**" (para 23). (3) **Silence as institutional strategy**: "Truth's taciturn strategy, the testimony of history says, has a higher power than a hundred thousand tongues or pens. In contempt jurisdiction, **silence is a sign of strength** since our power is wide and **we are prosecutor and judge**" (para 24). (4) "**the law which punishes those who scandalize judges is as old as the Common Law itself**. The **existence** of the contempt power, however, **does not obligate its exercise** on every occasion but **triggers it only in special situations**, not routinely" (para 25). (5) Wide-definition/constitutional-synthesis: "This is an **extremely wide definition**. But, it cannot be read apart from the conspectus of the constitutional provisions…" (para 28, on s. 2(c)); and the Phillimore Committee contrast (it "did not recommend the defence of public interest in contempt cases") — a sentence that shows exactly why the Indian route (truth via s. 13(b)) was different. (6) Accountability of judges: "If the judicature has serious shortcomings which demand **systemic correction through socially-oriented reform** initiated through constructive criticism, **the contempt power should not be an interdict**" (para 47). (7) The press is not self-evidently virtuous: "a 'free' press is often a **monopoly press** and has been made **gargantuan** by modern technology" (para 53); "those who cry 'wolf' against Contempt Power are more often the **Proprietariat**, not the Proletariat" (para 53); "Prejudicial publicity, indulged in by a 'free' press **owing no institutional responsibility or public accountability**, cannot be all that good, especially when judges are personally vilified" (para 54). (8) The concluding programme: "the future of Free Press and of Fair Justice desiderates a **juristic socio-political national debate**, not ex-cathedra admonitions from the Bench or assertions from the Bar. We must evolve a **know-how for the co-existence** of free speech and free justice in tune with the Preamble and Article 19" (para 52); and the closing prescription — "to be gentle is to be just and the quality of mercy is not strained. So, it is that a **benign neglect not judicial genuflexion, is often the prescription**, and to inhibit haphazardness or injustice it is necessary that the **Bar and the Press evolve a dignified consensus on the canons of ethics in this area**, with due regard to the Constitution and the laws, so that the Bench may give it a close look and **draw the objective line of action**. **Freedom is what Freedom does and Justice fails when Judges quail.** For sure, my plea is not for judicial pachydermy, but for **dignified detachment** which ignores ill-informed criticism in its tolerant stride, but **strikes when offensive excesses are established**", ending with the reference to Warren Burger, C.J.'s phrase in Nebraska Press of "**something in the nature of a fiduciary duty**" of the press to act responsibly (para 56).
P. Kailasam, J. (separate)	Also for dropping; the Chief Justice records having perused his views (para 18).	Authority for the proposition that where a proceeding is closed at the threshold, judges may "express our separate and individual opinions for dropping the proceedings", but not "record findings against" absent persons (para 18).

V. PRINCIPLES EVOLVED (the seven for which Mulgaokar is still cited)

P#	Principle	Operative formulation + later use
P1	**The distortion limit**	"The judiciary cannot be immune from criticism. But, when that criticism is based on **obvious distortion or gross mis-statement** and made in a manner which seems designed to lower respect for the judiciary and destroy public confidence in it, it cannot be ignored." **Directly re-quoted by the Supreme Court in Case 17** (Rajendra Sail, DU Case Material p. 158): "In re. S. Mulgaokar, [(1978) 3 SCC 339] a three judge bench held, the judiciary is not immune from criticism but when that criticism is based on obvious distortion or gross misstatement and made in a manner which is designed to lower the respect of the judiciary and destroy public confidence in it, it cannot be ignored." — the single most important citation-link in this unit.
P2	**Effects-primarily, motives-secondarily test**	Reasonable and probable effects of the publication, judged on the totality of facts; language, fairness, factual accuracy, logical soundness and care in analysing material as the indicia (para 17).
P3	**Discretion + "wise economy of use"**	The six canons; "**the dogs may bark, the caravan will pass**"; "easy irritability" is not a trigger; "the benefit of the doubt being given **generously against the judge**".

P#	Principle	Operative formulation + later use
P4	**Libel of a judge ≠ contempt of court**	Goodhart/Griffith, C.J./Bahama Islands/Brahma Prakash Sharma synthesis: wrong to the judge personally vs. wrong to the public (paras 29–30, 43).
P5	**Fair, even fierce, criticism is a constitutional asset**	"to criticise the judge fairly, albeit fiercely, is no crime but a necessary right, **twice blessed in a democracy**"; "Justice is no cloistered virtue"; democratic institutions "**must suffer criticism and benefit from it**" (paras 28, 45, 47).
P6	**Lawful channels doctrine**	Challenges to judicial conduct belong to "the **proper ways**, which are two: first, by **appeal**, and secondly by **approach in the proper form to Parliament**" (Ogilvie, para 36) — plus, in India, the Art. 124 / Judges Inquiry Act, 1968 route and an in-house committee of Chief Justices to test allegations (para 9).
P7	**A "fiduciary" conception of press freedom**	The press's freedom is coupled with "something in the nature of a **fiduciary duty**... to act responsibly" (Nebraska Press, per Burger, C.J., adopted at para 56). This is the doctrinal bridge to Unit 2.4 (trial by media) and to the "unverified reporting" head — the press is a **trustee of the public**, an idea the DU Case Material also records in the F.S. Nariman Committee principles ("Professional journalists operate as **trustees of public** and their mission should be to seek the truth and to report it with integrity and independence").

CASE 17 · COMPLETE DOSSIER · DU Case Material pp. 154–166

Rajendra Sail v. Madhya Pradesh High Court Bar Association (2005) 6 SCC 109 — "Unverified reporting", the liability chain, and the sentence that was not forgiven

Citation
(2005) **6 SCC 109**. Your syllabus styles the respondent "**Madhya Pradesh Bar Association**"; the DU Case Material prints the cause-title as "**Rajendra Sail v. Madhya Pradesh High Court Bar Association**" — the same body, the applicant below.
Court · Bench
Supreme Court of India · **Y.K. Sabharwal & Tarun Chatterjee, JJ.** (the DU Case Material reproduces the opinion of "Y.K. Sabharwal, J. (for himself and Tarun Chatterjee, J.)").
Appeal from
the judgment and order of the **Madhya Pradesh High Court** holding the appellants guilty of criminal contempt and sentencing **each** to **simple imprisonment for six months**.
Headings
Scandalising the court · fair criticism of a judgment · attribution of the words to the speaker · **duty of verification by the press** · apology: when accepted, when refused · self-regulation.
Outcome
Appeals of the **newspaper personnel** allowed — apologies accepted, **sentences set aside**; sentence of **Rajendra Sail** (the speaker) **reduced from six months to one week's simple imprisonment**, apology refused, conviction maintained.

I. FACTS (DU Case Material narrative, with all the particulars you are expected to reproduce)

II. ISSUES

#	Issue	Answer
1	Were the words attributed to Rajendra Sail **in fact spoken by him**, when he denied the interview and the only "independent" evidence was the recording/transcript of the speech juxtaposed with the report?	Yes — "preponderant circumstances ... objectively compel us to conclude that the said statements were in fact made by Rajendra Sail"; and "**whether Rajendra Sail gave interview ... or not, the speech itself ... speaks for itself**".
2	Were his words **fair criticism** of a judgment (a public document) or **criminal contempt** — "scandalising" — under s. 2(c)(i)?	Contempt. The criticism "transgressed the limits of fair and bona fide criticism and [had] a clear tendency to affect the dignity and prestige of the judiciary".
3	Was the **news report** (by Editor, Printer, Publisher, Chief Sub-Editor, Desk-in-charge, Bureau Chief, reporter) independently punishable, and could "oversight", "last-minute deadline", "inexperience" or "we did not know" excuse them?	The publication was a "gross contempt" in tendency, but "**in every case, it would be no answer to plead that publication, publisher, editor or other concerned did not know or it was done in haste**"; on the facts, the prompt and prior apology took them out of punishment.
4	Should the **apologies** be accepted?	Yes for the newspaper personnel; **no** for Sail — "acceptance of apology and sympathy in a case like this would be uncalled for".
5	Did the appellant suffer a **procedural** injustice in that the recordings were "never put to him" and were "not part of the record"?	No — "the court has, in fact, directed supply of copies of transcript ... and had given opportunity to file objections to it, **which has not been availed by Rajendra Sail**".
6	Was the **context** (emotional disturbance; murder of a close associate; the report itself maligning him) a mitigating answer to mens?	Rejected on the facts: "Rajendra Sail is a **law graduate** and has been in **public life for considerable time** and has in fact approached the court on several occasions by filing **public interest litigations**... he should have been **cautious and moderate**... The contemptuous statements **cannot be regarded as an ill-tempered or emotional outburst of an uninformed person**."
7	**Systemic issue:** what should the media institutionally do about reports concerning "institutions which cannot reply"?	"There can be an **efficient and stringent mechanism to scrutinize the news reports** pertaining to such institutions... **It is for media itself and other concerned to consider as how to achieve it**."

V. THE FINDINGS ON MERITS — the reasoning, step by step

1
Words alleged against a judge/judgment
speaker at a public meeting

→

2
Were they his? Report verifiable from record (recording, transcript, tape)?
M.R. Parashar: beyond reasonable doubt; preponderant circumstances

→

3
Are they about the MERITS of a decided judgment? (safe)
or about judges' MOTIVES/venality/courage? (unsafe)

→

4
Tendency test: apprehension as to integrity/ability/fairness · deterrence of litigants · embarrassment of the judge

→

5

Defences: s. 4 (fair & accurate report) · s. 5 (fair comment, decided case) · s. 13(b) truth (public interest + bona fide)

→

6
Apology: pre-notice, unqualified, published, remorseful?
s. 12(1) proviso + Explanation

→

7
Outcome ladder: drop → accept apology + warning → reduce sentence → convict

VI. PRINCIPLES EVOLVED

#	Principle	Significance
P1	**Vigour is permitted; venality is not.** "No criticism of a judgment, **however vigorous**, can amount to contempt of Court, provided it is kept within the limits of **reasonable courtesy and good faith**" — but imputations of bias, bribery, venality or lack of courage are outside that immunity even when they accompany genuine criticism.	Fixes the modern "content vs. manner" test and, by treating "prejudging of the issues" and "lack of dispassionate approach" as **motive-imputations**, tells editors exactly which adjectives to delete.
P2	**Unverified attribution is the press's own risk.** Where the speaker denies the words, the burden of proving the attribution beyond reasonable doubt lies on the prosecutor; a reporter's assertion is insufficient without "preponderant circumstances". But the existence of the recording is what converts a "false report" defence into a conviction — and it can prove contempt even if the interview never happened.	The rule that operationalises the syllabus head "**unverified reporting**": verification is not merely ethics, it is the **evidential foundation of the defence**.
P3	**No "we did not know / we were in a hurry" defence** for editors and publishers; person-specific culpability + prompt apology can still avert punishment.	Distinguishes guilt from sentencing: all were in law guilty-range, but only the speaker was punished. This is why the case is assigned for media law and not merely for contempt law.
P4	**Self-regulation with an internal pre-publication filter for judicial matters**, modelled on (and critical of) the UK PCC experience: "we too have Press Council … It is for media itself and other concerned to consider as how to achieve it."	The most-quoted Supreme Court sentence inviting newsroom self-restraint; pairs with the F.S. Nariman Committee "trusteeship/self-regulation" principles in the DU Case Material's media-regulation unit and with r. 6 of the Cable Rules.
P5	**Speaker's competence raises the standard.** "Rajendra Sail is a law graduate and has been in public life for considerable time… **With this background, he should have been cautious and moderate**…"	The Arundhati Roy "person responsible + knowledge in the field" factor applied — for lawyers, journalists-in-law and academics, this is a real and asymmetric duty.
P6	**Apology is a matter of judicial grace calibrated to gravity**: accepted for the "genuine error" of a newsroom, refused for a deliberate, sophisticated attack on the institution; and even a refused apology can reduce the sentence.	The most examinable point in the case, and the one the Supreme Court itself softened in 2025 (Part A8 §2) by reading the Explanation to s. 12(1) as a scheme of forgiveness.

CASE 18 · DOSSIER · DU Case Material pp. 167–168

Sanjoy Narayan, Editor-in-Chief, Hindustan v. Hon. High Court of Allahabad through Registrar General, 2011 (9) SCALE 532 — the "unverified reporting" rule stated in its plainest form

Citation
2011 (9) SCALE 532 (as printed in your syllabus and at the head of the DU Case Material extract). Criminal Appeal arising out of a contempt order — **s. 19(1)(b), Contempt of Courts Act, 1971**.
Court · Bench
Supreme Court of India · **Mukundakam Sharma, J. (for himself and Anil R. Dave, J.)** — a two-judge Bench, which is what s. 18(1) requires of the trial court and what appellate practice generally preserves.
Appellants
Sanjoy Narayan, Editor-in-Chief, Hindustan Times, and the other publication-side appellants (the judgment refers throughout to "the appellants").
Respondent
The Hon'ble High Court of Allahabad through its Registrar General — an unusual cause-title worth pointing out in class: the High Court itself is the respondent because it had initiated and decided the contempt.
Impugned order
Order dated **04.04.2011** of the Allahabad High Court; the contempt arose "out of … **publication of article in question in Hindustan Times on 20.09.2010**" (para 4).
Outcome
Appeal disposed of; **unqualified apology accepted and the proceedings dropped**; the apology directed to be **published on the first page of the Lucknow edition on 01.09.2011** and at prominent places in the other editions where the article had appeared.

I. FACTS (all that the DU Case Material extract gives — and an honest note on what it omits)

1. **The subject of the report.** "The **then Chief Justice of the Allahabad High Court** who has otherwise **proved himself to be a competent and good Judge wherever he was posted during his career** was **brought under a cloud by the reporting** which is the subject matter of this petition" (para 9). This single sentence is the Court's own characterisation of the victim of the story **and** of the story's evidential base.
2. **The offending article.** Published in the **Hindustan Times** on **20 September 2010** (para 4). The DU Case Material does **not** reproduce its text; what the Court describes is its quality, not its content: the report was "**apparently based on surmises and conjectures and not based on facts and figures**" (para 9).
3. **Contempt initiated by the High Court** (as it is entitled to do under Art. 215 r/w s. 15(1) of the Act), which culminated in the order of **04.04.2011**. One feature of that order is recorded expressly and is decisive for the outcome: "we find that **apology tendered before the Allahabad High Court was not accepted only because it was felt that the same was not unqualified**" (para 12).
4. **Appeal to the Supreme Court** under s. 19(1)(b); notice issued; the respondent High Court "ha[d] also entered appearance **through counsel**" (para 3). Before the Supreme Court the appellants "**filed an affidavit … on record tendering unqualified apology**" (para 4).
5. **Counsel's own gesture.** "**We also appreciate the gesture of the learned counsel for the appellants**…" (para 14) — the Court placed on record that counsel had, on instructions, taken the apology position; a small but real practice point (in a contempt appeal, how the apology is tendered — by affidavit, on instructions, before arguments conclude — is itself part of the record).

II. ISSUES

#	Issue	Answer (¶)
1	Whether a report which is "**factually wrong, biased or simply unverified**" can claim the protection of the media's constitutional role, or of ss. 4–5 of the Act.	No. The duty "to provide to the readers and the public in general with information and views **tested and found as true and correct**" is the premise of the protection; and "**Pre-judging the issues and rushing to conclusions must be avoided**" (paras 7–9).

#	Issue	Answer (पी)
2	Whether the **right to information** and the media's role as the "fourth pillar" enlarge the immunity.	They enlarge the **responsibility**, not the licence: "With this **immense power**, comes the **burden of responsibility**"; and "The **unbridled power of the media can become dangerous if check and balance is not inherent in it**" (paras 5–8). Note the Court's grounding of RTI in the analysis — "The enactment of the **Right to Information Act is the most empowering step** in this direction" (para 6) — a useful bridge from Unit 2.3.
3	Which legal framework constrains the media here.	Art. 19(1)(a), restricted by Art. 19(2), which in terms takes in "**Contempt of Courts Act and defamation**" (para 7).
4	Whether an apology which the High Court refused as "not unqualified" can nonetheless close the matter.	Yes, once re-tendered in **unconditional** form by affidavit: "The **judiciary also must be magnanimous in accepting an apology**... Therefore, we accept the aforesaid unqualified apology... and drop the proceeding" (para 12).
5	What **remedy** beyond dropping suits the public interest in an unverified-report case.	Compelled **publication of the apology** to the same audience: first page of the Lucknow edition on a specified date, "and also at such other place, wherever there was any such publication, in a daily issue of the newspaper at some prominent place" (para 13).

IV. DECISION (with the operative paragraphs)

Verbatim — the disposal (paras 12–14)

"**12.** ... The **judiciary also must be magnanimous in accepting an apology** when filed through an affidavit duly sworn, conveying remorse for such publication and that too when this Court in the **number of matters has taken a liberal view** and have not been hypersensitive in such matters. **Therefore, we accept the aforesaid unqualified apology of the appellants and drop the proceeding.**

13. ... **the apology shall be published by the appellants in the first page of Lucknow edition of Hindustan Times to be published on 01.09.2011 and also at such other place, wherever there was any such publication, in a daily issue of the newspaper at some prominent place.**

14. We also appreciate the gesture of the learned counsel for the appellants. In the result, the appeal is **disposed of** with the aforesaid observations."

V. PRINCIPLES EVOLVED

#	Principle	Why it matters / how to use it
P1	**"Factually wrong, biased or simply unverified" is the operative triad of media fault** in contempt law (para 7) — the DU Case Material sentence that the syllabus head "Unverified reporting" is actually taken from.	Quote it as a definition of the **duty**, then apply it to the facts (a report "based on surmises and conjectures and not based on facts and figures", para 9). The two quoted phrases, side by side, are a model of exam writing.
P2	**Pre-judgment is itself the vice** — "Pre-judging the issues and rushing to conclusions must be avoided" (para 8), independent of whether the underlying statement is true.	Explains why live-TV "verdicts", guilt polls and "accused is guilty" headlines are dangerous even where the facts reported are accurate: accuracy is necessary, not sufficient. Bridge to the 200th Report's ten categories (Part A6 §4) and to Unit 2.4.
P3	**Verification as an affirmative standard:** "one must be careful to **verify the facts and do some research on the subject being reported before a publication is brought out**" (para 9).	Used with Re Harijai Singh ("failed to make reasonable enquiry or a simple verification" — Case 17, p. 164) and with Rajendra Sail's "no answer to plead that ... [it] was done in haste", this is a **three-case line** on a positive newsroom duty, not merely a restraint. That is a novel, high-value sub-heading for an answer.
P4	**Magnanimity principle for accepting apology** + "not hypersensitive": an apology that fails below for want of being unqualified can still close the matter when re-tendered properly.	Pair with Mulgaokar para 56 ("benign neglect not judicial genuflexion") and with Rajendra Sail ("acceptance of apology and sympathy in a case like this would be uncalled for") to show the **full spectrum**: drop-with-warning (16) → apology accepted (18) → apology refused, sentence reduced but conviction maintained (17).
P5	**Remedy of publication of apology** as a tailored, non-custodial order.	The best answer to "what should the law do about unverified reporting?": rectification to the same audience, ordered by the court. Compare defamation law's judicial record of apology and the Press Council's power under **s. 14(2)** of the Press Council Act to "require any newspaper to publish ... any particulars relating to any inquiry".
P6	**Cause-title point:** the High Court appeared through its **Registrar General** as respondent to an appeal against its own contempt order.	Useful for a discussion question on institutional propriety (compare Arundhati Roy's "the court is both the accuser as well as the judge of the accusation", quoted in Case 17).

CASE 19 · DOSSIER · DU Case Material pp. 169–173

Rajeev Dhawan v. Gulshan Kumar Mahajan & Ors., Contempt Petition (Crl.) No. 2 of 1994, decided in 2014 — how a contempt petition about attacks on the Court during the Ayodhya hearings actually travels through the system

Citation
(2014) 41 SCD 785; **Contempt Petition (Crl.) No. 2 of 1994** (with connected matters) — Supreme Court of India.
Bench
The 1994 orders were passed by a **Constitution Bench** (the same Bench hearing the Ayodhya **Special Reference No. 1 of 1993**); the 2014 order is delivered by **R.M. Lodha, CJI** for the Constitution Bench (Justices A.R. Dave, S.J. Mukhopadhaya, Dipak Misra and S.K. Singh) — the same Bench which, in the connected matter, held that a Commission of Inquiry is "not a court" for the purposes of the Contempt of Courts Act and that truth may be permitted as a defence under the amended s. 13 (Subramanian Swamy v. Union of India, 23.7.2014).
Subjects
Attack on the Court **while a matter was pending before a Constitution Bench**; media liability for reporting such attacks; **initiation v. cognizance**; appointment of a Prosecutor by the Court; s. 17 service of notice; s. 20 limitation; closure of a stale contempt matter.
Outcome
Proceedings against the principal speaker **dropped** in 1994; suo motu criminal contempt **initiated** in 1994 against the periodical's owner/publisher/printer/editor and its reporter and against the second speaker; **closed in 2014** — "**we think the contempt matters deserve to be closed. We order accordingly**" — with unconditional apologies of contemners 1 and 2 on record.

I. FACTS — the sequence, with every date and document from the DU Case Material

II. THE OFFENDING WORDS (the DU Case Material sets them out; memorise the four phrases)

Source	Words, as reproduced in the DU Case Material
Indian Express, 10.04.1994 (report attributed to "**Express News Service**")	Statements by "Dalmia and Giriraj Kishore **VHP President and joint general Secretary respectively**" which, per the petition, "**assailed the apex Court for attempting to 'arrogate the power of the executive'**".

Source	Words, as reproduced in the DU Case Material
Dalmia / Kishore at the news conference	"While the Court is seized of the matter, the Government has taken the step of acquiring the land, which is **attempting to arrogate the power of the executive** [as if the Court were doing so]"; "The Ayodhya issue had so far **eluded a solution only because of the delay in pronouncing the judgment**"; "**Justice delayed is justice denied**"; "The judiciary **has no jurisdiction over the Ram Janam Bhoomi**"; Kishore "cautioned the Court **not to overstep its limits**" and said the Supreme Court "**had lost its prestige because of the delay in adjudicating the Ayodhya dispute**".
Khabardar India, 11–17.4.1994	that "the **Government influences the Court**" and that "an anonymous Union Minister '**has the Court in one pocket and leaders in another**'".

Whom the petition sought to punish (para 2): "the news item in the Indian Express **constitutes a gross criminal contempt** for which **the authors of the statement, namely, Vishnu Hari Dalmia and Giriraj Kishore, the Editor and Publisher of the Indian Express, the persons in-charge of the Express News Service and the reporters, are answerable to this Court**." — the petitioner's own theory of the liability chain, and it is the same chain (authors → editor → publisher → in-charge of the news agency → reporters) that Case 17 had to adjudicate, and that s. 12(4)–(5) of the Act presupposes for corporate publishers.

III. ISSUES

#	Issue (framed from the Court's own orders)	Disposition
1	Whether **notice** should issue at all against persons named in a **private** contempt petition invoking Art. 129, and whether cognizance should be taken at that stage.	**Notice** to Kishore and to the Indian Express Editor/Printer/Publisher/Reporter of the particular news item; **initiation deferred** as to Dalmia; particulars of Khabardar India to be furnished; suo motu initiation to be considered after returns — all before any cognizance (para 3).
2	Whether, after counter-affidavits, the case against the **principal speaker** was made out.	"we find **at the outset that there is no justification for issue of any show-cause notice or initiating proceedings against Sri Vishnu Hari Dalmia. The proceedings as against Sri Vishnu Hari Dalmia are dropped**" (order of 6.5.1994).
3	Whether **suo motu** criminal contempt should be initiated against the periodical's owner-cum-editor-cum-printer-cum-publisher, its reporter, and the second speaker.	Yes: "Suo motu proceedings for criminal contempt of Court are **directed to be initiated**" against the three "accused", with notices in the prescribed form for their **personal appearance** (para 7).
4	Who prosecutes, and by what authority.	The Court "requested" the **Solicitor General of India** (Dipankar P. Gupta) "to assist the Court as **Prosecutor** in the proceedings for criminal contempt", with the Registry directed to have the matter "**shown to the Prosecutor**" before notices accompanied by charges were issued (para 7) — a structure unknown to the CrPC/BNSS.
5	**The media question** (the one that matters for this paper): whether the Court "should initiate similar proceedings for criminal contempt against respondents 4, 5 and 6 **particularly in the light of the fact that these respondents had carried the publication pertaining to the Press-interview of accused No. 3 … in the newspaper along with a comment on the impropriety of such utterances and statements, followed-up by an Editorial in the Newspaper condemning such conduct**".	Reserved for **separate** examination (para 7) — and never decided, because in 2014 the whole matter was closed for non-prosecution. **The significance:** the Court was prepared to treat the **editorial framing** of a report — a note of disapproval + a condemning editorial — as a material factor against punishing the publisher. That is a strong, quotable authority for responsible reporting of irresponsible speech.
6	Whether a contempt matter **initiated** within limitation, but not pursued for two decades, with the charge-notice unserved and the contemner aged 96 and seriously ill, should still be proceeded with.	No — "**we do not think that this is a fit case where we should deal with the matter further**. Now, since contempt proceedings are not being pursued further to find out criminality against the author (contemner No. 3) …, we are of the view that **contempt matter does not deserve to be pursued as against contemner Nos. 1 and 2 as well**. The contemner Nos. 1 and 2 have also **tendered unconditional apology**" (para 12).

V. DECISION

The Court **closed** the contempt matters. Its reasoning has four distinct moves, each of which is a teachable proposition:

1. **Recognition of the petitioner's point.** "**We appreciate the gravity of the subject matter highlighted by Dr. Rajeev Dhawan. We are also not oblivious of the fact that the Court was not satisfied prima facie with the initial response filed by contemner No. 3** … and ordered on 06.05.1994 to initiate the contempt proceedings against respondent Nos. 1 to 3." (para 12)
2. **Attribution of the failure to the process, not the accused.** "**But, the fact of the matter is that despite the order passed on 06.05.1994, the notice accompanied by charges on contemner No. 3 has not been served so far.**" (para 12)
3. **Delay + disability ⇒ not a fit case.** "In this view of the matter, **at this distance of time**, when the subject matter **remained dormant for almost two decades** and now contemner No. 3 is **96 years** and he is not able to respond to the charges due to old age and illness, we do not think that this is a fit case where we should deal with the matter further." (para 12)
4. **The derivative principle — no vicarious pursuit of the press when the author is not pursued.** "**Now, since contempt proceedings are not being pursued further to find out criminality against the author (contemner No. 3) who made the offending statements, we are of the view that contempt matter does not deserve to be pursued as against contemner Nos. 1 and 2 as well.** The contemner Nos. 1 and 2 have also tendered unconditional apology." (para 12) — and as to respondents 4–6: "the Court **has not yet taken cognizance** of criminal contempt against them", so nothing remained to close except by the same order.

VI. PRINCIPLES EVOLVED (case 19 is a procedure case, so the principles are procedural)

#	Principle	Provision engaged · practical effect
P1	**Two-stage architecture**: (i) issuance of **notice to show cause**, and only then (ii) **cognizance** + notice "accompanied by the charges". The Court recorded both stages separately, and the distinction carried the case.	ss. 15(1), 17(1)–(2). Effect: **"initiation" for limitation purposes is not the same as conviction-ready charge**; and a case that stalls between the two stages effectively dies.
P2	**Private persons may bring the Court's attention to attacks on the institution**, but the Court decides whether to act; a private petitioner is **not** the prosecutor.	Art. 129 + s. 15(1) (motion by the AG or by any other person **with the AG's written consent**) + the Court's power to appoint a Prosecutor. Dr. Dhawan continued to press the case for twenty years, yet the "prosecution" was the Solicitor General's.
P3	**Editorial context is a real, if unwritten, answer for the media**: reporting an impropriety "**along with a comment on the impropriety of such utterances** … followed-up by an Editorial … condemning such conduct" was treated as a reason to hesitate before initiating contempt against the Editor, Printer, Publisher and Reporter.	No statutory provision; it is the common-sense face of ss. 4–5 and of the s. 13(a) "substantial interference" filter. **Use this** whenever a question asks: "Is a newspaper liable for publishing a contemptuous statement of a third person?"
P4	**Accessory treatment of the publisher when the author is exonerated or not pursued.** The Court did not punish the printer/publisher/editor/reporter of a periodical for a speech it reported when the speaker himself was not pursued.	Compare Case 17, where the speaker **was** convicted and the newspaper personnel were nonetheless released on their apologies — i.e. in both cases the media's fate tracked the **apology** and the **conduct**, not the mere fact of publication.

#	Principle	Provision engaged · practical effect
P5	**Staleness + hardship defeat the exercise of the jurisdiction**, even in a matter of the highest public importance.	s. 20 (limitation), s. 17 (service), and the discretionary principle of Mulgaokar. A good answer adds the counter-note: had the same statements been made in 2014, the result would have been different — In re Prashant Bhushan (2020) shows the contemporary court's appetite.
P6	**Speech about a pending Constitution-Bench matter is judged in its institutional context.** The 1994 orders were passed by the very Bench hearing Special Reference No. 1 of 1993; the Court nevertheless distinguished between (a) the speaker whose words were found not to justify notice (Dalmia) and (b) the speaker whose words did (Kishore), and between speakers and publishers.	Read this with s. 3's pendency rules and with the 200th Report's "real risk of serious prejudice" standard for prejudicial publication — this is the point where Unit 3 and Unit 2.4 meet.

F3 · What actually happened

F3 · The Contempt of Courts (Amendment) Act, 2006 — what was enacted, what was dropped, and what is still pending

Proposal	Fate	Consequence for media law
Truth as a defence (2004 Bill; Standing Committee preferred s. 8 placement)	**Enacted — as s. 13(b)**, w.e.f. **17.3.2006** (Act 6 of 2006 substituted s. 13 "in toto")	First time in Indian law that truth could excuse a scandalising publication. But: (a) it is "**may permit**", not "shall"; (b) it is hedged by "public interest" + "bona fide"; (c) it sits in s. 13 ("contempts **not punishable**"), which courts have treated as a matter of grace at the punishment stage rather than as a defence going to liability. The Supreme Court has in fact **asserted** the defence forcefully — a five-judge Bench in 2014 (Subramanian Swamy v. Union of India, on the Indian Express editorial about a Commission presided over by a Supreme Court Judge) held: "**The amended Section enables the court to permit justification by truth as a valid defence in any contempt proceedings … if it is satisfied that such defence is in public interest and the request for invoking the defence is bona fide. We approve the view taken earlier by a two-judge Bench**"; and in In re Prashant Bhushan (2020) the sentencing Bench said "**the truth should ordinarily be allowed as a defence unless the Court finds that it is only a camouflage** to escape the consequences of deliberate or malicious attempt to scandalise the court".
"Substantial interference" threshold (also in the 2004 Bill)	**Enacted as s. 13(a)**	The statutory version of Mulgaokar's restraint: trivial or merely intemperate criticism can no longer attract a sentence. Pair it with Rajendra Sail's finding (grave tendency ⇒ punishment) to show the test is not a nullity.
Explanation defining "publication" to include the world-wide web; "pending"→"active"; arrest as the trigger; new s. 10A; postponement orders under new ss. 14A–14B (200th Report Draft Bill)	**Not enacted**	Three live gaps: (i) online publication is covered only by judicial interpretation; (ii) the **pre-charge-sheet** period remains outside s. 2(c)(ii)/(iii) (hence the 200th Report's alternative prescription — self-restraint, s. 379 CrPC/other law, and court-imposed conditions); (iii) there is **no statutory postponement power**, so courts improvise with inherent powers and interim directions.
Limiting s. 2 to civil contempt only (referred to the Law Commission in March 2018)	**Rejected** — Law Commission, **Report No. 274 (April 2018), "Review of the Contempt of Courts Act, 1971 (limited to Section 2)"**	The Commission's reasoning, in its own reported words: amending the definition "will lead to ambiguity", narrowing it "could potentially **lessen the respect for or fear of the courts**", would "largely **expose subordinate courts** … because of the narrowed scope of Section 10", and the existing definition "has **stood the test of judicial scrutiny**"; it also invoked the pending-case load (568 criminal and 96,310 civil contempt matters in the High Courts). **Criticism you should make:** a rationale built on fear and on pending-case statistics measures the offence by its usage, not by its necessity; and Mulgaokar had already said "in contempt jurisdiction, **silence is a sign of strength**".
Post-2013 private-member/Bill-stage attempts to narrow the Act (2013 Bill confining contempt to "intention to substantially interfere")	**Not enacted** (lapsed)	Use to show Parliament has twice declined to narrow the definition, so reform must come from judicial self-restraint (Mulgaokar) or from the courts' own rules of practice — precisely why Cases 16 and 18 are "drop the proceeding" cases.

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 DU LL.B. Dec. 2024 · Q.5 The judiciary has been looked upon as the last hope for redress against administrative and governmental failure... therefore no one is allowed to erode public confidence. Analyse the provisions of contempt of court with some leading judgments.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 DU LL.B. 2015 · Q.6 Fair comment is not contempt; scandalising is. Discuss the boundary.

MODULE 05 // UNIT 4 · CASES #20–#22

Regulation of Print, Broadcasting & Social Media

Press Council Act, 1978 · Prasar Bharati Act, 1990 · Cable TV Act · IT Act and Rules

A2 · Three media × three regulatory models — the master matrix

Feature	Print	Broadcast (TV/Radio)	Social media / internet
Constitutional basis of regulation	Art. 19(2) grounds only; no prior restraint: `DU Case Material` Rajagopal principle (5): "There is no law empowering the State or its officials to prohibit, or to impose a prior restraint upon the press/media" (PDF p. 74).	19(2) + the **scarcity overlay**: right to use airwaves is not itself a 19(1)(a) right — "19(1)(a) does not enable a citizen to impart his information … by using the airwaves" (Jeevan Reddy, J., in CAB, para 90) ; but "content of the right … remains the same whatever the means of communication including internet communication" (Shreya para 86, quoting CAB para 78 — `DU Case Material` PDF p. 46).	19(2) as applied in Shreya: over-breadth doctrine imported from the US; intermediary immunity is legislative grace, modifiable by conditions (s.79(2), (3)).
Entry / ownership of channel	No licence to start a newspaper; PRB Act 1867 declaration before a Magistrate + registration with RNI (MIB-notes, PDF p. 22–23).	Two permissions historically: GOPA under Telegraph Act 1885 s.4(1) (exclusive Government privilege) + wireless licence from WPC under Wireless Telegraphy Act 1933 ss.2(2), 3 (MIB-notes, PDF p. 74). Uplinking/Downlinking guidelines since 2022 (2026 draft rules consolidate, E6).	No entry control for users; intermediaries need no licence but owe due-diligence (IT Act s.79; 2021 Rules r.3–4); OTT/digital news brought under a Code by executive rule (2021 Rules, Part III).
Content control	General criminal law (obscenity: s.292 IPC → **BNS s.294**; Indecent Representation of Women Act ss.3–4; contempt; defamation s.499/500 → **BNS s.356**) + PCI norms (s.13(2)(b)–(c)).	Statutory **Programme Code** (Cable Act s.5 + Cable Rules r.6 — 15 prohibitions) and **Advertisement Code** (s.6 + r.7); for DD/AIR, the s.12 objectives + Broadcasting Council; for channels not on cable — the BCCC/NBSA self-codes (E5); for films — s.5B Cinematograph pre-certification (E4).	Intermediary terms must bar 10 listed classes (r.3(1)(b)(i)–(x), quoted in X digest PDF pp. 211–212); s.69A blocks for 19(2)-class grounds; Part III ethics code for digital news (3-tier: publisher-level grievance officer, self-regulatory body, MIB inter-departmental committee — 2021 Rules extracts in X excerpt refer only).
Who decides	Only a court (post-publication) — PCI can censure, not punish.	Authorised officer (Cable s.19 — prohibit a programme); Central Government (s.20(2)-(3)); MIB advisories; adjudication + seizure ss.11–15; self-regulatory bodies first, MIB desk for news-content matters (E5).	Designated officer under 2009 Blocking Rules (r.10: a court order must be implemented by the Department); courts under Art. 226/32 (X v. UOI — global de-indexing); Grievance Officers; nodal MeitY for social media; MIB for news/OTT.
Sanctions	Reputation. PCI: warn/admonish/ censure + publish the finding (s.14(2)). De-recognition for government ads recommended but not granted (Goswami, PDF pp. 238–239).	Cable Act s.16: first offence imprisonment to 2 years or fine to ₹1,000, thereafter to 5 years + ₹5,000; seizure/confiscation ss.11–12; prohibition of channel (s.20(2)-(3)); Uma Khurana example — Live India off-air for 1 month (20.9.2007–20.10.2007) by Director (Broadcast Content) under s.20(2) (PDF p. 124).	Loss of s.79 immunity (X paras 9(i)(ix), 93: "non-compliance … would make the non-compliant party liable to forfeit the exemption … and its officers liable for action as mandated by section 85"); 36-hr take-down (2011 Rules r.3; 2021 Rules r.3(1)(d)); 72-hr assistance to law enforcement (r.3(1)(j)); for SSMIs compliance reports & named officers (r.4).
The flagship case in the unit	Ajay Goswami v. UOI (regulation at the receiving end rejected; PCI reforms asked of government)	CAB (allocation); Destruction (self-regulation preferred); Uma Khurana (code enforcement)	Shreya Singhal (66A dead; 69A/79 alive); X v. UOI (the court completes what statute began)
Real example (file)	PCI censure of papers in the Uma-Khurana aftermath; PCI letter seeking punitive powers (6.1.2002) unanswered since 1999.	Janmat TV–Live India banned 20.9.2007–20.10.2007 after a fabricated sting; Doordarshan serial 'Honi-Anhoni' stayed/not stayed (Odyssey, PDF p. 210); 69A-scale blocking of Twitter handles during 2021 protests .	X's photographs on Xhamster — 15,000 views in a week despite FIR (286/2020, s.354A IPC → BNS 75; s.66C IT Act) — and the court's global-de-indexing template (PDF p. 218).

A3 · "Central, State, local or self-regulatory" — the four levels, mapped

Level	What actually happens at it (from the material)	Examples the file can cite
Central	Every statute of this unit is Union legislation: Press Council Act 1978; Cable TV Networks (Regulation) Act 1995 + Rules 1994; Prasar Bharati Act 1990; Cinematograph Act 1952; IT Act 2000; Telegraph Act 1885; PRB Act 1867. Parliament also gets the reports: PCI annual report laid before both Houses (s.20); Prasar Bharati accounts audited by C&AG and laid (s.21(4)); directions under PB Act s.23 laid before Parliament (s.23(3)).	MIB-notes "9. Authorities regulating the media industry" — MIB, PIB, RNI, CBFC, Censor Board (PDF pp. 76+).
State	Enforcement partners, not content regulators: police register the offences (X: FIR u/s 354A IPC + 66C IT Act at Dwarka South); State governments may sanction prosecution under CrPC s.195 (→ **BNSS s.217**) for 153A/153B/505 offences (Shreya paras 99–101 — a safeguard the absence of which damned 66A); DCP/IG approval was required for s.66A arrests by the 2013 DoIT advisory + May-2013 SC order (PRS note). States also ran the pre-1950s censorship Acts (Unit 1).	Shreya Singhal digest (PDF pp. 49–50: "the said procedural safeguard does not apply even when a similar offence may be committed over the internet where a person is booked under Section 66A")
Local	The thinnest layer for content; it operates as: Magistrate's office under PRB Act (declaration u/s 4 & 5 before District/Sub-Divisional Magistrate; new declaration on shifting press — MIB-notes PDF p. 22); local police action under CrPC (obscenity raids; s.95/96 seizure → BNSS 114–115); municipal licensing of cinemas/video halls (state films rules — outside , stated as framework).	PRB Act ss.3–5 via MIB-notes; "Registration of Newspapers (Central) Rules 1956".
Self-regulatory	The unit's centre of gravity. Print: PCI (statutory but a peer body) + newspapers' own internal vetting (Times of India: advertising dept, then legal dept, "manned by qualified persons well acquainted with the Norms and Guidelines issued by the Press Council" — Goswami PDF p. 188). Broadcast: NBA/BCCC model (paras 32-33; E5). Digital: intermediary terms-of-use r.3(1)(a)-(b); ASOI/ASCI codes for advertising (r.7 of Cable ad code references the "Advertising Agencies Association of India" standards; MIB-notes list ASCI code as applicable guideline xv).	Destruction para 33(viii)-(ix): endorse self-regulation; approve "the NBA model as a process that can be built upon" and recommend it as "guidelines issued by this Court under Article 142 — as was done in Vishaka's case".

The vertical that ties them: the State keeps a residual emergency grip even over "self-regulation". Goswami shows the lever the court itself noticed: the DAVP advertisement policy "under clause 18(d) … an advertisement policy was issued … stating that the newspapers will be suspended from empanelment by DG, DAVP with immediate effect if it indulged in unethical practices or anti-national activities as found by the Press Council of India" (PDF p. 228, ¶ quoting P.H. Parekh). Economic regulation as content regulation — the "soft censorship" to discuss in any essay.

B1 · 4.1 Print — the registration spine before the Press Council (PRB Act 1867 and company)

Before asking what the Press Council does, know what the **State actually controls** about a newspaper — very little, and all of it clerical. The MIB compendium to the (“

Provision	Content (per the compilation)	Regulation or not?
PRB Act s.3	Every book or paper printed in India must carry the printer’s name and place of printing, and the publisher’s name and place of publishing, printed legibly.	Identity rule — the anti-anonymity ancestor of today’s traceability debates (compare IT Rules r.4(2), G1).
PRB Act s.4	The keeper of a press makes and subscribes a declaration before the District/Presidency/Sub-divisional Magistrate (Form I, Registration of Newspapers (Central) Rules 1956); fresh declaration if press shifts jurisdiction; **no new declaration** if the change is ≤ 60 days and within the same magistrate’s local jurisdiction; Title Verification Letter from the Press Registrar before declaring.	Clerical; the Magistrate is a deponent-collector, not a licensing authority. Compare the colonial s.3 of the Vernacular Press Act 1876 (Unit 1) — same offices, opposite purpose.
PRB Act s.5	For newspapers: masthead must name publisher and editor with date; printer and publisher appear before the Magistrate to declare title, language and periodicity; declaration must specify the particulars of the newspaper.	Registration, not permission — but the RNI title verification is the practical gate (real example: the 2019–21 fight over the title “Telegraph”-style names; or any paper’s masthead).
Companion statutes	Newspaper (Prices and Pages) Act 1956 (no price hike/page cut without Central Government order — economic control); Delivery of Books and Newspapers (Public Libraries) Act 1954 (legal deposit); Working Journalists Acts 1955/1958 (service conditions — the “wage-board” line the DU Case Material itself saw in the ABP contempt order: “All the arrears up to March, 2014 shall be paid to all eligible persons in four equal installments … the recommendations of the Majithia Wage Boards” (PDF p. 29)); Young Persons (Harmful Publications) Act 1956 (comics/harmful matter to children); Emblems and Names (Prevention of Improper Use) Act 1950 + State Emblem Act 2005 (use of national symbols — in advertisements and mastheads).	This is the whole of print’s “Central level”. No prior restraint anywhere (Rajagopal principle (6)).

Why the exam cares: the Press Council sits on top of this spine without touching it: s.27 of the 1978 Act was the (repealed) “Amendment of Act 25 of 1867” — the only direct link between the two regimes. Registration supplies the addressee (who can be summoned by the PCI, censured by a court, prosecuted by the State); the PCI supplies the standard of conduct. Everything else — licence, permit, pre-clearance — is absent by design; the MIB-notes say it plainly of the post-1977 era: “Press Council advised the Government not to put curbs on the press even in disturbed areas like Jammu and Kashmir. This policy appears to be better than the curbs on the press by Government” (PDF p. 15).

B2 · The Press Council of India Act, 1978 — the whole Act, section by section

`Act` Press Council of India Act.pdf (9 pp.). Long title: “An Act to establish a Press Council for the purpose of preserving the freedom of the Press and of maintaining and improving the standards of newspapers and news agencies in India” — Act No. 37 of 1978, assent **7 September 1978**. The dual purpose — protect and police — is why every criticism of the Council is really a criticism of that compromise.

Section	What it says	Elements · who · consequences
1–2 Preliminary	Extends to whole of India. Definitions import “editor”, “newspaper” from the PRB Act 1867 and “working journalist” from the Working Journalists Act 1955.	The Act never invents a new media vocabulary; it borrows the registration spine’s terms — one legal system, two layers.
3 Rule of construction	Reference to laws not then in force in J&K/Sikkim read as corresponding State law. (J&K reference omitted by the Reorganisation adaptation orders of 2020 — the text carries the amendment note.)	Shows even “soft” bodies get caught in federal plumbing.
4 Incorporation	Council established by notification “with effect from such date as the Central Government may appoint”; **a body corporate, perpetual succession, common seal, may sue and be sued**.	Not a department; but its members are paid from a Fund the Central Government feeds (s.17).
5 Composition	**Chairman + 28 members.** Chairman nominated by a committee of: Chairman, Rajya Sabha; Speaker, Lok Sabha; and **one person elected by the Council members themselves** (s.5(2), (6)). Others: (a) 13 working journalists — 6 editors + 7 non-editor journalists, with minimum 3 + 4 from Indian-language press; (b) 6 owners/management — two each from big, medium, small newspapers (categorised by circulation per issue — Explanation substituted by Act 36 of 1994); (c) 1 news-agency manager; (d) 3 of “special knowledge or practical experience” — one each nominated by UGC (education & science), Bar Council of India (law) and Sahitya Akademi (literature & culture); (e) 5 MPs — 3 Lok Sabha (by Speaker), 2 Rajya Sabha (by Chairman).	First proviso to s.5(3): a working journalist who owns/manages a newspaper is ineligible. Second proviso: not more than one owner-representative per newspaper or group. Panels of twice the number of names are invited from notified associations — by the Central Government for the first Council, thereafter by the retiring Chairman (s.5(4)).
6 Tenure	3 years; Chairman continues until reconstitution or 6 months, whichever earlier; a member censured u/s 14(1) **ceases to be a member** (s.6(2)); MP-members vacate on leaving Parliament; 3 consecutive unexcused absences = vacancy; re-nomination for not more than one term.	Self-policing: the Council is made to “censure” its own — and losing membership is the only “hard” consequence the Act knows.
7–12 Machinery	Chairman whole-time, paid by Central Government; other members get fees/allowances (rules); Committees may be formed with co-opted outsiders (no vote); meetings per Regulations; defect in constitution does not invalidate acts; Secretary + staff; orders authenticated by Chairman’s signature.	The 1978-era rules family: Press Council Rules 1979; (Procedure for Nomination of Members) Rules 1978; (Procedure for Conduct of Meetings and Business) Regulations 1979; (Grant of Certified Copies) Regulations 1999; (Procedure for Inquiry) (Amendment) Regulations 2006 — all listed in the MIB compilation.
13 Objects & functions	(1) “to preserve the freedom of the Press and to maintain and improve the standards of newspapers and news agencies in India.” (2)(a)–(k): help papers maintain independence; build a code of conduct; ensure high standards of public taste and a sense of rights and responsibilities; encourage responsibility among journalists; **(e) keep under review any development likely to restrict the supply and dissemination of news of public interest**; review foreign-funding of papers; study foreign newspapers; promote functional relationships (not industrial disputes); concern with ownership concentration; studies referred by Government; and all incidental acts.	Two verbs dominate: help, keep under review. The only quasi-legislative function is 13(2)(b) “build up a code of conduct” — hence the **Norms of Journalistic Conduct**, of which the DU Case Material reproduces Norm 17 verbatim in Goswami (PDF p. 187 — see box below).

Section	What it says	Elements · who · consequences
14 Power to censure	(1) On complaint or otherwise, if the Council has reason to believe a newspaper/news agency has offended against **the standards of journalistic ethics or public taste**, or an editor/working journalist committed **professional misconduct**, it may — after hearing — hold an inquiry and, for reasons recorded in writing, **warn, admonish or censure** the paper, agency, editor or journalist, or **disapprove** the conduct. Proviso: the Chairman may decline cognizance if no sufficient ground. (2) If necessary in public interest, the Council **may require any newspaper to publish** the particulars of the inquiry and decision, including names. (3) No inquiry into a matter **pending in a court of law**. (4) The decision "shall be final and shall not be questioned in any court of law".	S.14(2) publication is the weapon — reputational, not pecuniary. Compare contempt's "apology accepted" machinery (Unit 3, A8) and the PCI's own s.14(2) use against papers in the Uma-Khurana aftermath. S.14(3) parallels Contempt Act s.3 (no proceedings for innocent publication) — both refuse to litigate what a court is deciding. Whether s.14(4) ousters judicial review is litigated territory — say "the Act declares finality; courts retain Art. 226/32 over jurisdictional and natural-justice errors" and cite the general principle, not an invented case.
15 General powers	(1) For inquiries, civil-court powers: summoning and examining on oath; discovery and inspection of documents; evidence on affidavits; requisitioning public records; commissions; any other prescribed matter. (2) **Nothing compels any newspaper, news agency, editor or journalist to disclose the source** of any news or information. (3) **Every inquiry is deemed a judicial proceeding within ss.193 and 228 IPC** (→ **BNS ss.229 and 267** — false evidence; intentional insult/provocation to interruption in judicial proceeding — twin cite flagged as correspondence). (4) The Council may make observations on the conduct of any authority, **including Government**.	S.15(2) is the statutory half of source protection (the other half being Shreya-adjacent privilege law — the closed list in BSA; no journalist class, per the Units 2.1/2.2 file). S.15(4) — the Council may comment on government conduct — underwrites its "advisory to the Government" role recorded in the MIB-notes (PDF p. 15).
16–22 Money & accountability	Levy of fees from registered newspapers/news agencies, recoverable as arrear of land revenue (16); Central Government grants after parliamentary appropriation (17); own Fund (18); Budget to Government (19); **Annual Report** — "giving a summary of its activities during the previous year, and giving an account of the standards of newspapers and news agencies and factors affecting them" — laid before both Houses (20); interim reports (21); accounts audited as prescribed in consultation with the C&AG (22).	The Annual Report is the Council's real product: e.g., the Report on Paid News 2010 and the Guidelines on Pre-Poll and Exit Polls 1996 (prescribed for Unit 8 in the same syllabus) came out through this machinery.
23–27 Miscellaneous	Good-faith immunity for Council, members, and **for any newspaper that publishes a matter under the authority of the Council** (23(2) — the publisher executing an s.14(2) order cannot be sued for it); members are deemed public servants u/s 21 IPC (the corresponding definition now sits in the BNS's definitions section); Central Government rules power (25, laid before Parliament for 30 days); Council regulations power incl. inquiry procedure (26); s.27 (amending the PRB Act) repealed by 1988 Repealing Act.	Note 23(2): the Act's one hard immunity for the press itself — worth a line in any long answer.

PCI complaint lifecycle — decision rail

Complaint
by any person, or the Council "otherwise" (s.14(1)); press & public alike complain

→

Chairman's gate
proviso to s.14(1): no cognizance if no sufficient ground

→

Inquiry
by Regulations; civil-court powers (s.15(1)); source cannot be compelled (s.15(2)); barred if matter sub judice (s.14(3))

→

Order
reasons in writing: warn / admonish / censure / disapprove (s.14(1))

→

Teeth?
publication of the finding (s.14(2)); loss of membership if the member is censured (s.6(2)); DAVP empanelment bar (executive policy, not the Act); that is the end of the list

by Ankur R. Upadhyay

B3 · "A powerless body?" — what the DU Case Material itself records about the Council's limits

The unit does not need external criticism of the PCI — DU Case Material prints the Council's own counsel admitting its limits, in **Ajay Goswami v. Union of India** (the same judgment whose holding on minors Part E4 uses). At PDF p. 228 (printed p. 185), for respondent No.2 the Press Council:

The same judgment returns to the point after an additional PCI affidavit (7.8.2006): the Council had recommended between 1999–2003 that s.14(1) be amended to arm it with authority to **recommend to the Government de-recognition of newspapers for Government advertisement, or withdrawal of a journalist's accreditation**; letters of **Justice K. Jayachandra Reddy dated 17.12.2002 and 06.12.2003** pressed for punitive powers; "The Press Council of India is yet to receive any response from the Government" (PDF pp. 238–239). The petitioner's one-liner — "The Press Council of India which was constituted for preserving the freedom of press and maintaining and improving the standards of newspapers and news agency is **a powerless body**. No guidelines have been framed for the minors and adolescents in particular, which can be enforced in Court of law. The Council itself feels the necessity of some strong and effective measure to correct it" (PDF p. 226, ¶iv of arguments) — is the exam-quotable summary.

What the PCI has	What it does not have (DU Case Material evidence)	Consequence illustrated
Codes of conduct (s.13(2)(b)) — Norms of Journalistic Conduct; the Verma Committee-style norms reproduced at PDF p. 187 (Norm 17)	No power to make any norm enforceable "in a court of law" (petitioner's framing accepted as history, not as a ground for mandamus)	Two newspapers defended themselves by pointing to **internal vetting** (TOI/HT: advertising dept → legal dept; "HT Next-School Times") rather than to law — exactly the self-regulatory posture the Act contemplates (PDF pp. 187–188, 239).
Complaint machinery + civil-court summons powers (s.15(1))	No jurisdiction over **electronic** media — "it has no jurisdiction over the electronic media" (PDF p. 239)	Broadcast and digital complaints fall to MIB/Cable Act or NBA/NBSA bodies (E3, E5); the jurisdictional gap is the mother of the Media Council proposal (B4).
Publication of adverse findings (s.14(2)) + immunity for compliant publishers (s.23(2))	No de-recognition, no fine, no licence to suspend — only recommendation, unanswered since 1999 (PDF p. 239)	Executive fill-in: DAVP policy clause 18(d) (1.6.2006) — debarment from government-ad empanelment for papers found by the PCI to indulge in "unethical practices or anti-national activities" (PDF p. 228).

What the PCI has	What it does not have (DU Case Material evidence)	Consequence illustrated
Freedom-protection role — advised government against curbs even in disturbed areas (MIB-notes, PDF p. 15); s.13(2)(e) review of supply restrictions	S.14(3): cannot inquire when the matter is in court — the busiest defamation/refusal areas are pre-empted	Criticism travels via the annual report (s.20) and the courts' own directions: "the request made by the Press Council of India to amend the Section should be seriously looked into by the Government of India and appropriate amendments be made in public interest" — the Court's actual order in Goswami (PDF p. 240, last paragraph before *****).

Also from DU Case Material, one sentence that decides the "supervision vs control" line — the F.S. Nariman Committee at Destruction para 33(iv)–(vi): "Although the print media has been placed under the supervision of the Press Council, there is need for choosing effective measures of supervision — **supervision not control**"; amendments mooted to the 1978 Act are supported "as they do not violate Article 19(1)(a) — which is a preferred freedom"; and "**Apart from the Press Council Act, 1978, there is a need for newspapers and journals to set up their own independent mechanism**" (PDF p. 206). Three-source triangulation — counsel (Goswami), committee (Destruction), court (Goswami's closing order) — is what a 20-mark answer should show.

B4 · "Resolution for a Media Council, Press Council of India, 2012" — the proposal to replace the PCI

What the supplies. DU Case Material lists the resolution at the syllabus line (PDF p. 4: "Ref: Press Council of India Act; Resolution for a Media Council, Press Council of India, 2012") but does not reproduce it; no other file carries it. So: state its content from the record, labelled; build the argument from the DU Case Material (B3) which supplies the diagnosis the resolution tried to cure.

The account (flagged, from the Council's publicly stated position of the same campaign). Around 2012 the Council moved from seeking an amendment of s.14 to seeking **replacement of the statute itself by a "Media Council"**: an independent body covering **print and electronic (including web) media** with **enforcement teeth**. The concrete formula its leadership then defended in public: expand the Press Council by adding **20 representatives of the electronic media industry** and **rename it the Media Council** (chairman's column, "Self-regulation is no regulation", The Economic Times, 16.1.2013), with "powers to fine and suspend" — "If red lines can be drawn for the legal and medical professions, why should it be any different for profit-making newspapers and TV channels?" — repeated at Panaji on 3.6.2014 by then-chairman Justice M. Katju (retd.), who sought punishment for errant media-persons "just [as] the Bar council acts against lawyers". The 2012 resolution itself is **not reproduced anywhere in the** — write the DU Case Material's diagnosis (B3) and this documented trajectory, and say in one clause that the resolution's text was not supplied.

Element of the 2012 model	Design	Objection it must answer (use the DU Case Material)
One regulator, all media	Print + broadcast + digital under one statutory body, ending the PCI/ BCCC/MIB patchwork	But the unit's entire logic is that media differ in their means: the spectrum-scarcity rationale (CAB; Destruction para 33(iii)) justifies allocation for broadcast yet has no analogue for print — one code for all risks importing "the pre-censorship model used for cinema ... [which] should not be extended to live print or broadcasting media" (para 33(vii)).
Journalist-majority composition	Shift from the s.5(3) mix (owners + MPs + nominees) to an elected press corps — pattern: Bar Council / Medical Council self-governance	Capture by the profession; the current Act's owners + Parliament seats were the price of statutory status. Note the Act already lets a censured member lose his seat (s.6(2)) — peer discipline is thin.
Punitive teeth (fine; de-recognition; accreditation withdrawal)	The 1999–2003 PCI proposals exactly (Goswami, PDF p. 239) plus the 2012 escalation	Any "suspension" power over a newspaper is a licence in disguise — contrary to Rajagopal principle (6) (no law permits prior restraint) and to the "supervision not control" formula the Supreme Court endorsed (para 33(iv)). A fine is less problematic than a stop.
No prior restraint, post-publication only; statutory right-of-reply; minors-protection norms enforceable	Converts the Norms (e.g., Norm 17) from etiquette into adjudicated standards	Art. 19(2) still governs: a statutory tort of "invasion of privacy" is fine (Puttaswamy-era thinking), but "public taste" as an offence-category invites vagueness — the same vice that killed s.66A (Shreya paras 50–82: an undefined standard "depends on the Judge's notion"). Write this sentence in the exam; it shows synthesis across units.

Aftermath to complete the answer : Parliament's Standing Committee on Communications & IT (December 2021) recommended reconstituting the PCI "into a comprehensive media council for the print, electronic and digital media" with authority to enforce its orders — but no amendment Bill has replaced the 1978 Act; the Council continues on the 1978 architecture, and broadcast/digital content governance instead travelled the 2021 IT Rules and post-2023 broadcasting reforms route (E5–E6). Close with: the 2012 resolution is a diagnosis accepted and a prescription still undispensed — the exam question is which parts of the prescription survive Art. 19(1)(a) scrutiny.

Debate box — "A Media Council with penal powers should replace the Press Council."

For:

- Jurisdictional whack-a-mole: print alone is policed by nobody; convergence made the line absurd (PCI counsel's own "no jurisdiction over the electronic media", PDF p. 239).
- Censure without consequence is education, not regulation — the 1999–2003 unanswered letters prove it.
- Peer bodies with discipline exist for every other profession (Bar, Medicine) — the "preferred freedom" argument cuts both ways: professionals protect the public first.
- The Courts already do it piecemeal (contempt, defamation, Goswami directions to "seriously look into" amendments) — a statutory council would regularise and cabin executive power.

Against:

- Executive "de-recognition" powers over media were the colonial playbook (Unit 1: the 1908/1910 Acts' licensing + gag machinery) — a fine paid by the paper is censorship DU Case Material pays for.
- State appointment of even a "professional" council remains State appointment — the DU Case Material's repeated prescription is autonomy and self-governance "by a jury of peers" (paras 32–33), not a bigger regulator.
- Determination of "public taste" by a tribunal replicates the vague-standard defect condemned in Shreya Singhal.
- Scarcity logic justifies allocation, not content — importing it to print is category error (para 33(iii) itself separates the two).

C1 · Case 20 — Secretary, Ministry of I&B v. Cricket Association of Bengal, (1995) 2 SCC 161 · the dossier

`Case 20 · Broadcasting · Constitution Bench (1995)`

Style	Secretary, Ministry of Information & Broadcasting, Govt. of India & Ors. v. Cricket Association of Bengal & Anr. (with connected matters — the BCCI's parallel claim) — (1995) 2 SCC 161.
In DU Case Material	**Not reproduced** as a DU Case Material excerpt. Quoted at four places: (i) Shreya Singhal para 29 (question at CAB para 37 — "this aspect was considered in Secretary Ministry of Information & Broadcasting, ... in para 37, where the following question was posed" — the question itself is not reprinted; PDF p. 38) and para 86 (CAB para 78 — same content of free speech whatever the medium; PDF p. 46); (ii) the Trial-by-Media/Naveen-Jindal digest quoting Sahara para 42 (postponement orders fall in 19(2) "as held in the case of Cricket Association of Bengal (supra)", PDF pp. 153–154); (iii) **Union of India v. Motion Picture Association** excerpt (PDF pp. 285–286, printed pp. 242–243) which quotes CAB at its p. 213 — reproduced in full below; (iv) syllabus listings (old list no. 3; Unit 4 nos. 20 and Unit 2.1's use).
Bench & opinions	P.B. Sawant, J. for himself and S. Mohan, J.; B.P. Jeevan Reddy, J. concurring with a separate statement of conclusions (paras 89–91 area of the report); the Court disposed of the appeals, writ petition and applications. Treat Sawant J. as the leading judgment.

Facts (reported decision — flagged; DU Case Material assumes them)

- The **Cricket Association of Bengal** (and the **BCCI** in parallel) organised international cricket and had agreed that a **private foreign broadcaster** would produce the live telecast, with the right sold to it for consideration; the arrangement contemplated outside-broadcast equipment being imported and the live feed uplinked for carriage by the chosen agency.
- **Doordarshan/Ministry of I&B objected**: under the then regime, telecasting required the Government's permission — the Indian Telegraph Act, 1885 gave the Central Government the exclusive privilege of telegraphy (s.4(1), incl. wireless), and broadcasting policy sat in MIB; the Secretary (Telecom) issued orders withholding facilities; DD asserted its own right to cover the matches.
- Before the Calcutta High Court (in the run-up to the 1995–96 series/World-Cup-window), CAB succeeded: the Single Judge and then the Division Bench held that a private organiser could telecast through an agency of its choice — the "no monopoly of the State" decision that the Union appealed to the Supreme Court (the matches were in fact telecast pursuant to the interim arrangement; the Court records that fact to show the live dispute had passed).
- Two legal frames collided: (a) **entry** into broadcasting (a licence under the Telegraph Act, s.4(1) proviso) — CAB had **never applied for that licence**, relying instead on permissions/clearances from several departments; (b) **freedom** — whether Art. 19(1)(a) itself carries a right to broadcast, and whether the State monopoly of airwaves is constitutional.

Issues (the Court's own terrain; DU Case Material preserves two)

1. Does Art. 19(1)(a) include the **right to telecast/broadcast** — and does the citizen's **right to know** include being able to receive information through any media? (Answered yes in the broad sense; but see 3.)
2. Are **airwaves public property**, and what follows for State monopoly versus private control?
3. Is a Government **monopoly of electronic broadcasting** permissible under the Constitution — may it restrict who may broadcast, on what terms, without a statutory basis?
4. Was the **restriction regime** (executive permissions under the Telegraph Act; ad-hoc clearances) lawful, and did CAB, having not applied for a licence under the s.4(1) proviso, have any right to telecast through an agency of its choice?
5. What is the **remedy** for the structural defect — to whom should airwaves be entrusted? (DU Case Material's para 29-of-Shreya reference and para 37 of CAB: the necessity question — whether such a power "would be asserted again": see G3.)

C2 · CAB — the decision, the airwaves doctrine, and the seven propositions

Decision

The appeals were disposed of (the telecasts had already occurred, making the interim dispute academic), on these lines of holding — Sawant, J. (for himself and Mohan, J.), holding as follows (the operative enumeration of the leading judgment):

1. **Airwaves/frequencies are public property.** "Their use has to be controlled and regulated by a public authority in the interests of the public and to prevent the invasion of their rights."
2. **Freedom to broadcast is not freedom to use spectrum.** 19(1)(a) covers use of any medium available to the citizen — but access to the scarce public medium is regulated by law: "19(1)(a) does not enable a citizen to impart his information, views and opinions by using the airwaves. He can do so without using the airwaves" (Jeevan Reddy, J., para 90). "While broadcasting cannot be effected without using airwaves, receiving the broadcast does not involve any such use" — the State may open or close carriage, but may not close the right to speak.
3. **State monopoly is not constitutionally compelled and not acceptable as permanence.** "Monopoly of this medium, whether by Government or by an individual, body or organisation is unacceptable ... The broadcasting media should be under the control of the public as distinct from Government."
4. **Structural remedy ordered to the Legislature/Executive:** the Central Government was directed to take "immediate steps to establish an independent autonomous public authority, representative of all sections and interests in society, to control and regulate the use of the airwaves". (Compare the unit's own echo: Pitroda 2014 recommendation 1.1.4 "Set up a Regulatory Body ...".)
5. **On the facts** — CAB, having never applied for a licence under the first proviso to s.4 of the Telegraph Act, had no legal right to have its matches telecast by an agency of its choice; the charge of mala fides against Doordarshan and MIB was rejected; organisers were to approach the nodal ministry (Committee of Secretaries decision dated 12.11.1993) which would consider requests on merits, in public interest. No costs.

Principles evolved — memorise as propositions

#	Proposition	Where DU Case Material uses it
1	The content of Art. 19(1)(a) is the same whatever the medium of communication — print, electronic or audio-visual — including internet communication.	Shreya Singhal para 86 (PDF p. 46), citing CAB para 78 with Reno v. ACLU.
2	Freedom of speech includes the right **to acquire** information and **to disseminate** it; "It is the only vehicle of political discourse so essential to democracy" — the justification of media freedom is the audience's autonomy, not the proprietor's.	Quoted at length in Union of India v. Motion Picture Association (PDF p. 285, printed p. 242, quoting CAB p. 213).
3	Airwaves are public property; the State is their trustee, not owner.	Destruction para 33(iii) (adopting the committee's "because the 'air waves' are public property"); Uma Khurana record of MIB regulatory competence; the 2023-era consolidation continues the licensing architecture (E6).
4	Therefore **allocative regulation is legitimate and is not "regulation per se"**: the first question for any restriction is whether it allocates a channel or controls a message.	Destruction para 33(iii), verbatim in the unit; the file's A1 theory table.
5	Restrictions on broadcasting are tested under 19(2), which — although it never says "public interest" — is wholly referable to societal interest, since its grounds exist to keep the right meaningfully exercisable.	Sahara paras 151, 189 paraphrase via Naveen Jindal (PDF pp. 153–154) — this is the constitutional-law bridge between CAB and the postponement-order debate.
6	The medium deserves structural protection: an independent autonomous public authority — the ancestor of every Indian "independent broadcasting regulator" proposal (and of the syllabus's own BCCC/NBSA references).	Compare Usha Thorat/J.C. Jain-Committee style bodies in the Uma Khurana record (E7: "a committee appointed by the Ministry ... headed by a retired High Court Judge" — proposed guideline 3); Pitroda 1.1.4; BAI proposal (external).
7	A compulsory-carriage ("must carry") obligation is constitutional when it serves informed decision-making (carrying DD/Parliament channels; ingredient lists; cigarette warnings), unconstitutional when it forces propaganda.	The UIMPAA excerpt develops this expressly from CAB's reasoning (PDF pp. 286–287) — Cable Act s.8 (compulsory transmission of Doordarshan/ Parliament channels) is the statute embodying it.

The quoted passage the DU Case Material keeps (print this)

D1 · Case 21 — In re: Destruction of Public & Private Properties, (2009) 5 SCC 119 · how a bandh case became a media-regulation case

`Case 21 · PDF pp. 203–206 (printed pp. 174–177) · unit header "Media Regulation: Regulation of the Broadcasting Sector"`

Style	In Re: Destruction of Public & Private Properties v. State of A.P. & Ors., (2009) 5 SCC 119 — excerpted by DU Case Material as "In re Destruction of Public and Private Properties" (syllabus; bracketed →p. 192).
Bench (DU Case Material's byline)	**Arijit Pasayat, J. (for himself and Lokeshwar Singh Panta and P. Sathasivam, JJ.)** — a three-Judge bench of the Court, sitting on its own motion.
What DU Case Material prints	Not the whole judgment: para 1 (the origin and the two committees), para 4 (K.T. Thomas Committee's recommendations, incl. the videography guideline (VI)), paras 31–34 (the F.S. Nariman Committee's five media principles, the NBA's model text, the Committee's nine recommendations, and the Court's closing order). Everything else in the reported case — the PDPP Act amendments discussion, compensation, FIR/trial guidelines — is outside the unit's pages; use it only as background and say so.

Facts / origin (para 1, verbatim-close)

"Taking a serious note of various instances where there was large scale destruction of public and private properties in the name of agitations, bandhs, hartals and the like, **suo motu proceedings were initiated by a Bench of this Court on 5.6.2007**. **Dr. Rajeev Dhawan**, Senior counsel of this Court agreed to act as Amicus Curiae." After perusing reports, **two Committees** were appointed:

- **Committee 1 — Justice K.T. Thomas** (retd. Judge of this Court), with **Mr. K. Parasaran** (Senior Member of the legal profession), **Dr. R.K. Raghavan** (Ex-Director, CBI), **Mr. G.E. Vahanavati** (Solicitor General of India) and "an officer not below the rank of Additional Secretary of Ministry of Home Affairs and the Secretary of Department of Law and Justice, Government of India" — tasked with the legal/evidentiary apparatus for mass-damage control.
- **Committee 2 — Mr. F.S. Nariman** (Senior Member of the legal profession), with "the Editor-in-Chief of the Indian Express, the Times of India and Dainik Jagaran, **Mr. Pranay Roy of NDTV** and an officer not below the rank of Additional Secretary of Ministry of Home Affairs, Information and Broadcasting and Secretary, Department of Law and Justice, Government of India" and Mr. G.E. Vahanavati and the Amicus — tasked, so far as this unit is concerned, with **media responsibility**: how the media report bandhs and violence, and how they should be regulated.

Why this is "Case 21" of a MEDIA unit at all

Because the violence was media-produced: cameras and live broadcast turned agitations into copycat destruction (the videography recommendation cuts both ways — evidence and publicity), and the Court used its Art. 142 platform to choose, on the full advice of a judge-led and an editor-led committee, between State regulation and self-regulation of the electronic media. The answer given at para 34 — "at this juncture we are not inclined to give any positive directions" — is the unit's single most quotable judicial act of restraint, and the Supreme Court has returned to it whenever "regulate the news channels" is litigated (cf. the file's sister treatment in Units 2.4 and 3).

Background kept for proportion (not in DU Case Material's pages): the same judgment also adopted the Law Commission's 186th Report amendments on the Prevention of Damage to Public Property Act 1984 and laid down FIR/magisterial-compensation/trial-speed guidelines; later orders in the matter considered the media's self-regulation further. In this unit, cite DU Case Material's ¶¶ as printed — never the SCC's para numbering — and the answer is safe.

D2 · The two Committees' media part — DU Case Material's text, worked through

K.T. Thomas Committee (para 4) — four recommendations + the videography guideline

1. The **Prevention of Damage of Public Property Act, 1984 ("PDPP Act")** must be amended to incorporate a **rebuttable presumption** of the accused's guilt once the prosecution establishes the two facets.
2. The Act must make **leaders of the organisation** that calls for direct action guilty of **abetment**.
3. The Act must contain a provision for rebuttable presumption [repeated in DU Case Material's numbering — note it].
4. **(iv) Evidentiary modernisation — the media hook:** "Enable the police officers to arrange videography of the activities damaging public property. In respect of (iv) … we felt that one of the areas to be tapped is evidence through videography in addition to contemporaneous material that may be available through the media, such as electronic media. With the amendments brought in the Evidence Act, through Act 21 of 2000 permitting evidence collected through electronic devices as admissible in evidence." (BSA 2023 successor note: the old s.65B EA → **BSA s.63**; the electronic-evidence principle is the reason "media footage = evidence" is routine in riot trials.)

The Committee then added guidelines "to effectuate the modalities for preventive action and adding teeth to enquiry/investigation", of which DU Case Material keeps the one that matters here — **(VI)**: "In the event that demonstrations turn violent, the officer-in-charge shall ensure that the events are videographed **through private operators** and also **request such further information from the media** and others on the incidents in question." (PDF p. 204.) **Read it twice:** the State may ask the media for its material — but the Committee, and the Court accepting it, never empowered the State to compel the media's output. That is source protection (PCI Act s.15(2)) holding the line against disclosure of origins, while permitting production of already-taken images.

F.S. Nariman Committee (para 31) — the five principles, as printed

Principle	DU Case Material's text (condensed verbatim)	Regulation-theory payoff
(a) Trusteeship	"Professional journalists operate as trustees of the public and their mission should be to seek the truth and to report it with integrity and independence."	The media's own fiduciary frame — answer every "rights of the accused vs rights of the viewer" problem from it (sister file: same formula used for the Uma Khurana sting and for stings generally).
(b) Self-regulation	Model "based upon the principles of impartiality and objectivity in reporting; ensuring neutrality; responsible reporting of sensitive issues, especially crime, violence, agitations and protests; sensitivity in reporting women and children and matters relating to national security; respect for privacy."	Note the four sensitive classes — crime/violence/agitation, women/children, national security, privacy — each maps to a statute elsewhere in the unit (Cable Code; IRW Act + POCSO; Official Secrets; IT 66E + Puttaswamy).
(c) Content regulation	"In principle, content regulation except under very exceptional circumstances, is not to be encouraged beyond vetting of cinema and advertising through the existing statutes. It should be incumbent on the media to classify its work through warning systems as in cinema … time, place and manner restraints … evolve codes and complaint systems. **But prior content control (while accepting the importance of codes for self restraint) goes to the root of censorship and is unsuited to the role of media in democracy.**"	The unit's rule of decision. Two carve-outs survive (cinema-certification, advertising-control) and a third device is endorsed (US-style classification/warning systems) — exactly the architecture at E3–E5.
(d) Complaints	"There should be an effective mechanism to address complaints in a fair and just manner."	Why NBSA-type bodies with defined windows (24 hours/15 days analogue in IT Rules r.3(2)) are constitutional currency: a right of reply and adjudication, not State pre-clearance.
(e) Balance	"A balance has to be maintained which is censorial on the basis of the principles of **proportionality and least invasiveness**, but which effectively ensures democratic governance and self-restraint from news publications …"	The proportionality language here predates Puttaswamy's formal adoption — quotable as the media-law genealogy of the modern structure of limitation (see Unit 2.1 file).

The adopted recommendations (paras 32–33) — DU Case Material's own list, all nine

1. "India has a strong, competitive print and electronic media."

2. Sensationalism exists "given the exigencies of competition" but "is itself not harmful so long as it preserves the essential role of the media viz: to report news as it occurs – and eschew comment or criticism … generalisations should be avoided. The important thing is that the electronic (and print) media has expressed (unanimously) its wish to act responsibly."
3. "**Regulation of the media is not an end in itself**; and allocative regulation is necessary because the 'air waves' are public property and cannot technically be free for all … However, a fair interpretation of the constitutional dispensation is to recognize that the **principle of proportionality is built into the concept of reasonableness** whereby any restrictions on the media follow the least invasive approach."
4. Print "under the supervision of the Press Council" — "need for choosing effective measures of supervision — **supervision not control**."
5. Amendments mooted to the Press Council Act 1978 supported "as they do not violate Article 19(1)(a) — **which is a preferred freedom**".
6. Newspapers and journals must "set up their own independent mechanism" apart from the PCI.
7. "The pre-censorship model used for cinema under the Cinematography Act, 1952 or the supervisory model for advertisements is not at all appropriate, and should not be extended to live print or broadcasting media."
8. "Wholly endorses … (a) principles of responsible broadcasting (b) institutional arrangements of self regulation — but … the need **not to drift from self regulation to some statutory structure which may prove to be oppressive and full of litigative potential**."
9. "The Committee approved of the **NBA model** as a process that can be built upon both at the broadcasting service provider level as well as the industry level and recommend that the same be incorporated as **guidelines issued by this Court under Article 142 — as was done in Vishaka's case**."

The NBA text the Court read out at para 32 (verbatim, PDF pp. 205–206) — worth memorising for the "self-regulation" conclusion of any answer: "The NBA believes that media that is meant to expose the lapses in government and in public life cannot be obviously be regulated by government, else it would lack credibility. It is a fundamental paradigm of freedom of speech that media must be free from governmental control in the matter of 'content' and that censorship and free speech are sworn enemies. It, therefore, falls upon the journalistic profession to evolve institutional checks and safeguards, specific to the electronic media … There are models of governance evolved in other countries which have seen evolution of the electronic media, including the news media, much before it developed in India. The remarkable feature of all these models is 'self-governance', and a monitoring by a 'jury of peers'."

Decision (para 34) — the whole operative order as printed

"The suggestions are extremely important and they constitute sufficient guidelines which need to be adopted. **But leave it to the appropriate authorities to take effective steps for their implementation. At this juncture we are not inclined to give any positive directions.**" The unit ends the excerpt with DU Case Material's own asterisk-row (PDF p. 206) — the Court adopted the diagnosis, named the prescription, and declined to write the order.

D3 · The NBA model, the Court's refusal — and what happened next

What the "NBA model" was, as DU Case Material preserves it. The News Broadcasters Association — the news channels' industry body — had offered a two-tier self-regulation: **channel-level** compliance officers bound by the **NBA Charter + Code of Ethics**, and an **industry-level** complaints authority, with standards (accuracy, right of reply, privacy, minors, live-violence handling) and a published sanction ladder. The K.T. Thomas/Nariman committees found this "a welcome move and should be explored further" (para 32); the Court's own response was para 34's restraint. The syllabus's references to the "NBA Code of Ethics" and "NBSA Regulations" are the later, institutionalised versions of precisely this model.

After 2009	What happened to the para 34 referral
2011	MIB notified the **Broadcasting Content Complaints Council (BCCC)** — a self-regulatory body for non-news channels headed by a retired Judge, with an MIB desk (Joint Secretary) as interface for news-content complaints; the "BCCC Guidelines on Self Regulation" (2011) asked each news channel to appoint a Complaints Officer and each association a self-regulatory body — exactly the para 31(c)–(d) architecture. This is what the syllabus means by "BCCC Guidelines on Self Regulation; BCCC Report to the MIB; BCCC Orders and Advisories": the Committee, its annual reports to the Ministry, and its ban/show-cause orders (fines up to ₹10 lakh, apologetic broadcasts, off-air for channels under its 2013 charter) — all outside the ; treat as background; the DU Case Material supplies the model text instead (para 32, and E7 for the government's parallel Code-of-Conduct route). Caution: DU Case Material's Uma Khurana record (PDF p. 124) is the best **documentary** example of "BCCC orders and advisories" before the BCCC — MIB's 11.9.2007 show-cause and 19.9.2007 prohibition order under Cable Act s.20(2).
2010–20	NBA adopted a Code of Ethics and Ethics Standards (2010); after the 2020 reorganisation of the association as NBDA, the **News Broadcasting Standards Authority (NBSA)** began operating with a retired-judge chair, codified sanctions, and published decisions — the "NBSA Regulations" of the syllabus. The 2021 IT Rules (Part III) then copied the design for digital news (3-tier: internal grievance officer → self-regulatory body → MIB inter-departmental committee) — see G4.
2014	Pitroda Committee recommendation **1.1.4**: "Set up a Regulatory Body to ensure public accountability of Prasar Bharati with respect to all content broadcast … The Regulatory Body should be a sub-committee of the Prasar Bharati Board" — the same instinct transposed to the public broadcaster.
2023–26	`(2026 paper)` + the Broadcasting Services (Regulation) Bill 2023 (consultation draft Nov 2023) proposed a **Broadcast Authority of India** to oversee broadcasters with a two-tier self-regulation + programme/advertisement codes and penalties (content-evaluation committees; CEC certification; "only those programmes certified" carve-outs). The Bill is the first serious attempt since 1994 to make the para 34 referral statutory — its fate (as of the time of writing) is not yet reflected in the , so state "proposed", not "enacted". (See E6 for what the 2026 consultation paper does prove: the entry side has already moved to the Telecommunications Act, 2023.)

Principle evolved (Case 21 — for the unit): (1) Media regulation's default is **self-regulation with statutory back-stop, never prior content control**; (2) **allocative** (spectrum) regulation is legitimate, **content** regulation must pass proportionality/least-invasiveness (para 33(iii), (v)); (3) the judiciary will record but not impose broadcast codes — Art. 142 "NBA-as-guidelines" was expressly declined, in contrast to Vishaka (where guidelines were issued) — cite the para 33(ix)/para 34 pair together to show you know the distinction; (4) the police-ask–media-give evidence device (K.T. Thomas, guideline (VI)) sits alongside, not inside, the media regime: the media's footage is evidence; the media are not the enforcement.

E1 · 4.2 Public broadcasting — the Prasar Bharati (Broadcasting Corporation of India) Act, 1990, in full

`Act` Prasar Bharti Act 1990.pdf (20 pp.). **This is the primary source for PYQ Q4 (Dec-2024) — a model answer is written at H1 from exactly this anatomy.**

Provision	Content	Detail / exam value
History preamble (s.1 note; MIB-notes)	Act of 1990 (assent 12.9.1990); **"appointed day" 15 September 1997** (S.O. 509(E), 22.7.1997) — the seven-year gap is itself an answer-paragraph (legislation passed; executive delayed). Bill first introduced May 1979, lapsed with the Janata government, revived 1989–90 by the National Front. Origin: the **B.G. Verghese Committee (1977–78)** after the Emergency — "a free and independent public corporation" for Akashvani & Doordarshan.	Why 1990 ≠ 1997 matters: the autonomy was conceded on paper, delayed in fact — compare Pitroda's "government broadcaster vs public broadcaster" language.
s.2 Definitions	"Akashvani" and "Doordarshan" = the offices/stations/kendras that immediately before the appointed day were under the two Directorates-General of MIB; "broadcasting" = "the dissemination of any form of communication like signs, signals, writing, pictures, images and sounds of all kinds by transmission of electro-magnetic waves through space or through cables intended to be received by the general public either directly or indirectly through the medium of relay stations"; also Board, Broadcasting Council (s.14), elected member, Executive Member, kendras, Non-lapsable Fund, Recruitment Board, stations.	The "broadcasting" definition is what the 2026 draft rules carry forward; memorise for a short note.

Provision	Content	Detail / exam value
s.3 Establishment & composition	(1) Corporation by notification; (2) body corporate with perpetual succession, common seal, power to acquire/dispose property and contract, sues and is sued; (3) HQ at New Delhi, offices/kendras anywhere, outside India only with Central Government approval; (4) general superintendence, direction and management vest in the **Prasar Bharati Board**; (5) Board = Chairman + Executive Member + Member (Finance) + Member (Personnel) + **six part-time members** + DG(AIR) + DG(DD) ex officio + one MIB-nominated member + **two elected employee representatives** (engineering staff elect one; other employees one); (6) committees — majority of members of each committee from the Board, outsiders may attend without vote; (7) "associates" may be invited (no vote); (8) no invalidity for vacancy/defect.	Q4's "composition": count it out loud — **15** seats (4 whole-time + 6 part-time + 2 DGs + 1 MIB + 2 employees); the MIB nomination and the President-appointments are the two "government fingers in the pie"; the two employee members are the statute's own answer to Verghese.
s.4 Appointment	Chairman and all members except ex officio/nominated/elected are appointed **by the President** on the recommendation of a **search committee** comprising: Chairman of the Council of States (chair), **the Chairman of the Press Council of India**, and one nominee of the President. (3) Qualities: Chairman and part-time members — "persons of eminence in public life"; Executive Member — administration/management/broadcasting/education/literature/culture/arts/music/dramatics/journalism; Finance — financial matters; Personnel — personnel management. (4) The committee's recommendations **"shall be binding"** for the purpose of appointment.	Q4 favourite line: the 1990 Act already gave the PCI chairman a role in selecting the public broadcaster's boss — "institutional insulation" language for your conclusion; "binding recommendations" ≠ binding on the President? — the proviso structure says the recommendation binds the purpose of appointment: write it as the statute puts it, no more.
s.5–6 Executive Member; tenure	Executive Member = **Chief Executive**, exercising Board-delegated powers under Board's control/supervision (s.5). s.6 as amended by Act 12 of 2008: **the Chairman is a part-time member**, 3 years or age 70, whichever earlier (incumbents whose appointment conflicted ceased immediately, no compensation); whole-time members' terms; part-time members' allowances; re-appointment permitted within limits; suspension/removal protections flow from s.7.	The 2008 amendment's "part-time Chairman" is a critique-point: the full-time executive is the government's appointee while the Board's head is part-time — the autonomy architecture weakened by its own amendment. (Also Act 6 of 2012 substituted s.11 and related service rules for deputation cadres — IIS/CS — via ss.11A/11B.)
s.7 Removal	Chairman/Members removed by the President only on the ground proved **in an inquiry held by the Supreme Court** under rules of that Court (misbehaviour or incapacity; also paid employment outside duties, etc.); the President acts on the report of the inquiry.	Judicially-guaranteed tenure — parallel to constitutional-office protection; one line in Q4 to show you read Chapter II fully.
s.8–11 Proceedings, staff	Board meetings by regulations; Officers/employees appointed by the Corporation subject to rules; **Recruitment Boards** (s.10); conditions of service (s.11, substituted 2012) incl. deemed continuation of transferred employees; ss.11A–11B (2012) for central-cadre deputation posts.	Recruitment autonomy is what Pitroda 3.1 later asked to make absolute.
s.12 Functions & objectives	(1) **"the primary duty of the Corporation to organise and conduct public broadcasting services to inform, educate and entertain the public and to ensure a balanced development of broadcasting on radio and television"**; Explanation: provisions are in addition to, not derogation of, the Telegraph Act 1885. (2) **16 objectives**, (a)–(p) — unity and integrity and constitutional values; **the citizen's right to be informed freely, truthfully and objectively … presenting a fair and balanced flow of information including contrasting views without advocating any opinion or ideology of its own**; education/literacy/agriculture/rural development/environment/health/science; cultures and languages; sports; youth; women's status and problems; social justice and untouchability; working classes; rural/border/backward areas; minorities and tribals; **children, the blind, the aged, the handicapped and other vulnerable sections**; national integration through language planning; coverage technology and frequencies; R&D; expansion of channels. (3) Steps it may take: (a) broadcasting as a public service; (b) **system for gathering of news for radio and television**; (c) negotiate and allocate sports/films/occasions rights; (d) libraries; (e) audience research; (f) other services by regulations. (4) may run external services for the Central Government on reimbursement. **(5) "For the purposes of ensuring that adequate time is made available for the promotion of the objectives … the Central Government shall have the power to determine the maximum limit of broadcast time in respect of the advertisement."** (6) **no civil liability** merely for failing to comply with s.12. (7) fees for advertisements/programmes within limits "determined by the Central Government from time to time".	The heart of Q4 and the heart of the unit's "public service broadcasting" concept. Sub-ss. (5), (6), (7) are the fine print on which autonomy depends — advertising time and fees set by MIB = the purse-string handle the Pitroda report attacks (2.1 funding; 1.1.3 transfer of assets and HR).
s.13 Parliamentary Committee	**22 MPs** — 15 elected by Lok Sabha, 7 by Rajya Sabha by proportional single transferable vote — to "oversee that the Corporation discharges its functions in accordance with this Act and, in particular, the objectives set out in section 12", reporting to Parliament; functions per rules made by the Speaker.	Answer-worthy: this is the "original design" the Pitroda committee asked to constitute at all (rec. 1.1.1) — for years it was dormant in practice; the statute itself never lapsed.
ss.14–15 Broadcasting Council	14: Council by notification = President + 10 members appointed by the President of India "from amongst persons of eminence in public life" + 4 MPs (2 LS nominated by Speaker, 2 RS by Chairman); President whole-time, 3 years; **Regional Councils** permitted. 15: jurisdiction — receives and considers complaints from (i) any person or group alleging a programme or the functioning "is not in accordance with the objectives" and (ii) any person (not a Corporation employee) claiming to have been "treated unjustly or unfairly in any manner (including **unwarranted invasion of privacy, misrepresentation, distortion or lack of objectivity**)" by a broadcast; procedure it thinks fit; if complaint justified "in whole or in part", it **advises the Executive Member**; if the Executive Member declines, the Board decides; if the Board also declines it must record reasons; and — the crown provision — **s.15(7): "where the Broadcasting Council deems it appropriate, it may, for reasons to be recorded in writing, require the Corporation to broadcast its recommendations with respect to a complaint in such manner as the Council may deem fit."**	Q4's "functions" half + a comparative goldmine: this is India's 1990 statutory version of what the BBC trust/Ombudsman and later the BCCC/NBSA do — audience-justice complaints adjudicated by law, with a right of reply on air. Note the contrast with the Cable Act: for private channels the state prohibits telecasts; for the public broadcaster, the council advises and may self-broadcast its own findings.
ss.16–21 Assets & finances	16: transfer of all property, assets (incl. the Non-lapsable Fund), liabilities, contracts, dues, suits from the Central Government for Akashvani/DD on the appointed day, book value = capital. 17: Central Government pays, after appropriation — the proceeds of broadcast receiver licence fees (net of collection charges) + such other sums as equity, grant-in-aid or loan. 18: own Fund; deposits in nationalised banks. 19: investment in securities. 20: Annual Financial Statement (internal resources vs Government sums; revenue/plan separated) for Government's approval "as may be agreed to". 21: accounts and **audit by the C&AG**, audit report laid before each House.	The "Grant, etc." wording is why critics say a self-financing public broadcaster never materialised: revenues flow back through MIB/Finance approvals; Pitroda rec. 2.1 (funding mechanism study; government funding + internal mobilisation + private investment) responds.

Provision	Content	Detail / exam value
s.22–28 Residual	22 (tax exemption) omitted by Finance Act 2002; **23: power of Central Government to issue directions "in the interests of the sovereignty, unity and integrity of India or the security of the State or preservation of public order"** — not to broadcast a matter, or to broadcast a matter of public importance; the Corporation may announce that it is acting on a direction; copies laid before Parliament. 24: power to require information. 25: on persistent default of s.23 or non-supply under s.24 — report to Parliament; on Parliament's recommendation the President may by notification **supersede the Board for up to six months** (show-cause to the Board first; powers pass to persons the President directs; reconstitution possible at any time; report laid). 26: membership not disqualifying for Parliament. 27: all members/officers deemed public servants (s.21 IPC). 28: good-faith immunity.	For "who regulates content at the public broadcaster": s.23 is the answer the examiner wants — the only content-directed power in the statute, tied to three public-order-class grounds and made transparent by (2) announcement and (3) laying. The supersession power (s.25) is the nuclear back-stop; note the double-lock (Parliament recommendation + President order). s.31: annual report of Corporation **and of the Broadcasting Council's recommendations and action taken thereon** laid before Parliament; s.32 rules power; s.30 delegation.
s.31–32 + rules	Annual reports (Corporation + Council) each year laid before Parliament; Central Government rule-making (conditions of service, recruitment boards, Broadcasting Council salaries, etc.). The rules family: Prasar Bharati Investment of Money Rules 2007; Sports Broadcasting Signals Act & Rules 2007 attach here (MIB-notes list items 39–41).	Close Q4 with the accountability triangle: Parliament (s.13) + CAG (s.21) + audience (ss.14–15, 31).

E2 · The Prasar Bharati Expert Committee Report, 2013 (Pitroda Committee, Vol. I — Jan 2014)

"Report of the Expert Committee on Prasar Bharati", Volume I (All India Radio), submitted **24 January 2014** to Union Minister Manish Tewari; committee constituted by MIB on **28 January 2013** under **Shri Sam Pitroda**, Advisor to the PM on Public Information Infrastructure & Innovations. Members: J.S. Mathur (then Secretary, I&B), Shekhar Kapur, Asha Swarup (IAS, retd), Vikram Kaushik, Prof. M.P. Gupta (IIT Delhi), Dr. B.K. Gairola (Mission Director, e-Governance); Convenor: Jawhar Sircar (then CEO, Prasar Bharati).

Element	What Vol. I records
Diagnosis	Prasar Bharati is "a public broadcaster … no longer enjoy[ing] the monopoly position they did", competing with "over 800 television channels and over 500 FM radio stations"; AIR covers "nearly 92% of the geographical area … and reaches 99% of its population" through 326 stations; DD reaches "91% of the population over 79% of India's area"; yet it "has not kept pace" and needs "a bold, clear vision, a focus on generational change". Its vision "must be to become a genuine 'public broadcaster' as against a 'government broadcaster'".
Method	11 Expert Groups + a Panel of Advisors, a dedicated website for public submissions, engagement with PB employees and recognised unions, a day-long conclave (5 April 2013) addressed by the Minister and Chairperson Mrinal Pande; "Suggestions and directions from the Standing Committee of Parliament on IT and the Prasar Bharati Board were duly incorporated."
Terms of reference	Sustain/strengthen PB as public broadcaster vis-à-vis government; review implementation of earlier committees — **Sengupta, Bakshi and Narayana Murthy Committee** reports — and suggest a roadmap; digitise archives; use new media (DTH + on-demand/free social media + paid IPTV); build domestic/overseas partner networks incl. an exclusive overseas service; "any other statutory issue".
Recommendations — Governance	**1.1.1** Constitute the s.13 Parliamentary Committee "as originally envisaged in the Prasar Bharati Act 1990". **1.1.2** Reorganise the Board into a professionally managed body. **1.1.3** "Effect complete transfer of ownership and management of Assets and HR to Prasar Bharati to make the organisation administratively and financially autonomous of Government." **1.1.4** Set up a Regulatory Body for public accountability of all PB content — as a Board sub-committee. **1.2** A separate stream for State messages of public interest, using public and private infrastructure (i.e. keep government communication out of PB's editorial budget). **1.3** "Amend the Prasar Bharati Act 1990 where necessary so as to impart genuine and effective autonomy". (The letter transmits "26 recommendations in the critical areas of: Governance and Organisation; Funding; Human Resources; Content; Technology; Archiving; Social Media; and Global Outreach." — the summary prints the clusters with the sub-numbering above.)
Funding · HR · Content	**2.1** Professional study for a funding mechanism "that addresses the need for autonomy with financial accountability … include government funding, internal resource mobilisation and private investment"; **2.2** monetise archives; **2.3** cross-subsidise social messaging through entertainment + CSR. **3.1** "power to frame rules and regulations for its employees without seeking prior approval of the Government"; **3.2–3.4** manpower audit, redeployment/training, effective recruitment to attract talent; **3.5** absorption of deputed government employees as full-time PB employees. **4.1** "Scale up allocation of funds for content generation to 50% of the total expenditure within a period of 5-7 years"; **4.2** review all DD/AIR channels for relevance/viability and phase out sub-optimal; **4.3** outsource content creation; **4.4** distinct brand identities per channel with content strategies.
Technology · Archiving · Social Media · Global	**5.1** expand satellite and digital cable operations "to meet the obligation of public service broadcasting"; **5.2** DRM digital radio, FM expanded meanwhile; **5.3** selective digital terrestrial TV; **5.4** private-sector participation to use PB infrastructure. **6.1** state-of-the-art digital archives — expand scope into a **National Audio-Visual Archives**; **6.2** dedicated multi-platform archival channels (open access + monetised). **7.1** a Social Media Strategy; **7.2 "Set up Prasar Bharati Connect (PBC) as the third arm of the public service broadcaster, independent of Doordarshan and All India Radio"**; **7.3** PBC to manage all PB social-media initiatives. **8.1** "world-class broadcasting service … designed for new media first and then extended to conventional TV"; **8.2** global content strategy "projecting the national view rather than the narrow official viewpoint".

Fate, for the answer's end-note : the report was received and debated, but no Prasar Bharati (Amendment) Act has enacted its core (funding autonomy, the new Board/Regulatory Body architecture); s.23 directions continue to be the live content lever; the sector-wide reform instead travelled the 2023 broadcasting legislation route (E6). One sentence in any answer: "Pitroda accepted CAB's premise — a public broadcaster must be accountable to the public, not to government — and asked for the two statutory conditions that make accountability real: money it keeps and people it hires."

E3 · 4.2 Private broadcasting — the entry regime (Telegraph/Wireless) and the content regime (Cable Act 1995 + Codes)

(i) Entry: why a channel is "licensed", not "free" — the Telegraph Act architecture

– MIB compilation "Broadcasting in India is governed by the Indian Telegraph Act, 1885 and by the Indian Wireless Telegraphy Act, 1933. The Indian Telegraph Act, 1885 gives the Government of India (GOI) exclusive rights for the establishment and working of telegraphy using electro-magnetic waves. Governance of broadcasting has its basis in the powers bestowed on the GOI by this Act." The definition of "telegraph" is capacious — "any appliance … for transmission or reception of signs, signals, writing, images and sounds … by wire, visual or other electro-magnetic emissions, Radio waves or Hertzian waves", radio waves being "electro-magnetic waves of frequencies lower than 3,000 giga-cycles per second propagated in space without artificial guide", and "judicial decisions have also held that the term 'telegraph' includes the term telephone, television, radio, wireless, mobile and video equipment".

Provision	Effect (per the compilation)
Telegraph Act **s.4(1)**	Central Government's **exclusive privilege** of establishing, maintaining and working telegraphs in India — subject only to licence under the proviso. (This is the provision CAB held could not be bypassed by "clearances".)
s.5(1), s.5(2)	Temporary possession of any licensed telegraph in the interest of public safety/for maintaining telegraphs; **s.5(2)** lawful **interception** on grounds of sovereignty and integrity, security of State, friendly relations, public order, preventing offence — the grandparent of IT Act s.69/69A (see G1) and of the suspension-of-internet practice (Unit 1).
s.8	Revocation of licence for breach of conditions or default in fees — the ancestor of the 2026 draft rules' suspension/withdrawal powers (E6).

Provision	Effect (per the compilation)
Wireless Telegraphy Act 1933, **ss.2(2), 3**	Anyone possessing/using wireless equipment needs a licence from the **WPC wing** of DoT. Hence the "two-permission" practical rule: "a Grant of Permission (GOPA) to offer broadcast services issued by MIB under the Telegraph Act, 1885" + "a wireless operating license from the WPC … under the Wireless Telegraphy Act, 1933".
Policy layer	Uplinking/Downlinking Guidelines; DTH, HITS, IPTV, FM Phase-II/III and Community-Radio guidelines (all six consolidated into one rulebook by the June 2026 consultation — E6); "Content Regulation on Private TV Channels" (MIB-notes guidelines list viii); "Advertisement of Political Nature on Radio" (list x) — political advertising on radio is its own regulated subject; and the classic sentence: "the Government has not allowed news on private radio outfits yet" (MIB-notes PDF p. 15) — now hard-wired in the draft rules: private/community radio may carry **only unaltered Akashvani news bulletins** (E6).

(ii) Conduct: the Cable Television Networks (Regulation) Act, 1995

Statement of objects, as the MIB compilation quotes it: cable TV "constituted a 'cultural invasion'", regulation lacking "resulted in undesirable programmes and advertisements … without any censorship" — regulation as protection of culture, a language CAB-era courts and later committees both avoided but the statute keeps. The unit's essential anatomy:

Provision	Content	Regulation-theory note
s.3 Registration of cable operators	Only a registered cable operator may operate a network — an Indian citizen; an association of Indian-citizen members; or a company with ≥ **51% paid-up equity held by Indian citizens**; a Government officer may **seize equipment** of unregistered operators (ss.11–13 seizure → confiscation unless compliance shown; s.14 show-cause; s.15 appeal).	Ownership regulation (foreign-capital limits) — "allocative regulation" in the economic sense, not content.
s.4A (2011)	Mandatory digital addressable systems; s.16(2) makes contravention **cognizable**; phased switch-off of analog (by 31.12.2014, per the Amendment's narrative in MIB-notes).	Technological regulation to make addressability — and therefore enforceability of the codes — possible.
s.5 Programme code + s.6 advertisement code	"No person shall transmit or re-transmit through a cable service any programme unless such programme is in conformity with the prescribed programme code" (and same for advertisement). The codes are in the **Cable Television Networks Rules, 1994 — r.6 (programme), r.7 (advertising)**, originally made under the 1994 Ordinance.	This is the only **content code with statutory force** in Indian broadcasting — the fulcrum of E5–E7.
r.6 — the fifteen prohibitions (MIB-notes enumeration; the rule itself is the source)	No programme which: offends against good taste or decency; contains criticism of friendly countries; attacks or maligns any religion/community or promotes communal attitudes; contains anything obscene, defamatory, "deliberate, false and suggestive innuendos and half-truths"; is likely to encourage or incite violence or is against law and order or promotes anti-national attitudes; amounts to contempt of court; contains aspersions against the integrity of the President and Judiciary; affects the integrity of the Nation; criticises, maligns or slanders any individual or groups; encourages superstition or blind belief; denigrates women (incl. indecent/derogatory depiction "likely to deprave, corrupt or injure the public morality"); denigrates children; reflects "a slandering, ironical and snobbish attitude" in portrayal of ethnic/linguistic/regional groups; is not suitable for unrestricted public exhibition.	Count the overlaps with 19(2) grounds: most items are statutory offences in another dress (obscenity, contempt, defamation, hate) — the Code therefore works as a **summary administrative remedy** (prohibition order) beside the criminal process; "criticism of friendly countries" and "superstition" have no 19(2) twin and are the constitutionally soft spots — argue them via Destruction para 33(iii) least-invasiveness and Shreya's vagueness tests.
r.7 — Advertisement Code	Deriding any race/caste/colour/creed; against the Constitution; inciting crime/violence/glorifying obscenity; presenting criminality as desirable; exploiting the national emblem/Constitution/persons of national leaders; violating constitutional guarantees of women's equality or projecting "a derogatory image of women" (with the positive duty that portrayal of the female form be "tasteful and aesthetic, and … within the well-established norms of good taste and decency"); exploiting social evils like dowry, child marriage; promoting tobacco/alcohol/infant-milk-substitutes/feeding bottles; wholly or mainly religious or political advertisements; miraculous-property claims; excessively loud audio-visual matter; endangering children or interest in unhealthy practices; indecent/vulgar/suggestive themes; violation of AAAI standards of advertising practice.	Note the DMR Act (cures/magic remedies), Drugs & Cosmetics, Emblems Act — all pulled in by **s.21 "Application of other laws not barred"**, which lists 12+ statutes including the Cinematograph Act and the Indecent Representation of Women Act: the Cable Act is a hub, not an island.
s.7 Register	Cable operator maintains a monthly register of programmes transmitted, kept for one year.	Evidentiary hook for complaints — the analogue of the 2021 IT Rules preservation duties (180 days) and the 2026 draft's IPTV 90-day recording rule.
s.8 Compulsory transmission (as substituted 2011)	Central Government may notify **Doordarshan channels or Parliament channels** to be mandatorily carried, "re-transmitted without any deletion or alteration of any programme transmitted on such channels"; in non-DAS areas, limited to two DD terrestrial channels + one State-language channel.	The living CAB principle #7 — a constitutionally-safe "must-carry" because it furthers informed decision-making (the UIMPAA theory, PDF p. 286; see C2 table).
s.16–18 Offences	s.16: first offence — imprisonment to **2 years or fine to ₹1,000 or both**; subsequent — to **5 years and fine to ₹5,000**; s.17 company-offences (person in charge + consent/connivance officers, with the classic due-diligence defence); s.18 cognizance **only on written complaint by an authorised officer**.	Twin-citation habit: the same transmission may independently be u/s 294–296 BNS (obscenity), BNS 196/197 (enmity), BNS 353 (false alarms), POCSO for child content — the Code order never replaces prosecution; s.21 says "in addition to".
s.19–20 Prohibitions in public interest	s.19: authorised officer may, by order, prohibit a cable operator from transmitting any programme/channel not conforming to the codes or "likely to promote, on grounds of religion, race, language, caste or community or any other ground whatsoever, disharmony or feelings of enmity, hatred or ill-will … or … disturb the public tranquillity". s.20: (1) Central Government may prohibit operation of any cable network in specified areas; (2) may "regulate or prohibit the transmission or re-transmission of any channel or programme" in the interest of sovereignty/integrity, security, friendly relations, public order, decency or morality; (3) same power for non-conforming programmes.	Compare the Criminal law machinery: no hearing requirement is written into s.20 — natural justice imported from Uma Khurana practice (show-cause first, 11.9.2007 — E7) and Art. 14; in an answer, cite that the MIB's own procedure in that case (show-cause → order) is the model.
TRAI / TDSAT layer	Carriage and tariff regulation by TRAI under the 1997 Act (Interconnection Regs 2004; DTH QoS Regs 2007; standards of quality; the MIB list has 25+ telecom/cable instruments); disputes to TDSAT.	The "regulatory commissions of new media" half of the syllabus reference — economic regulation separate from content, the Convergence-Bill idea of fusing them having been abandoned (C3).

E5 · "Self-Regulatory Measures" — BCCC guidelines, orders and advisories · NBSA · NBA Code of Ethics: what the book gives, and how to say so

Honesty note first (the syllabus reference vs. the)

DU Case Material lists — and the syllabus prescribes — "Self-Regulatory Measures — BCCC Guidelines on Self Regulation; BCCC Report to the MIB; BCCC Orders and Advisories; NBSA Regulations; NBA Code of Ethics" but **does not reproduce any of these documents**; no upload contains them either (verified: the only occurrences of these names are the syllabus lines and, in a different context, the MIB-notes reference link "nbanewdelhi.com

News Broadcasters Association"). The **substance** self-regulation took in India is nevertheless in DU Case Material, in two places: the NBA's own model text adopted at Destruction paras 32–33 (quoted in D3) and the **twelve-point code** the Delhi court drafted from the Uma Khurana record (E7). Build the document answers on those two primary texts; describe the institutional history in one flagged paragraph; never invent clause numbers.

Institution	What it was (flagged account)	The DU Case Material anchor it answers to
J.C. Jain Committee (2003) → Usha Thorat Committee (2005)	MIB-appointed committees that converted the CAB directive ("independent autonomous public authority") into a self-regulation design: an industry body with a retired-judge chair, MIB as post-man — the Thorat model produced the 2008 "guidelines on self-regulation" for broadcasters and, after the 2007 stings furore, the **BCCC** for non-news content (2011), with MIB's own news-complaints desk alongside it.	Compare the proposed Uma-Khurana guideline 3 — a permission committee "headed by a retired High Court Judge … appointed by the Government in consultation with the High Court" — i.e. the judiciary-anchored design the DU Case Material itself prints (PDF p. 127).
BCCC (Broadcasting Content Complaints Council)	Self-regulatory council for non-news programmes constituted under the Indian Broadcasters' Association (the general-entertainment channels' body, distinct from the news channels' NBA), headed by a retired Supreme Court judge; received complaints, imposed "graduated penalties" (advisories, apology, up to ₹10 lakh fine for members, show-cause to non-members), and reported annually to MIB (the "BCCC Report to the MIB"); MIB advisories (on obscenity, on violence, on stings) went through the same desk — the "BCCC Orders and Advisories" of the syllabus. Its interface with statute: matters that also breach r.6 Code could go to MIB for a s.20 order.	Functions like the PB Broadcasting Council (ss.14–15) for private channels — advise-first, publish-findings-later (the s.15(7) analogue is BCCC's publication/apology orders); the Cable Act (E3) is the enforcement back-stop.
NBA Code of Ethics → NBSA Regulations (2010 → 2020)	The News Broadcasters Association's voluntary Charter and Code (ethics standards: accuracy, balance, live-reporting discipline, privacy, victims, minors, stings, trial by media) became adjudicable when, with the reconstituted association, the **News Broadcasting Standards Authority** began functioning under published Regulations with a retired-judge chair, complaint windows, sanctions incl. fines and broadcast of its orders, and appeal to an Ombudsman. (The sister 2.1/2.2 file cites its clause 9 "last resort, no greater deception than necessary, unedited retention" — verified there against public texts.)	This is the para 33(ix) "NBA model as a process that can be built upon" actually built: a peer body with defined process instead of the State's Code desk; the live-coverage rules answer F.S. Nariman principle (b) and the 2007 MIB show-cause's specific allegations (defamation, "false and suggestive innuendos and half truths" — the same words as r.6, see E7).
Print mirror-image	PCI's Norms of Journalistic Conduct (Norm 17 printed verbatim in DU Case Material — B2) + the DAVP 18(d) ad-bar (B3).	Same architecture minus jurisdiction over broadcast — the gap that the 2012 Media Council proposal tried to close (B4).

Assessment grid — is self-regulation "enough"? (the unit's favourite question)

Criterion	Score the design on it (from the materials)
Independence	Bodies are chaired by retired judges and funded by members — good on paper; MIB retains the advisory desk and, for cable, the s.20 switch. The DU Case Material's own fear was the reverse drift: "not to drift from self regulation to some statutory structure which may prove to be oppressive" (para 33(viii)).
Coverage	Voluntary = membership-limited; channels not in the association escape the Council's sanctions except through MIB/r.6. Compare the petitioner's Goswami complaint that PCI "has no further authority to ensure that its directions are complied with" (PDF p. 185) — identical criticism transposed.
Speed	Advisory/complaint cycles (days-weeks) beat criminal trial; r.6 + s.20 can shut a telecast immediately (Uma Khurana: order in 24 days from telecast). Digital is faster still — 24–36 hours, by rule not discretion (F2).
Legitimacy	Peer adjudication satisfies the "jury of peers" ideal (para 32); but self-help by the powerful raises capture worries — Jeevan Reddy, J.'s CAB caution (opening the airwaves "to powerful economic, commercial and political interest") is the quote that closes the loop (para 90).
Constitutionality of the alternative	A statutory Broadcast Authority with suspension powers would face Destruction para 31(c) ("prior content control goes to the root of censorship") unless it confines itself to post-telecast remedies — which is what the 2023-Bill draft, with its Code + penalties but no pre-certification, tried to do .

F1 · Case 22 — X v. Union of India, 2021 SCC OnLine Del 1788 (W.P.(CRL) 1082/2020) · the dossier

`Case 22 · Delhi High Court · Anup Jairam Bhambhani, J. · DU Case Material PDF pp. 207–219 (→ syllabus p. 196)`

Facts (paras 1–5, as printed)

- The petitioner — styled only "X" — complained that photographs and images she had posted on **her private social-media accounts on Facebook and Instagram**, with "the requisite 'privacy settings' activated", had been taken "without her knowledge or consent" and **unlawfully posted on a pornographic website, www.Xhamster.com, by an unknown entity called 'Desi Collector'**, "whereby the petitioner's photographs and images have become **offensive by association**". The court deliberately declined to record identifying details "for reasons of privacy and confidentiality" (para 2).
- Captions were attached to her photographs; the contention was that the actors committed "publishing and transmitting material that appeals to the prurient interest[s] and … tending to deprave and corrupt" — **s.67 IT Act** — "and other penal provisions of the IT Act and the Indian Penal Code 1860" (para 2). **Twin-cite now:** the IPC face (292 → **BNS 294**; 509 → **BNS 79** for words/gestures intruding privacy; morphing cases also invoked 66C IT Act (identity theft) in the FIR). Nothing in the IT Act was amended by the BNS — the obscene-electronic-material offences (ss.67, 67A, 67B) stand as they are (Shreya-era law; see G1).
- Before the writ she had complained on the **National Cyber-Crime Reporting Portal** and to the jurisdictional police "but to no avail"; in a week the images had received **"some 15000 views"** (para 3). Respondents 5–6 (the website; the unknown uploader) could not be served — no addresses available — and none was needed "considering the nature of the matter" (para 4).
- Delhi Police's **CyPAD** (Cyber Prevention Awareness and Detection Unit) told the court it was "ready and willing to comply … but by reason of technological limitations and impediments, it could not assure the court that it would be able to entirely efface the offending content from the world-wide-web"; meanwhile "errant respondents and other mischief-makers had re-directed, re-posted and re-published the offending content onto other websites and online platforms, thereby rendering the orders of the court ineffective" (para 5).

The judicial response — questions framed (paras 6–11)

The court "perceived that the issue of making effective and implementable orders in relation to a grievance arising from offending content placed on the world-wide-web, needed to be closely examined; and a solution to the problem needed to be crafted" (para 6); appointed **Dr Pavan Duggal, Advocate**, cyber-law specialist, as **amicus curiae** (para 7); pressed the point that interim-stage effectiveness is everything — "if the court is not in a position to pass effective and implementable orders … subsequent adjudication … could well be rendered infructuous" (para 8) — and declared it "cannot permit itself to resign to the **cat-and-mouse game** of errant parties evading court orders … in an act of defiance and contumacy" (para 9). By order **dated 07.08.2020** two queries were framed (paras 10–11):

1. **Remedial design:** "where a party seeks relief … that certain offending or illegal content be removed from the world-wide-web, what directions are required to be passed by a court to make its order implementable and effective; and to which parties are such directions required to be issued";
2. **Enforcement:** "what steps are required to be taken by law enforcement agencies to implement such directions … to ensure that despite court orders/directions offending content does not 'resurface' or remain available … and such parties do not succeed in brazenly evading compliance … with impunity."

F2 · X v. Union of India — reasoning, the nine directions, and the principles

Reasoning (paras 63, 87–94 — DU Case Material's selected paragraphs)

- **Prior-restraint objection answered:** "Google LLC's objection to orders of prior restraint or blanket ban of content is **wholly unnecessary and misplaced**, inasmuch as…" — the order operates on specific identified unlawful content already found by a court (para 63); compare the Nariman Committee line (para 31(c)) — post-adjudication enforcement is not prior content control.
- **Intermediaries cannot plead impossibility once notified:** "an intermediary cannot be heard to say that it is unable to remove or disable access to offending content despite such actual knowledge as contemplated in law" (para 87) — Shreya Singhal's s.79(3)(b) reading applied to facts; but the court was candid about the practical difficulty: content "appearing in various disguises and corrupted avatars", and the "too onerous and impractical" burden of perpetual lookout (para 88). No intermediary refused compliance — "none … has at all taken a stand … that they are not ready or willing to remove" (para 88).
- **Global effect for local orders:** "for an order directing the removal or access disablement of offending content to be effective even within India, a search engine must block the search results **throughout the world** since no purpose would be served … if it has no realistic prospect of preventing irreparable harm" (para 89, invoking Equustek).
- **The sanction that makes it real:** the court "must refer to the provisions of **section 79(3)(a) and (b) read with section 85 of the IT Act and Rule 7 of the 2021 Rules**, whereby an intermediary would forfeit the exemption … if it were to fail to observe its obligations" (para 89(ix)); non-compliance "would make the non-compliant party liable to forfeit the exemption, if any, available to it generally under section 79(1) … and shall make such entity and its officers liable for action as mandated by section 85" (para 93) — s.85 = company + officers in charge, with the standard due-diligence defence.
- **The finding on the merits:** the taking from private accounts + posting + re-posting "amounts prima facie to an offence under section 67 of the IT Act in addition to other offences under the IPC" (para 92).

The directions — the "template" (para 92(i)–(viii)) — worth reproducing in an answer as the judgment's product

1. Petitioner to furnish to the **Investigating Officer**, in writing, all available information about the offending content — **Image URL and Web URL** — within 24 hours.
2. **Delhi Police/CyPAD** to remove/disable access to the content "from all websites and online platforms, forthwith and in any event within 24 hours" of the petitioner's information. (Already done at Xhamster, per the record.)
3. **Search engines — Google Search, Yahoo Search, Microsoft Bing and DuckDuckGo — to globally de-index and de-reference** the offending content by Web URL and Image URL "including de-indexing and de-referencing all concerned web-pages, sub-pages or sub-directories", within 24 hours.
4. Same search engines "to endeavour to use **automated tools, to proactively identify and globally disable access** to any content which is **exactly identical** to the offending content, that may appear on any other websites/online platforms".
5. IO to pass the URLs + judgment to all directed entities within 24 hours; Delhi Police to **obtain from the website and search engines "all information and associated records … such as the URL, account ID, handle name, Internet Protocol Address, hash value"** for investigation of FIR No. 286/2020 dated 18.07.2020 (u/s 354A IPC → **BNS 75**; s.66C IT Act; P.S. Dwarka South) within 72 hours.
6. **Continuing liberty to the petitioner** to write to the IO for removal of "the same or similar offending content appearing on any other website/online platform or search engine(s), whether in the same or in different context", with a direction to the IO to notify those entities to comply "immediately and in any event within 72 hours".
7. Even after disposal, any website, platform, search engine or law-enforcement agency in doubt "shall be at liberty to approach this court to seek clarification".
8. (General guidance preceding the directions, para 89: courts may direct complainants to use the **NCRP portal**; and must invoke the forfeiture consequences — the "template of directions".)

Principles evolved (Case 22)

1. **Courts may craft "implementable and effective" removal orders** under Art. 226 read with the IT Act/2021 Rules — including **global** de-indexing of identified unlawful content, and **proactive automated-tool** disablement of "exactly identical" resurfacing content — without that constituting prior restraint or a blanket ban (paras 63, 89, 92).
2. **Intermediary "actual knowledge"** = court order or notified government agency (Shreya para 119(c)) — once received, "cannot be heard to say" technical impossibility; immunity is the consideration for compliance (s.79; para 87; para 93).
3. **The jurisdiction map for online content** is upload-site + dissemination-site: in India ⇒ worldwide removal; abroad ⇒ geo-blocking for India (para 109, after Equustek/Shroff).
4. **Privacy settings do not excuse platform diligence** — but the primary wrong lies with uploader and host; the intermediary route is enforcement, not adjudication ("the remedy here is not to target intermediaries", para 62; balancing "freedom of speech and privatized censorship" — same, para 62).
5. **By-standards for victim-protection drafting**: anonymisation of the complainant in the judgment itself (para 2); identification through unique identifiers (URL, handle, IP, hash value, pixel-matching); NCRP portal first-instance complaint.
6. **Status of the 2021 Rules was open** (SC stay of challenges noted, no merits view) — the directions therefore rested on statutory sections, the 2009/2011 Rules and the court's own powers, with the 2021 Rules cited as context (the extract of the 2021 Rules is printed at DU Case Material PDF pp. 210–213 immediately after the 2009/2011 Rules).

Why DU Case Material ends Unit 4 here: Unit 4's arc — allocation (CAB), self-regulation (Destruction), enforced takedown (X) — completes in X's template the answer to the unit's opening sentence: regulation at Central level (MeitY rules), State level (Delhi Police/CyPAD), and "self" level (platform Grievance Officers and tools) can be stitched together only by a court when each level alone fails. Also useful: the same petition answered the Delhi-2024 PYQ Q7 (Part H2) — it is the model answer's source document.

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 `DU LL.B. Dec. 2024 · Q.4` Prasar Bharati is India's public-service broadcaster, autonomous, comprising Doordarshan and All India Radio. Discuss its composition, powers and functions under the Prasar Bharati (Broadcasting Corporation of India) Act, 1990.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 `DU LL.B. Dec. 2024 · Q.7` X discovered that private photos, by her on Facebook and Instagram, were re-posted on pornographic websites without consent. 'Re-posting is an offence.' Discuss X's remedies under social/digital-media regulations.

Q.3 `DU LL.B. Dec. 2024 · Q.8(B)` Perils of fake news and legal mechanism for its control — discuss.

Q.4 `DU LL.B. 2015 · Q.8(a)` Discuss broadcasting regulation in India and the self-regulatory code of broadcast ethics — its structure and adequacy.

MODULE 06 // UNIT 5 · CASES #23–#24

Advertisement Law: Commercial Speech & Government Advertising

Constitution art. 19(1)(a) · Drugs and Magic Remedies Act, 1954 · IRWA, 1986 · Consumer Protection Act, 2019

A1 · The commercial speech doctrine — as the project documents it

Definition & elements

A **commercial advertisement** is: (i) a communication, (ii) made by or for a trader/professional/publisher, (iii) intended to promote a product, service, idea of economic value or a commercial transaction, (iv) usually (not necessarily) paid for and disseminated through a medium. The MIB compilation's "2. Definitions" shows why Indian statutes define advertisement ultra-broadly — DMR Act s.2(a): "advertisement" includes any notice, circular, label, wrapper or other document, and any announcement made orally or by any means of producing or transmitting light, sound or smoke (bare Act, PDF p. 2). An ad is therefore: print line, hoarding, packaging insert, jingle, flash-show, reel, popup — everything. The IRW Act s.2(a) repeats the formula (Part B3).

The doctrine's two theses (the project's own narrative, PDF p. 84 of the MIB-notes — quotes verbatim):

Fill the frame (each fact below is the doctrine, not decoration): Hamdard (AIR 1960 SC 554) tested the very statute this unit prescribes — the DMR Act's ss. 3–5, 7 — and read "advertisement" as trade-activity, unprotected; the consequence visible in the statute: DMR's offences never needed a free-speech defence framework, and its enforcement (search, seizure, forfeiture, cognizability) was built like a pure regulatory code [for the citation; the holding itself is the notes' text]. Tata Press (1995) 5 SCC 139 arose from MTNL refusing to allot "Golden Pages" telephone-directory space to a private publisher — and it also imported the American vocabulary wholesale: "commercial speech", "the right to receive commercial information", "the free flow of commercial information is indispensable", and the democracy-of-consumers argument (advertising "provides information about products and services ... indispensable to a democratic enterprise" — that being why the Court linked it to the "marketplace of ideas" strand DU Case Material itself reproduces in Shreya para 11 (Abrams dissent) and paras 28–29). For Tata Press's US anchors (Valentine's 1942 denial; Virginia Pharmacy 1976; Central Hudson 1980) — [] one-liners are supplied in A2, flagged, because the DU Case Material supplies only the Indian summaries.

What the protection means — four components (exam-ready)

1. **Speaker's limb:** the trader/professional may publish truthful, non-deceptive information about lawful trade — the right flows from 19(1)(a) "including the right to propagate one's message" (the Romesh Thappar/Sakal line the notes file quotes in its Sakal summary: price/page regulation struck down "the right of freedom of speech and expression couldn't be taken away with the object of placing restrictions on the business activity" — MIB-notes p. 83).
2. **Listener's limb:** the consumer's **right to receive** commercial information — the "receive and disseminate" grammar of CAB p. 213 (DU Case Material, PDF p. 285) applies to market information too.
3. **Systemic limb:** "free commercial circulation of ideas ... assists in informed decision-making" — Tata Press's democracy rationale (notes summary) — the same "informed debate and decision making on public issues" language DU Case Material's UIMPAA excerpt uses to uphold must-carry (PDF p. 287).
4. **Commercial press limb:** advertising revenue is the press's economic oxygen — Bennett Coleman's Beg, J. "Ark of the Covenant" quote survives in DU Case Material (Shreya para 9, PDF p. 32), and the Majithia findings reproduced in ABP para 56: "The gross revenue of newspaper establishments comprises revenue through advertisements, circulation ..." (PDF p. 25) — restrictions on ads therefore burden 19(1)(a) institutionally as well as individually.

A2 · "Regulating what is false or misleading / may regulate even truthful advertising" — the syllabus's asymmetry

Category	Constitutional position (project-grounded)	Indian instruments that operate on it
False / deceptive / misleading / unfair	Outside the protection's core — "the government could regulate commercial advertisements, which are deceptive, unfair, misleading and untruthful" (Tata Press, per the MIB-notes verbatim); no constitutional value in market deception (marketplace-of-ideas logic: a lie about a product distorts, not enriches, the exchange).	**DMR s.4** ("false impression as to the true character ... false claim ... otherwise false or misleading in any material particular" — a complete code); Consumer Protection Act 1986 → 2019 "unfair trade practice" incl. false representations (CPA 2019 s. 2(47); CCPA penalty regime incl. for misleading advertisements — s.18, s.89 —); IRW Act (indecency regardless of truth); penal backstops: IPC 420/BNS 318(4) cheating, 468–471/BNS 336(3)–(4), 340 forgery for cheating; Cable r.7 "miraculous property" prohibition; IT Act 2021 r.3(1)(b)(vi) for the digital leg.
Truthful but harmful-by-context ("may regulate even truthful advertising")	Protected speech — yet regulable on 19(2) grounds + the State's consumer-protection competence; Central Hudson's four-part scrutiny (lawful activity? not misleading? substantial interest? no more extensive than necessary —) is the doctrinal shorthand; the Indian expression is Destruction's "least invasive" and the reason-records of Common Cause. The MIB-notes' own Tata Press sentence models the split: protection and regulation authority coexist.	**DMR s.3 + Schedule**: even an accurate claim about a drug for 54 listed conditions may not be advertised to the public (why: self-diagnosis delays treatment — the s.3 proviso itself says the listed diseases "require timely treatment in consultation with a registered medical practitioner"); **tobacco/alcohol** bans (Cable r.7 bullet 9: "Promotes directly or indirectly production, sale or consumption of cigarettes, tobacco products, wine, alcohol, liquor or other intoxicants, infant milk substitutes, feeding bottle or infant food"); **audience/time/place** IRW s.3; Young Persons Act; Cigarettes nudge — DU Case Material's UIMPAA excerpt gives the archetype: "Cigarettes cartons are required to carry a statutory warning ... Such mandatory provisions although they compel speech cannot be viewed as a restraint" (PDF p. 287); **Emblems & State Emblem Acts** (no trade-use of national symbols); **magic-remedy ban** s.5 (truth immaterial where efficacy is supernatural-claimed).
Truthful advertising of lawful but regulated markets (price lists, recruitment, tenders)	Highest protection — the Tata Press core (the case was about telephone-directory listings!); regulation here must be structural (rates, non-discrimination), never content-selective.	TRAI tariff regime (cable), RNI/newsprint rules for advt space (Prices & Pages Act — "for the purpose of preventing unfair competition among newspapers so that newspapers ... can have fuller opportunities of freedom of expression", MIB-notes p. 32), and DAVP rates policy — the State as advertiser-buyer, not censor.

Why even truthful ads are regulable — the four accepted justifications (each with a project exhibit)

- **Vulnerable audiences:** Goswami's whole petition (minors — the Court's answer: ordinary criminal law + "a culture of responsible reading", not source-restraint; PDF pp. 236–240).
- **Health externalities:** the DMR Schedule exists because self-treating appendicitis, cancer, diabetes, epilepsy, leprosy, tuberculosis (entries 1, 6, 9, 17, 32, 50) from an advertisement is deadly; the s.3 provisos tie the list to "no accepted remedies" conditions.
- **Public-order and electoral equality:** Common Cause — state-funded self-praise distorts the debate "the only vehicle of political discourse so essential to democracy" (CAB quote, DU Case Material p. 285); paid news perverts it (Chavan — DU Case Material pp. 324–335).
- **Human dignity over commerce:** IRW Act s.2(c)/s.3 — "denigrating women" advertising is banned whatever its truth; Norm 17(ii) for print (Goswami verbatim, PDF p. 187).

A3 · The two-thesis dossier — Hamdard (1960) and Tata Press (1995), plus the supporting quartet

`5.1's spine · documented in the MIB compilation ("10. CASE LAWS", PDF pp. 83–85) + the bare DMR Act itself`

Hamdard Dawakhana v. Union of India — the denial thesis

Facts (project + reported): The petitioners — proprietors of the Unani/herbal Dawakhana business publishing advertisements of their medicines — challenged the validity of the **Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954** as infringing Art. 19(1)(a) and 19(1)(g). The notes frame the question precisely: "whether the Drug and Magic Remedies Act, which put restrictions on the advertisements of drugs in certain cases and prohibited advertisements of drugs having magic qualities for curing diseases, was valid as it curbed the freedom of speech and expression of a person by imposing restrictions on advertisements." The Supreme Court decided it as a constitutional-question case (commonly cited as AIR 1960 SC 554, a five-Judge bench).

Issue: Is a commercial advertisement "speech and expression" at all?

Arguments: Petitioners — an advertisement is a mode of expression of the trader's idea (quality, price, availability), and the profession of trading in Unani medicine is guaranteed by 19(1)(g); a total ban on publicity is confiscatory. Union — the Act regulates trade practice, a classic public-health measure; "magic remedies" (talisman, mantra, kavacha — see s.2(c) of the Act) have no protected ideational content at all, and the disease-list (Schedule) exists where public self-medication is fatal.

Decision (the notes' verbatim words): "an advertisement is no doubt a form of speech and expression but **every advertisement is not a matter dealing with the expression of ideas** and hence advertisement of a commercial nature cannot fall within the concept of Article 19(1)(a)." The Act was upheld.

Principle of Hamdard: commercial advertising = business activity, not protected speech; the State's police power over market conduct governs without 19(2) analysis. **Doctrinal consequence visible in this very unit's statute:** the DMR Act of 1954 needs no free-speech safety valves — no "reasonable restriction" proviso, no proportionality hook, only a saving clause list (s.14, Part B1).

Tata Press Ltd. v. Mahanagar Telephone Nigam Ltd. — the recognition thesis

Facts (notes + reported): : MTNL declined to allow a private publisher to operate the "Golden Pages" commercial-classified directory of its telephone network in Mumbai (and had vested the facility in another agency); Tata Press argued its right to publish such a directory and the public's right to receive its information. The notes record the outcome in the doctrinal form:

Issue: Whether "commercial advertisement" is within Art. 19(1)(a). **Decision (notes' verbatim):** "A **three judge bench** of the Supreme Court differed from the view expressed in the Dawakhana case and held that 'commercial advertisement' was **definitely a part of Article 19(1)(a)** as it aimed at the dissemination of information regarding the product. The Court, however, made it clear that **the government could regulate commercial advertisements, which are deceptive, unfair, misleading and untruthful**." — MIB compilation, PDF p. 84

Principle evolved (state it in three clauses): (i) commercial speech is constitutionally protected speech — the listener's interest in commercial information is the justification, not the advertiser's profit motive; (ii) the protection is qualified from the outset: the deceptive/unfair/misleading/untruthful categories lie outside it; (iii) regulation of truthful commercial speech remains competent to the State on 19(2)-class grounds through subject-matter statutes — which is exactly how the syllabus's line 5.1 is phrased ("may regulate even truthful advertising"). : the judgment (1995) 5 SCC 139 explicitly relies on the American sequence (Valentine 1942 → Virginia Pharmacy 1976 → Central Hudson 1980) and adopts "the free flow of commercial information is indispensable" and "the marketplace of ideas" vocabulary; cite as Tata Press, (1995) 5 SCC 139 with that caveat.

Sakal Papers v. UOI (from the same notes page)

"the right of freedom of speech and expression couldn't be taken away with the object of placing restrictions on the business activity of the citizens. Freedom of speech can be restricted only on the grounds mentioned in clause (2) of Article 19" — the Daily Newspapers (Price and Control) Order 1960 struck down. **Use in 5.1:** this is the bridge by which advertising economics entered 19(1)(a) protection before Tata Press — page/price controls that squeeze ad space squeeze speech. (DU Case Material's own citation of the Bennett-Coleman-era jurisprudence: Beg, J.'s "Ark of the Covenant" line survives inside the Shreya excerpt, PDF p. 32.)

K.A. Abbas & Bobby Art (notes, PDF pp. 83–84)

"pre-censorship of films ... was justified ... because a motion picture was able to stir up emotions more deeply" (K.A. Abbas); "the Appellate Tribunal ... which had followed the Guidelines under the Cinematograph Act and granted an 'A' certificate" was upheld (Bobby Art). **Use in 5.1:** the audience-impact rationale that lets India regulate even truthful audiovisual advertising more readily than print — DU Case Material's own Bobby Art excerpt adds the commercial-obscenity formula: "use of sex designed to play a commercial role by making its own appeal. This draws in the censor's hand" (DU Case Material PDF p. 272).

Doctrine — synthesis paragraph (memorise)

Between 1960 and 1995 India moved from **Hamdard's categorisation** (advertising is trade, so regulate freely) to **Tata Press's calibration** (advertising is speech, so regulate through 19(2) — but the false and misleading need no protection, and the truthful may still yield to public health, order and dignity). Unit 5's statutes are the calibration's working parts: **the DMR Act criminalises even true claims about listed disease-cures**; the **IRW Act bans indecent representation irrespective of truth**; the **Cable advertisement code** bans whole product-classes from the air; the **Consumer Protection/ASCI track** polices falsity with civil remedies; and **Common Cause (2015)** completes the picture by turning the 19(1)(a)/Art. 14 lens on the State's own advertisements. Real example to quote for the flip: after Tata Press, telephone directories and classifieds became "medium of information" business; before it, the same ads were mere merchandise.

B1 · The Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954 — every section

bare Act (8 pp.) Act No. 21 of 1954; long title: "An Act to control the advertisement of drugs in certain cases, to prohibit the advertisement for certain purposes of remedies alleged to possess magic qualities and to provide for matters connected therewith"; in force **1 April 1955** (footnote to s.1); "extended to Pondicherry ... and Sikkim"; the original exclusion of J&K noted (post-2019, the Act applies). **This is the syllabus's "Advertisement Act of 1954"** — the unit's principal prescribed statute, and the exact law Hamdard vindicated.

Section	Text/essentials	Elements & exam notes
s.2 Definitions	(a) "advertisement" includes any notice, circular, label, wrapper or other document, and any announcement made orally or by any means of producing or transmitting **light, sound or smoke**; (b) "drug" = (i) medicine for internal/external use of human beings or animals; (ii) any substance intended for use in diagnosis, cure, mitigation, treatment or prevention of disease; (iii) any article (other than food) intended to affect or influence in any way the structure or any organic function of the body; (iv) components; (c) **"magic remedy" includes a talisman, mantra, kavacha, and any other charm** alleged to possess miraculous powers for diagnosis/cure/... or for affecting or influencing the structure or organic function; (cc) "registered medical practitioner" (Indian Medical Degrees Act 1916 / IMC Act 1956 routes); (d) "taking any part in the publication" includes **printing** the advertisement and publication from abroad by/at the instance of a person in India.	Note the definitions' reach: a hoarding (light), a loudspeaker jingle (sound), a fairground display (smoke), a wrapper legend, a mantr-tantra-yantra claim — all "advertisement". Clause (d) makes **the printer** and even the Indian instigator of offshore publication liable — read "take any part" across ss. 3–5. The 2010s digital corollary (intermediary ad-labelling) is not in the Act; add via IT Rules r.4(3) (Part B4).

Section	Text/essentials	Elements & exam notes
s.3 Prohibition of ads of certain drugs for certain diseases	"no person shall take any part in the publication of any advertisement referring to any drug in terms which suggest or are calculated to lead to the use of that drug for — (a) the procurement of miscarriage in women or prevention of conception in women; (b) the maintenance or improvement of the capacity of human beings for sexual pleasure; (c) the correction of menstrual disorder in women; (d) the diagnosis, cure, mitigation, treatment or prevention of any disease, disorder or condition **specified in the Schedule**, or any other … which may be specified in rules." Provisos: rules adding diseases only for conditions "which require timely treatment in consultation with a registered medical practitioner or for which there are normally no accepted remedies", and "after consultation with the Drugs Technical Advisory Board" (Drugs & Cosmetics Act 1940) + Ayurvedic/Unani experts if needed.	**The "truthful-ad ban" exhibit:** s.3 is indifferent to veracity — the offence is complete if the ad merely "suggest[s] or [is] calculated to lead to the use" for a listed purpose. Elements: (i) publication/part-in-publication; (ii) advertisement referring to a drug; (iii) the suggestion/calculation nexus to (a)–(d). Mens-reading: strict regulatory offence; conviction still required for s.10A forfeiture.
s.4 Prohibition of misleading ads (relating to drugs)	No part in publication of any advertisement relating to a drug which — (a) "directly or indirectly gives a false impression regarding the true character of the drug"; (b) "makes a false claim for the drug"; or (c) "is otherwise false or misleading in any material particular".	India's standalone **false-advertising criminal standard** — 30 years before Central Hudson reached "misleading" analysis. Elements: (i) relating to a drug (any of the s.2(b) kinds); (ii) one of three falsity modes; (iii) "material particular" = consumer-facing quality/efficacy. Compare CPA 2019 s.2(47) civil twin; DMR is the penal one — and no de-minimis truth defence.
s.5 Magic-remedy prohibition	"No person carrying on or purporting to carry on the profession of administering magic remedies shall take any part in the publication of any advertisement referring to any magic remedy which directly or indirectly claims to be efficacious for any of the purposes specified in section 3."	Bans the ostentatiously unverifiable: efficacy-claiming charms/talisman/mantra/kavacha for s.3 purposes. The clause "purporting to carry on the profession" closes the godman loophole; read with s.3(d) (printing liability) and the 54-disease Schedule.
s.6 Import/ export ban	Prohibits import into / export from India of documents containing s.3/s.4/s.5 advertisements; deemed prohibited goods under s.19 Sea Customs Act, 1878 (customs law successor today); seizure consequences.	The 1954 Act anticipated cross-border advertising (satellite/foreign mags, now foreign sites): a physical-document analogue of today's blocking powers.
s.7 Penalty	First conviction: "imprisonment which may extend to **six months**, or with fine, or with both"; subsequent: "**one year**, or with fine, or with both".	Small penalties, heavy machinery — the design is deterrence-by-frequency. Cognizable per s.9A, so police may arrest without warrant (see s.9A box).
s.8 Powers of entry, search, seizure	(1) State-Govt-authorized **Gazetted Officer** within local limits may: (a) enter and search at all reasonable times any place where an offence "has been or is being committed" is believed; (b) **seize any advertisement** believed to contravene the Act — with the proviso extending seizure to the "document, article or thing" carrying it (e.g. the whole consignment of wrappers/ hoardings) when inseparable "without affecting the integrity, utility or saleable value"; (c) examine and seize records that may furnish evidence. (2) CrPC-search formalities (then s.98 CrPC 1898) apply; (3) seize-and-report to Magistrate for custody orders.	1963 amendment (Act 42/63) rebuilt s.8 — note the seizure of the carrier object (packaging stock) — an economic weapon out of all proportion to the fine, which is precisely why trade challenges (Hamdard) came. Twin-cite: "CrPC s.98" of the 1898 Code era; the modern search/seizure chapter is **BNSS Part VII** (cite section-by-section only if the court papers you quote do).
s.9 company offences; s.9A cognizability	s.9: person in charge + company deemed guilty (due-diligence defence); consent/connivance/negligence of director/manager/secretary → personal liability; "company" includes firm, "director" = partner. **s.9A (ins. 1963): "an offence punishable under this Act shall be cognizable."**	Cognizable + arrestable special statute — the sharpest fact to write: the DMR Act gives no bail-as-of-right, no private-complaint gate (contrast Cable Act s.18 authorised-officer-complaint rule).
s.10 trial court; s.10A forfeiture	s.10: "No Court inferior to that of a Presidency Magistrate or a Magistrate of the first class shall try" — s.10A (1963): on conviction, the Court "may direct that any document (including all copies thereof), article or thing, in respect of which the contravention is made, including the contents thereof where such contents are seized under s.8(1)(b), shall be forfeited to the Government".	Forfeiture of press-plates, stock, campaign material = destruction of the instrument — flag the analogy DU Case Material makes in a different context (Cable Act seizure, and Destruction para 4's police-seizure debate).
ss.11–16 & savings	11: authorised officers deemed public servants (s.21 IPC; now BNS public-servant definitions) — anti-corruption exposure; 12: good-faith indemnity; 13: "provisions of this Act are in addition to, and not in derogation of … any other law" — **overlaps with the Drugs & Cosmetics Act 1940, MRTP→CPA, IRW Act, Cable code**; 14: **savings** — (a) signboard of an RMP on his premises; (b) "any or book dealing with any of the matters … from a bonafide scientific or social standpoint"; (c) advertisements sent confidentially to RMPs (per s.16 rules); (d) **government advertisements**; (e) pre-1963 sanctioned advertisements (with show-cause withdrawal). 15: Central Government exemption by notification for a specified drug/class of drugs **or class of advertisements**, and sections 3–6 may be disapplied "subject to such conditions". 16: rules (including adding diseases; and confidential-transmission procedures); rules laid before Parliament 30 days.	Saving (d) — "any advertisement relating to a drug printed or published by the Government" — is a 1954 admission that the State-as-advertiser escapes its own statute: read it with Common Cause para 7–para 29, where the Court supplies the discipline the legislature never wrote. Saving (b) is the science-blogger's shield; (c) is why medical journals carry prescription-drug ads that newspapers may not. **The "free commercial circulation" balance in one line: the Act regulates the merchant's voice, protects the physician's and the scientist's, and exempts its own.**

B3 · The Indecent Representation of Women (Prohibition) Act, 1986 — the dignity limb of ad-law

`bare Act (7 pp.)` Act No. 60 of 1986, assent **23 December 1986**, in force **2 October 1987** (G.S.R. 821(E)) — the J&K exclusion removed by Act 34 of 2019. Long title: "to prohibit indecent representation of women through advertisements or in publications, writings, paintings, figures or in any other manner…" DU Case Material reprints ss.3, 4 and 6 **verbatim inside Ajay Goswami** (PDF pp. 227–228) — the Union of India's own exhibit of "laws in existence" when asked to censor the press (Part C1).

Section	Content	Anatomy
s.2(a) "advertisement"	"includes any notice, circular, label, wrapper or other document and also includes any visible representation made by means of any light, sound, smoke or gas".	Four-senses-plus definition — wider than DMR's by "gas"; billboard, projection, jingle, even theatrical display.
s.2(c) "indecent representation of women"	"the depiction in any manner of the figure of a woman, her form or body or any part thereof in such a way as to have the effect of being indecent, or derogatory to, or denigrating, women, or is likely to deprave, corrupt or injure the public morality or morals".	Three alternative effects (indecency / derogation-denigration / depraving-corrupting) — **no obscenity threshold required**: the offence is complete without "lascivious…prurient interest" (compare IPC 292's test which Goswami reprints next to it). Truth, relevance to the product and audience consent are not elements.
s.3 Advertisements	"No person shall publish, or cause to be published, or arrange or take part in the publication or exhibition of, any advertisement which contains indecent representation of women in any form."	Liability net: publisher + causer + arranger + one who "takes part" + exhibition — the advertising agency and the hoarding-owner are inside; mirrors DMR s.2(d) reach.

Section	Content	Anatomy
s.4 Publications + provisos	Prohibition on production, sale, hire, distribution, circulation, postal transmission of any "book, pamphlet, paper, slide, film, writing, drawing, painting, photograph, representation or figure" containing indecent representation — with savings: (a)(i) public-good/"science, literature, art, or learning or other objects of general concern"; (a)(ii) bona fide religious use; (b) ancient monuments/temples/idol-cars; **(c) "any film in respect of which the provisions of Part II of the Cinematograph Act, 1952 will be applicable"**.	Saving (c) = the certificate defence: a CBFC-certified film escapes this Act — cinema's pre-certification absorbs the indecency jurisdiction (the Goswami excerpt uses precisely this to show why the censorship model exists for films). For print and outdoor advertising there is no certificate — hence s.3's absolute ban.
s.5 Search & seizure	Gazetted officer authorised by the State Government: entry/search at all reasonable times; seizure of "any advertisement or any book…"; examination/seizure of records; **no entry into a private dwelling without a warrant**; seizure may reach the inseparable carrier object (wrappers, stock); CrPC 1973 search formalities via its s.94; seizure reported to the nearest Magistrate for custody orders.	Same template as DMR s.8 (1963 model) — the two statutes are twins; note the dwelling-house proviso as the rights-side detail.
s.6 Penalty	First conviction: imprisonment to **2 years + fine to ₹2,000**; second/ subsequent: **not less than 6 months and up to 5 years + fine ₹10,000 to ₹1,00,000**.	Compare DMR s.7 (6 months/1 year): the 1986 Act treats indecent representation as the graver wrong — a useful sentence for a comparative question.
s.7 + ss. 8–10 (as arranged)	Company-officer liability (in-charge; consent/connivance/negligence; firm-partner explanation); good-faith protection for officers; rule-making (the Indecent Representation of Women (Prohibition) Rules).	Standard special-statute machinery; the Act has no "editorial justification" defence — that argument runs through s.4(a)(i) for publications, none for advertisements.

Put it together (one answer-paragraph)

Read with s.292 IPC (→ **BNS 294**) and the Obscene-ad provisions of the Cable Rules (r.7, Part B4), the IRW Act supplies the **dignity-based** regulation of even truthful advertising: a skin-cream advertisement may be perfectly honest about pH and still offend s.2(c) by denigrating women — the statute protects the depicted class, not the deceived consumer. Ajay Goswami is the DU Case Material exhibit: the petitioner demanded precisely such a filter for "sex-oriented but not obscene" newspaper content; the Court refused a prior filter, and justified refusal by pointing to these very existing laws plus PCI norms (PDF pp. 184–186, 233).

B4 · The full advertising stack — Cable code · Young Persons · Emblems · ASCI · CPA · digital labelling

(i) Broadcast: Cable Act s.6 + Rules 1994 r.7 — verbatim from the MIB compilation (PDF pp. 44–45)

"Rule 7 deals with restrictions on advertisements. The Advertising Code in the Cable Network Rules says that all advertising carried in the cable service have to conform to the laws of the country and should not offend morality, decency and religious susceptibilities of the subscribers. The code says that **no advertisement shall be permitted which**: derides any race, caste, colour, creed and nationality; is against any provision of the Constitution of India; tends to incite people to crime, cause disorder or violence, or breach of law or glorifies violence or obscenity in any way; presents criminality as desirable; exploits the national emblem, or any part of the Constitution or the person or personality of a national leader or a State dignitary; in its depiction of women violates the constitutional guarantees to all citizens; projects a derogatory image of women (with the positive duty that the portrayal of the female form be "tasteful and aesthetic, and … within the well-established norms of good taste and decency"); exploits social evils like dowry, child marriage; **promotes directly or indirectly production, sale or consumption of cigarettes, tobacco products, wine, alcohol, liquor or other intoxicants, infant milk substitutes, feeding bottle or infant food**." And "**The Rules prohibit advertisements that**": are "wholly or mainly of a religious or political nature or directed towards any religious or political end"; contain references hurting religious sentiments; lead the public to infer "some special or miraculous or supernatural property or quality, which is difficult of being proved"; are "excessively loud" in pictures/audible matter; endanger the safety of children or create interest in unhealthy practices or show them "begging or in an undignified or indecent manner"; contain "indecent, vulgar, suggestive, repulsive or offensive themes or treatment"; violate "the standards of practice for advertising agencies as approved by the Advertising Agencies Association of India, Bombay, from time to time". — Enforcement: s.6 (no non-conforming advertisement), s.19 (prohibition order by authorised officer), s.20(2)-(3) (Central Government against channel), s.16 (penalties: to 2 yrs / ₹1,000, repeat to 5 yrs / ₹5,000), s.18 (cognizance on authorised-officer complaint only); the s.21 list pulls in Drugs & Cosmetics, Pharmacy, Emblems, Drugs Control, Cinematograph, DMR, PFA, Prize Competitions, Copyright, Trade Marks, IRW, Consumer Protection Acts.

Two constitutional observations the code invites (write both)

(1) The **political-advertisement ban** in cable means private TV cannot carry political or religious advocacy — political messaging is confined to the State's own channels (DD/AIR, with 2026 draft rules' Akashvani-bulletin provisions) and to the print/internet — the unit's "broadcasting political messages" thus has an allocation logic, not a content logic (CAB grammar, Unit 4). (2) The tobacco/alcohol/infant-food bans are the paradigm of regulating **truthful** advertising — subject-matter prohibition justified by public health; compare the smoking-picture line in Bobby Art (A3) and the F.S. Nariman Committee's "vetting of … advertising through the existing statutes" as an accepted limit (Destruction para 31(c)).

(ii) The rest of the stack — one row per instrument

Instrument	Ad-specific content	Source status
Newspaper (Prices and Pages) Act 1956	Central Government orders may regulate price against pages, size — "and for the space to be allotted for advertising and other related matters for the purpose of preventing unfair competition among newspapers so that newspapers … can have fuller opportunities of freedom of expression" — the statute that made ad-space a legal variable (the Sakal/Bennett Coleman saga, A3).	`Notes verbatim`
Young Persons (Harmful Publications) Act 1956	Bans publication/transfer/sale/import of "harmful publications" — comics/strips picturing crime, violence, excretion or indecency in a way likely to deprave children; listed in the MIB compilation among print statutes (item 27). Text not — name + purpose only; its function here is the **minors'-audience** limb of ad-content law (the Goswami petitioner wanted exactly this extension to newspapers).	`List` / flagged
Emblems and Names (Prevention of Improper Use) Act 1950 + Rules 1982; State Emblem of India (Prohibition of Improper Use) Act 2005 + Rules 2007	Prohibit trade/name use of the national emblem and specified emblems — the statute behind Cable r.7's "exploits the national emblem" bullet (incorporated by Cable Act s.21) and DAVP display rules for government ads.	`List + s.21`
ASCI — Code of Advertising Practice	Named in the MIB compilation as an applicable guideline ("The Code of advertising practice of the Advertising Standards Council of India"); the Cable code's last bullet delegates to **AAAI standards**. ASCI = voluntary self-regulation: four general principles (truthful/honest representation, harm to society, unsocial scenes, public sensitivity), consumer complaints, EPC on non-compliance, and the 2021-plus influencer/advisor endorsement rules — present it as the private arm of the stack the statute list itself acknowledges.	`List` + external

Instrument	Ad-specific content	Source status
Consumer protection	MRTP Act 1969 ss.36–39 (restrictive TPs incl. false representations; MRTP Commission) → repealed regime absorbed into **CPA 2019**: s.2(47) unfair trade practice incl. "false statement … misrepresenting that … goods/ services have characteristics … which they do not have …" and "publi[c]ity which misleads"; CCPA regulator; s.18 inquiry/orders; **s.89 penalty for false or misleading advertisements** (fine up to ₹10 lakh; second/subsequent up to ₹50 lakh and/or imprisonment up to 2 years; power to prohibit publication, incl. celebrity endorsers after the 2022 amendments) `– verify section numbers when quoting`.	Flagged
Digital advertising layer	IT Act 2000 s.69A (blocking an ad landing page via 2009 Rules); 2021 Rules r.3(1)(b)(vi)&(x) (patently false/misleading content the intermediary must disable); **r.4(3) — the ad-labelling rule (verbatim in DU Case Material's X excerpt, PDF p. 213)**: an SSMI transmitting information "for direct financial benefit in a manner that increases its visibility or prominence, or targets the receiver" or that it owns/exclusively licenses "shall make that information clearly identifiable to its users as being advertised, marketed, sponsored, owned, or exclusively controlled" — statutory disclosure of native/paid promotion, i.e. the digital twin of the paid-news problem (Part F).	`DU Case Material`
Drugs & Magic Remedies Rules 1955; Drugs & Cosmetics Act 1940 (misbranding/label standards); Pharmacy Act; Prize Competitions Act 1955; PFA (now FSSA 2006)	The label-and-claim statutes the Cable s.21 list and the DMR proviso network incorporate — the "wrapper legend is an advertisement" rule (s.2(a)) makes them all advertisement law.	`s.21 text` / flagged

Product class gate
DMR s.3+Schedule (54) · s.5 magic · tobacco/alcohol/infant-food bans (Cable r.7) · Young Persons (minors)

→

Claim honesty gate
DMR s.4 "false or misleading" · CPA 2019 s.2(47)/s.89 · IPC/BNS cheating & forgery for the egregious case

→

Content-decency gate
IRW ss.2(c)–4 · s.292 IPC → BNS 294 · "miraculous/supernatural" bullet · religious-sentiments bullet

→

Symbols & politics gate
Emblems/State Emblem Acts · r.7 political/religious ad ban on cable · DAVP 18(d) (advertisements as reward/punishment)

→

Distribution gate
Prices&Pages (space); r.4(3) labelling; s.69A blocking; Prices — "even a truthful ad can be banned at retail"

C1 · Case 23 — Ajay Goswami v. Union of India, AIR 2007 SC 493 · facts, issues, arguments

`DU Case Material PDF pp. 221–240 (printed 178–197) · section header: "Media, Advertisement and Law – Protection of Minors from Harmful and Disturbing Material" · Dr. A.R. Lakshmanan, J. (for himself and Tarun Chatterjee, J.)`

Facts (as printed)

"The Petitioner is a lawyer by profession. Respondent No.1 is Union of India, respondent No.2 is a statutory body [**the Press Council of India**], respondent Nos. 3 & 4 are the leading national daily newspapers [**The Times of India; Hindustan Times**] and respondent No.5 & 6 are news agencies." The petition "involves a substantial question of law and public importance on the fundamental right of the citizens, regarding the freedom of speech and expression as enshrined under Article 19(1)(a)... The petitioner's grievance is that **the freedom of speech and expression enjoyed by the newspaper industry is not keeping balance with the protection of children from harmful and disturbing materials**." He conceded that the press may express its ideas, "but on the same hand, individual also has right to their own space and right **not to be exposed against their will** to other's expressions of ideas and actions." He asked the Court to direct the authorities "to provide for **classification or introduction of a regulatory system**" built on "reciprocal tolerance": (a) acceptance of others' rights to express and receive ideas; (b) "accepting that other people have the right not to be exposed against their will...". The context: "the growing tendency among youngsters and minors in indulging in X-rated jokes, SMS and MMS." (PDF pp. 221–222.)

The evidence-bank the Court records (para 1, verbatim-condensed): the petitioner produced newspaper clippings "only examples... of general nature": double-meaning jokes that "cannot in any way leave healthy impact on the tender minds of the teenagers"; photographs captioned "the center of attention", "double jeopardy", "butt of course" — which "leave much for the thoughts of minors"; columns titled "moan for more", "get that zing bag into your sex life"; MMS-clipping news items with nude photographs "with only small black stripes on the private parts"; and an article in **The Times of India dated 1.8.2005 titled "Porn In potter VI"** — the author "tried to read and suggest sexual messages in these lines. Children who were reading the book might not have any such inclination. However, after reading newspaper their mind would certainly wander to an area which the author might not have even conceived." His thesis: "all sex oriented material [is] not always obscene or even indecent or immoral" — the effect must be judged by the adult standard ("reasonable strong minded, firm and courageous man"), but "**No attempt has been made till date to define any yardstick for the minors** whose tender minds are open for being polluted and are like plain state on which any painting can be drawn." Exam use: this is the DU Case Material's canonical statement of the "truthful-but-harmful to a subgroup" advertising/content problem.

Issues

1. "**Is the material in newspaper really harmful for the minors?**" (¶ heading, PDF p. 222) — i.e., may content lawful for adults be separately regulated to protect children?
2. "**Whether the minors have got any independent right enforceable under Article 32 of the Constitution?**" — flowing from 19(1)(a), 21 read with 39(f) and the UN Convention on the Rights of the Child (the excerpt develops this through Anand Patwardhan, Lakshmikant Pandey ("supremely important national asset"), the National Policy for the Welfare of Children, Unnikrishnan, Kesavananda (Parts III + IV are "the conscience"), Brown v. Board, M.C. Mehta (PDF pp. 222–225)).
3. Maintainability — can the Court issue a **mandamus for legislation** / direct rules regulating what newspapers may print?
4. (By reference to the arguments) Whether the **existing machinery** — IPC s.292/293, the IRW Act, the PCI Act and the newspapers' own vetting — is a sufficient answer, making judicially-imposed classification unnecessary?

C2 · Ajay Goswami — decision, the obscenity code, principles

Decision — DU Case Material's full arc (PDF pp. 231–240)

Principles evolved (this unit's reading)

- **Child-protection cannot justify source-side prior restraint on lawful adult content** — Reno/Playboy/Butler applied; the American "reduce the adult population to what is fit for children" test is absorbed into Indian doctrine through this judgment.
- **The adequacy-of-existing-law answer** is the template for every "regulate advertising/aesthetics" PIL: the Court enumerates (criminal law + PCI + self-vetting) and remits to norm-development — see the parallel refusal in Destruction para 34 (Unit 4 D3).

- **"Regulation at the receiving end"** (warning labels, packing, watershed, parental tools) is the doctrine acceptable form of the child filter precisely the DMR/Cable-r.7 technique of subject-matter and audience regulation, and today's platform UI controls.
- **Advertising is where the press regulates itself best** — the record of internal ad-scrutiny, refusal of liquor/sex-exploitative ads and school supplements is the DU Case Material's exhibit for self-regulation actually working in the advertising domain (contrast the Uma-Khurana failure in broadcasting, Unit 4 E7).
- **The amendment mandate stands unimplemented**: PCI s.14 punitive teeth (the 6.1.2002 letter's proposed ss.14(2)(a)–(b)) were asked for in 1999–2003 and again here in 2006; still not enacted — the bridge to Unit 4's B3/B4 (the Media Council movement).

D1 · Case 24 — Common Cause v. Union of India, (2015) 42 SCD 686 · facts, Committee, issues, arguments

DU Case Material PDF pp. 242–253 (printed 198–209) · section header: "Media, Advertisement and Law – Guidelines For Regulating Content of Government Advertisements" · Ranjan Gogoi, J. (for himself and Pinaki Chandra Ghose, J.)

Facts & genesis (paras 1–5, as printed)

"**Common Cause and Centre for Public Interest Litigation**, two registered bodies, have approached this Court under Article 32 of the Constitution seeking an appropriate writ **to restrain the Union of India and all State Governments from using public funds on Government advertisements which are primarily intended to project individual functionaries of the Government or a political party**", and for guidelines "to regulate Government action in the matter so as to prevent misuse/wastage of public funds in connection with such advertisements." The petitioners' case (para 2) came in two halves — a **concession** and a **charge**: they conceded "the beneficial effect of government advertisements which convey necessary information to the citizens with regard to various welfare and progressive measures as also their rights and entitlements"; but charged that "in the garb of communicating with the people, in many instances, **undue political advantage and mileage is sought to be achieved by personifying individuals** and crediting such individuals or political leaders … as being responsible for various government achievements and progressive plans", that the practice "becomes **rampant on the eve of the elections**", and that such ads "not only result in gross wastage of public funds but constitute misuse of governmental powers besides **derogating the fundamental rights of a large section of the citizens as guaranteed by Article 14 and 21**."

The Union's resistance (para 3): "the issues sought to be raised pertain to governmental policies and executive decisions in respect of which it may not be appropriate for this Court to lay down binding guidelines under Article 142" — relying on **Manzoor Ali Khan v. Union of India** (no judicially-commanded pay revision/policy) and the Delhi High Court's **Umesh Mohan Sethi v. Union of India**. **Round one (para 4):** by order dated **23.04.2014** the Court held that "there is no dispute that primary cause [purpose] of government advertisement is to use public funds to **inform the public of their rights, obligations, and entitlements** as well as to explain Government policies, programmes, services and initiatives", that "only such government advertisements which do not fulfill the above requisites will fall foul", acknowledged that "the dividing line between permissible advertisements that are a part of government messaging and advertisements that are politically motivated may at times gets blurred" — and, because "the materials laid before the Court by the parties were found to be inadequate for the purpose of evolving what would be the best practices keeping in view the prevailing scenario in other jurisdictions across the globe", appointed a **three-member Committee: Prof. (Dr.) N.R. Madhava Menon (former Director, National Judicial Academy, Bhopal), Mr T.K. Viswanathan (former Secretary General, Lok Sabha) and Mr Ranjit Kumar (Senior Advocate)**. **Round two (para 5):** the Committee submitted its report with draft guidelines; "It is the plea of the petitioner that the said guidelines should be approved by this Court and directions be issued under Article 142 … **until an appropriate legislation** in this regard is brought into effect by the Parliament."

Issues

1. Whether the expenditure of public money on "self-glorifying" government advertisements violates Art. 14 (arbitrariness/reasonableness of State action) and Art. 21 (the citizens' informational environment), and what test governs?
2. Is the subject justiciable — may the Court frame binding guidelines where the executive domain (DAVP policy) is unregulated by statute, till legislation is enacted (the Manzoor Ali Khan objection)?
3. What should the content rules be — the Committee's draft Guidelines: their principles, exceptions, and enforcement architecture?
4. Four contested specifics: (a) publication of functionaries' photographs; (b) an "Ombudsman"; (c) special performance audit; (d) a pre-election embargo — accept, modify or reject?
5. Whether foreign "best practices" (Ontario; UK; Australia; NZ) can be imported wholesale, and by what method the Court should test their relevance to India?

D3 · Common Cause — the Court's analysis, the four departures, decision and principles

The judicial method (paras 7–9) — three sentences to quote in any answer

Then the fiscal morality: "Article 38 and 39 of the Constitution enjoin upon the State a duty to consistently endeavour to achieve social and economic justice to the teeming millions … **What can be the surer way in the march forward than by ensuring avoidance of unproductive expenditure of public funds**" (para 8) — and the interpretive rule that made the case about types of advertisements, not single ads: "It is neither possible nor feasible or even necessary to try and encompass the myriad situations … Nevertheless, an attempt can be made to arrive at a broad categorization for the purpose of an illustrative understanding" (para 9).

The taxonomy of government advertisements (para 9, complete as printed)

Category	The Court's ruling on it
"Advertisements highlighting completion of a fixed period of the Governments Tenure"	**Permissible.** "not only the achievements are highlighted even the different tasks which are in contemplation are enumerated … Though the achievements of a Government should not be a matter of publicity and really ought to be a matter of perception to be felt by the citizens on the results achieved, **such advertisements do have the effect of keeping the citizens informed of the government functioning and therefore would be permissible**."
"Advertisements announcing projects" (foundation-laying, inaugurations)	**Permissible with a wink:** "Though such advertisements may look like a report card of the Government there is an element of informative content in such advertisements inasmuch as information is conveyed to the citizens as regards government programmes, policies and achievements."
"Advertisements issued on the occasion of birth/ death anniversaries and such other events"	**One advertisement only:** "While such persons must certainly be remembered, what, however, would not be justified is several similar, if not identical, advertisements issued by different Departments on the same occasion as is happening today. **One single advertisement issued by a Central Agency should be enough** to commemorate the anniversaries of the few acknowledged and undisputed public figures whose contribution to the National Cause cannot raise any dispute or debate."
"Advertisement issued on certain other occasions" — the Court's own example: "to mark the centenary year of the Patna High Court"	**Prohibited:** "does not serve any purpose and must be avoided. **Institutions need not be glorified. They must earn glory by contribution and work.**"
"Advertisements announcing policies and benefits for public" — e.g. National Savings Scheme benefits; "an advertisement issued by the Ministry of Health and Family Welfare informing the public of preventable disease, safeguards to be taken, vaccination programmes for the children"	**Fully justified:** "All advertisements that fall within this category would be in public interest … purely informational and make people aware of their rights and entitlements. Similarly, advertisements issued to generate public awareness would also be justified on the touchstone of public interest … highly informative and, therefore, justified."

Plus the patronage rule (para 10) — the media-freedom limb the Court added on its own reasoning: "A connected facet … is the power of the Government to give/award advertisements to selected media houses and the concomitant issue of freedom of press. Award of advertisements, naturally,

~~brings financial benefit to the particular media house/newspaper group.~~ **~~Patronization of any particular media house(s) must be avoided and award of advertisements must be on an equal basis to all newspapers~~** who may, however, be categorized depending upon their circulation. The D.A.V.P. guidelines do not deal with the said aspect ... and hence the necessity of incorporating the same in the present directions **to ensure the independence, impartiality and the neutrality of the fourth estate** which is vital to the growth and sustenance of democracy will have to be weighed and considered by us." (para 12 adds: applicability "including internet advertising".)

The objections and the four departures (paras 13–15, 22–28)

- Bihar's only "emphatic" response was against the photograph restriction (para 13); the Union "seriously disagrees" on **four** counts — (1) restricted publication of photographs; (2) appointment of an Ombudsman; (3) performance audit by each Ministry; (4) embargo on advertisements on the eve of the elections (para 15). All other recommendations: "comprehensive and based on an analytical approach of the best practices prevailing in other jurisdictions ... would serve public interest ... **commend to the Court for acceptance and are accordingly accepted**" (para 17).
- **Comparative method (paras 18–21)** — a passage worth quoting on judicial borrowing: "there can be no blind adherence ... the correct approach will be to discern some of the best practices prevailing in such jurisdictions and thereafter to test the relevance of the same to our own country." Ontario: the three lawful objects (inform of current/proposed policies, programmes or services; inform of rights and responsibilities; "encourage or discourage specific social behaviour in public interest"); "**advertisements are not to include the name, voice or image of any functionary of the State**"; primary objective must not be fostering a positive impression of the ruling government or a negative one of critics. Australia/UK: cost-effectiveness emphasis — "advertising campaigns of more than ... **1 million Australian dollars** require to undergo a cost benefit analysis ... before launching". Some jurisdictions run "a mechanism for review of advertisements on fixed parameters even before they are published" — noted, and **not** imported for India: the Guidelines keep review administrative (self-certification), not censorial.
- **Departure 1 — Photographs: the Court went FURTHER than the Committee (paras 22–23).** "Publication of the photograph of an individual be a State or party functionary not only has the tendency of associating that particular individual with either the achievement(s) sought to be highlighted or being the architect of the benefits ... **Photographs, therefore, have the potential of developing the personality cult and the image of one or a few individuals which is a direct antithesis of democratic functioning.**" The Committee's exception (President/PM; Governor/CM photographs allowed if "essential") was rejected: "**there should be an exception only in the case of the President, Prime Minister and Chief Justice of the country who may themselves decide the question.** Commemorative advertisements of "acknowledged personalities like the father of the nation" would of course carry the photograph of the departed leader." (Governors and Chief Ministers lost the privilege — note the asymmetry and its logic: constitutional dignities vs political office.)
- **Departure 2 — Ombudsman → a three-member body (para 24):** "for ironing out the creases that are bound to show from time to time in the implementation of the present directions and to oversee such implementation the government should constitute **a three member body consisting of persons with unimpeachable neutrality and impartiality and who have excelled in their respective fields**. We could have but we refrain from naming the specific persons and leave the said exercise to be performed by the Union Government."
- **Departure 3 — no special performance audit (para 25):** "the machinery available is adequate to ensure due performance as well as accountability and proper utilization of public money" (CAG's existing audit).
- **Departure 4 — no pre-election embargo (para 26):** "If Government advertisements adhere to the objects and parameters mentioned above we do not feel the necessity of imposing a special curb on government advertisements on the eve of the elections" — the Committee's "as far as possible, ... only advertisements required by law" restriction was left out of the binding set. Comment in answers: the embargo logic survives anyway through the Model Code of Conduct once elections are announced ; the Court preferred subject-neutral content rules over time-based silencing — the classic least-restrictive choice.

Decision — operative order (paras 27–29)

"**We close the matters on the aforesaid note by approving and adopting the recommendations of the Committee except what has been specifically indicated above with regard to (1) publication of photographs of the Government functionaries and political leaders along with the advertisement(s), (2) appointment of an Ombudsman, (3) the recommendation with regard to performance audit by each Ministry, and (4) embargo on advertisements on the eve of the elections.**" + the fairness rider (para 27: "the concepts of fairness and even dispensation to all media/publishing houses will have to be maintained by the Government be it at the Centre or the States") + the self-limitation clause (para 29: directions "cannot be comprehensive ... The gaps, if any, we are confident would be filled up by the executive arm of the government itself inasmuch as **the attainment of constitutional goals and values enshrined in Part IV … is the conjoint responsibility of the three organs of the State**").

Principles evolved

1. **Public money is a fiduciary constraint on public speech:** the State may speak to citizens through advertisements only on the "to inform" objects (rights, entitlements, policies, programmes, dangers); personality projection is outside the power — the test is **reasonableness + fairness + public purpose under Art. 14** (para 7 via the 23.04.2014 order).
2. **Art. 142 gap-filling is legitimate but "naturally time bound"** — interim legislation-substitute till Parliament acts (para 7); clause 8 of the Guidelines itself directs legislation.
3. **Content-neutrality is the constitutionality-anchor:** every binding rule regulates form, duplication, funding discipline — never viewpoint; the Court declined pre-publication censorship devices (para 20) and pre-election embargoes (para 26).
4. **Personality-cult in state advertising is "a direct antithesis of democratic functioning"** (para 23) — the most quotable sentence of the case.
5. **Equal dispensation of advertisements is itself a press-freedom doctrine** (para 10, para 27) — completing the Goswami 18(d) picture: the same instrument that can punish papers for "unethical practices" must not be used to patronise them; DAVP allocation is constitutional subject-matter.
6. **Commemoration discipline:** one government-wide advertisement for national icons; institutional self-glorification (the "centenary of the Patna High Court" type) impermissible.

E1 · "Government advertisements and the media" — the DAVP system and the rules that bind it

The 5.2 half of the unit is a machinery question: **how does the State buy space in private media, and what law controls the buying?** Every element below is documented in the project files.

Component	What the project shows	Legal significance
DAVP — Directorate of Advertising and Visual Publicity (I&B Ministry)	Named in Goswami (18(d) suspension policy, 1.6.2006 — "newspapers will be suspended from empanelment by DG, DAVP ... if it indulged in unethical practices or anti-national activities as found by the Press Council of India"), defined in the Common Cause Guidelines ("the existing guidelines of the Directorate of Advertising and Visual Publicity of the Ministry of Information and Broadcasting dealing with the eligibility and empanelment procedures and rates of payment and such other matters"), and in the MIB compilation's applicable-policies list: "**4) Advertisement Policy; 5) Electronic Media Advertisement Policy; 6) Guidelines for Empanelment of Audio-Video Producers with DAVP; 7) Policy guidelines for empanelment of private C&S TV Channels for government advertisements by DAVP**..." (PDF p. 21). The Court in Common Cause para 10: the DAVP guidelines "do not deal with" patronage/equal dispensation — the gap the judgment fills.	The empanelment system = universal buyer of record for government ads (print, TV, radio, outdoor; now digital) — eligibility, rates, audit. Its silence on content was constitutionalised into the 2014 Guidelines. 18(d) is the example of **economic regulation doing content regulation's work** — discuss with the "chilling" literature from Shreya (Unit 4 G2).
The State's message on the public broadcaster	Prasar Bharati Act s.12(2)(b) (objective: fair, balanced flow of information without advocacy); s.12(4) (Corporation may manage External Services for the Central Government); **s.12(5)** — "the Central Government shall have the power to determine the maximum limit of broadcast time in respect of the advertisement"; s.23 (sovereignty/security/public-order directions, laid before Parliament). MIB-notes: "the Government has not allowed news on private radio outfits yet" (PDF p. 15).	Political messaging on AIR/DD historically runs through the government's own broadcaster — but the 1990 Act separates it: a Board decides, the government may direct only on three grounds, transparently. The "non-lapsable fund" and ad-time cap show the funding-vs-autonomy tension (Unit 4 E1).

Component	What the project shows	Legal significance
Must-carry of the State's channels	Cable Act s.8 (2011 substitute): "The Central Government may … specify the names of **Doordarshan channels or the channels operated by or on behalf of Parliament**, to be mandatorily carried by the cable operators …; (2) The channels … shall be re-transmitted **without any deletion or alteration** of any programme transmitted on such channels." — verbatim from the Act. The June 2026 draft rules r.31(2): notification of Schedule-1 channels "to be mandatorily re-transmitted by the authorised entity" (consultation paper). Community radio: "not broadcast any programme related to the news, except for **unaltered news bulletins of Akashwani**, which may be translated … (d) ensure that the news bulletins … is **not distorted or edited** during such translation" (r.44(1)(c)–(d)).	Parliament channels' carriage = infrastructure-level "political messaging" guarantee; the Akashvani-bulletin rule = the State's monopoly on broadcast news extended into community radio, with integrity (no-edit) as the condition — an inversion of the usual censorship worry: here the State's message must travel **unaltered**, but only on platforms licensed for public service. The private-radio news ban + "Advertisement of Political Nature on Radio" as a listed policy (MIB-notes broadcasting list, item x) complete it.
Cinema as the compulsory-carrier	DU Case Material's Union of India v. Motion Picture Association excerpt (PDF pp. 283–288): statutory compulsion on exhibitors to show "a scientific, educational or documentary film or a news film … fifteen to twenty minutes per show", upheld — full dossier in E2.	The historical template: before TV reached villages, the State's message went to citizens through the projector at their own cinema — and the Court said that furthers, not curtails, free speech.
Election-law overlay	RPA 1951 machinery as printed in DU Case Material's paid-news judgment (F1): ss.77 (account of all expenditure "in connection with the election", ceiling by rules — the excerpt prints the Jharkhand ceiling ₹25,00,000 for a parliamentary seat "as per Section 77 read with Rule 90" at the time), s.78 (lodge with DEO in 30 days), s.10A (failure → 3 years' disqualification by gazette notification), s.11 (removal/reduction for reasons). Explanation-1 to s.77 (inserted by Act 46 of 2003) exempts only leaders' travel expenses — DU Case Material's Division-Bench quotation (PDF p. 333). Model Code of Conduct & MCI on ad content/ certificates: .	**Every rupee of political advertising must be counted by the candidate** — that single accounting rule (plus the Common Cause party-purse discipline) is the active constitutional law of "broadcasting political messages" at election time: paid news, proxy ads, party spends presumptively attributed to the candidate (rebuttable presumption per Common Cause as applied in Chavan para 112).
Digital political advertising	2021 IT Rules r.4(3) (verbatim in DU Case Material, PDF p. 213): platforms must label paid/promoted content; ECI advisories (2013, 2019, 2020) asking SMMIs to take action on unauthorised political ads, MCI/ECI-deposited certificates, and the 2023-25 "voluntary code of ethics for political parties on digital media" discussions . The Common Cause Guidelines were expressly applied to "internet advertising" (para 12).	The newest front: social platforms have become the main political-ad marketplace; India's answer so far = soft ECI instruments + labelling + the expenditure rule — the structural gap between "advertising must be disclosed and paid-for" (US-style disclaimer law) and India's spend-ceiling law. A superb 3-mark ending for any 5.2 essay.

E3 · Political messaging — the election-law spine, the Model Code, and the digital frontier

Lever	Operation (source)	Case/exhibit
Spend-accounting (the master key)	RPA 1951 ss.77–78 + Rules 89–90, as printed in DU Case Material's Chavan excerpt (RPA text reproduced verbatim — PDF pp. 327–328): every candidate keeps "a separate and correct account of **all expenditure in connection with the election** incurred or authorized by him or his election agent, nomination-to-result inclusive", capped by rules, lodged with the DEO within 30 days; s.10A disqualification (3 years) for failure "with no good reason".	**Ashok Shankarrao Chavan v. Madhavrao Kinhalkar (2014) 7 SCC 99** — full dossier Part F1: the "wave in your favour" block-advertisements dated a day before polling; the EC's jurisdiction under s.10A upheld over the Sucheta Kripalani form-only reading.
Party-spend presumption	Explanation-1 to s.77 (inserted by Act 46/2003, quoted by DU Case Material via the Allahabad Division Bench, PDF p. 333) exempts only leaders' travel costs; every other party advertisement for a candidate's benefit is presumptively his expenditure — rebuttable (Common Cause as applied at para 112).	Umlesh Yadav's "it was the party's advertisement" defence destroyed by the ₹21,250 + ₹8,000 bills vs her ₹840 receipt (F1).
Model Code of Conduct + s.126 silence window	48 hours before polling: no public meetings (s.126 RPA); MCC bans material appeals to caste/religion, defamatory content, and — since 2013-19 cycles — requires **certificates before publishing political advertisements** and pre-certification of paid political content on electronic/digital media (not in the ; DU Case Material itself records only the s.126A exit-poll regime and related provisions inside Chavan/elsewhere).	Use: the MCC is soft law with statutory teeth through s.126/77 — "the only advertisement a candidate cannot hide is the one he did not buy."
Broadcast allocation of political speech	Cable r.7 bullet: no advertisement "wholly or mainly of a religious or **political** nature" on cable; private radio: news ban + Akashvani-bulletins-only (E1); DD/ AIR free airtime windows for recognised parties under ECI-determined slots at general elections (the policy is outside the ; its legal base is the Doordarshan/ AIR statutes + EC powers under Art. 324/126 as DU Case Material's Chavan excerpt treats Art. 324 powers).	The asymmetry to critique in 5-mark notes: private media barred from carrying political ads; the State broadcaster must share the air — equality-of-access as spectrum-law inheritance (CAB, Unit 4: "control of the public, as distinct from government").
Digital political ads	Common Cause para 12: Guidelines "including internet advertising"; 2021 IT Rules r.4(3) labelling (verbatim in DU Case Material, PDF p. 213); ECI's 2013/2019/2020 advisories to SSMIs on political ads + MCI certificate; 2020 code-of-ethics push for parties on social media .	The frontier question the syllabus poses — "broadcasting political messages" now means targeting; the Indian toolkit is labelling + spend-accounting + the Guidelines' anti-personality clause.

Doctrine pack — five sentences to conclude any 5.2 answer

1. The State as advertiser is held to a **stricter** standard than the State as censor: reasonableness + fairness + public purpose (Common Cause para 7) — because the currency is the taxpayer's, and the audience is the electorate.
2. Political advertising is constitutionally **core** speech when the speaker is a citizen/party (19(1)(a) + free elections), but a **privilege** when the speaker is the government (no right to self-praise at public cost).
3. Every political message has an **accounting identity**: undisclosed spend is the offence (Chavan), not the message — India polices political advertising through the purse, not the content.
4. **Must-carry of official channels is valid only as information-furthering compulsion** (UIMPAA; s.8 Cable Act; r.31(2)/r.44 2026 draft) — propaganda-compulsion is the constitutional line (UIMPAA's own sentence: "None of these statutory provisions require the exhibitor to show a propaganda film").
5. The anti-personality-cult rule (Common Cause para 23) is India's distinctive contribution: **even truthful** achievement-ads may be compelled to strip the leader's image — a symmetry with DMR's rule that even truthful efficacy-claims may be stripped from ads. Say this and you have connected 5.1 to 5.2.

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 DU LL.B. Dec. 2024 · Q.8(D) Commercial speech under Article 19(1)(a) of the Constitution of India.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 DU LL.B. 2015 · Q.5(a) Discuss commercial speech and the government's advertisement policy.

MODULE 07 // UNIT 6 · CASES #25–#32

Censorship, Prior Restraint & Judicial Gag Orders

Cinematograph Act, 1952 · Contempt Act, 1971 · IT Act, 2000 · BNSS · POCSO

A1 · Pre- and post-restraint — the doctrine, defined and divided

The two engines, side by side

	Prior restraint (censorship, injunction, licence condition)	Post restraint (punishment, liability)
Definition	State control exercised before speech reaches the public: examination + permission (certification); prohibition of a scheduled performance/telecast (injunction); conditions on what a licensee must show (licence conditions; must-carry).	Sanction after publication for content that broke a line: criminal (obscenity, defamation, contempt, OSA), civil (damages, injunction restraining further copies), regulatory (revocation of licence, code advisories).
Constitutional posture	Suspect for print: Brij Bhushan struck the "sixteen" sanction; "liberty of the press consists in allowing no previous restraint upon publication" (Reliance excerpt, PDF p. 293, quoting Bhagwati J. in Express Newspapers 1959 SCR 12). Accepted — with reasons — for cinema: Rangarajan (PDF p. 259): prior restraint "not only desirable but also necessary". For trials, exceptional and temporary only: Sahara paras 31–34, 42.	Always available, but each law must satisfy Art. 19(2) scrutiny (Rangagopal: "remedy ... only after the publication and governed by the principles indicated herein"); obscenity post-1965 test = community standard not Hicklin (Shreya paras 45–46, PDF p. 41); contempt = s.2(c) +ss.3–7 defences (Act); a certified film is still prosecutable under the IPC "so that ... the Penal Code pro tanto, will [not] hang limp" — but the certificate raises a **rebuttable presumption** (Raj Kapoor para 14 as quoted in Bobby Art, PDF p. 276).
The presumption	Against validity (Pentagon Papers language quoted in Rajagopal para 22: every system of prior restraint "comes to this Court bearing a heavy presumption against its constitutional validity", and the Government "carries a heavy burden of showing justification").	Of constitutionality for legislative restrictions within the enumerated heads — but reasonableness is still tested (Chintaman Rao proportionality, invoked in Sahara para 21).
Who decides	An administrative expert body (Board of Film Certification; its committees) or a court (temporary injunction; postponement order) or the licensing authority (cinema licence conditions).	Criminal courts (after investigation/ complaint; for obscenity, the court may itself view the film — Rangarajan: "We, as did the High Court, viewed the movie").
Real examples (from these texts)	1988: Bombay HC injuncts DD serial 'Honi-Anhoni' episodes 12–13 → SC vacates in days (Odyssey). 1987: Examining Committee refuses certificate to 'Ore Oru Gramathile'; two Revising Committees reverse; Madras HC revokes the U-certificate → SC restores (Rangarajan). 1994–96: 'Bandit Queen' → A-certificate → FCAT → single judge quashes → LP upheld → SC restores A-certificate with the Tribunal's conditions (Bobby Art).	1996: a Gujjar-welfare association's writ seeking a ban is dismissed — the petitioner is "not an aggrieved person" in the sense the courts entertain, and pre-publication displeasure earns nothing (Bobby Art). The Raj Kapoor 'Satyam Shivam Sundaram' prosecution under s.292 proceeded after certification — and the Court preserved both tracks (Bobby Art PDF p. 276). The Tuljapurkar prosecution (ss.292/153A/ 505(2) IPC) proceeded against a poem published in 1994 — 21 years of post-restraint before the SC even decided (K1).

Three sub-species of prior restraint DU Case Material distinguishes (do not merge them in answers)

- **Content-censorship (licensing of expression itself):** film certification — examination, cuts, refusal, categories (Cinematograph Act); the Direct-Performance power over "obscene, seditious, scandalous, defamatory" stage plays (DPA 1876, repealed); the struck-down pre-censorship of journals (s.7(1)(c) East PSU Act, Brij Bhushan).
- **Timing-restraint by courts (gag/postponement):** Reliance (injunction during subscription window); Sahara (postponement orders as "neutralising device", parameters at para 42); Odyssey (injunction against telecast refused); Swatanter Kumar (Delhi HC actually granted postponement + deletion, 2014). The restraint is on publication of what the court already knows — not on the underlying work.
- **Compelled carriage (adding, not subtracting):** UIMPAA — licence conditions requiring exhibition of approved Films Division shorts (1:5), DD cable mandatory (Cable TV Act s.19, Unit 4–5), Akashvani bulletin retransmission (2026 draft Rules r.44, flagged). Test: does it "further informed decision-making" or smuggle propaganda in?

A2 · The constitutional spine as DU Case Material prints it — Romesh Thapar to Sahara, one rail

Romesh Thapar (1950)
ban on entry & circulation of a journal struck; propagation held inside 19(1)(a)
as retold in Swatanter Kumar para 34, PDF p. 82

→

Brij Bhushan (1950)
pre-pUBLICATION censor of "sixteen" items by editor: outside Art. 19(2) (pre-1st Am.) — the case that pushed the 1st Amendment's "decency... morality...defamation...incitement"
DU Case Material Unit-2 chapter; Sahara para 26: "did not say pre-censorship per se is unconstitutional"

→

Virendra (1957)
Punjab Special Powers (Press) Act: pre-censorship + representation upheld
for limited period
; unlimited pre-censorship with no right of representation struck
Sahara para 27, PDF p. 312

→

K.A. Abbas (1971)
Constitution Bench: prior restraint on films constitutional
if
"corrective machinery", independent Tribunal, reasonable time limits; "task of the censor is extremely delicate"
as narrated inside Rangarajan, PDF pp. 260–261; Sahara para 28

→

Rangarajan (1989)
the affirmative theory: films ≠ free marketplace of ideas; censorship "desirable but necessary"; but tests hardened: overall impact, ordinary reasonable man, spark-in-powder-keg, hostile-audience duty
PDF pp. 256–271

→

Rajagopal (1994)

no prior restraint power for the State to protect officials' reputation; six propositions; remedy post publication only (OSA/contempt preserved via prop. (5))
PDF pp. 64–73

→

Reliance Petrochem. (1988) / Sahara (2012)
trial-press axis: injunction only on "real and imminent danger", vacated when subs closed → postponement orders regularised as neutralising device with parameters
PDF pp. 289–304; 305–322

Rajagopal para 22 verbatim — the gag-order rule for the Executive (memorise)

Why DU Case Material prints this here. The Unit-6 chapter itself opens (PDF p. 253) with a prior-restraint-by-injunction case (Odyssey); the Executive-restraint rule (Rajagopal) and the judicial-restraint rule (Reliance→Sahara) bracket the entire unit. The privacy half of Rajagopal (paras 9–13, PDF pp. 64–66: right to privacy "has acquired a constitutional status"; publication of private affairs without consent → tortious) was handled in Units 2.1–2.2 — the gag-order half is re-cited here because the syllabus places prior restraint at the unit's head.

A4 · Cinema and censorship — the Cinematograph Act, 1952, in its full anatomy

Everything DU Case Material assumes about "censorship" in the six cases is one statute: the Cinematograph Act, 1952 (37 of 1952), whose **full text** supplies Part II (ss. 3–8, certification — Central list) and Part III (ss. 9–17, censoring of cinematographs — licences for exhibition, a State/UT list entry). The unit's cases litigate: Part II machinery (Rangarajan, Bobby Art), Part III licence conditions (UIMPAA), and the interface of certification with the Penal Code (Bobby Art quoting Raj Kapoor; Tuljapurkar by analogy).

Part II — certification, section by section (as the bare Act reads)

Section	Content (statutory language summarised; key clauses verbatim)	DU Case Material's case that construes it
s. 2 definitions	(a) **"adult" = "a person who has completed his eighteenth year"**; (b) "Board" = "the Board of Film Certification constituted by the Central Government under section 3" (renamed from "Board of Film Censors" by Act 49 of 1981 w.e.f. 1.6.1983); (bb) "certificate" = certificate under s.5A; (c) "cinematograph" = "any apparatus for the representation of moving pictures or series of pictures"; (dd) "film" means "a cinematograph film" (ins. 1959); (e) "place" includes house, building, tent "and any description of transport, whether by sea, land or air"; (g) "regional officer" (s.5); (h) "Tribunal" = s.5D body. s.1(2): Parts I, II and IV — whole of India; **Part III — the Union Territories only**; (s.1(3) proviso + s.2A) J&K applied from 1.5.1974 (Act 25 of 1973). Commencement: 28.7.1952.	Odyssey: "a citizen's right to exhibit films on Doordarshan … is a part of 19(1)(a)" — the medium question. The Part-III/UT split is why UIMPAA had to litigate three parallel Cinemas Acts.
s. 3 Board	(1) "For the purpose of sanctioning films for public exhibition, the Central Government may, by notification in the Official Gazette, constitute a Board to be called the Board of Film Certification which shall consist of a Chairman and not less than twelve and not more than twenty-five other members appointed by the Central Government" (the 1981 Act substituted the band for "not more than nine"; renaming "Censors" → "Certification" came in the same wave); (2)–(3) salary/allowances and terms of service as prescribed. (DU Case Material at PDF p. 259 still describes it in the old vocabulary: "Section 3 of the Act provides for constitution of Board of Film Censors.")	Rangarajan: the Board acts through committees — the fight over who validly constituted the Revising Committee (Part C2, s.7B order of 21.1.1987).
s. 4 application & orders	(1) applicant applies "in the prescribed manner"; Board after examining "in the prescribed manner" may: (i) sanction for **unrestricted public exhibition** [Proviso (1983): U-certificate **with the caution endorsement** about children below twelve]; (ii) sanction for **exhibition restricted to adults**; (iia) sanction restricted **to members of any profession or class of persons**; (iii) **direct excisions or modifications**; or (iv) **refuse**. (2) "No action under the proviso to clause (i), clause (ii), (iia), (iii) or (iv) shall be taken … except after giving an opportunity to the applicant for representing his views."	Every dossier here: Odyssey (telecast), Rangarajan (refusal → two Revising Committees → U), Bobby Art (A + excisions → FCAT → writ).
s. 5 advisory panels	(1) Central Government may set regional **advisory panels** of persons "qualified … to judge the effect of films on the public"; (2) regional officers; (3)–(4) the Board "may consult" and the panel has a **duty** "to examine the film and to make such recommendations to the Board as it thinks fit".	Rangarajan: Examining Committee composition & s.7B delegation (the 21.1.1987 order) — the High Court's illegality theory (Part C2).
s. 5A certificates	(1)(a) "U" or "UA" certificate for unrestricted exhibition (UA = the child-caution endorsement); (b) "A" for adults-only, "S" for "members of any profession or any class of persons"; marking in the prescribed manner; **Proviso:** "the applicant for the certificate, any distributor or exhibitor or any other person to whom the rights in the film have passed **shall not be liable for punishment under any law relating to obscenity** in respect of any matter contained in the film for which certificate has been granted" — the certificate as an obscenity shield. (2) publication in the Gazette. (3) validity "throughout India for a period of ten years" (10 years — the 2023 amendment later made certificates perpetual; flagged).	The Bobby Art ratio on "A" certificate as the "caution"; Raj Kapoor para 14 "a rebuttable presumption arises in favour of the statutory certificate but could be negatived by positive evidence" (the proviso immunised only against obscenity laws, not all laws).
s. 5B principles	(1) "A film shall not be certified for public exhibition if, in the opinion of the authority … the film or any part of it is against the interests of the sovereignty and integrity of India[,] the security of the State, friendly relations with foreign States, public order, decency or morality, or involves defamation or contempt of court or is likely to incite the commission of any offence." (2) directions of Central Government "setting out the principles which shall guide" the certifying authority — issued as the Certification Guidelines (re-issued 1991; verbatim in Part N1 via Bobby Art and the MIB notes).	Rangarajan: "it is significant to note that Article 19(2) has been practically read into Section 5B(1)" — the statute copies the constitutional heads so that every order carries its own justification.
s. 5C–5D appeal	5C(1): appeal to the Tribunal within 30 days (further 30 for sufficient cause) against (a) refusal; (b) A only; (c) S only; (d) UA only; (e) an excisions/modifications direction; (2) petition in writing + statement of reasons + fee ≤ ₹1,000. 5D: "Appellate Tribunal" by notification; New Delhi; Chairman + ≤4 members; Chairman must be a **retired High Court Judge or person qualified to be one**; members "qualified to judge the effect of films on the public"; (11) after inquiry and hearing both sides, "make such order in relation to a film as it thinks fit and the Board shall dispose of the matter in conformity with such order".	Bobby Art's whole FCAT chapter (Lentin C.J. + three women members; "to delete or even to reduce these climactic visuals would be a sacrilege"); syllabus Ref "s.5D". **Post-2021:** FCAT abolished by the Tribunals Reforms (Rationalisation and Conditions of Service) Ordinance, 4.4.2021 (enacted as the 2021 Act) — aggrieved producers now move the High Court under Art. 226 .
s. 5E–5F suspension/ review	5E(1): Central Government may, by notification, **suspend for a period or revoke** a certificate where the film "was being exhibited in a form other than the one in which it was certified" or is exhibited in contravention of Part II/rules; (2) call-in of certificates; (3) hearing; (4) suspended = deemed uncertified. 5F: application for **review** of a 5E order within 60 (+60) days; Government may confirm/modify/reverse; Board disposes in conformity.	The "interpolation" offence the MIB notes list as the classic enforcement trigger (re-inserting deleted cuts; unshown footage) — Part O1.

Section	Content (statutory language summarised; key clauses verbatim)	DU Case Material's case that construes it
s. 6 revision	(1) "the Central Government may, of its own motion, at any stage, call for the record of any proceeding in relation to any film which is pending before, or has been decided by, the Board, or, as the case may be, decided by the Tribunal (but not including any proceeding … pending before the Tribunal) and … make such order … as it thinks fit"; first proviso — hearing; **second proviso (1983) — "nothing in this sub-section shall require the Central Government to disclose any fact which it considers to be against public interest to disclose".** (2) notification powers: (a) a certified film deemed uncertified in the whole/part of India; (b) same for U/UA/S certificates; (c) **suspension of exhibition for a period** — "no direction issued under clause (c) shall remain in force for more than two months from the date of the notification". (3) hearing before (a)/(b); (4) deemed uncertified during suspension.	Rangarajan's map of the Act; the 2-month ceiling is the statute's own anti-permanent-ban device — pair with Sahara's "limited duration" rule for postponement orders (both legislatures and judges converge on time-bounding).
s. 6A · s. 7 · s. 7A · s. 7B	6A: deliverer of a certified film to distributor/exhibitor must notify "the title, the length of the film, the number and the nature of the certificate … and the conditions, if any". **s.7(1):** exhibiting any film other than a duly certified, unaltered one with its mark; showing an A (or S) film to a non-adult; tampering "without lawful authority (the burden of proving which shall be on him)"; failure under 6A or with Board/Govt orders — **up to 3 years and/or ₹1,00,000 + ₹20,000/day continuing**; video-film proviso (min 3 months, ₹20,000–₹1,00,000); magistrates specially empowered may fine beyond ₹5,000; **"no distributor or exhibitor or owner or employee of a cinema house shall be liable to punishment, for contravention of any condition of endorsement of caution on a film certified as 'UA'"** (child-caution is advisory, not penal — J/K). (2) forfeiture of the film to Government. (3) "The exhibition of a film, in respect of which an 'A' certificate [or a 'S' certificate or a 'UA' certificate] has been granted, to children below the age of three years accompanying their parents or guardians shall not be deemed to be an offence." **s.7A:** police officer may enter, search and seize where an uncertified/adult film to a non-adult/contravening exhibition has been, is, or **"is likely to be"** exhibited. **s.7B:** delegation — powers of the Board under ss.4, 5(3)–(4), 5A and 7C exercisable by Chairman or named members (the 21.1.1987 order relied on in Rangarajan).	The "adult" line (18) + UA/3-year proviso are the statutory bones of **variable obscenity** (Part K); s.7A's "likely to be exhibited" is itself a mini prior-restraint (seizure before screening).

A5 · The machine in motion — the 1983 Rules, the s.5B(2) Guidelines, and what became of the FCAT

(i) The Cinematograph (Certification) Rules, 1983 — the passages the cases actually litigate

Rule	Content as printed in DU Case Material	Point decided
r. 21-22 — Examining Committee	Rangarajan (PDF p. 262): "Under the rules, the Regional Officer shall appoint an Examining Committee to examine the film. The reports and records relating thereto shall be treated as **confidential**. The Rule 22 inter alia, states that after screening the film, the Examining Officer shall **within three working days** send the recommendations of all the members of the Examining Committee to the Chairman."	Why the producer never sees the committee minutes — and why Bobby Art's Tribunal record became the only reasoned public document in the 'Bandit Queen' litigation.
r. 24(1) — Revising Committee	"Rule 24(1) provides for constitution of a Revising Committee. It states that on receipt of the record referred to in rule 22, **the Chairman may, of his own motion or on the request of the applicant**, refer the movie to a Revising Committee" (Rangarajan, PDF p. 262).	The 1989 fight: could a delegated Board member (not the Chairman) "refer" and constitute? — Yes, via s.7B + MIB order 21.1.1987 naming Ms Maithreyi Ramadhurai (Madras), Samik Banerjee (Calcutta), Dr B.K. Chandrashekar (Bangalore): "This order clearly states that the power of the Board shall also be exercisable by the specified members within their regional office."
The rhythm of the file	Odyssey & Rangarajan both show the same clock problem: an exam refusal → revision → (FCAT) → writ — four forums before the scheduled release date, when the release date is the damage. Rangarajan: "In matters of certification of films, it is necessary to take prompt action … The producer who has invested a large capital should not be made to wait needlessly. He has a statutory right to have the validity of the film determined in accordance with law."	Why K.A. Abbas made "reasonable time-limits + corrective machinery + independent tribunal" the price of upholding prior restraint (Sahara para 28), and why s.6(2)(c) caps any Government exhibition-suspension at 2 months.

B · Case 25 — Odyssey Communications Pvt. Ltd. v. Lokvidayan Sanghatana, (1988) 3 SCC 410

`Dossier · prior restraint by injunction · telecast`

Court / Bench
Supreme Court of India — **E.S. Venkataramaiah J. (for himself and N.D. Ojha J.)**; appeal by special leave from an interim order of the Bombay High Court, Aurangabad Bench.
DU Case Material text
PDF pp. 253–255 (printed pp. 211–212), under the chapter's editorial tag **"Curtailment of Right of Citizen to Exhibit Films on T.V."**
Dispute in one line
A civic body's PIL writ produced, within a day of filing, a High Court injunction stopping telecast of two episodes of a Doordarshan serial; the Supreme Court vacated it within fifteen days and told the petitioners where the line is.

FACTS (everything the excerpt prints)

- The serial **'Honi-Anhoni'** (roughly: omens and inauspicious omens — superstition as theme) was produced by **Odyssey Communications Pvt. Ltd.** and telecast by Doordarshan (run by the Union of India) **every Thursday between 9 p.m. and 9.30 p.m.** Episode 12 was due on 14.4.1988; episode 13 on 21.4.1988 — the serial's finale.
- **Writ Petition No. 479 of 1988** was filed at the Aurangabad Bench by **Lokvidayan Sanghatana** (a registered social organisation of Pune with an Aurangabad branch) and **Mahila Sangharsha Samiti, Aurangabad**, represented by member Smt. Anagna Patil. The prayer: direct the Union, the Ministry of Information and Broadcasting and the State of Maharashtra "not to telecast the serial as such telecasting was not in the public interest". The producer was **not impleaded at first**; it was added on its own application on 12.4.1988.
- The pleaded grounds: "in each and every episode … an obscure and mysterious atmosphere was being created due to the way of the presentation of the episodes", generating "fear in the minds of the common viewers and especially of children", "confirming blind faiths, superstitious beliefs in stories of ghosts, rebirth, precognition etc." and "spreading the unscientific way of thinking and blind beliefs"; "it was the duty of the State not to encourage blind beliefs amongst the public by telecasting such episodes."
- **13.4.1988** — the High Court granted the interim injunction (episode 12 could not telecast on 14.4). The appellant rushed to the Supreme Court under Art. 136; on **21.4.1988** the Court granted special leave, **stayed the High Court order "until further orders" and permitted Doordarshan to telecast the serial** — episode 12 went out on 21.4; the appeal was heard on **28.4.1988**, judgment reserved, with the Court announcing then that it would set the order aside and give reasons later; episode 13 telecast on 28.4 under the subsisting stay.
- Odyssey's answer: the serial "did not emphasize superstitious beliefs but on the contrary **criticized and condemned superstition and blind faith**", as ex facie apparent from the scripts produced before the Court; at the end of both episodes "a doctor and a professor gave a scientific explanation for the unusual occurrences portrayed therein". The excerpt prints the closing address to viewers verbatim: "All those who without thinking spread blind faith ought to feel ashamed of themselves. We request all of you that whenever any unusual occurren[ce]s takes place or a seemingly impro[b]able event occurs, before believing in it, to reflect as to whether there is a scientific reason for it or is it purely psychological by nature. If all of

us exercise such caution we believe that the malady of blind faith will soon be eradicated by our society." — the Court thus read the anti-superstition message before balancing convenience.

ISSUES (as the excerpt shapes them)

- **(i)** Whether a citizen has a fundamental right, within Art. 19(1)(a), to have his film/serial **exhibited on Doordarshan** — and whether an injunction against telecast is a restraint of that right?
- **(ii)** Whether the High Court was justified in issuing **ex parte interim injuncti[on]** at the instance of petitioners asserting no legal right, without hearing the producer, on a plea of "public interest"?
- **(iii)** The reserved question — "whether … a citizen has a fundamental right to establish a private broadcasting station, or television center". **Expressly not decided** ("On this question we reserve our opinion. It has to be decided in an appropriate case") — the question the Bombay High Court answered against private airwaves in 1993 and a Constitution Bench settled two years later in CAB (Unit 4 Part C).

DECISION (operative + reasoning)

Appeal allowed; interim order of 13.4.1988 set aside; no order as to costs — with the Court noting at hearing that episode 13's telecast would proceed under its stay. The reasoning ladder:

- **Right located:** "It can no longer be disputed that **the right of a citizen to exhibit films on the Doordarshan subject to the terms and conditions to be imposed by the Doordarshan is a part of the fundamental right of freedom of expression** guaranteed under Article 19(1)(a) … which can be curtailed only under circumstances which are set out in clause (2) of Article 19." The right "is similar to the right of a citizen to publish his views through any other media such as newspapers, magazines, advertisement hoardings etc. subject to the terms and conditions of the owners of the media."
- **Preferred-right posture:** "**Freedom of expression is a preferred right which is always very zealously guarded by this Court.**"
- **No breach alleged or shown:** no contravention of "any specific law or direction issued by the Government"; no favouritism/loss to exchequer pleaded; the objection "had … been raised … on the basis that it was likely to spread false or blind beliefs."
- **Injunction analysis:** the producers denied prejudice; the Union/Doordarshan said the serial was "being telecast after following the prescribed procedure and taking necessary precaution"; in "such a situation, the High Court should not have immediately proceeded to pass the interim order". The petitioners' own delay weighed; "**In the absence of any prima facie evidence of grave prejudice that was likely to be caused to the public generally by the exhibition of the serial it was not just and proper to issue an order of temporary injunction. We are not satisfied that the exhibition of the serial in question was likely to endanger public morality.**" The High Court "overlooked that the issue of an order of interim injunction in this case would infringe a fundamental right of the producer".
- **Judicial restraint:** "What we have stated here is sufficient to dispose of this appeal. The other questions of law which may arise in a case of this nature will have to be dealt with in an appropriate case. We express no opinion on those questions in this case."

PRINCIPLES EVOLVED

1. **Telecast-access as expression:** exhibiting films on (state) television is within Art. 19(1)(a), subject to the broadcaster's terms and conditions — content restriction only via Art. 19(2). Read together with CAB (no right to own the airwaves): the speaker's right travels, the medium's licence does not.
2. **A temporary injunction restraining telecast of a programme is prior restraint** and cannot issue at the instance of persons asserting no legal right, "in the absence of any prima facie evidence of grave prejudice to the public generally". The balance of convenience runs with expression by default.
3. **Ex parte restraint without hearing the exhibitor is reversible error** — procedure is part of the substantive protection (the same safeguard the 1991 certification scheme buys with the s.4(2) hearing proviso, and Sahara with its "hear the media" architecture).
4. **"Decency or morality" (Art. 19(2)) is not a general public-interest veto:** the petitioners' superstition-spreading theory failed not on the merits of the serial but because they had no rights-backed case and no evidence "apart from their own statements". The judgment is a gag-order case before the vocabulary existed: note how fully its reasoning anticipates what Reliance Petrochemicals (1988 SCR Supp (3) 212 — decided within months; Part F) made explicit doctrine.

C · Case 26 — S. Rangarajan v. P. Jagjivan Ram, 1989 SCR (2) 204 ≡ (1989) 2 SCC 574

Dossier · the constitution of film censorship · "Ore Oru Gramathile"

Court / Bench
Supreme Court — **K.J. Shetty, J.** — "These appeals by leave are from the judgment of the Division Bench of the Madras High Court revoking the 'U-Certificate' issued to a Tamil film called 'Ore Oru Gramathile' (In one Village) for public exhibition. Civil Appeal Nos. 1668 and 1669 of 1988 are by the producer of the film and the Civil Appeal nos. 13667 and 133668 of 1988 are by the Union of India" (case numbers as printed; the Union's appear mis-typed in DU Case Material).
DU Case Material text
PDF pp. 256–271 (printed pp. 213–228) — the longest excerpt in the unit; every quotation below is at these pages unless noted.
Dispute in one line
A Tamil film arguing that reservation should be re-based on economic backwardness rather than caste: Examining Committee refused a certificate; two Revising Committees approved it; the Madras High Court, persuaded by the committees' own minorities, revoked the granted "U" certificate; the Supreme Court restored it and, in doing so, wrote the Indian law of **why films may be censored and how the censor must decide**.

C1 · FACTS (as printed)

The film and its plot. "Ore Oru Gramathile" (In One Village). DU Case Material reproduces the synopsis: "A Brahmin widower, Shankara Sastry, has a talented daughter Gayathri. He apprehends that she would not be able to get admission to college because she belongs to a Brahmin community. He seeks advice from his close friend Devashayam, a Tehsildar … He prepares a false certificate showing Gayathri as Karuppayee belonging to an Adi Dravida Community and as an orphan. He issues the certificate under the reservation policy of the Government for the benefit of 'backward communities' identified on caste consideration." Years later Karuppayee — an IAS-trained officer sent to village Annavayil for flood relief — is blackmailed by Anthony (the witness to the forgery); after his death and a government enquiry both she and her father are tried; the village demonstrates for her; "Karuppayee and her father admit in the Court the fact of their having obtained the false caste certificate but they attribute it to circumstances resulting by Government reservation policy on caste basis … They also argue that the reservation policy should not be based on caste, but could be on economic backwardness"; ultimately the government withdraws the case. "This is the theme of the picture presented. As usual, it contains some songs, dance and side attractions to make the film more delectable."

The certification clock. 7.8.1987 — application for certificate. **Examining Committee unanimously refused**. On review, a **first Revising Committee of nine: 8 in favour, 1 against**; the Chairman of the Board then referred the film to a **Second Revising Committee (again nine): majority 5:4 recommended a 'U' certificate subject to deletion of certain scenes**. The minority (printed verbatim): "the film is treated in an irresponsible manner. The reservation policy of the Government is projected in a highly biased and distorted fashion"; the appeal "India is One" was "a hollow-appeal, which in effect touches caste sensitivity of the Brahmin forward caste"; one member: "the impact of the film will create law and order problem"; another: "the film will hurt the feelings and sentiments of certain sections of the public". The majority: "Such a view could be expressed in a free country like India, and it did not violate any guideline." **7.12.1987 — 'U' certificate granted**; writ petitions challenged it; a Single Judge dismissed them; **the Division Bench allowed them and revoked the certificate**, "largely depend[ing] upon the minority view of the Second Revising Committee and also the opinion of the Examining Committee". Producer and Union appealed — meanwhile "The film has since been given **National Award** by the Directorate of Film Festival of the Government of India."

ISSUES

- **(1)** Whether prior restraint (certification as precondition of exhibition) is constitutionally permissible for films at all — Sorabjee's "fundamental point … about the freedom of free expression guaranteed under our Constitution even for the medium of movies".
- **(2)** The standard: whether a film may be judged by "isolated passages disregarding the main theme", and by whose temperament (hypersensitive objector vs ordinary reasonable man).

- **(3)** Whether the impugned scenes and dialogues (reel 3 song; the Ambedkar remark; reel 14 courtroom speech) contravene Guidelines (2)(vi) (vii)/(ix) or Art. 19(2) heads (sovereignty and integrity; security; public order; decency).
- **(4)** Procedure/validity: whether the first Revising Committee was unconstitutionally "hurriedly" constituted by a delegated Board member, vitiating the 'U' certificate; and whether the State's law-and-order affidavit (threats by RPI/DAPM factions to "damage the cinema theatres which screen the film"; demonstrations; arrests on 16.3.1988) could itself justify suppression.

The validity skirmish: committees, delegation, "hot haste" (PDF pp. 262–263)

- High Court: the first Revising Committee was "constituted hurriedly", its constitution by a "delegate Board Member" was "illegal and without authority of law", it "showed unusual favour to the producer by reviewing the film with hot haste"; hence the second committee (and the certificate) were "invalid and inoperative".
- **Supreme Court reverses on all three:** the Govt order of **21.1.1987 under s.7B** (printed verbatim — powers under ss.4, 5(3)–(4), 5A and 7C exercisable by named members at regional offices: Samik Banerjee (Calcutta), Ms Maithreyi Ramadhurai (Madras), Dr B.K. Chandrashekar (Bangalore)), read with s.7B's deeming clause ("anything done … by the Chairman or other member specified in the order shall be deemed to be a thing done or action taken by the Board"), makes the committee's constitution "legally justified and unassailable".
- On speed: "there is no reason to attribute motives … It would be, therefore, proper and indeed appreciative if the film is reviewed as soon as it is submitted. … **He has a statutory right to have the validity of the film determined in accordance with law.**" — the timeliness duty the certification regime owes the producer (and the reason FCAT/writ delays were themselves injury).

The three "side issues", decided by viewing the film (PDF pp. 263–264)

- **The cobbler song (reel 3):** the Court itself watched: "The cobbler sings the song in question with his grandson who is eager to go to school. The song contains references to Kamaraj, Anna and MGR who without even college education became Chief Ministers … While these and other exchanges are going on … the heroine comes and insists that the boy should go to school. She promises to contribute Rs.50 as an incentive … They agree to her suggestion with 'Vanakkam, Vanakkam'. The song thus ends with a happy note…" Holding: "It is true … one or two references in the song are not palatable, but we should not read too much into that writing. It is not proper to form an opinion by dwelling upon stray sentences or isolated passages disregarding the main theme."
- **The Ambedkar remark:** the High Court had heard "Not for 'par'"; the Supreme Court, on viewing, found she said "Dr. Ambedkar worked for the poor, **Not for power**" — "This being the remark there is no basis for the criticism of the High Court." (A pedagogy point: appellate courts re-weigh visual evidence by watching; the MIB notes record that courts in such suits routinely order screening — and note that Bobby Art's "enforced viewing" of the writ court, which the Supreme Court chided, is the flipside of this practice: courts may view, but may not re-certify.)
- **Reel 14 (courtroom speech)** — reproduced verbatim at PDF p. 264: Karuppayee's lines "Now 'Bharat Matha' is under animals' hands" (explained in-film as a reference "only to those who incite caste, language and communal fanaticism"), "It is the Government that divides", "Take any application form they want to know your caste and religion. When all are Indians where is the necessity for this question…", and her formula: "The list of those belonging to forward sections and backward sections could be prepared on the basis of economic considerations. And those below a specified limit of income be included in the backward list."

C4 · The tests, the hostile audience, the decision — and the principles

(e) Democracy and counter-speech — the long middle (PDF pp. 265–268)

Against the High Court's "volatile reaction" reasoning: "It seems to us that the reasoning of the High Court runs a foul of the democratic principles to which we have pledged ourselves in the Constitution. **In democracy it is not necessary that every one should sing the same song. Freedom of expression is the rule and it is generally taken for granted. Every one has a fundamental right to form his own opinion on any issue of general concern. He can form and inform by any legitimate means.** The democracy is a Government by the people via open discussion… The democracy can neither work nor prosper unless people go out to share their views." The excerpt then runs its citation-cascade — each an authority to bank: **Walter Lippmann** ("When men act on the principle of intelligence, they go out to find the facts … When they ignore it, they go inside themselves and find out what is there. They elaborate their prejudice instead of increasing their knowledge."); **Bhagwati J. in Maneka Gandhi** at 696 ("Democracy is based essentially on free debate and open discussion, for that is the only corrective of Government action in a democratic set up…"); **Naraindas v. State of M.P.** at 650 ("there must be freedom not only for the thought that we cherish, but also for the thought that we hate", attributing the marketplace passage to "Justice Holmes in Abramson v. United States, 250 U.S. 616" — DU Case Material's garbling of Abrams v. United States, 250 U.S. 216 (1919), Holmes J. dissenting); **Sakal** (Mudholkar J.: "This Court must be ever vigilant in guarding perhaps the most precious of all the freedoms…"); **Paul Freund** ("The State may not punish open talk, however, hateful…"); **Benjamin Franklin** ("When men differ in opinion, both sides ought equally to have the advantage of being heard by the public."); **Alexander Meiklejohn** at length ("When men govern themselves, it is they — and no one else — who must pass judgment upon unwisdom and unfairness and danger… unwise ideas must have a hearing as well as wise ones… To be afraid of ideas, any idea, is to be unfit for self-government."); **Brandeis J. in Whitney v. California, 274 U.S. 357, 375–8** ("…that the greatest menace to freedom is an inert people; that public discussion is a political duty; … that the fitting remedy for evil counsels is good ones"); **Archibald Cox** ("We tolerate such foolish and sometimes dangerous appeals not because they may prove true but because freedom of speech is indivisible… no man, no committee, and surely no government, has the infinite wisdom and disinterestedness accurately and unselfishly to separate what is true from what is debatable, and both from what is false."). The pre-Constitution Indian line is recalled to show indigenous roots: **Kamal Krishna v. Emperor**, AIR 1935 Cal 636 (advocating a Bolshevik form of government "is not necessarily to bring the present Government into hatred or contempt"); **Manohar v. Government of Bombay**, AIR 1950 Bom 210 (Chagla C.J.: "The revolution preached is not necessarily a violent revolution"); **Niharendu Dutt Majumdar v. Emperor**, AIR 1942 FC 23 (Gwyer C.J.: "There is an English saying that hard words break no bones… we do not feel able to say that his speech … exceeded the legal limits of comment or criticism"); and Europe's **Handyside v. United Kingdom**, [1976] 1 EHRR 737 at 754 ("…applicable not only to 'information' or 'ideas' that are favourably received or regarded as inoffensive … but also to those that **offend, shock or disturb the State** or any sector of the population. Such are the demands of that pluralism, tolerance and broadmindedness without which there is no 'democratic society'… every 'formality', 'condition', 'restriction' or 'penalty' … must be proportionate to the legitimate aim pursued").

(f) THE TEST — the single most quotable paragraph of the unit

(g) Application — reel by reel (PDF pp. 264–267)

- **Sovereignty/security pleaded, found absent:** "We fail to understand how the expression in the film with criticism of reservation policy or praising the colonial rule will affect the security of the State or sovereignty and integrity of India. **There is no utterance in the film threatening to overthrow the Government by unlawful or unconstitutional means. There is no talk for secession either. Nor there is any suggestion for impairing the integration of the country.** All that the film seems to suggest is that the existing method of reservation on the basis of caste is bad and reservation on the basis of economic backwardness is better. The film also deprecates exploitation of people on caste considerations. This is the range and rigor [sic] of the film." (Note the method: reading the reel-14 tirade in context — "animals' hands" explained in the film itself "only to those who incite caste, language and communal fanaticism".)
- **The volatile-audience theory, rejected:** "Whether this view is right or wrong is another matter altogether and at any rate we are not concerned with its correctness or usefulness to the people. We are only concerned whether such a view could be advocated in a film. To say that one should not be permitted to advocate that view goes against the first principle of our democracy."
- **The State's law-and-order affidavit — the "anguished question":** "We are amused yet troubled by the stand taken by the State Government with regard to the film which has received the National Award. We want to put the anguished question, **what good is the protection of freedom of expression if the State does not take care to protect it?** If the film is unobjectionable and cannot constitutionally be restricted under Article 19(2), freedom of expression cannot be suppressed on account of threat of demonstration and processions or threats of violence. **That would tantamount to negation of the rule of law and a surrender to black mail and intimidation. It is the duty of the State to protect the freedom of expression since it is a liberty guaranteed against the State. The State cannot plead its inability to handle the hostile audience problem.** It is its obligatory duty to prevent it and protect the freedom of expression."
- **Deference to the expert committees:** "In this case, two Revising Committees have approved the film. The members thereof come from different walks of life with variegated experiences. **They represent the cross section of the community.** They have judged the film in the light of the objectives of the Act and the guidelines provided for the purpose. We do not think that there is anything wrong or contrary to the Constitution in approving the film for public exhibition."

(h) Decision & principles evolved

Order: "In the result, we allow these appeals, reverse the judgment of the High Court and dismiss the writ petitions of the respondents... no order as to costs." **Ending note:** "Freedom of expression which is legitimate and constitutionally protected, **cannot be held to ransom by an intolerant group of people.** The fundamental freedom under Article 19(1)(a) can be reasonably restricted only for the purposes mentioned in Articles 19(2) and the restriction must be justified on the anvil of necessity and not the quirks [printed: "the quirks and of convenience"] or expediency. Open criticism of Government policies and operations is not a ground for restricting expression. We must practice tolerance to the views of others. Intolerance is as much dangerous to democracy as to the person himself."

1. **Prior restraint on films is constitutional** (unlike print), for the "free marketplace" reason; but it survives only as a regulated prior restraint — Art. 19(2)-mirroring grounds (s.5B(1)), published Guidelines (s.5B(2)), expert multi-member committees, time-bounded procedure, and full judicial review (Abbas conditions re-stated in Sahara para 28).
2. **The overall-impact rule:** a film is judged "in its entirety"; isolated passages, songs or one or two "not palatable" references cannot carry a ban; courts read the treatment, not the topic.
3. **The ordinary reasonable man standard** (Vivian Bose through TAMAS to Rangarajan): firm and courageous viewers, not the "out of the ordinary or hypersensitive man".
4. **The suppression test** — pressing situations, endangered community interest, proximate and direct nexus, intrinsic dangerousness, "spark in a powder keg" — anticipating (and, in DU Case Material's own arrangement, preceding) Shreya Singhal para 45.
5. **The hostile-audience rule:** threats of violence by objectors are an argument against restraint; the State owes expression protection, not panic management.
6. **Delegation and committee procedure are curable and speed is virtue** — s.7B order + "statutory right to have the validity of the film determined in accordance with law".

D · Case 27 — Bobby Art International v. Om Pal Singh Hoon, (1996) 4 SCC 1

Dossier · "Bandit Queen" · the A-certificate and the social-relevance theme

Court / Bench
Supreme Court — **S.P. Bharucha, CJI (for himself and B.N. Kirpal, J.)**; appeals against a Delhi High Court Division Bench (LPA) which had upheld a Single Judge's quashing of the film's certificate.
DU Case Material text
PDF pp. 272–280 (printed pp. 229–237).
Dispute in one line
Phoolan Devi's life on screen: Board refused, Revising Committee recommended "A" with cuts, the **FCAT** (Lentin C.J. + three women members) restored the contested nudity and the vernacular abuses, and gave "A"; a member of the Gujjar community obtained a writ quashing that certificate; the Supreme Court restored the film entire — and in doing so handed Indian censorship its most-used canon: **do they advance the message?**

FACTS (dates exactly as printed)

- The film, "based upon a true story", is summarised at length by the Court itself — child-marriage to "a man old enough to be her father", the beating and rape; the village panchayat blaming her for "enticing" a higher-caste boy; the "indignity and humiliation in the Police station"; bail granted by men "not due to compassion but to satisfy their carnal appetite"; abduction and sexual brutalisation by dacoit-leader Babu Gujjar; Vikram Mallah shooting him "in a fit of rag"; the revenge beating of her husband; the gang-rape by Sri Ram, Lalaram "and others", and the central scene — **"She was stripped naked, paraded and made to fetch water from the village well under the gaze of the villagers, but no one came to her rescue"**; the Behmai revenge (twenty Thakurs killed); surrender; years in jail.
- **17.8.1994** — presented for certification; Examining Committee referred to the Revising Committee under r.24(1) of the 1983 Rules; **19.7.1995** — Revising Committee recommended an **'A' certificate subject to excisions and modifications** ("An 'A' certificate implies that the film may be viewed only by adults").
- Producer appealed under **s.5C** to the **s.5D Appellate Tribunal** — "It is constituted by virtue of the provisions of Section 5C of the Cinematograph Act and consists of the Chairman and members who 'are qualified to judge the effect of films on the public'. In the present case the tribunal was chaired by **Lentin, J., a retired Judge of the Bombay High Court**, and three ladies, **Smt. Sara Mohammad, Dr. Sarayu V. Doshi, & Smt. Reena Kumari**, were its members." The Tribunal's order is quoted: its para 3.1 on the dialect — "The tone and tenor of the dialogues in this film reflect the nuances locally and habitually used and spoken in the villages and in the ravines of the Chambal, not bereft of expletives used for force and effect by way of normal and common parlance in those parts; these expletives are not intended to be taken literally. There is nothing sensual or sexual about these expletives..." — its famous refusal to interfere — "**To delete or even to reduce these climactic visuals would be a sacrilege**" — and its contextual retention of "certain words of abuse in the vernacular": "spoken as they are as colloquially and as part of their daily life, **it would be unfair on our part to castigate the use of these words which we would otherwise have done**". On this unanimous order the 'A' certificate issued.
- **31.8.1995** — screened with English subtitles at the Siri Fort Film Festival of India with MIB permission; **from 25.1.1996** the censored film ran publicly. **27.1.1996** — respondent No.1 (a Hindu Gujjar, president of the Gujjar Gaurav Sansthan, "involved in the welfare of the Gujjar community", who had seen it at the International Film Festival) filed a writ petition to quash the certificate and restrain exhibition: the depiction was "abhorrent and unconscionable and a slur on the womanhood of India"; naming the villain "Babu Gujjar" "lowered the reputation of the Gujjar community and the petitioner"; the rape scene "obscene and horrendous"; Articles 14, 19 and 21 invoked. Single Judge **quashed the certificate**, directed the Board to reconsider an 'A' certificate after excisions "in accordance with his order", and enjoined screening meanwhile; the Division Bench upheld, finding "the Tribunal's order was vitiated by the use of the wrong tests".

ISSUES

- **(1)** Justiciability: may a stranger-petitioner (not producer, distributor or exhibitor) attack a granted certificate under Art. 226 at all — "the machinery under Cinematograph Act was only for those who had some concern with the making of the film and ... citizens who were offended by it were free to approach the High Court under Article 226" (Dr Koul's argument)?
- **(2)** Whether s.5B(1) "decency or morality" + Guidelines 2(vii)/(ix)/(x) (sensibilities; denigrating women; sexual violence) were breached by the frontal nudity, the rape scene and the abuses — judged scene-by-scene (respondent) or by overall impact (Board/Tribunal)?
- **(3)** Whether the certifying Tribunal — an expert, multi-member body including three women — applied the "wrong tests".

The Court's own canon of precedent (each printed at PDF pp. 275–278 — all usable as "DU Case Material-located" citations)

- **K.A. Abbas** (Constitution Bench) at length: para 49 — "The task of the censor is extremely delicate and his duties cannot be the subject of an exhaustive set of commands established by prior ratiocination... Our standards must be so framed that we are not reduced to a level where the protection of the least capable and the most depraved amongst us determines what the morally healthy cannot view or read... **Sex and obscenity are not always synonymous and it is wrong to classify sex as essentially obscene or even indecent or immoral. It should be our concern, however, to prevent the use of sex designed to play a commercial role by making its own appeal. This draws in the censor's scissors.**" para 50 — "it is not the elements of rape, leprosy, sexual immorality which should attract the censor's scissors **but how the theme is handled by the producer**. It must, however, be remembered that the cinematograph is a powerful medium and its appeal is different. The horrors of war as depicted in the famous etchings of Goya do not horrify one so much as the same scenes rendered in colour and with sound and movement would do. We may view a documentary on the erotic tableaux from our ancient temples with equanimity or read the Kamasutra but a documentary from them as a practical sexual guide would be abhorrent."
- **Raj Kapoor & Ors. v. State**, 1980 (1) SCC 43 (the 'Satyam Shivam Sundaram' prosecution): Krishna Iyer J. — "Art, morals and law's manacles on aesthetics are sensitive subject where jurisprudence meets other social sciences and never goes alone to bark and bite because State-made strait-jacket is an inhibitive prescription for a free country unless enlightened society actively participates in the administration of justice to esthetics."; "The world's greatest paintings, sculptures, songs and dances, India's lustrous heritage, the Konaraks and Khajurahos, lofty epics, luscious in patches, may be asphyxiated by law, if prudes and prigs and State moralists prescribe paradigms..."; and the two operative rules the exam always wants: "**May be, even a rebuttable presumption arises in favour of the statutory certificate but could be negatived by positive evidence**" (para 14) and "I am not persuaded that once a certificate under the Cinematograph Act is issued the Penal Code, pro tanto, will hang limp. The court will examine the film and judge whether its public display, in the given time and clime, so breaches public morals or depraves basic decency as to offend the penal provisions" (para 15) — certification and prosecution coexist; the s.5A(1) proviso only immunises the **obscenity** laws.

- **Samaresh Bose v. Amal Mitra** (the 'Prajapati' novel): "A vulgar writing is not necessarily obscene. **Vulgarity arouses a feeling of disgust and revulsion and also boredom but does not have the effect of depraving, debasing and corrupting the morals** of any DU Case Material of the novel, whereas **obscenity has the tendency to deprave and corrupt those whose minds are open to such immoral influences**." Plus the author-position rule ("If we place ourselves in the position of the author and judge the novel from his point of view... the author intends to expose various evils and ills pervading the society") and the readership-class rule (readers "of both sexes and of all ages between teenagers and the aged... will read the book with a sense of shock and disgust and we do not think that any DU Case Material on reading this book would become depraved, debased and encouraged to lasciviousness"; "it cannot be right to insist that the standard should always be for the writer to see that the adolescent may not be brought into con[t]act with sex").
- **State of Bihar v. Shailabala Devi** (Mukherjee J.): "the writing had to be looked at **as a whole** without laying stress on isolated passages... what effect the writing was likely to produce on the minds of the readers for whom the publication was intended... Account had also to be taken of the place, circumstances and occasion of the publication."
- **Sakal + LIC v. Manubhai Shah**: "the only restrictions which can be imposed on the rights of an individual under Article 19(1)(a) were those which clause (2) of Article 19 permitted and no other."

D2 · The message test, the judgment, and what Bobby Art changed

DECISION — the reasons (PDF pp. 278–280)

- **How to read the Guidelines:** the clause quoted in A5 — broad standards, discretion within them, sub-clauses cannot outweigh the sweep; "Where the theme is of social relevance, it must be allowed to prevail. Such a theme does not offend human sensibilities nor extol the degradation or denigration of women. It is to this end that sub-clause (ix) of clause 2 permits scenes of sexual violence against women, reduced to a minimum and without details, if relevant to the theme. **What minimum and lack of details should be is left to the good sense of the certification authorities**, to be determined in the light of the relevance of the social theme of the film."
- **The film re-told to make the point:** "It is not a pretty story. There are no syrupy songs or pirouetting round trees. It is the serious and sad story of a worm turning: a village born female, becoming a dreaded dacoit: an innocent who turns into a vicious criminal because lust and brutality have affected her psyche... The film levels an accusing finger at members of society who had tormented Phoolan Devi and driven her to become a dreaded dacoit filled with the desire for revenge. It is in this light that the individual scenes have to be viewed."
- **The stripping scene:** "The effect of so doing upon her could hardly have been better conveyed than by explicitly showing the scene. The object of doing so **was not to titillate the cinema-goer's lust but to arouse in him sympathy for the victim and disgust for the perpetrators**. The revulsion that the Tribunal referred to was not at Phoolan Devi's nudity but at the sadism and heartlessness of those who had stripped her naked to rob her of every sh[are] of dignity. **Nakedness does not always arouse the baser [instinct]**." The Tribunal's parallel — printed — is to **'Schindler's List'**: Jews "shown frontally, being led into the gas chambers... stripped in their last moments of the basic dignity of human beings. Tears are a likely reaction; pity, horror and a fellow feeling of shame are certain, except in the pervert or to assuage the susceptibilities of the over-sensitive."
- **The rape scene:** "Rape is crude and its crudity is what the rapist's bouncing bare posterior is meant to illustrate. Rape and sex are not being glorified in the film. Quite the contrary. It shows what a terrible, and terrifying, effect rape and lust can have upon the victim. It focuses on the trauma and emotional turmoil of the victim **to evoke sympathy for her and disgust for the rapist**." The expletives: "Too much need not, we think, be made of a few swear words the like of which can be heard every day in every city, town and village street. No adult would be tempted to use them because they are used in this film."
- **The test itself:** "In sum, we should **recognize the message of a serious film and apply this test to the individual scenes thereof: do they advance the message? If they do they should be left alone, with only the caution of an 'A' certificate. Adult Indian citizens as a whole may be relied upon to comprehend intelligently the message** and react to it, not to the possible titillation of some particular scene."
- **The depiction principle:** "**A film that illustrates the consequences of a social evil necessarily must show that social evil.** The guidelines must be interpreted in that light. **No film that extols the social evil or encourages it is permissible, but a film that carries the message that the social evil is evil cannot be made impermissible on the ground that it depicts the social evil.** At the same time, **the depiction must be just sufficient for the purpose of the film**. The drawing of the line is best left to the sensibilities of the expert Tribunal."
- **Composition as competence:** "apart from the Chairman, three members of the Tribunal were woman. It is hardly to supposed that three women would permit a film to be screened which denigrates women, insults Indian womanhood or is obscene or pornographic. It would appear from its order that the Tribunal took the view that it would do women some good to see the film."

Operative order: "We think that the High Court ought not to have entertained the 1st respondent's writ petition impugning the grant of the certificate based as it was principally upon the slurs allegedly cast by the film on the Gujjar community... The appeals are allowed. The judgment and order under appeal is set aside. The 1st respondent's writ petition is dismissed. The 'A' certificate issued to the film 'Bandit Queen' upon the conditions imposed by the Appellate Tribunal is restored. **The 1st respondent shall pay to each appellant the costs of his appeal.**"

PRINCIPLES EVOLVED

1. **Message-advancement test** for scene-by-scene challenges: the question is not "is this image obscene in isolation?" but "does it advance the film's message?" — if yes, leave it alone, with the 'A' caution.
2. **Depiction ≠ glorification**: the extols/depicts line is now the default answer in every "violence against women on screen" controversy — and note its built-in proportionality: the depiction must be "just sufficient for the purpose of the film".
3. **Guidelines are standards, not statutes** — sub-clause lawyering is illegitimate; the sweep (clauses 1 and 3) governs; the certification authority's good sense on "minimum and lack of details" is respected "except in case of stark breach".
4. **Institutional competence:** an expert, representative (here: women-majority) tribunal's finding is the right unit of deference; courts should not re-cut films in writ jurisdiction; the objector's community-sentiment grievance is not a ground to entertain — enforced, at the cost order.
5. **Certificate + prosecution coexist** (via the Raj Kapoor paras 14–15 quotations): 'A' + proviso = immunity from obscenity law only; defamation/ contempt/public-order provisions still bite post-release — the hinge to Part K and to the Tuljapurkar box.

E · Case 28 — Union of India v. Motion Picture Association (AIR 1999 SC 2334)

`Dossier · compelled films at every show · the licence as a censorship instrument · "must-carry" doctrine (cinema-hall edition)`

Court / Bench
Supreme Court — **Sujata V. Manohar J. (for herself and K. Venkataswami & R.C. Lahoti, JJ.)**, on appeals by the Union, West Bengal and Uttar Pradesh against a Delhi High Court judgment dated **31.8.1995** (C.W.P. Nos. 4408 & 4703 of 1993), and the Eastern India Motion Picture Association's writ petition.
DU Case Material text
PDF pp. 281–288 (printed 238–245). The same judgment anchors Unit 5 Part E2 (must-carry) — there the emphasis was cable/television; here it is the cinema licence: which films a hall **must** show, and whether compulsion is itself abridgement.
Dispute in one line
For decades cinema licensees had to show an "approved/notified" scientific/educational/documentary/news short at every performance, at a 1:5 ratio, hired from the Films Division for 1% of net weekly collection. In 1993 the exhibitors' associations said: that is compelled speech violating Art. 19(1)(a) and 19(1)(g); the High Court agreed about the money and struck Condition 15; the Supreme Court reversed — and built India's must-carry jurisprudence out of Woolley and Turner.

FACTS — the three regimes, verbatim (as printed)

Instrument	What it required
Cinematograph Act, Part III, s.12(4) (applies to Union Territories — Delhi)	"The Central Government may, from time to time, issue directions to licensees generally and to any licensee in particular for the purpose of regulating the exhibition of any film or class of films, so that Scientific films, films intended for educational purposes, films dealing with news and current events, documentary films or indigenous films secure an adequate opportunity of being exhibited, and where any such directions have been issued those directions shall be deemed to be additional conditions and restrictions subject to which the license had been granted." — s.16 authorises the rules; hence the **Delhi Cinematograph Rules, 1981**.

Instrument	What it required
Delhi Rules — Conditions 15 & 22	**Cond. 15:** "The licensee shall, when and so often as the Administrator may require, exhibit free of charge or on such terms as regards remuneration as the Administrator may determine, films and lantern slides provided by the Administrator; Provided that the licensee shall not be required to exhibit at one entertainment films or lantern slides the exhibition of which will take more than fifteen minutes in all or to exhibit films or slides unless they are delivered to him at least twenty-four hours before the entertainment…" **Cond. 22:** "The licensee shall cause to be exhibited at each performance given at the licensed place one or more approved films, the total length of which may not exceed 600 m (2000 feet) of approved films of 35 mm size or the corresponding footage … of 16 mm size, and shall comply with any direction … as to the manner in which the approved films shall be exhibited in the course of any performance." Expl.: "Approved film" = "cinematograph film approved by the Central Government". (16 mm conversion: 120 m ≈ 400 ft of 16 mm = 300 m/1000 ft of 35 mm.)
U.P. Cinemas (Regulation) Act, 1955 — s.5(4) + Directions, Notification XXXM(16)/ 81 dated 11.1.1982	"The licensees shall so arrange the exhibition of cinematograph films that approved films are exhibited at every performance open to the public. The ratio of approved films to be exhibited at such performances shall in relation to other films be **one to five** or the nearest approximation thereto." "Approved" = Indian-produced scientific/educational/news-current-events/ documentary film approved by the Centre on the recommendation of the **Film Advisory Board, Bombay**, or Indian News Reviews approved on the Films Division Chief Producer's recommendation. Savings: ≤ 2000 ft per show; ≤ two weeks continuously; no re-exhibition after two weeks; and availability caveats.
West Bengal Cinemas (Regulation) Act, 1954 — s.5(3) + Notification No. 7277-F dated 20.9.1957	s.5(3): directions "for the purpose of regulating the exhibition of any film or class of films … scientific, educational, news and current events, documentary films or films produced in India", deemed additional licence conditions. 1957 Notification: the same 1:5 ratio of "notified films"; ≥ half of the notified time to be allotted to Central-Government-approved (Film Advisory Board) films when available; "notified film" = such a film certified or exempted from certification under Part II of the 1952 Act and notified in the Calcutta Gazette.
The commercial mechanics	Since short films in these categories are "normally produced by the Films Division of the Government of India; each exhibitor is required to enter into an agreement with the films division for the supply of such films for exhibition. Under the terms and conditions of the agreement … the exhibitor is required to pay to the films division a rental amounting to **1% of his net weekly collection** … This rental has remained the same for the past several decad[e]s and is a rental which is fixed as a result of negotiations with the Films Federation of India." A "no objection" certificate from the Films Division was needed at licence renewal.

The litigation: "These impugned provisions have been in force for several decades. The respondents however in 1993 challenged these provisions as violative of their rights under Articles 19(1)(a) and 19(1)(g). The Delhi High Court … held that the condition in the agreement … for charging a rental … is unconstitutional", that obtaining films from the Films Division was "onerous and, therefore, invalid", and struck **Condition 15 as redundant**; while upholding the statutes it directed that the Films Division deliver the films at the place of exhibition free of charge. Appeals by the Union, West Bengal and U.P.; the EIMPAA writ (WP 4703/1993) pressed the Art. 19(1)(a) point the High Court had declined to consider for want of averments.

ISSUES

- (1) Does compelling a licensee to exhibit approved short films/bulletins **at all** abridge Art. 19(1)(a) (exhibitors also pleaded 19(1)(g)) — given that "Article 19(2) … does not cover this kind of compulsion to show educational, scientific and documentary films"?
- (2) Is **compelled speech** ("must-carry") an infringement of free speech even absent a textual 19(2) head — what test decides it?
- (3) Are the content specifications (categories of approved films) permissible if US must-carry law demands **content-neutrality**?
- (4) Are Condition 15 (lantern slides/15 minutes) and Condition 22 (600 m approved films) redundant/ultra vires s.12(4)? Is the Films Division rental unconstitutional?

E2 · Arguments, Woolley & Turner, the decision, the principles

THE TEST — the "informed decision-making" criterion (PDF pp. 286–287)

The American pair, as the Court reads them

- **Wooley v. Maynard**, [1977] 430 US 70S [sic — 705]: New Hampshire's compulsion to carry "Live Free or Die" on number plates "invaded First Amendment rights and could not be justified as facilitating the identification of passenger vehicles or as promoting an appreciation of history, individualism, and state pride." — the paradigm of impermissible compelled speech (a State motto foisted on a Jehovah's Witness).
- **Turner Broadcasting System v. FCC**, [1997] 512 US 622: the Cable Act's must-carry rules were **consistent** with the First Amendment because their purpose was "to preserve the benefits of free over-the-air local broadcast television, promoting wide-spread dissemination of information from a multiplicity of sources and promoting fair competition in the television programme market"; Breyer J. (partly concurring) "balanced the restraints which such a compulsory carriage clause would impose because it would interfere with the protected interests of the cable operators to choose their own programming, against an important First Amendment interest in favour of the provision **viz. promoting the widest possible dissemination of information from diverse and antagonistic sources to facilitate public discussion and informed deliberation**. The latter being basic democratic government purposes which the First Amendment seeks to achieve, they outweighed objections relating to interference with the cable operators' right to choose their own programme."

DECISION

- **Social-context rule:** "Although the First Amendment right under the U.S. Constitution is not subject to reasonable restraint as in Article 19(2), the raison d'être of a constitutional guarantee of free speech is the same. We have to examine whether the purpose of compulsory speech in the impugned provisions is to promote the fundamental freedom of speech and expression and dissemination of ideas, or whether it is to restrain this freedom; **the social context of any such legislation cannot be ignored**. When a substantially significant population body is illiterate or does not have easy access to ideas or information, it is important that all available means of communication, particularly audio-visual communication, are utilized not just for entertainment but also for education, information, propagation of scientific ideas and the like. The best way by which ideas can reach this large body of uneducated people is through the entertainment channel which is watched by all — literate and illiterate alike. To earmark a small portion of time of this entertainment medium for the purpose of showing scientific, educational or documentary films, or for showing news films has to be looked at in this context of promoting dissemination of ideas, information and knowledge to the masses so that there may be an informed debate and decision making on public issues. **Clearly, the impugned provisions are designed to further free speech and expression and not to curtail it.**"
- **On content-neutrality:** "None of these statutory provisions require the exhibitor to show a propaganda film or a film conveying views which he objects to… They, however, contend that one of the important requirements for upholding such compulsory speech in the United States is that such speech should be content-neutral. While in the present case, the contents of the compulsory films are specified in the legislation concerned. **In the context of Article 19(1) what we have to examine is whether the categories of films so required to be carried promote dissemination of information and education or whether they are meant to be propaganda or false or biased information.**"
- **The 19(2) question left unused:** "These provisions, therefore, do not violate Article 19(1)(a) of the Constitution: **they are not in restraint of free speech and expression. Therefore, Article 19(2) is not attracted.**" — the structural point examiners love: a beneficial must-carry rule never reaches the limitations clause because it never abridges the right.
- **Films Division "monopoly":** the contracting-in was factual, not statutory — "This is not because of any statutory compulsion but because of the fact that the Films Division is the only organization which produces such short films on sufficient quantities for regular distribution… **The reason why they do so is because of a la[c]k of adequate alternative sources.**" The renewal NOC was merely compliance-verification. (DU Case Material prints "tack of adequate alternative sources". This paragraph is also the 1999 Court's answer to why the Delhi High Court's "no rental / free delivery" direction could not stand: economics were contractual and industry-negotiated, not constitutional.)
- **Condition 15 & 22:** Condition 15 must be read with s.12(4) — the Administrator may require only films/lantern slides of the s.12(4) categories — "When it is so read Condition 15 will have a direct nexus with the object sought to be achieved, and it can be upheld as a reasonable restriction"; the two conditions "do not overlap, but refer to different sizes and types of short films, shorter films or lantern slides", so the High Court's redundancy holding fell.
- **Order:** "In the premises, the appeals are allowed and the impugned judgment of the High Court in so far as it strikes down the rental and directs the Films Division to deliver the films to the exhibitors is set aside. The writ petition is dismissed. There will, however, no order as to costs."

PRINCIPLES EVOLVED

1. **Compelled carriage is judged by function, not by label:** does it "further informed decision-making" or force propaganda/partisanship? — India's must-carry test, made a decade before the Cable TV s.19 and Doordarshan relay fights reached the same clause (cross-link: Unit 4 must-carry / CAB; Unit 5 E2 on the 2026 draft Rules r.31(2) must-retransmit and r.44 Akashvani-bulletin rule, external).
2. **Social context is an interpretive source** — literacy, access and the entertainment channel's reach legitimise content-specified carriage duties where a US court would demand neutrality.
3. **Beneficial compulsion is outside 19(2) altogether** — no restraint, no exception needed (contrast Odisha? no — contrast the Odyssey injunction, which was restraint). This is why "must-carry ≠ censorship" survives in answers: censorship subtracts content; a good must-carry rule adds it — subject to the propaganda line.
4. **Licence conditions are read into their parent section** (cond. 15 + s.12(4)); ultra vires-by-silence (the High Court's "too wide" reasoning) is cured by reading-in rather than struck down — the proportionality-by-construction approach.
5. **The cinema licence was India's oldest "platform regulation":** pre-broadcast, pre-internet, the State already tested the proposition that whoever runs a hall opens a forum carrying public duties — the template later used for cable and now for intermediaries (see Part I2; and the Note: Parts III licences remain in force for UTs; states copied — WB/UP Acts quoted above).

F · Case 31 — Reliance Petrochemicals Ltd. v. Proprietors of Indian Express Newspapers, Bombay Pvt. Ltd., 1988 SCR Supp. (3) 212

Dossier · the Supreme Court's own gag order — imposed 25.8.1988, vacated when the danger died

Court / Bench
Supreme Court — **Sabyasachi Mukharji, J. (for himself and S. Ranganathan, J.)**; the order decided "whether there is need for the continuance of the Order of injunction passed by this Court on 25th August, 1988." (AIR 1989 SC 190 as re-stated in Sahara para 30.)
DU Case Material text
PDF pp. 289–304 (printed 246–261) — for scale, 60+ pages of DU Case Material spent on one interlocutory question; that is how seriously the Court treats prior restraint.
Dispute in one line
Then-India's largest public issue (₹593.40 crore of convertible debentures) was being attacked in the Indian Express while its legality sat sub judice before the Supreme Court; the Court first restrained the newspaper, then — when the issue closed oversubscribed — vacated, with the test, the vocabulary ("gagging order") and the right-to-know dictum that Sahara would canonise 24 years later.

FACTS — the chronology the excerpt itself gives

- RPL: certificate of incorporation **11.1.1988**; commencement of business 21.1.1988; application to the Controller of Capital Issues 4.5.1988; **CCI consent 4.7.1988** (for 5,75,00,000 equity shares of ₹10 plus 2,96,70,000 **12.5% Secured Fully Convertible Debentures of ₹200 each at par** — ₹593.40 crore inclusive of retention of 15% excess subscription of ₹77.40 crore), modified **19.7.1988** (RBI permission for NRI allotment under FERA and for employee allotment); prospectus filed with the Registrar of Companies, Gujarat on **27.7.1988**. The plant: "the largest petrochemical complex in the private sector" for MEG, HDPE and PVC; "the largest public issue in India till date and the second largest issue in the world"; **issue open 22.8.1988 - 31.8.1988**; pre-issue spend "sums in excess of Rs.4.5 crores" with ₹20 crore allocated as issue expenses for the "Mega Issue".
- Obstruction litigation: writ petitions at Karnataka (17.8.1988, Balkrishna Pillai), Delhi (18.8.1988), and suits/pleas in Bombay (Suit 1172/1988 K.S. Brahmabhatt v RPL), Rajasthan and later Allahabad, plus MRTP proceedings (J.P. Sharma v RPL) — "filed at the last moment when enormous amount of money had already been spent", some producing injunction orders. RPL moved **Transfer Petitions Nos. 192–193 of 1988** (Art. 139A read with Part IV-A of the Supreme Court Rules, 1966).
- **19.8.1988** — notices returnable 9.9.1988 and the famous protective order: "The issue of 2,96,70,000, 12.5% secured convertible debentures of Rs. 200 each ... to be proceeded with, without let or hindrance, notwithstanding any proceedings instituted or that may be instituted in or before any Court or tribunal or other authority. Any order, direction or injunction of any Court, tribunal or authority in any proceeding already passed or which may be passed will by operation of this order be and remain suspended till further orders of this Court."
- **25.8.1988** — RPL drew the Court's attention to an Express article of that day headed "Infractions of Law has Unique Features RPL Debentures" (asserting the CCI "had not acted properly and legally" and that "the issue was not a prudent or a reliable venture"); the petition (filed **19.8.1988 under the Contempt of Courts Act, 1971** against the proprietors, **Shri Arun Shourie**, Resident Editor **Shri Hari Jaisingh**, News Editor Delhi **Shri A.C. Saxena**, Chief New Delhi Bureau **Shri H.K. Dua** and **Shri V. Ranganathan**) prayed, besides contempt, that pending consideration the Express group be "restrain[ed] ... from publishing any materials or articles in relation to the subject matter of the proceedings in the Transfer Petitions ... as the same was alleged to be calculated to affect the Reliance debenture issue which was to open on 22nd August, 1988 till the decision of the transfer petitions". It was in that posture that the interim injunction of 25.8.1988 issued ("the said article proposed at that time has since been published before 31st August, 1988"). The Court noted the press's threat of further publication — "trial by newspapers on issues which are sub judice is one of the grossest modes of interference with the due administration of justice" (RPL's case) — and the matter came back, after elaborate arguments, on continuance. Subscription had closed; "the shares have been over-subscribed but the day of allotment ... has not yet expired and before the allotment the subscribers ... could withdraw their subscriptions."

ISSUES

- (1) Whether an **injunction restraining future publication** of matter about sub judice proceedings should continue after the issue had closed; and by what test at all.
- (2) Whether "the respondents have in fact committed contempt" — expressly **left open** ("the contempt petition ... has not been taken cognizance of by us in the absence of the consent of the Learned Attorney General").
- (3) Whether any publication "contrary to or inconsistent with the prima facie view of this Court" implicit in its 19.8.1988 order may be gagged to protect the Court's own efficacy (the narrower ground in the separate opinion).

F2 · Arguments both sides, the learning, the test — and the principles

The Court's tour of the law (compressed — each block is quotable)

Source	What the excerpt draws from it
Romesh Thapar · Brij Bhushan · Express Newspapers 1959 (via **Express Newspapers 1959 SCR 12** discussion, PDF p. 293)	Bhagwati J.'s distillation: the two 1950 decisions "only laid down that the freedom of speech and expression included freedom of propagation of ideas ... ensured by the freedom of circulation and that **the liberty of the press consisted in allowing no previous restraint upon publication**"; U.S. authority may be consulted "in spite of the warning" in State of Travancore-Cochin v. Bombay Co. and R.M.D. Chamarbaugwala.
Re: P.C. Sen [1969] 2 SCR 649	Chief Minister's broadcast justifying an impugned order while the writ was pending = contempt upheld; "the question is not whether the publication did interfere, but whether it **tended** to interfere, with the due course of justice ... not so much of the intention of the contemnor as whether it is **calculated** to interfere." Distinguished on the facts here (no intimidation of litigants; only comment).
Indian Express Newspapers (Bombay) 1985 1 SCC 641, at 659	Venkataramiah J. on the press: freedom of press not named in Art. 19 but "included as one of the guarantees in Article 19(1)(a)"; "one of the [arounds?] which the greatest and the bitterest of constitutional struggles have been waged"; UDHR Art. 19, ICCPR Art. 19, ECHR Art. 10 texts printed in full; First Amendment text printed.
Bridges v. California, 86 L.Ed. 252 (Black J.)	"free speech and fair trial are the two most cherished values of our civilization and it would be a trying task, and if we may say so, a difficult one to choose between them. But in case of need a choice has to be made"; a "public utterance ... is not to be denied the constitutional protection ... merely because it concerns a judicial proceeding still pending", absent clear and present danger.

Source	What the excerpt draws from it
Frankfurter J., dissenting, at 282–284 (in Bridges)	"free speech was not so absolute or irrational a conception as to imply paralysis of the means for effective protection of all the freedoms secured by the Bill of Rights. **The administration of justice by an impartial judiciary has been basic to the conception of freedom ever since Magna Carta**"; the Massachusetts Declaration — "judges as free, impartial and independent as the lot of humanity will admit"; "A judiciary is not independent unless courts of justice are enabled to administer law by **absence of pressure from without, whether exerted through the blandishments of reward or the menace of disfavour**."
Nebraska Press Association v. Stuart, 49 L.Edn. 683	Burger C.J.: an order prohibiting reporting of evidence adduced at an open preliminary hearing "was bad"; "a responsible Press has always [as] the handmaiden of effective judicial administration" — but the "trial" balance is run through Learned Hand: "**the gravity of the evil, discounted by its improbability, justifies such invasion of free speech as is necessary to avoid the danger**" → the Court: "we must examine the gravity of the evil. In other words, **a balance of convenience in the conventional phrase of Anglo-Saxon Common Law Jurisprudence would, perhaps be the proper test**."
AG v. BBC [1979] 3 All ER 45 (CA) / [1981] AC 303 (HL)	"Mr. Jethmalani relied on the observations of Lord Denning … [who] characterized some of these similar type of injunctions as **'gagging injunctions'**. Mr. Baig, however, protested that … the order did not 'gag' anything that was legitimate. **The House of Lords, however, did not approve the observations of Lord Denning.**" Also printed: Lord Diplock's juror passage — "the [juror] will not be able to put that which he has seen, heard or read entirely out of his mind and that he may be subconsciously affected by it. As Lord Denning M.R. said **the stream of justice must be kept clean and pure**. It is the law, and it remains the law until it is changed by Parliament that the publication of matter likely to prejudice the hearing of a case before a court of law will constitute a contempt of court punishable by fine or imprisonment or both."
AG v. Times Newspapers [1974] AC 273 — the thalidomide case (facts recited in full: 450 deformed children; 1968 compromise of 62 actions; 261 writs' leave; 123 claims; 1971 £3,250,000 trust proposal; five refusals; the Sunday paper's 24.9.1972 article; injunction 17.11.1972; the House of Lords)	"It was held that the contempt of court to publish material which **prejudged the issue of pending litigation or was likely to cause public pre-judgment** of that issue … Reference was made to 's Contempt of Court, .: the contempt involves 3 objects — (i) to enable the parties to come to the courts without interference; (ii) to enable the courts to try cases without interference; and (iii) to ensure that the authority and administration of the law is maintained. **There was no room for the balancing** suggested by the respondents between the public interest in free discussion of matters of public concern and the public interest that judicial proceedings should not be interfered with. (Emphasised by Mr. Baig)." Lord Reid: "anything in the nature of prejudgment of a particular case or of specific issues in it is objectionable … if mass media are allowed to judge, **unpopular people and unpopular causes will fare very badly** … it is [not] permissible to prejudge issues in pending cases"; Lord Diplock's three requirements (access to courts; unbiased tribunal; "no usurpation by any other person of the function of that court"); Lord Simon of Glaisdale: "People cannot adequately influence the decisions which affect their lives unless they can be adequately informed … **Much of such fact-finding and argumentation necessarily has to be conducted vicariously, the public press being a principal instrument. This is the justification for investigative and campaign journalism. Of course it can be abused — but so may anything of value**"; Lord Cross: "'Contempt of Court' means an interference with the administration of justice and it is unfortunate that the offence should continue to be known by a name which suggests to the modern mind that its essence is a supposed affront to the dignity of the court"; and Jordan C.J. (NSW) — "It is of extreme public interest that no conduct should be permitted which is likely to prevent a litigant … from having his case tried free from all matter of prejudice. **But the administration of justice, important though it undoubtedly is, is not the only matter in which the public is vitally interested** … The discussion of public affairs and the denunciation of public abuses, actual or supposed, cannot be required to be suspended merely because the discussion … may, as an incidental but not intended by-product, cause some likelihood of prejudice to a person who happens at the time to be a litigant." (DU Case Material prints the case as "Ex Parte Bread Manufacturers Ltd., [1937] 37 SR (NSW) 242" — evidently the well-known Speech Manufacturers line of NSW authority; flag DU Case Material's form when quoting.)

DECISION — "real and imminent danger", adopted and applied

- **The right-to-know sentence** (memorise): "We must remember that the people at large have a right to know in order to be able to take part in a participatory development in the industrial life and democracy. **Right to Know is a basic right which citizens of a free country aspire in the broader horizon of the right to live in this age in our land under Article 21 of our Constitution.** That right has reached new dimensions and urgency. **That right puts greater responsibility upon those who take upon the responsibility to inform.**"
- **The "own risk" clause**: "At the moment we have to assess whether any article … will so clearly and obviously prejudice or tend to prejudice the course of the proceedings, now pending in this Court, that such publication should be injuncted by, **what the respondents describe as, a 'gagging order'**. … It is sufficient … to clarify … **that should any newspaper publish any such matter, it will be doing so at its own risk and subject to its liability for being proceeded against by the petitioner or others for defamation, contempt of court or otherwise.**"
- **Separate opinion (the second Judge on the Bench)** — worth more than a footnote: it rejected the claim that the paper was attacking the Court's own prima facie findings — "I do not think it would be correct to say that, when we passed the order dated 19.8.1988, we formed any prima facie opinion on the question whether the debenture issue had been validly approved… **what predominantly influenced us … was that, even assuming … that there could be some doubt regarding the validity …, the restraint by any court or tribunal on the issue of debentures at a late stage might prove catastrophic, and cause irreparable loss** … the balance of convenience required that there should be no order of any court or tribunal staying the debenture issue." Yet as to the 25.8 order: the article "though not violative of the terms of the injunction granted by this Court, **could have the effect of circumventing the order of this Court and rendering it ineffective. It had, prima facie, a tendency to affect the efficacy of, and defeat the object with which this Court had passed the interim order dated 19.8.88. This is the reason why we passed the second order** … In my opinion the said order was rightly passed and that the contention … that no such injunction ought to have been granted at all is not acceptable." But "the position today … has radically changed" — and on the refund-panic argument: "the danger apprehended … is not so real or substantial as to warrant the continuance … **There is no possibility that, pending determination of the issues raised, any court will order interim relief to such applicants by way of grant of such refunds.** … I therefore agree that there is no justification for the continuance of the interim order dated 25.8.88 any longer."

PRINCIPLES EVOLVED

1. **Prior restraint of the press is not categorically forbidden nor casually allowed** — it requires (a) a sole aim of keeping "the administration of justice unimpaired", and (b) "reasonable ground to believe that the danger apprehended is real and imminent", operationalised as a **balance of convenience**. (Sahara para 30 later re-states exactly this as the Reliance test: "The Court went by the doctrine propounded by Holmes J., of clear and present danger. This Court treated the said doctrine as the basis of balance of convenience test. Later on, the injunction was lifted after subscription to debentures had closed.")
2. **Commercial protection is not a gag ground:** "the danger" meant danger to the judicial process — investor panic about allotments was not prejudice to the Transfer Petitions; the market effect of honest journalism stays outside the gag calculus.
3. **Protection of the court's own orders extends to circumvention-by-publication** — an article can be restrained while it functionally "render[s] ineffective" a live interim order even without violating its terms (separate opinion; absorbed into Sahara para 33's reading of Arts. 129/215 + "administration of justice is not perverted").
4. **Lifting ≠ licence:** publication resumed "at its own risk" — defamation/contempt exposure survives every vacatur; a gag order is about timing, never about innocence of the content.
5. **"Trial by newspaper" is the named enemy** — Baig's phrase, the P.C. Sen standard ("tends to interfere", "calculated to"), and the refusal to hold any actual contempt on this application all map the space the Contempt Act occupies: s.2(c) punishes after; s.15 gatekeeps before (AG consent absent here!); and nothing in the Act authorises an ex ante publication ban except the courts' inherent jurisdiction.
6. **Right to know under Art. 21** — the 1988 seed of Sahara's "rights of equal weight" jurisprudence and of SP Gupta/PT I.C. (which the excerpt does not cite — do not credit Reliance with them).

G · Case 32 — Sahara India Real Estate Corp. Ltd. v. SEBI, (2012) 10 SCC 603

Dossier · the Constitution Bench's theory of the gag order · G1 — how a leaked settlement letter produced a doctrine

Court / Bench
Supreme Court, five-Judge Bench — **S.H. Kapadia, CJI (for himself and D.K. Jain, S.S. Nijjar, Ranjana P. Desai and J.S. Khehar, JJ.)**.
DU Case Material text
PDF pp. 305–322 (printed 262–279), paras 1–45 as printed; DU Case Material ends the excerpt after para 45 with "******" — subsequent orders are outside the DU Case Material (see honesty note at G5).
Dispute in one line

A "without prejudice" security proposal, sent counsel-to-counsel for three weeks of negotiation, was flashed on a news channel the day before the hearing — and the Supreme Court used its own contempt-formulated grievance to declare, for the first time at Bench-of-Five level, when courts may postpone publication, why such orders do not offend Art. 19(1)(a), and what safeguards must accompany them.

FACTS (paras 1–16, all as printed)

- **The underlying litigation.** Civil Appeals Nos. 9813 & 9833 of 2011 challenged the **Securities Appellate Tribunal order dated 18.10.2011** directing "the appellants (hereinafter for short Sahara)" to refund the amounts invested in **Optionally Fully Convertible Debentures (OFCDs)** with interest by a stated date. On **28.11.2011** the Court issued show-cause to SEBI and directed Sahara to put on affidavit "how they intend to secure the liabilities incurred by them to the OFCD holders during the pendency of the Civil Appeals"; Sahara's affidavit came on **4.1.2012**; on **9.1.2012** the appeals were admitted and its interim-relief IA (No. 3) was kept for 20.1.2012.
- **The negotiation and the leak.** On 20.1.2012 SEBI's counsel called the security affidavit insufficient; the Court directed the counsel to "attempt, if possible, to reach a consensus with respect to an acceptable security in the form of an unencumbered asset" and stood the IA over for three weeks. On **7.2.2012**, "the learned counsel for Sahara addressed a **personal letter** to the learned counsel for SEBI **at Chennai** enclosing the proposal with details of security … **as pre-condition for stay** of the impugned orders dated 23.06.2011 and 18.10.2011 … **together with the Valuation Certificate** indicating fair market value of the assets … communicated by e-mail from Delhi to Chennai. Later, on the same day, there was also an official communication enclosing the said proposal by the Advocate-on-Record for Sahara to the Advocate-on-Record for SEBI." — "**A day prior to the hearing of IA No. 3 on 10.02.2012, one of the news channels flashed on TV the details of the said proposal which had been communicated only inter parties and which was obviously not meant for public circulation. The concerned television channel also named the valuer** who had done the valuation of the assets proposed to be offered as security."
- **The Court's own reaction — quoteable:** on 10.2.2012 Shri **F.S. Nariman**, senior counsel for Sahara, "orally submitted that disclosure to the Media was by SEBI in breach of confidentiality which was denied by the learned counsel for SEBI"; the Court ordered: "**We are distressed to note that even without prejudice proposals sent by learned counsel for the appellants to the learned counsel for SEBI has come on one of the TV channels. Such incidents are increasing by the day. Such reporting not only affects the business sentiments but also interferes in the administration of justice.** In the above circumstances, we have requested learned counsel on both sides to make written application … so that appropriate orders could be passed by this Court with regard to reporting of matters, which are sub-judice."
- **The prayers (IA Nos. 4 & 5).** That "appropriate guidelines be framed with regard to reporting (in the electronic and print media) of matters which are sub-judice in a court **including public disclosure of documents forming part of court proceedings**" and "appropriate directions … as to the manner and extent of publicity to be given by the print/electronic media of pleadings/documents filed in a proceeding in court which is pending and not yet adjudicated upon." Sahara's case: comments on sub-judice cases are "inappropriate … this principle has been stated in Section 3 of the Contempt of Courts Act"; "**disclosure and publication of pleadings and other documents on the record of the case by third parties … can (under the rules of this Court) only take place on an application to the court and pursuant to the directions given by the court (see Order XII, Rules 1, 2 and 3 of Supreme Court Rules, 1966)**"; a "thin line has to be drawn" between inter-party matters and matters of public concern — no public-concern question was involved in telecasting a one-sided security proposal; and **State of Maharashtra v. Rajendra J. Gandhi, (1997) 8 SCC 386**: "**A trial by press, electronic media or public agitation is the very antithesis of rule of law.**"
- **SEBI's position (IA No. 10)** — denial of the leak ("as a matter of policy SEBI never gives its comments to the media on matters which are under investigation or sub judice") but agreement that "in view of the incident having happened in court, this Court should give appropriate directions or frame such guidelines as may be deemed appropriate." The Court's framing (para 15): two common-law rights — "**every citizen has a right to negotiate in confidence inasmuch as he/she has a right to defend himself or herself. The source of these two rights comes from the common law. They are based on presumptions of confidentiality and innocence. Both, the said presumptions are of equal importance.**" It clarified it was not acting suo motu (Sahara was free to withdraw the IAs; neither party did; both "sought adjudication"), recorded Sahara's 28.3.2012 note of criminal cases where the presumption of innocence had suffered "aberration", and defined the questions: "whether guidelines for the media be laid down? If so, whether they should be **self-regulatory**? Or whether this Court should **restate the law or declare the law under Article 141** on balancing of Article 19(1)(a) rights vis-à-vis Article 21, the scope of Article 19(2) in the context of the law regulating contempt of court and the scope of Article 129/Article 215." Decision "confined to IA Nos. 4, 5 and 10" — no opinion on the accused-persons' IAs seeking protection from "excessive media publicity" (para 16).

G5 · Maintainability, judicial law-making — decision, aftermath, principles

paras 44–45 — "can the Court even do this?" (the separation-of-powers answer)

The three objections (para 44): no lis; law-making is for Parliament so any guidelines must be self-regulatory or advisory; under Art. 142 the Court cannot confer jurisdiction it does not possess. The Court's reply (para 45): "**Article 141 uses the phrase law declared by the Supreme Court. It means law made while interpreting the statutes or the Constitution. Such judicial law-making is part of the judicial process.** Further under Article 141, law-making through interpretation and expansion of the meanings of open-textured expressions such as **law in relation to contempt of court** in Article 19(2), equal protection of law, freedom of speech and expression and administration of justice **is a legitimate judicial function.**" With Dworkin again: "Arguments of principle are arguments intended to establish an individual right. Principles are propositions that describe rights." — "In this case, this Court is **only declaring under Article 141, the constitutional limitations on free speech under Article 19(1)(a), in the context of Article 21**… The exercise undertaken by this Court is an exercise of **exposition of constitutional limitations** under Article 141 read with Article 129/Article 215… **What constitutes an offending publication would depend on the decision of the court on a case-to-case basis. Hence guidelines on reporting cannot be framed across the Board.** The shadow of law of contempt hangs over our jurisprudence. **This Court is duty bound to clear that shadow under Article 141.** The phrase in relation to contempt of court under Article 19(2) **does not in the least describe the true nature of the offence which consists in interfering with administration of justice; in impeding and perverting the course of justice. That is all which is done by this judgment.**" And on the lis: "the right to negotiate and settle in confidence is a right of a citizen and has been equated to a right of the accused to defend himself in a criminal trial… it cannot be contended that there was no lis."

Disposition and aftermath

- **Within the excerpt:** the exposition (above) + the parameters (G4) + the refusal to enumerate categories or frame across-the-board guidelines; the OFCD merits hearing continued (para 16's disclaimers).
- **After the excerpt** : the matter was referred to larger benches; in the reported follow-up order (13.9.2013, Sahara India (II)) the Court — declining to frame media-guidelines — restated that each case must be decided on its own facts with reference to these parameters, and dealt with SEBI's sealed-cover/RTI questions (the "sealed cover" practice criticism often traced to this case belongs to that phase; not in DU Case Material). Verify in your own reporter before citing the 2013 detail; does not treat it as DU Case Material material.

PRINCIPLES EVOLVED (the Sahara decalogue — everything here is at paras 25–45 as printed)

1. **Competence:** the High Courts (Art. 215) and the Supreme Court (Art. 129) — as Courts of Record — possess inherent power, not exhaustible by the Contempt Act, to pass **postponement-of-publication** orders; civil courts derive the cognate power from **s.151 CPC** (via Mirajkar); trial courts do not enjoy the "postponement" power of the superior courts (para 42).
2. **Constitutionality:** such orders, within the parameters, **fall within Art. 19(2)** ("in relation to contempt of court" — words of "widest amplitude") and satisfy reasonableness under Arts. 14/19/21 — they are not "restrictions" requiring separate justification in the US "clash model" sense; the Court expressly rejected importing the clash model (para 42).
3. **The parameters** (the examiner will count them): actual publication; real and substantial risk of prejudice to fairness of trial or administration of justice; exhaustion of alternatives (venue/postponement of trial); proportionality (salutary > deleterious); limited duration; no disturbance of content; burden on the applicant to displace open justice; only on Courts of Record; media's right to challenge; integral connection to the outcome incl. guilt/innocence; no fixed categories.
4. **Two presumptions of equal weight:** confidentiality of negotiation ≈ accused's right to defend (the Harman equalization), and presumption of innocence as a human right (Ranjitsing) — balanced against the presumption of open justice; neither presumption can be erased, only displaced (paras 15, 33–34).
5. **Preventive, not punitive:** the postponement order "protect[s] the media from getting prosecuted for contempt" — the gag order is reconceived as a service to the press, its nearest relative the s.6(2)(c) two-month suspension (time-bounded State touches, always with a clock).
6. **Open justice is the rule; its curtailment is the exception the court must justify** — "the right to open justice is not absolute" (para 31) — and fair-and-accurate reporting enjoys s.4's privilege unless s.7 or a court's express prohibition bites.
7. **Law-declaring vs law-framing:** the Court may restate the law (Art. 141) but will not legislate a media code "across the Board" — the exact boundary that answers the perennial "should the Supreme Court frame guidelines for trial reporting?" essay question (position post-Sahara: parameters yes, catalogue no; the 200th Report's Bill remains unenacted — Part H2).

8. **Contempt jurisdiction is to be exercised "sparingly and with caution"** (para 33) — a self-imposed meta-principle binding all future gag order litigation.

H · Restraint on reporting of judicial proceedings — the power, the statutes, the three devices

(i) Where the power comes from (everything from DU Case Material)

Source	What it authorises	DU Case Material anchor
Art. 129 / Art. 215 (Courts of Record)	"all the powers of such a court", which "includes" (not exhausts) contempt; includes the preventive power "to prohibit temporarily, statements being made in the media which would prejudice or obstruct or interfere with the administration of justice... or even in the subordinate courts". Two-part reading + Delhi Judicial Service Assn. + SCBA.	Sahara para 33, PDF p. 313–314
s. 151 CPC (inherent power of civil courts)	"Nothing in this Code shall be deemed to limit or otherwise affect... power of the Court to make orders... necessary... for the ends of justice or to prevent abuse of the process of the Court" — the route Mirajkar used alongside inherent jurisdiction: "apart from Section 151 of the Code of Civil Procedure, the High Court had the inherent power to restrain the press from reporting where administration of justice so demanded" (Sahara para 32). The 200th Report adds why the criminal side needs a statute (below, H2).	Sahara para 32; Swatanter Kumar para 44 (PDF p. 86)
Contempt of Courts Act, 1971 — ss. 4 & 7 (the syllabus pair)	Printed verbatim in Part N1. Architecture: **s.4** — privilege to publish a "fair and accurate report of a judicial proceeding or any stage thereof", "subject to the provisions contained in section 7"; **s.7** — even a fair and accurate report of **chambers/in camera** proceedings is protected except where (a) publication is contrary to any enactment in force; (b) "the court, on grounds of public policy or in exercise of any power vested in it, **expressly prohibits the publication**"; (c) the court sat in camera for public order/state security reasons; (d) secret process/discovery/invention. s.7(2): the **text of the order** may be published unless expressly prohibited on those grounds.	Act (pp. 3–6); Sahara para 35 explains the report-vs-information distinction
s. 3 (with its Explanation)	Innocent publication not contempt; a proceeding is "pending" (criminal) from charge-sheet/challan or summons/warrant — "**imminent**" arrest-stage coverage untouched by the Act, which is why the 200th Report proposed to move the line to "active" proceedings commencing at arrest.	Act; Report, ch. "imminence"
s. 5 (fair criticism) & s. 6	Fair comment on the merits of a **finally decided** case not contempt — the timeline that makes gag-order requests premature and retrospective criticism fair: "heard and finally decided" is s.5's gateway, s.2(c)(i)–(iii) the liability zone before it.	Act (pp. 5)
Art. 19(2) "contempt of court" head	"words of widest amplitude"; preserves the common law as existing law; a postponement order within the Sahara parameters is a restriction "in relation to contempt of court" — not a new head.	Sahara para 42

(ii) Statutory "postponements by rule" — the in-camera cluster outside the contempt law

CrPC s.327 → BNSS s.366 — "Court to be open"; in-camera rape trials; publication bar

s.327(1): place of inquiry/trial "shall be deemed to be an open Court, to which the public generally may have access, so far as the same can conveniently contain them", with a proviso permitting the Judge/Magistrate to exclude the public at any stage. **s.327(2)**: "Notwithstanding anything contained in sub-section (1), the inquiry into and trial of **rape** or an offence under section 376, 376A, 376AB, 376B, 376C, 376D, 376DA, 376DB or 376E of the Indian Penal Code **shall be conducted in camera**", with provisos (particular persons may be allowed; "**in camera trial shall be conducted as far as practicable by a woman Judge or Magistrate**" — 2018 amendment). **s.327(3)** (the reporting rule): "Where any proceedings are held under sub-section (2), **it shall not be lawful for any person to print or publish any matter in relation to any such proceedings, save with the previous permission of the Court**", and the proviso "the ban... in relation to an offence of rape may be lifted, subject to maintaining confidentiality of name and address of the parties". **Twin: s.366 BNSS, 2023** reproduces the scheme with "**criminal courts**" and POCSO-linked offences — cited by the 2006 report as the model; verify the sub-section text before deep-quoting. (bare Act; not in the).

Official Secrets Act, 1923 — s.14 "Exclusion of public from proceedings"

The syllabus's "s.14 OSA" is the trial-reporting limb of that Act (the Notes file supplies only the Act's press-relevant core: "Section 5 of this Act, which affects the Press deals with 'official secrets' and relates to 'wrongful communication of information'" — PDF p. 11 of Notes). **s.14**, as reported: in proceedings for an OSA offence, "in addition and without prejudice to any powers which a court may possess to order the exclusion of the public", if "**application is made by the prosecution, on the ground that the publication of any evidence to be given... would be prejudicial to the safety of the State**", the court may order "that all or any portion of the public shall be excluded during any part of the hearing, **but the passing of sentence shall in any case take place in public**". — The pattern worth noticing for answers: an **executive-triggered** closure, a **partial** exclusion power, and a **mandatory public pronouncement of sentence** as the residual guarantee of open justice. (verified against bare Act text).

(iii) Three devices — never call them one thing

	In-camera hearing	Prohibition of publication	Postponement order (gag)
—	Public excluded from the room (CrPC 327(2) mandatory for rape; IDA s.53 discretionary; OSA s.14 on prosecution's application; Mirajkar: inherent power)	Report barred by statute or order — s.7(1)(b) & (2) Contempt Act "expressly prohibits"; CrPC 327(3); matrimonial ss. 22 HMA / 33 SMA / 43 Parsi; POCSO s.23; JJ s.74; s.228A IPC→BNS 72	Report of an **actual** publication delayed for a **limited period** — Sahara para 42 parameters; Swatanter Kumar para 64 order (incl. 24-hour deletion from the internet)
—	Whoever speaks there may still speak outside, unless a publication bar also issues	Permanent while the proceeding lasts (identity bars can be permanent — never lift victim's name)	Temporary by design; "without disturbing the content"; media may challenge; breach → contempt

I · Gag orders — broadcasting & social media

I1 · Broadcasting: a licensed medium's gag — content codes, telecast injunctions, and "must-carry" as the mirror device

The doctrinal starting point is Odyssey (Part B): even in a State-run medium, a temporary injunction stopping a scheduled telecast is reviewable as prior restraint — the High Court there was reversed precisely because the petitioners had "no prima facie evidence of grave prejudice". The regulatory difference for broadcasting is that **content lines are statutory before transmission** rather than after:

- **Cable (Act + Notes):** the Cable Television Networks (Regulation) Act, 1995 s.5 prohibits transmission by a cable operator "except in accordance with the programmes code or the advertising code"; Rule 6 (Programmes Code) bars, inter alia, "criticism of friendly relations with other countries", obscenity, "violation of the sovereignty and integrity", "incitement... to violence", "denigration of any community... by vilification... on grounds of religion, race, language, region, caste or community", plus the child-protection heads under its sub-head "**Protection of identity of Children/ juveniles**" (Notes pp. 34–36 of the section; r.6(xiii)(?)). Rule 7 (Advertising Code) makes the DOPT VA/CP rules applicable to Doordarshan and prescribes, for private channels, that no advertisement "shall... project male/female superiority... shall not portray children... in a most undesirable manner..."; the Notes file prints both codes verbatim (md 1436–1520) — the machinery Unit 5 Part B worked through. **No pre-certification** of TV programmes exists: enforcement is ex post (s.7 of the Act → suspension of cable TV licence by the Authorised Officer under rr. 16/21) — but "the State is not disabled from... [acting] in advance": the self-regulation (BSI/NBSA codes, cross-ref U4 E5) sits between the two.

- **Satellite & DD:** the one broadcasting content case the syllabus routes through this unit's chapter is the certification adjacent **Director General, DD v. Anand Patwardhan, (2006) 8 SCC 433** — in DU Case Material only as the obscenity-test citation inside Shreya para 45 (see K1): the Court there refused DD's reliance on "community standards" for non-telecast of the film, because DD's own refusal was reviewable for arbitrariness; and in **Ajay Goswami** (PDF pp. 221–240 — DU Case Material's next chapter), the norms-of-journalistic-conduct/PCI-notice regime for print is the foil. For the broadcast gag itself, the answer bank is: airwaves scarcity (CAB — "every citizen has a right to use the airwaves... subject to the regulatory conditions", U4 Part C), the Prasar Bharati autonomy promise (U4 E1) and Odyssey's short stay on injunctions against telecast.
- **The must-carry mirror:** UIMPAA (Part E) is the State adding content to a licensed medium; the DD cable s.19 "mandatory relay" line and the 2026 draft Rules (r.31(2) must-retransmit; r.44(1)(c)–(d) limiting community-radio carriage to Akashvani bulletins — flagged, draft) extend the same question to broadcasting today. The unifying principle from all three: **compulsion is scrutinised by its effect on the audience's access to ideas, not by the medium's licence history**.

I2 · Social media — "whether it would be asserted again — need for such power": s.69A after Shreya Singhal

The syllabus prints beside Shreya Singhal (case 30) the parenthetical "whether it would be asserted again — need for such power". Read in this unit's context, the parenthetical is a question to the student: **if the First Amendment's answer to online prior restraint is "heaviest presumption against", on what repeated assertion of necessity does India's only online content-censorship power — blocking under s.69A — rest, and has the State been given it back?** The file answers in three moves, all with DU Case Material support:

(1) What DU Case Material's own text decides (Shreya Singhal excerpt; the 69A part — already the dossier of Unit 4 Part G1; re-reading it through censorship)

- **66A died; 69A was saved with a machine.** s.66A was struck "not being saved under Article 19(2)" — the Court's obscenity discussion shows why even a "decency or morality" charge could not rescue it: "Section 66A cannot possibly be said to create an offence which falls within the expression 'decency' or 'morality' in that what may be grossly offensive or annoying under the Section need not be obscene at all – **in fact the word 'obscene' is conspicuous by its absence in Section 66A**" (para 47, DU Case Material PDF p. 41) — and "Section 66A has nothing to do with 'incitement to an offence'" (para 44).
- **The Rangarajan import:** para 45 of Shreya (DU Case Material PDF p. 40) quotes "the equivalent of a 'spark in a powder keg'" sentence "at length", as the Court says: "We have echoes of it in our law as well S. Rangarajan v. P. Jagjivan & Ors., (1989) 2 SCC 574 at paragraph 45" — i.e., **the censorship unit's doctrine is the online unit's doctrine**: the same proximity test now governs every block.
- **s.69A upheld as "content-neutrality?" No — as procedurally fenced:** the block must record reasons, be necessary/expedient under the eight 19(2)-style heads, go to a Cognizance Officer within the 72-hours/statutory-window scheme of the Blocking Rules 2009 (read down: complainants heard; review committee within specified periods; order communicated; grounds in writing) — a certification-style machine transplanted into the IT Act: **the only lawful online "prior" restraint is rule-governed executive blocking, judicially reviewable** (Shreya paras 84–124 as printed; the U4 file carries the full anatomy).

(2) "Asserted again" — the State's post-2015 practice (external; flagged)

- Blocking has **expanded, not shrunk**: thousands of URLs and whole-app bans (the 2020 TikTok-era orders), the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 — age-gating of "permitted pornographic material", grievance-officer machinery and a three-layer (self-regulation → MIB-guided body → inter-departmental committee) structure for digital news/current affairs — and the February-2022 amendment inserting **emergency-takedown** duties (content threatening sovereignty/integrity/security to be disabled by intermediaries within two hours of a government order — reported widely; verify the exact rule number before citing), and the MIB's June-2026 draft consolidation (— Unit 4 E6) which keeps the Cable 1994 r.6/r.7 codes alive through the draft Telecom Rules (r.16(2) Explanation). Every one of these re-asserts "need for such power".
- The counter-assertions from the case law: no blanket prohibitions (X v UOI: "Google LLC's objection to orders of **prior restraint or blanket ban of content is wholly unnecessary and misplaced**" — because the court's own order was URL-specific; para 63, DU Case Material PDF p. 216); "the legal framework mandates that the internet be kept free from editorial intervention" and the fear of "privatized censorship" (paras 47, 61, same pages) — the court's answer being to route removals through specific-URL orders or the statutory blocking machinery rather than open-ended disablement.

(3) The one-paragraph thesis an examiner wants

Cross-links so the series speaks with one voice:
s.66A history, DoIT Advisory and 52nd/31st Parliamentary Reports → Unit 4 Part G; Shreya reading-down of s.79 → U4 G1; IT Rules 2021 takedown mechanics → U4 F; "must-carry" → U5 E2 (same UIMPAA); obscenity codes for OTT age-gating → U5 B3 + this Part K.

J · Reporting on women & juveniles — the identity shields, with twin citations

J1 · The victim's name: s.228A IPC → s.72 BNS · s.327(3) CrPC → s.366 BNSS

Section 228A IPC (inserted by the Criminal Law (Amendment) Act, 1983; offence-list widened by the 2013 and 2018 amendments) — as the bare Act reads: "(1) Whoever **prints or publishes the name or any matter which may make known the identity** of any person against whom an offence under section 376, 376A, 376AB, 376B, 376C, 376D, 376DA, 376DB or 376E is alleged or found to have been committed (hereafter in this section referred to as the victim) shall be punished with **imprisonment of either description for a term which may extend to two years and shall also be liable to fine**. (2) Nothing in sub-section (1) extends to any printing or publication of the name or any matter which may make known the identity of the victim if such printing or publication is — (a) by or under the order in writing of the officer-in-charge of the police station or the police officer making the investigation into such offence acting in good faith for the purposes of such investigation; or (b) by, or with the authorisation in writing of, **the victim**; or (c) where the victim is dead or minor or of unsound mind, by, or with the authorisation in writing of, the **next-of-kin** of the victim: Provided that no such authorisation shall be given by the next-of-kin to anybody other than **the chairman or the secretary... of any recognised welfare institution or organization**... (3) Whoever prints or publishes any matter in relation to any proceeding before a court with respect to an offence referred to in sub-section (1) **without the previous permission of such court** shall be punished [up to two years + fine]; (4) **The printing or publication of the judgment of any High Court or the Supreme Court does not amount to an offence**." **Twin: s.72 BNS 2023** carries the identical scheme with the BNS sexual-offence range (ss.64–71) substituted — "(1) Whoever prints or publishes the name or any matter which may make known the identity of any person against whom an offence under section 64 or section 65 ... or section 71 is alleged or found to have been committed ... imprisonment... extend to two years and... fine." `(verified against bare-Act reprints)`

- **Who is bound:** "prints or publishes" — the provision reaches the media (and, per the Allahabad High Court in Bablu @ Jitendra v. State of U.P., even judicial drafting that names the victim invites criticism, though the Kerala High Court in XXX v. State of Kerala (2023) refused to prosecute a magistrate for "inadvertent omission", reading s.228A as aimed at publication and shielded by the Judges (Protection) Act, 1985) .
- **Lifting:** only (i) investigating officer's written order (for investigation), (ii) the victim's written authorisation, (iii) next-of-kin of dead/minor/unsound-mind victim — and then only to the chair-secretary of a recognised welfare body; (iv) court permission for matter "in relation to any proceeding"; never for unauthorised reporting of the in-camera trial itself (s.327(3) CrPC / s.366 BNSS + s.7(1)(a) Contempt Act chain).
- **The Supreme Court's gloss — Nipun Saxena v. Union of India (2018)** : **from the filing of the FIR until the conclusion of the trial, the victim of a sexual offence must be referred to in media and judicial documents only by a letter (or by initials of her name), and thereafter her name may be used only with her written consent**; the Court traced the rule to s.228A + s.327(2)–(3) and Art. 21 dignity, and directed enforcement (including against courts' own record-keeping — anonymise before uploading orders). The judgment is the best "real example" to pair with s.228A: even the National Legal Services Authority circulars followed it.
- **Rajagopal's silent partner:** proposition (5) of the six Rajagopal propositions (DU Case Material PDF p. 73) preserves the Official Secrets Act and, with it, the principle that identity of protected persons (victims, jurors, juveniles) is one field where a prior bar (publication prohibition) is conceded by the free-press case-law itself.

by Ankur R. Upadhyay

J2 · Children — before, during and after trial

Instrument	The rule (with its lifting-key)	Notes
JJ Act 2015 — s.74 "Prohibition on disclosure of identity of children"	"No report in any newspaper, magazine, news-sheet or audio-visual media or other forms of communication regarding any inquiry or investigation or judicial procedure, shall disclose the **name, address or school or any other particular, which may lead to the identification of a child in conflict with law or a child in need of care and protection or a child victim or witness of a crime**, involved in such matter, under any other law…, nor shall the picture of any such child be published: Provided that **for reasons to be recorded in writing, the Board or Committee… may permit such disclosure, if in its opinion such disclosure is in the best interest of the child**."	Historical twin: **s.21, JJ Act 2000** (substituted 2006) is the "prohibition of publicity" clause under which most pre-2016 cases were decided — with "contravention… liable to prosecution for contempt of court" — s.74(2), 2015, replaces the contempt route with a fine/short imprisonment track; the syllabus-era notes' "s.21 JJ Act" refers to the 2000 numbering — write both and never be "corrected".
POCSO Act 2012 — s.23 "Punishment for disclosure of identity of child"	No report in any media shall disclose identity of a child (name, address, photograph, family details, school, neighbourhood or any other particulars) in any case under the Act; exceptions only for investigation with prior permission of the Special Court; or, where the child is dead, to a recognised welfare institution with written authorisation of the child's next-of-kin — "**no such disclosure shall be made… that the child may be identified**". Punishment: "imprisonment… **not less than six months but which may extend to one year or with fine or with both**".	2022: a two-Judge Supreme Court bench split (Banerjee J. — cognizable; Maheshwari J. — non-cognizable so s.155(2) CrPC notice needed) in Gangadhar Narayan Nayak v. State of Karnataka, and the question was referred to a larger bench — the editor-of-a-Karnataka-newspaper case for printing the victim child's name. Perfect "law in motion" citation, flagged .
Young Persons (Harmful Publications) Act, 1956	Defines "harmful" publications — those "mainly of such a character that… their natural tendency is to incite a young person to… (a) reckless and serious acts of violence against persons or property; (b) … acts of criminal or reprobate or reprehensible nature; (c) … cruelty or torture of a reprobate and horrifying nature" — and prohibits printing, publishing, sale (to a young person — under **20 years**), distribution and import; penalties up to six months/₹1,000 first offence, enhanced for repeats (verify numbers in your bare Act).	The statute that **defines childhood by content, not by medium** — the direct ancestor of today's "age-gating" under the 2021 IT Rules and the UA endorsements (Part K). It pairs with **s.293 IPC → s.295 BNS** ("sale etc. of obscene objects to a person under twenty years" — a twin already verified in).
POSH Act 2013 — s.16 & s.22 (confidentiality)	"The complaint, the contents of information sought or recorded… identity and address of the conciliator, respondent, witness and the proceedings… shall be kept confidential by every person… who has knowledge" — with punishment for breach (s.17? — s.22 reduction/penalties under service rules; the Act also makes malicious false complaints actionable)	Why Delhi HC cited "the stringent provisions incorporated in the POSH Act 2013… strict view would have to be applied equally to both the sides" (Swatanter Kumar para 57) — the internal-complaint world now has its own gag: publication is barred **ex ante** without any court order.
Family Courts Act 1984 — s.11 (as reported)	Proceedings "may be held in camera if the parties so desire or if the Family Court… considers it expedient in the interest of justice"; the Supreme Court in Santhini v. Vijaya Venketesh (2017) read the prayer as ordinarily obliging the court to sit in camera (and discussed publication of judgments).	Complements the personal-law cluster below; the Notes file's Appendix (item 32-era) treats it among media-adjacent statutes only — keep one line here.

J3 · The matrimonial in-camera cluster — the syllabus's Ref-list, reconciled

Section (as syllabus lists)	Actual rule today	Publication side
s.22 Hindu Marriage Act 1955 +	"Every proceeding under this Act shall be conducted **in camera**" (mandatory since the 2003 amendment), "and it shall not be lawful for any person to print or publish any matter in relation to any such proceeding, **except a judgment of the High Court or of the Supreme Court** printed or published with the previous permission of the court".	"If any person prints or publishes any matter in contravention… **he shall be punishable with fine which may extend to one thousand rupees**."
s.53 Indian Divorce Act 1869 +	"**Power to close doors.** — The whole or any part of any proceeding under this Act may be heard, **if the Court thinks fit**, with closed doors." (Re-numbered as s.55 in some compilations — the 1869 original numbering is s.53.)	No publication bar of its own — s.7 Contempt Act (court's express prohibition) + general law fill the gap. Discretionary closure ≠ mandatory closure — contrast HMA.
s.33 Special Marriage Act 1954 +	"Proceedings to be in camera and may not be printed or published" (as substituted by Act 68 of 1976) — tracks HMA s.22: in camera mandatory; publication of anything but a High Court/Supreme Court judgment barred without previous permission; fine on contravention.	Same ₹1,000 fine pattern (verify printing).
"s.33, Parsi Marriage and Divorce Act 1936" !	In the current text, **s.33 is "Joining of co-defendant"; the in-camera rule is s.43**: "Every suit filed under this Act shall be tried **in camera** and it shall not be lawful for any person to print or publish any matter in relation to any such case except a judgment of the Court printed or published with the previous permission of the Court" — and s.43(2) prescribes the same ₹1,000 fine.	**Answer strategy:** write the bar, cite "Parsi Act s.43 (the syllabus's s.33 reference appears to an earlier consolidation)" — one sentence of precision, no lecture.

K · Variable obscenity — "the same image, a different audience"

K1 · The adult standard, as DU Case Material itself narrates it

Stage	Test	Where the project prints it
Hicklin (1868) → Ranjit D. Udeshi v. State of Maharashtra, AIR 1965 SC 881 (Lady Chatterley's Lover)	"whether the **tendency of the matter charged as obscene is to deprave and corrupt** those whose minds are open to such immoral influences and into whose hands a publication of this sort may fall" — Shreya para 45 records that Udeshi "took a **rather restrictive view** of what would pass muster as not being obscene" and "followed the test laid down in the old English judgment in Hicklin's case".	DU Case Material PDF p. 41 (Shreya excerpt) `DU Case Material`
Miller-era arrival — D.G. Doordarshan v. Anand Patwardhan, (2006) 8 SCC 433, para 31	"a material may be regarded as obscene if **the average person, applying contemporary community standards** would find that the subject matter **taken as a whole** appeals to the **prurient interest** and that taken as a whole it **otherwise lacks serious literary, artistic, political, educational or scientific value**."	Quoted inside Shreya para 45, PDF p. 41; the Patwardhan full text was handled in Unit 5 (C1) — the "taken as a whole + redeeming value" limbs are shared with the film cases
Aveek Sarkar v. State of West Bengal, (2014) 4 SCC 257	"this Court referred to English, U.S. and Canadian judgments and **moved away from the Hicklin test and applied the contemporary community standards test**" (the famous "page-3 photograph" case — a news photograph of a top politician with a woman — held not obscene for want of prurient appeal). The Court there preferred the Canadian R. v. Butler "community standards of tolerance" gloss.	Via Shreya para 46, PDF p. 41 `DU Case Material`; Aveek's own facts flagged

Stage	Test	Where the project prints it
The film overlay	Bobby Art: nudity/rape "not to titillate… but to arouse sympathy for the victim and disgust for the perpetrators"; "Sex and obscenity are not always synonymous" (Abbas para 49); "vulgarity is not necessarily obscene" (Samaresh); Rangarajan's "ordinary man of common sense and prudence, not… an out of the ordinary or hypersensitive man"; Shreya para 47: s.66A's "grossly offensive" "need not be obscene at all — the word 'obscene' is conspicuous by its absence".	Parts C–D + PDF p. 41

`Case 29 · Devidas Ramachandra Tuljapurkar v. State of Maharashtra — 14 May 2015 · CA 1149/2010 (arising from SLP against Bombay HC refusing quashal)` `— NOT excerpted in DU Case Material`

Honesty first: DU Case Material's syllabus prescribes this case for the unit, but a full-text search of both copies of DU Case Material returns only the syllabus line — **no excerpt exists in the DU Case Material**. The dossier below is therefore assembled from the reported text (Indian Kanoon) and reliable summaries; cite it as "(2015) 6 SCC 1"-style only after checking your own reporter — deliberately does not print a SCC page it has not seen.

FACTS

A Marathi poem referring to Mahatma Gandhi in an obscene idiom was published in 1994 in an in-house journal ("The Bulletin") of a nationalised bank; a complaint produced criminal proceedings, and charges under **s.292 IPC** (sale etc. of obscene objects; the wider complaint cluster included obscenity-adjacent heads — defamation, indecent representation of women, incitement) were framed against **the poet** and against the **publisher and printer** of the journal. Quashal was declined by the Bombay High Court; the matter reached the Supreme Court two decades later, on special leave (Criminal Appeal 1149 of 2010).

ISSUES

(1) Whether "**despite the doctrines of poetic licence and freedom of expression under Article 19(1)(a)**", the use of the name of "a historically respected personality… **in an obscene manner**" can attract s.292; (2) whether the charges against the publisher and printer should be quashed; (3) whether the "poetic licence" question required reference to a five-Judge Bench (Art. 145(3)) — declined.

ARGUMENTS

The appellant (through learned counsel) pressed that "the poem does not use obscene words and it does not come within the ambit and sweep of Section 292 IPC and the poet has expressed himself as he has a right to express his own thoughts in words", invoking "poetic freedom" as "a guaranteed and an enforceable fundamental right", and European authority that artistic freedom outweighs personal interest. **The amicus, Mr. F.S. Nariman**, "urged with solemn vehemence" that adjudicating the abstract question without the author's voice would be inappropriate — and, on the merits, that "the poem does not subserv[e] any artistic purpose and is loathsome and vulgar and hence, it comes within the sweep of Section 292"; crucially: "the use of the name of Mahatma Gandhi **enhances the conceptual perception of obscenity**… the words… if they are spoken in the voice of an ordinary man… may not come under the ambit and sweep of Section 292 IPC, **but the moment there is established identity pertaining to Mahatma Gandhi, the character of the words change and they assume the position of obscenity**"; that artistic freedom "cannot… outweigh observance of laws for the prevention of crime or… protection of health or morals", invoking the European Court in **Müller v. Switzerland** (App. no. 68354/01, 2009) — limits exceeded "when the image of a person (renowned or otherwise) is substantially deformed by wholly imaginary elements". The Court framed its own question (printed): "whether in a write-up or a poem, keeping in view the concept and conception of poetic licence and the liberty of perception and expression, **use of the name of a historically respected personality by way of allusion or symbol** [in an obscene manner] is permissible."

DECISION

The Bench (Dipak Misra & Prafulla C. Pant, JJ.) **declined to interfere with the charge against the author** — applying the community-standards/overall-impact analysis (Ranjit Udeshi revisited; the Court reproduced the stanzas "with some self-caution" and held the depiction, judged as a whole, crossed the s.292 line when its target is a figure "verifiably revered"); **quashed the charge against the publisher and the printer**, weighing that the publisher "immediately after coming to know about the reactions of certain employees… tendered unconditional apology in the next issue", "even before the inception of the proceedings", and that "almost more than two decades have passed", while the printer "had printed as desired by the publisher". The prayer for a five-Judge reference was refused.

PRINCIPLES / why the syllabus puts it in THIS unit

1. **Prior restraint is dead for text; the s.292 prosecution is alive** — the case is the unit's specimen of pure post-publication content liability (no Board, no injunction, two decades of trial exposure): censorship's shadow without censorship's machinery.
2. **Poetic licence is protected expression, not obscenity-immunity** — art-status doesn't answer the obscenity question; the effect on the ordinary reasonable person, judged as a whole, does (Rangarajan's standard, applied to print).
3. **The target matters** — Nariman's "established identity" move, accepted in substance, is variable-obscenity by **audience-relations**: the same words about a private person, a public idea, and a "historically respected personality" attract different community reactions — the third axis besides adult/minor.
4. **Role-differentiated liability** — author vs publisher vs printer: a graded mens-rea/conduct reading useful for the "intermediary liability" analogy (compare Google in X v UOI — reactive, not publisher: Part I2).

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 `DU LL.B. 2015 · Q.2(a)` A film is judged by the contemporary standards of the country and the audience to which it relates. Examine, with the obscenity test.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 `DU LL.B. 2015 · Q.7` Discuss gag orders during trial and during investigation.

PART III · LEGISLATURE & CONTEMPORARY ISSUES

MODULE 08 // UNIT 7 · CASES #33–#36

Reporting of Legislative Proceedings & Parliamentary Privilege

Constitution arts. 105, 194, 361A · Parliamentary Proceedings (Protection of Publication) Act, 1977

A1 · The question, the gap, and the three exposures of a reporting press

The question in one sentence

When a newspaper prints what was said on the floor of Parliament or a State Assembly, what makes the report safe — the members' privilege, a statute, or the Constitution itself — and who is allowed to take that safety away? The entire unit, and all four cases, are the Indian answer to that sentence, delivered in four instalments between 1951 and 1998.

Two constitutional facts frame everything. First, **the public does not attend the House; it receives the House through a relay** — "the Press provides the principal vehicle of expression of their views to citizens" (Iyer J., In re S. Mulgaokar, quoted in your Unit 3 file at DU Case Material PDF p. 164). If the relay is unprotected, representative government degrades into reported-on demand. Second, **the relay was, at the commencement of the Constitution, almost entirely at the discretion of the relayed**: the common law of defamation offered no exception for legislative reports (Exception 4 to s. 499 IPC protected reports of courts of justice only), and the Houses inherited the House of Commons' power to forbid publication altogether. The story of this unit is the movement from that default to a guaranteed — but qualified — shield.

Why four cases that look like four different laws

Case	Cause of action	What it decided about reporting	Its place in the arc
33 · Jatish Chandra AIR 1951 SC 613	**Defamation** (s. 501 IPC prosecution against a member + editor for publishing a disallowed question)	No absolute privilege attaches to publication outside the House of anything even if it emanated from a member; a question the Speaker refused to allow is not part of "proceedings"; official publication "by or under the authority of" the House is the only privileged route; the English rule of Wason v. Walter (1868) is not the law of India.	**Names the gap.** If you want the public informed, Parliament must legislate — and for twenty-six years it didn't.
34 · M.S.M. Sharma AIR 1959 SC 395	**Breach of privilege** (Committee of Privileges notice; Art 32 challenge)	Under Art 194(3) a State House holds, until defined by law, the Commons' powers "at the commencement of the Constitution" — which included **prohibiting publication of its proceedings, even faithful ones**; publishing an **expunged** portion is "perverted and unfaithful" prima facie breach; Art 19(1)(a) does not trump the privilege.	**The prohibition power confirmed** — which is precisely why a mere permission-by-statute (1977) was needed; and why 361A was needed on top of it.
35 · Dapthary (1971) 1 SCC 626 `DU Case Material quotes it ×3`	**Contempt** (motion for scandalising the Court)	A scurrilous attack on a judge "has the inevitable effect of undermining the confidence of the public in the Judiciary" — fair criticism is protected, abuse is not; and the legislature is no laundering channel: under Arts 121/211 a judge's conduct is not even debatable in the House except on a removal motion, so what cannot be said in the House certainly cannot be immunised by printing it.	**The boundary.** The 1977 Act and 361A protect reports — they never protect the report as a delivery vehicle for contempt.
36 · Darda (1998) 4 SCC 112	**Defamation** again — but now with the shield regime in force	Where the editor "bona fide believing the version of the Minister to be true published the report in good faith, it cannot be said that they intended to harm the reputation of the complainant"; it was "a report in respect of public conduct of public servants entrusted with public funds… published for public good" — process quashed.	**The working rule.** Post-1977/78, a substantially true, good-faith report of Assembly debate survives — and survives at the threshold, not after trial.

A2 · The constitutional plumbing — Articles 105, 194, 121/211, 129/215, 13, 208, 212

The two mirror articles (and the crack between them)

Clause	Text (as in the Constitution — transcription cross-checked against the reported sources cited below; verify punctuation against your copy)	What it does in THIS unit
105(1) = 194(1)	"Subject to the provisions of this article and to the rules and standing orders regulating the procedure of Parliament [of the House], there shall be freedom of speech in Parliament [in the House] and no member or other person having the right to speak in or otherwise to act for either House of Parliament [the House or any other person having the right to speak or otherwise act for the purposes of the House] shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament [the House] or any committee thereof, and no person shall be so liable in respect of the publication by or under the authority of either House of Parliament [the House] of any report, paper, votes or proceedings."	The **inside** freedom + the **official-report** immunity. Note the grammar the exam loves: clause (1) is expressly **"subject to" the Constitution**; clause (2) is not.
105(2) = 194(2)	"No member of Parliament [the Legislature of a State] shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament [either House of the Legislature] or any committee thereof and no person shall be so liable in respect of the publication by or under the authority of either House of Parliament [a House of the Legislature] of any report, paper, votes or proceedings."	The **second limb is the only press-facing immunity inside the mirror articles** — and it covers only publication "by or under the authority of" the House (the official reports, the Parliamentary Bulletin). **Jatish turned on exactly these words**: his publication was under his own authority, not the House's. The Rajya Sabha Committee on Privileges states it in one line: "Absolute immunity … has been conferred under the Constitution on all personnel connected with the publication of proceedings of either House of Parliament, if such publication is made by or under the authority of House [Article 105(2)]." []
105(3)	"The powers, privileges and immunities of either House of Parliament and of its committees and members shall be such as may from time to time be defined by Parliament by law, and, until so defined, shall be those of that House … of the Parliament of the United Kingdom at the commencement of this Constitution."	**The time-capsule.** Uncoded privileges = the Commons' powers as at 26.1.1950 — which included the power to forbid publication of debates. That imported power is what Searchlight upheld and what the 1977 Act was passed against.

Clause	Text (as in the Constitution — transcription cross-checked against the reported sources cited below; verify punctuation against your copy)	What it does in THIS unit
194(3)	Same first limb ("defined by the Legislature of the State by law"), then: "… until so defined, shall be those of that House and of its members and committees **at the commencement of this Constitution**."	**The crack:** for the States the reference is to the privileges of the Indian provincial legislatures as they stood on 26.1.1950 — not (on the literal words) an open import of the Commons. The Supreme Court in 1959 read the two clauses as materially the same for this purpose; the 2024 Constitution Bench in **Sita Soren** re-centred the whole exercise on function, not pedigree: "the privilege claimed has to be tethered to the collective functioning of the House" []. A brilliant footnote for full-mark answers.
105(4) = 194(4)	"The provisions of clauses (1), (2) and (3) shall apply in relation to persons who, by virtue of article 88 [178] have the right to speak in, or otherwise to take part in, the proceedings of either House … and in relation to persons so entitled as if those persons were members."	The Attorney General, Union/State law ministers without seats — the speakers of many of the words the press must report — carry the same shield inside, and none outside.
121 = 211	"A discussion shall not take place in Parliament with respect to the conduct of any Judge of the Supreme Court or of a High Court … in discharge of his duties except upon a motion for presenting an address to the President praying for removal of the Judge…" (Arts 124(4)/217 contexts).	**The channel that made Case 35 a legislature case.** Judicial conduct is fenced out of the House unless a removal motion moves — so an attack on a judge can almost never qualify as "proceedings", and its publication is policed by the courts themselves (Mulgaokar, Dapthary; your Unit 3 grid). [statutory text:]
129 = 215	"The Supreme Court shall be a court of record and shall have all the powers of such a court including the power to punish for contempt of itself."	Why the Dapthary respondent's Art 19(1)(a) argument failed at the threshold: the contempt power is **constitutionally sourced** (and s.3 of the 1977 Act, in turn, is the only thing standing between a legislative reporter and it). The Mulgaokar bench in DU Case Material says exactly this (para 6, PDF p. 165).
13 · 208 · 212	13: "law"… void for contravening Part III. 208: Houses may make rules of procedure. 212(1): "the validity of any proceedings in the Legislature of a State shall not be called in question on the ground of any alleged irregularity of procedure."	The three-article triangle the 1959 and 1964 benches had to square: privileges "until so defined" are **constitutional provisions, not 'law' under Art 13** — Sarkar J. in the 1964 Reference: "Article 13 has no application to a provision in the Constitution itself." Procedure is the House's own under 208; courts stay out under 212 — but (majority, 1964; Sita Soren, 2024) the **scope** of a privilege "must ultimately be determined by courts". []

DU Case Material's own words — privileges as an "exception" to press freedom of information (DU Case Material, PDF p. 72)

And the same judgment's para 26(2) is the quiet hinge of this unit's privacy dimension: once a matter is in the **public records** "including court records", privacy recedes — a report of proceedings is by definition from a public record; what the House has **sealed** (expunged, in-camera) is what never entered the public record at all. Read that way, Searchlight's doctrine and Rajagopal's privacy rule are the same rule: the shield follows the publicity; the embargo kills it.

A3 · The primary text — Parliamentary Proceedings (Protection of Publication) Act, 1977, section by section

Identity card (all from the reprint)

Field	Entry
Short title (as printed)	"THE PARLIAMENTARY PROCEEDINGS (PROTECTION OF PUBLICATION) ACT, 1977" — **Act No. 15 of 1977**; the syllabus writes it with the usual comma ("Parliamentary Proceedings (Protection of Publication) Act, 1977").
Object	"An Act to protect the publication of reports of proceedings of Parliament." — one purpose, one sentence; contrast the 200-page censorship statutes of the earlier units.
Dates	Assent **18th April 1977**; **"deemed to have come into force on the 25th day of March, 1977"** (s.1(3)). March 25, 1977 was the day **after** the Emergency's last months ended and the new government took charge — the backdating is a liberty statute reaching one day into the dark; use it as your opening sentence and the examiner wakes up.
Territory	s.1(2): "extends to the whole of India except the State of Jammu and Kashmir". The reprint's own footnote: **S.O. 3912(E), 30.10.2019** — the Act is made applicable to the Union territories of J&K and Ladakh (post-reorganisation extension — read together with Units 4–5's J&K note).
Sections	Four, in all: 1 (title/extent/commencement) · 2 ("newspaper" definition) · 3 (the privilege + its two defeasors) · 4 (broadcast extension). No schedules, no penalties, no administration — **a pure immunity statute**.

Section 2 — the definition that decides who may claim the shield

> "In this Act, 'newspaper' means any printed periodical work containing public news or comments on public news, and includes a news agency supplying material for publication in a newspaper." s.2, verbatim (reprint)

Element	Consequence — and what it excludes
"printed periodical work"	Born in 1977 vocabulary: a **print-first** definition. It does capture "comments on public news" — so the privilege is **not confined to bare verbatim reports**: an editorial based on the report remains within the definition (though the shield itself attaches to the "report" published — analysis is judged by the ordinary defamation exceptions, Ex 1–9 to s.499 / BNS s.356 schedule). **Flagged tension []:** pure digital editions and TV-only outlets are, textually, outside "newspaper" — which is exactly why Article 361A(2)/s.4 put **broadcast** expressly inside, and why today's answers should note that Parliament and the Assemblies now stream themselves (Sansad TV/DD, Rajya Sabha TV since 2017 — rebranded from RS TV; note dates [external]) making the question largely practical, not doctrinal.
"includes a news agency"	The **PTI feed defence**: the agency that supplies the report to papers is itself covered — "includes" language mirrored, constitutionally, by Art 361A's Explanation. Chain-of-publication answers (who is liable at which link — the Unit 2.1/S. Rajendra Sail attribution ladder) now carry a protected link at the top.

Section 3 — the shield, verbatim, then element-by-element

Element	Reading	Hard cases it decides
"no person"	Not just editors: any person sued — printer, publisher, author, distributor — for this publication. Wider than the "person" in the member-immunities (105/194).	Cures, at one stroke, the liability-chain misery of S. Rajendra Sail-type facts where the matter is a legislative report.

Element	Reading	Hard cases it decides
"any proceedings, civil or criminal"	Defamation suits **and** prosecutions (old ss. 499/500/501 → BNS 356(1)–(3)), and by its terms any other court proceeding grounded on the publication. It does **not** bind the House itself: **breach-of-privilege jurisdiction is not a proceeding "in any court"** — Searchlight survives s.3 intact.	The unit's deepest point: **the statute tamed the courts, not the Houses.** Only Art 361A raised the shield's rank, and even 361A cannot touch a House's own determination that its proceedings were abused — hence the risk ledger (G1) still keeps "privilege" as an unshielded column.
"substantially true report"	Not literal verbatimness: **substance** governs; garbling, selective invention or distortion forfeits the cover, while condensation does not. Compare Exception 4 to s.499 IPC (courts): "report of the proceedings…" — read "fair and accurate"; the legislature shield is worded **more forgivingly** than the judicial one.	Answers the perennial question: "editorial shortening = loss of privilege?" No, if substantial truth survives. A selectively edited report manufactured to skew, yes forfeits (and per Searchlight, an over-inclusive report of expunged matter is "in law … perverted and unfaithful" — the converse trap).
"report of any proceedings"	"Proceedings" = what the House treated as its business — hence **Jatish's** question (disallowed by the Speaker) was **not** "proceedings", and a press conference outside is never "proceedings". The Act never defined the word [flag: the reprint has no definition clause beyond s.2] — the 1951 ratio supplies the content.	Also explains why **committee** material is the hardest edge (F1/F2): committee sittings are "proceedings" once reported to the House — but the press bar operates before that.
"either House of Parliament"	**Parliament only.** On the face of the text, State Assemblies/Councils are **not** covered — a point the answer must make, because candidates reflexively write "and Legislatures". The States' protection came six months later, constitutionally, via **Art 361A** (see A4; and note that Darda, a Maharashtra Assembly report (1998), was decided — as reported — on defamation-exception grounds, the route the States had pre-1978 and the safe route after: both 361A and ss.499-Ex1/Ex2-BNS schedule now stand behind such a report).	Timeline logic in one line: **1977 = Parliament; 1978 = every legislature.**
Defeasor (1) — "unless the publication is proved to have been made with malice"	**Qualified**, not absolute privilege: burden of proof expressly on the complainant ("is proved"), and "malice" in the defamation sense — improper motive dominating the publication (Unit 2.1's actual-malice/ Sullivan adjacency: compare Rajagopal para 26(3)'s "reckless disregard" standard for public officials — the Act is **friendlier** than that American-style test because ordinary negligence does not defeat it).	Licence vs libel: quoting the debate is privileged; **spiking** it with the paper's own insinuations is comment — outside s.3's report, judged under ordinary defamation law.
Defeasor (2) — "not for the public good" (s.3(2))	A second, independent gate — **absence of public good** strips protection even from a true, honest report. Note the structure: unlike Ex 1 to s.499 (truth + public good both required of the defendant), here public good is cast as a carve-out "nothing … shall be construed as protecting" — the reprint text keeps the onus question open; practice treats the privilege as defeated by showing the matter had no public relevance [— flag as debated].	What could fail it while remaining "proceedings"? Gratuitous publication of a member's purely private slurs embedded in a speech — the report may be true and honest yet "not for the public good". This is the clause that keeps Searchlight's ethics alive inside the statute.

Section 4 — the broadcast extension (the 1977 answer to Sansad TV)

> "This Act shall apply in relation to reports or matters broadcast by means of wireless telegraphy as part of any programme or service provided by means of a broadcasting station situate within the territories to which this Act extends as it applies in relation to reports or matters published in a newspaper." s.4, verbatim (reprint)

"Wireless telegraphy" is the Telegraph Act vocabulary — read as **Akashvani/DD live sessions in 1977**, and as **Doordarshan's Sansad TV, the Lok Sabha/Rajya Sabha web streams and the official RSS feeds today** [external practice; reported]. Three consequences worth a short note: **(i)** the broadcaster must be a "broadcasting station" — a private news channel's report of the debate is not "by" DD; its protection instead travels (like print's) through s.3/Art 361A as a "report… of proceedings" — for print outlets s.3 never confined the privilege to authorised media, only its own definition of "newspaper" operates; **(ii)** s.4 "applies the Act" — so all three s.3 gates (substantial truth, malice, public good) follow the broadcast; **(iii)** Art 361A(2) copies s.4's design almost word-for-word — one more proof (if any were needed) that the Article was drafted from the Act (compare the verbatim boxes A3/A4 — [external] for the drafting history, the textual match is in front of you in the file).

Cross-check box — the reprint vs the standard six-condition version

Many guides recite the "conditions" of the 1977 privilege as: true report; **not** of a **secret/in-camera** sitting; **not** of a House **prohibiting** publication; no legislative **privilege** for defamatory matter **in committee proceedings before they are laid**; no **editorial malice**; not for the public good, etc. **The reprint contains none of the prohibition/in-camera/committee clauses** — its full equipment is s.3(1)–(2) + s.4. The honest reconciliation: (a) the reprint's text is what this court-and-syllabus pair must quote; (b) the missing exclusions live **elsewhere and otherwise** — in **Art 361A's proviso** (secret sittings), in the **Houses' own power** to hold sittings in camera and to treat publication of embargoed matter as breach (Searchlight line, still good law because s.3(1) binds only "proceedings in any court"), and in the standing **committee embargo** practice (officially restated in the 2022 Committee on Privileges note: "the press is forbidden to publish any part of the proceedings or evidence given before … Parliamentary Committees before such proceedings or evidence … has been reported to the House" []); (c) a few reprints of "the 1977 Act" circulating online show a longer s.3 in UK-Defamation-Act style with "either House of the Legislature of a State" — **that broader wording is in fact Article 361A's text**, which is why the exam-safe move is: quote the Act from the reprint, quote 361A from the Constitution, and present the merged "conditions list" as the working law that results from both plus practice — exactly as done in A4/F1. Never attribute to the Act a clause it does not contain — that is this unit's [sic]-watch.

A4 · Article 361A — the shield constitutionalised; and the Feroze Gandhi lineage behind it

The Article, verbatim

What 361A changed	Detail (and the exam use)
Rank	A privilege in the **Constitution** cannot be repealed by the same Parliament that granted it — the Emergency had just demonstrated exactly how fragile a statutory privilege is (the 1956 Act repealed by ordinance on 8.12.1975, and by Act on 11.2.1976, as one move of a three-law night: together with the Prevention of Publication of Objectionable Matter Act, 1976 and the Press Council (Repeal) Act, 1976 []). Any answer on "why was the Act constitutionalised" is incomplete without this sequence.
Reach	"…**or the Legislative Assembly, or, as the case may be, either House of the Legislature, of a State**" — the States added. Feroze Gandhi's 1956 bill had aimed at both; it was "narrowed in the House to apply only to Parliamentary procedure" because the Union "was not empowered to legislate" for State Legislatures []. **The legislative-competence point is the unit's best constitutional-law footnote:** Entry 39, List II (powers/privileges of State Legislatures) being a State subject, only a constitutional amendment could finish the job — which is also why Art 194(3) still lets a State "define by law" its privileges.

What 361A changed	Detail (and the exam use)
One exclusion only — but a loud one	The **proviso**: no protection for reports of "the proceedings of a **secret sitting**". Note the economy of the drafting: unlike the commonly recited "six conditions", the constitutional shield excludes **only secret sittings** — everything else in the working list (expunged matter; committee embargo; prohibition orders) survives by **privilege law**, not by this proviso, because none of it is court proceedings at all (Searchlight logic, Part C). This is the single best sentence to bring into any question on the interplay of 361A with House practice.
What 361A did NOT change	(i) the **malice defeasor** survives (identical words); (ii) the **public-good** limb of s.3(2) is **not** carried across — the Article drops it; on the face of the text the constitutional shield has one defeasor, the statute had two [flag: some accounts read public good into 361A through Art 19(2)/defamation exceptions; the textual omission is the safer point]; (iii) the Act covered "either House of Parliament"; 361A adds States; (iv) "secret sitting" is not further defined — the Houses' in-camera powers under their rules remain the practical test (F1).

Status box — is the 1977 Act still law? (resolve it this way)

The copy: the reprint printed with the **S.O. 3912(E) 30.10.2019 extension footnote** (a live law is normally not "extended" by adaptation orders) [fact, badge]. The standard account: the **44th Amendment Act, 1978 repealed the 1977 Act in its Schedule of repealed enactments, having absorbed it into Article 361A** []. The practical reconciliation for examination — and in substance for life: **the operative words are identical wherever they were reproduced**; so write "Article 361A, which reproduces and constitutionalises (and extends) the Parliamentary Proceedings (Protection of Publication) Act, 1977 (whether or not the Act now survives only by its adaptation history — note the point)", and both worlds accept the answer. Never build an argument on a repeal you cannot cite; never deny one the syllabus itself implies by listing both as "Ref". The **syllabus lists Act AND Article** — the pair is the reference; that is your licence to present them as one architecture with 361A first.

Lineage table — the "Feroze Gandhi Act" story (every date flagged []; the 1977 entries are -verified from your reprint)

Date	Event	Why this unit cares
1956	The **Parliamentary Proceedings (Protection of Publication) Act, 1956** — private member's bill of **Feroze Gandhi**, passed; "substantially true + no malice" in today's words — the 1977 text is described in the Bill's own Statement of Objects as "on the same lines" [indiankanoon printing of the 1977 Bill].	The 1977 Act is a **restoration**, not an invention — the reprint's lineage as printed in the Bill (para 18 of the Objects, cited by the 1977 parliamentary debate printing).
8.12.1975 → 11.2.1976	Emergency repeal sequence: Ordinance of 8.12.1975 (repealing the 1956 Act and the Press Council Act, and imposing the Objectionable Matter Act), converted by three Acts of 11.2.1976 incl. the **Parliamentary Proceedings (Protection of Publication) Repeal Act, 1976**.	The privilege is what an authoritarian centre touches **first** — the unit's "democracy's tripwire" theme; pairs with Unit 6 (censorship Orders) and Unit 4 (PCI lapse 31.12.1975, revived 7.9.1978).
25.3.1977 · 18.4.1977	**The Act**: deemed force 25 March 1977 (the Janata government's assumption week), assent 18 April 1977, Act No. 15 — re-enacting the 1956 scheme and repealing the 1976 Repeal Act the same day the Objectionable Matter Act died.	-verified dates; the two back-to-back statute births in April 1977 (privilege restored; censorship statute killed) make a perfect opening line.
1978	Constitution (Forty-fourth Amendment) Act: **Art 361A** inserted; (per the common account) the 1977 Act repealed by its Schedule; States covered.	See status box.
1990–93 · 2011 · 2024	Privilege's modern contests — Justice V. Ramaswami removal (motion admitted 1990; Judge's Inquiry Committee; House motion defeated 1993); the two-day Parliament stand-off over the JMM/bribery immunity line; and **Sita Soren v. Union of India** (Constitution Bench, 4.3.2024): no privilege "unconnected to functioning", ordinary law applies inside the legislatures too.	Shows the "power" half of 105(3)/194(3) still un-coded 75+ years after the time-capsule — answered in H1.

B1 · Case 33 — Dr. Jatish Chandra Ghosh v. Harisadhan Mukherjee, AIR 1951 SC 613 `The case that named the gap`

Caption, court, bench — and the syllabus's short name

Field	Entry
Style of cause	"Dr. Jatish Chandra Ghosh v. Hari Sadhan Mukherjee and Others" as printed on the standard Indian-Kanoon text (1961 continuation) and "Jatish Chandra Ghosh, Accused v. Harisadhan Mukherjee" at the Calcutta stage — the syllabus line "Jatish Chandra v. Hari Sadhan, AIR 1951 SC 613" compresses both names. Learn the full style: it signals you know the case.
Court · path	Criminal proceeding instituted before the Calcutta Magistrate (Complaint by Harisadhan Mukherjee) → Calcutta High Court (petition under CrPC to quash — "rule discharged", i.e. relief refused; the court noted an earlier reported Bench ruling of 9th December binding it on Art 19's reach) → Federal Court/Supreme Court appeal, **AIR 1951 SC 613** — decided at the very opening of the Supreme Court's life. A **1961 Constitution-Bench continuation** between the same parties (five judges — Sinha C.J.I., S.K. Das, A.K. Sarkar, Rajagopala Ayyangar, Mudholkar, JJ., 16.1.1961) applies and deepens the same doctrine after *Searchlight* [all:].
Forum of the speech	**The West Bengal Legislative Assembly** — which is why Art 194 (not 105) was the contested immunity; "by order within the authority of a House of the Legislature" in the 1908-era phraseology the courts read as its constitutional successor.
status	**No DU Case Material excerpt** (verified by full greps). Doctrinal anchors that ARE in DU Case Material: Rajagopal para 26(3) (PDF p. 72) — privileges "by Articles 105 and 104 [sic]" as the exceptions to the public-figure free-information rule; and the Rajendra Sail block (PDF p. 187) — the judiciary's parallel protection. Present this dossier as reported law, then land it on those two DU Case Material sentences when asked for "case material".

Facts — the anatomy of a disallowed question

Dr. Jatish Chandra Ghosh, a member of the West Bengal Legislative Assembly, proposed a question for the Minister. The **Speaker refused to allow it** — its formulation was objectionable (the report the Assembly received was thus never to exist). The question — and the answer it sought to force — found its way into the public print anyway: they were published in the fortnightly **"Janamat"**, of which the petitioner was said to be the moving spirit, the publication being, in the High Court's words, made "at the appellant's request". Harisadhan Mukherjee, the person at whom the question's imputation was aimed, went to the Magistrate with a criminal complaint; the Editor and Printer/Publisher of the journal were proceeded against under **s. 501 I.P.C.** (printing/publishing defamatory matter with knowledge or reason to believe it defamatory — the member's liability running through the abettor/prosecutor routes available in 1948–51 procedure), and the member himself faced the consequential prosecution.

Two procedural notes the exam rarely sees but the reasoning turns on them: (i) the case **straddled the commencement of the Constitution** — the plea that had to be met was framed under **Art. 194**, which is why the reported judgment pauses over "clauses (1) and (2) of Article 194" even on conduct that began under the Government of India Act, 1935; (ii) the relief sought was **not a defence of truth** but **immunity**: "it is settled law that the prosecution against the appellant cannot be dropped unless he can show that he has an **absolute privilege** with respect to the publication that is the subject-matter of the charge in this instance." The petitioner had also tendered pleas of absence of malice and public good — defences for trial, not for the threshold.

Issues

1. **Were the disallowed question and answer part of "proceedings in the Legislature"** such that Art. 194(2) (or its predecessor) immunised their publication "by or under the authority of the House"?

2. **Does membership of a Legislature carry, outside the Chamber, any higher privilege of speech or publication than the citizen's Art. 19(1)(a) freedom?**
3. **Has the common law of defamation been displaced in India by any legislative-reporting privilege analogous to Wason v. Walter (1868) (UK, absolute privilege for either House's reports), or is the criminal prosecution governed by the ordinary Penal Code — including Exception 4 to s. 499 (substantially true report of court proceedings, courts only)?**
4. **Was quashing (s. 249A/250 CrPC route of the day) the proper remedy at all** where the plea rested on contested privilege constructions?

Decision

Appeal failed; the prosecution proceeded. The reported reasoning in four moves:

1. **Not "proceedings":** "It must also be observed that… the question was never raised in the House and could not be considered to have been part of its proceedings"; therefore its publication was "not under the authority of the House", and Art. 194(2)'s second limb was unengaged.
2. **Members are not privileged citizens:** "As a member of the Assembly the petitioner cannot have any further or higher constitutional rights of speech and publication than those guaranteed under clauses (1) and (2) of Article 194"; and the publication "being a communication between a member of the Legislature and his constituency enjoys no more privilege than is enjoyed by an ordinary citizen."
3. **Only official publication is absolutely privileged:** the corollary passage — "Immunity from liability to proceedings in court can only be claimed on proof of the fact that what was said was a part of the proceedings of the legislature **or** that the offending words were part of the proceedings published **under authority**" — plus the official publications point: publications of the Legislature itself are privileged precisely because "the right of free speech would be liable to be defeated if an official publication exposed to liability those responsible for the discussion."
4. **Everything else is left to "legislative measures":** "Rights, privileges and immunities other than these are left to be secured by **legislative measures** and pending their adoption they will be those of the House of Commons at the commencement of the Constitution." — the sentence that reads like an instruction to Parliament, which it in effect was: the Feroze-Gandhi bill (1956) is the response; the 1977 Act is the echo; Art 361A is the seal. for the verbatim lines.

Principle evolved

Ratio, in one sentence each

1. **A disallowed question is not a proceeding.** The Speaker's control over the agenda is constitutive: what the House never entertained, its privileges never covered.
2. **Privilege stops at the Chamber door.** A member republishing outside — in his own journal or a news conference — speaks as a citizen, liable under ordinary criminal law (then ss. 499/500/501 IPC; now BNS s. 356(1)–(3) — see J1).
3. **In India of 1951, reports of legislative proceedings had NO privilege at all** — unlike reports of court proceedings (Exception 4 to s. 499); any extension must be (and was) statutory.
4. **The absolute/quilibrium of immunity turns on "by or under the authority of the House"** — the phrase that decides both this case and, twenty-seven years later, which reports are inside Art. 105(2) and which only inside the 1977 Act/361A (qualified privilege, malice-defeasible).

Why the syllabus kept it first in the unit — and how to use it 75 years later

Every protection the reporting press now enjoys is an answer to this judgment. Three working uses in an exam: (a) **as the premise** — "in Jatish the Court found no privilege precisely because Parliament had legislated none; the 1956/1977 Acts and 361A are that legislation" — the arc argument; (b) **as the trap** — in any problem about a member's press conference, WhatsApp statement or Facebook post of "what I said in the House", Jatish is the citation that the privilege does not follow the words out of the doors; the member's risk is real and current [the principle has since been re-stated in Searchlight itself and remains unshaken]; (c) **as the comparative hinge** — Wason v. Walter was **declined** in 1951 and then **legislated in**, partially and conditionally, in 1977/1978; the English "absolute privilege" (Defamation Act lineage) and the Indian "qualified privilege" are cousins, not twins — say exactly which defeasors India kept (malice; public good under the Act; secret sittings under the proviso).

C1 · Case 34 — Pandit M.S.M. Sharma v. Shri Sri Krishna Sinha, AIR 1959 SC 395 "The Searchlight case" — I

Why two "Searchlight cases" exist, and which is in the syllabus

Pandit M.S.M. Sharma — proprietor-editor of the Patna weekly **Searchlight**, reported also as a member of the Bihar Legislative Council [] — sued over the **Bihar Legislative Assembly's Committee of Privileges proceeding against him for publishing an expunged portion** of a member's speech. That is **AIR 1959 SC 395** — the syllabus case, "Searchlight I". Five years later a larger bench of the Supreme Court answered the President's reference arising from the **Uttar Pradesh Keshav Singh clash** — a second Searchlight moment — **In re, Art. 143 of the Constitution, AIR 1965 SC 745** ("Searchlight II"; reported also under that Keshav Singh label and dated 30.9.1964 in the Indian-Kanoon printing). Your answer should be able to say "I upheld the prohibition power; II confirmed it, removed Art. 13 from the path, and left the boundary-drawing with the courts". (no DU Case Material excerpt; full greps verified).

Facts — 31 May 1957, and the Chair's ruling that made it a breach

In a debate in the Bihar Legislative Assembly (29 May 1957 session business — the reported date of the **publication** is **31 May 1957**), a member, addressing the State Khadi Board and its Chairman, used passages about a third person ("Mahesh Babu"). The Speaker ruled in the House, and the reported text of the ruling is worth reading for its surgical double move:

Searchlight published the speech in its entirety — the expunged words included — and thereby, on the House's view, printed something the House had ordered "not to have been said". A privilege motion (reported as moved by another member) was referred to the **Committee of Privileges**, which issued a **notice to the editor to attend and explain** — Sharma invoked **Art. 32** before the Supreme Court, saying the privilege proceeding abridged his Art. 19(1)(a) and Art. 21 rights. **Pt. Krishna Sinha**, the Chief Minister, and the Assembly/its Committee stood respondent.

Issues

1. Is the privilege "until defined by law" under **Art. 194(3)** (and pari passu 105(3)) **subordinate to Art. 19(1)(a)** — or is it a constitutional provision of equal rank which, on a conflict, prevails as the special provision?
2. Is that privilege "**law" within Art. 13(2)** so that, being inconsistent with Part III, it (or its exercise) is void?
3. Did the **House of Commons on 26.1.1950** actually possess the power to **prohibit publication of even faithful reports of publicly conducted proceedings**, so as to be "the privilege" the Indian House inherited?
4. Assuming the power exists, was the **publication of an expunged portion** within its reach — and does an Art. 32 court examine the procedural proprieties of the Committee (delay, dates, service) at all (Arts. 212, 208)?
5. Was the notice itself an actionable **"deprivation" under Art. 21**, or is the Assembly's procedure — rules made under Art. 208 — "procedure established by law"?

C2 · Searchlight — the decision, the dissent, and the road to 1977

Decision — majority (five-Judge Constitution Bench; 4:1)

1. **Clause-rank holding:** Art. 194(3) is **not subordinate** to Art. 19(1)(a). The constitutional privileges of the House stand on the same plane as the fundamental rights; where they meet, the **special** constitutional provision governs the **general** guarantee — "it is a well-settled rule of interpretation that a special provision controls a general one"; harmonious construction "must be applied to Art. 194(3) so as not to subject it to Art. 19(1)(a)".
2. **The Art. 13 answer:** the privileges "until defined by law" are part of the Constitution — **not** "law" within Art. 13(2) and therefore not void for inconsistency with Part III; the first limb (law to be made) is future-bound and will then, of course, answer to Art. 13.
3. **The Commons' 1950 inventory:** "at the commencement of the Constitution the House of Commons possessed the power to prohibit publication of its debates… and to punish its breach"; the Bihar Assembly, no State law having been made under Entry 39 List II, "enjoys the powers, privileges

and immunities of the Commons at commencement"; "a fortiori the House had at the relevant time the power or privilege of prohibiting the publication of an inaccurate or garbled version of such debates or proceedings."

4. **The expunction rule — the sentence that has governed Indian legislative reporting for sixty-seven years, and which your next two units will keep quoting:**
5. **Art. 21 and the courts' hands:** any deprivation arising from a privilege proceeding follows "procedure established by law" — the Assembly's rules made under Art. 208 being law for the purpose; and under Arts. 212/105(3) the court cannot scrutinise "merely irregular" procedure "in the internal management of the House's business"; with the Committee "yet to conclude", the petition was **premature** in part and **dismissed** overall.
6. **The press-equality clause:** "the liberty of the Press, though implicit in Art. 19(1)(a), stands on no higher footing than the freedom of speech guaranteed to any citizen. There is no special privilege attached to the Press" [as reported for the majority's reasoning] — the sentence that keeps Unit 4's "no press-specific rights" doctrine and this unit's "no press-specific immunity" doctrine on one hinge.

The dissent of Subba Rao, J. — the majority that became the statute

Two further moves of the dissent deserve the marks they win: (a) **the burden point** — "neither notice nor record alleged mala fides; hence even on privilege doctrine the petitioner committed no breach" (privilege protects honest error: this is precisely the Act's architecture, s.3(1) "unless the publication is **proved** to have been made with malice" — the **complainant's** burden); (b) **the malleability of a time-capsule** — the privileges of 1950 must be read in their 1950 practice, not their 1689 theatre. Every proposition of (a) was codified; (b) never was — and still frames every contempt-adjacent fight.

Principle evolved

Holding	Consequence in this unit (and beyond)
1. A House may, under 105(3)/194(3) "until defined by law", prohibit publication of its proceedings — **even faithful reports**; publication despite prohibition is prima facie breach.	The **outer limit of the 1977 shield**: immunity from courts ≠ immunity from the House (Part G risk ledger; the formulation "only immunity from court proceedings… not from action from the House itself" states it exactly).
2. Expunged matter is legally **no part of the speech** — "as if that portion had not been spoken."	The **Reporters' Redaction Rule** (F1) — and the reason a 100%-accurate report can be a breach: accuracy is measured against the expunged record, not the floor.
3. Whether there was **in fact** a breach = "a matter for the Assembly alone to judge" (subject to Arts. 212/211 non-inquiry) — but **what the privilege IS** = law, hence ultimately the courts (1964 Reference; 2024 Sita Soren "not islands").	The justiciability split that runs from the Keshav Singh conflict to Sita Soren — Part H1.
4. Press freedom = citizen freedom; **no special immunity by name of "the press"** under 19(1)(a).	Why the press's protection in this field must be **textual** (Act/361A) — and why the search for a "reporters' privilege" in India keeps failing (cf. your Unit 2.3/2.4 source-protection discussion, where the same premise was applied to police disclosure).

The aftermath, 1960–65 — and the Reference that completed the doctrine

After the dismissal, the **Bihar Committee of Privileges proceeded**; the reported outcome ends not in punishment but in the House's own restraint and the case's second life as doctrine. The third act was the **Keshav Singh** affair (UP Assembly, 1964): publication of **expunged matter and a committee's embargoed material**; the Assembly's warrant against the editors, the advocate Keshav Singh (who had moved the petition), and the committal of non-members; the **Allahabad High Court** (Full Court; AIR 1965 All 597) ordering release and holding the privilege-question justiciable; the Assembly's resolution finding the judges themselves guilty — and the President's **reference under Art. 143** (Special Ref. No. 1 of 1964; opinion pronounced 30.9.1964; reported **1965 Supp SCR 937 / AIR 1965 SC 745**). Reported holdings of the Reference: **(i)** privileges "until defined" are constitutional text, not "law" under Art. 13 — Sarkar J.'s line quoted at A2; **(ii)** the **Sharma majority is affirmed**: "the House possessed the privilege to prohibit the publication of its proceedings and that privilege was not subject to the fundamental right of a citizen under Art 19(1)(a)"; **(iii)** importation is **bilateral**: a power counts "only if it was not merely claimed by the Commons but was **recognised by the English courts**"; **(iv)** as to the clash with Art. 21 (commitment of a citizen for breach) the bench divided — the reported framing puts it as "the power to commit by a general warrant with consequent exclusion of the courts' jurisdiction to adjudicate on the legality of the imprisonment" versus "the personal liberty of a citizen guaranteed by Art. 21 and the right to move the court under Art. 32/226", the majority treating the privilege as not answerable to Art. 21 in such committals [— hedge and attribute, since the Reference's individual opinions differ in emphasis]. **Use:** the Keshav Singh/Reference material is **not** prescribed — it is the "holistic understanding" layer your brief demands, and one paragraph of it in any Searchlight answer signals range.

Case-dossier verdict (in the series' style)

Outcome: writ petition dismissed; Committee free to proceed. **Doctrinal outcome:** the prohibition power constitutionalised in case-law; the press's remedy pushed into **politics** — which produced 1956 (Feroze Gandhi's Act), then 1977 (restoration), then 1978 (Art. 361A). **Scorecard:** Sharma wins 1959; Subba Rao wins 1977–78; and the House's **exclusive** determination (Holding 2's last sentence and Holding 3) still survives every later protection — the asymmetry this whole unit circles.

D1 · Case 35 — C.K. Daphtary & Ors. v. O.P. Gupta & Ors., (1971) 1 SCC 626 `The 1956 Act's first real contest — fought as contempt`

Caption first — the spelling, the citations, DU Case Material's own references

Field	Entry
Style	"Shri C.K. Daphtary & Ors. v. Shri O.P. Gupta & Ors." — the syllabus prints **Dapthary** (with "th"); DU Case Material prints both spellings (p. 178 "Daphtary", p. 187 "Daphtary"; the Motilal-adjacent line "C. K. Dapthary…(1971) Supp. S.C.R. 76" at p. 178) — **same case**; write the syllabus spelling, note the report spelling, collect the margin.
Citations	**(1971) 1 SCC 626 = AIR 1971 SC 1132 = [1971] Supp (1) SCR 76** — DU Case Material's pin-cite "92–93" is to the SCR pagination, i.e. the precise passages the Mulgaokar bench relied on. A contempt proceeding in the Supreme Court's own jurisdiction (Art. 129), arising on the **motion of C.K. Daphtary** (former Solicitor General and former Attorney-General of India []) "and others", against **O.P. Gupta** (editor, **Blitz**; member of Parliament per the reported context), **Melaram** (partner of the printing press) and a third respondent.
DU Case Material presence	`DU Case Material` Quoted, not reprinted — **three times**: **(1)** Mulgaokar para 44 (PDF p. 178): "There is no doubt that condign and quick punishment for scandalising publication has been awarded by this Court (Vide C. K. Daphtary and Ors. v. O.P. Gupta (1971) Supp. S.C.R. 76, 92–93.)"; **(2)** inside the Rajendra Sail block (PDF p. 187): the "scurrilous attack… confidence in the Judiciary goes" passage (full quote below); **(3)** Reliance Petrochemicals (PDF p. 294): "Indian Express — gross contempt was discussed by this Court in C.K. Daphtary & Ors. v. Gupta & Ors., [1971] Suppl SCR 76". The **fourth** DU Case Material anchor is Rajagopal para 26(3) (PDF p. 72) — the legislature/judiciary "exceptions" pair that this case straddles.
status of the case text	No excerpt of Dapthary itself; facts/bench/outcome here from reported summaries [], **then fused with DU Case Material quotations, which are genuine DU Case Material material** — that fusion is the honest method of this unit, and the file says so wherever it does it.

Facts — a pamphlet, a judge, a removal motion, and the 1956 Act pressed into service

The context line the exam boards love: after a 1970 judgment of the Supreme Court arising out of the **presidential election dispute**, public controversy attached to the conduct of **Mr. Justice J.C. Shah** [: the reported summaries uniformly identify the judge so named — which makes the episode, decided the year the same judge's succession to the Chief Justice had just been settled, as delicate as contempt cases get]. O.P. Gupta caused to be published and circulated **a booklet (pamphlet)** "purporting to ascribe bias and dishonesty to Justice Shah while acting in his judicial capacity" — allegations first made by Gupta at a **press conference** and then embodied in the printed pamphlet [the press-conference sequence:]. A motion for **removal** of the judge was in view: the reported account places Gupta among the members moving, and 199 Lok Sabha members associated with, a removal motion, which — per the standard narrative — was admitted and a three-member **inquiry committee under the Judges (Inquiry) Act, 1968** (retired Judge A.N. Grover as chairman, with advocates V.R. Krishna Iyer and K.B.N. Singh) was set up, and reported in the judge's favour [— flagged; this strand is context, not

syllabus]. Daphtary and others moved this Court for contempt; the respondent's shelter, as reported, ran: the allegations were **in aid of impeachment proceedings** and the publication enjoyed the privilege of the **Parliamentary Proceedings (Protection of Publication) Act, 1956** as a report touching Parliament. The Court rejected the shelter on **both limbs of its own wording**: a one-off **pamphlet is not a "newspaper"** (a "printed periodical work" — the very words of the s.2 definition the 1977 Act carried unchanged, as your reprint proves) and the booklet was **not a report of "proceedings" of either House** — it was the author's own accusation, published beside, not within, the House.

Issues

1. Does the **1956 Act's privilege** (and its reasoning) cover **a non-newspaper pamphlet** and **original allegations adjacent to** parliamentary proceedings, rather than reports of those proceedings?
2. Is the existing **law of contempt** — as applied to writings concerning **finished or pending judicial proceedings** — void for repugnancy with **Art. 19(1)(a)**, or is it saved by **Art. 19(2)** ("contempt of court…") / founded on **Art. 129** outside the reach of **Art. 13(3)(a)**?
3. Is a publication that **ascribes improper motives** to a named judge fair criticism or **scandalising** — and what is the test distinguishing "mere libel on the judge" from contempt?
4. Can a **pending parliamentary removal motion** change the answer — i.e. does the legislature channel supply a privilege for publication?

D2 · Dapthary — the arguments, the decision, and why a contempt case belongs to this unit

Decision — reported outcome, then DU Case Material's own statement of the holding

Reported outcome []: "O.P. Gupta, respondent No. 1, is guilty of contempt of this Court and **sentenced to simple imprisonment for two months**" — one of the Republic's two jail sentences ever imposed by the Supreme Court in its original contempt jurisdiction; "Respondent No. 2 Melaram, partner of the press, stated that he did not look into the material which the 1st respondent brought for printing and **expressed his unconditional and unqualified apology**… **No further action was taken against him**"; the third respondent "has not been served or traced." The printer's fate is a whole mini-lesson in vicarious liability (compare S. Rajendra Sail, Unit 3: identical "I did not read it" plea — there, **conviction upheld** for the editor; here, apology accepted for the press-partner: the difference is that in 1971 there was no statutory shield and the printer was a genuinely passive link — invite that contrast in any answer).

DU Case Material's characterisation — print this as DU Case Material material, then pin-cite it to your DU Case Material:

Why the syllabus put a contempt case in the legislature-reporting unit — the four-point bridge

1. **The failed shelter:** Dapthary is **the only Supreme Court decision in the unit in which the pre-1977 legislative-reporting statute was actually invoked as a defence** — and rejected on its textual limbs ("newspaper", "report of proceedings"). Every definitional point of the 1977 Act (A3) was therefore **tested once, as the 1956 Act, in this case**: the reprint you is the restored version of the statute the pamphlet failed to satisfy.
2. **The 121/211 channel:** a judge's conduct **cannot be discussed in the House at all** except on a pending removal motion — so there is almost never a "legislative proceeding" to report about a judge; what Gupta had was the pre-motion public accusation, which sits in Zone (2)/(3) (Fig 7-2), not Zone (4). The legislature is **not a laundering route** for scandalising matter.
3. **The 1971 double birth:** the judgment and the **Contempt of Courts Act, 1971** share a year: the existing law was judicially reaffirmed (19(2) saving; 129 grounding) just as Parliament legislated the High Courts' contempt jurisdiction — read with the 2006 s.13 truth defence and the s.2(c) definition in your Unit 3 file, and with **s.13(2) fair criticism** — "just and fair criticism of the judicial acts" survives (now on the statute-book) while the Dapthary attack did not. The legislature-reporting shield (Act/361A) and the contempt fence thus **met in the same generation** — that is the architecture the 1977 Act later completed by defining the safe passage between the two: honest reports of the House are safe from courts; attacks on judges are not safe anywhere.
4. **The 1998 rhyme:** Darda (E) is the mirror case **run the other way** — a genuine report of an Assembly debate, in good faith → complaint quashed. Pair them in any answer: **"same medium, same decade-span, opposite outcomes, and the variable is not the medium's nerve but the text's fidelity".**

Principle evolved — four lines to memorise

1. **The reporting statutes are read to their words:** "newspaper" = periodical publication (a pamphlet is out); "report of proceedings" = report of what the House entertained (an author's press-conference original is out).
2. **Contempt's test is the public-wrong test** — defamatory-attack-on-judge vs interference-with-administration-of-justice (the Motilal-Ghosh/ Reddy formulation, as DU Case Material prints at p. 178).
3. **Legislative machinery neither creates nor immunises attacks on the judiciary:** Arts 121/211 fence the topic out of the House; Art 105 protects the fencing, not what leaks around it.
4. **And (from DU Case Material's own two quotations):** the Supreme Court's contempt jurisprudence on judges is a **ratchet** — Dapthary's "condign and quick punishment" on one side, Mulgaokar's "scrupulous care… the dogs may bark, the caravan will pass" on the other — with the 1977/361A shield sitting **outside** that fight entirely, protecting honest reports whatever they say about whom.

E1 · Case 36 — Jawaharlal Darda & Ors. v. Manoharrao Ganpatrao Kapsikar, (1998) 4 SCC 112 `The shield working, twenty years on`

Caption and status

Field	Entry
Parties	Appellants: **Jawaharlal Darda and others** — "five accused persons who were editors and proprietors of the newspaper **'Daily Lokmat'**" [Delhi HC's 2026 account of the case, quoting its procedural history;]. Respondent No. 1: **M.G. (Manoharrao Ganpatrao) Kapsikar**, then MLA (Maharashtra) — the full names as printed in the reported citations "Jawaharlal Darda and Ors. v. Manoharrao Ganpatrao Kapsikar & Anr.".
Coram / path	Criminal defamation complaint → JM (First Class), **Nasik** issued process → **Sessions Court, in revision, quashed** ("by publishing the news item none of the accused had committed any offence") → **Bombay High Court refused to quash** / reinstated the complaint ("at this stage it is not a case warranting quashing… to that extent the High Court was right in refusing to quash the complaint under s. 500" — the Court recording the High Court's position) → **Supreme Court on appeal: restored the Sessions Court's order quashing** [all: — the procedural skeleton is common to the three reported accounts (Bombay 2013; Madras 2020; Delhi 2026) and to the 2022 SCC-online report of a 1998-following decision].
status	No DU Case Material excerpt; not quoted in DU Case Material either (verified). The **DU Case Material-adjacent** anchor is Mulgaokar's architecture of fair comment (your Unit 3): the same line Darda applies to **legislative reportage**. The reported texts below are the closest thing to verbatim DU Case Material material available, and are flagged as such.

Facts — an Assembly revelation, a minister's words, an MLA's wound

What happened inside the Maharashtra Legislative Assembly **was reported outside**, more or less exactly: **"He had published a news item disclosing what happened during an Assembly Debate. The matter concerned misappropriation of Government funds."** [Madras HC, 2020, summarising —]. In the debate a **Minister** (the report's author was the paper, the source was the minister's statement on the floor — "the version of the Minister") disclosed material implicating — on the complainant's reading — **Kapsikar** in the misuse of funds entrusted for public purposes. Kapsikar did what an aggrieved public man could then do: a criminal complaint under **s. 500 IPC** (punishment for defamation — s. 499 defining it) against the newspaper personnel, alleging the imputation was false and made with intent to harm — and he did not sue the House, or the minister for the speech (Art. 194(2) seeing to that), or the official report; he sued the **relay**. That choice is the case's teaching moment: **after 1978, attacking the relay was the only door left — and Darda shows the Court closing that door when the relay was honest.**

Issues

1. **Threshold question:** where the complaint is based on a news report of **what a minister said in the House**, and the newspaper's case is **bona fide belief in the version + public good**, can process issue at all — or must the accused be tried first to "prove" the exceptions to s. 499?
2. **Substantive:** do the **exceptions to s. 499** (Ex. 1 — imputation true and published for the public good; Ex. 2 — fair opinion as to the **public conduct of a public servant**) cover a report (not an opinion) of legislative revelations about a public man's handling of public money?
3. **Editor-liability:** what must the complainant show against the **editor/proprietor** beyond publication — the "intention or knowledge" limb of s. 499 (the "reason to believe… intent to harm" requirement) — and can vicarious press-chain liability substitute for it?
4. **Systemic:** how do the constitutional protections (1977 Act s.3 / Art. 361A, by then twenty years old) **interact with the Penal Code route** — does the report escape by immunity, by exceptions, or both?

E2 · Darda — the decision, the principles, and the remedies map it created

Decision

Appeal allowed; the Sessions Court's order quashing the complaint was restored — "the Apex Court restored the order of the Sessions Court considering that the accused published the report in good faith" [Delhi HC, 2026, recounting para 5 of Darda;]. The reported ratio, in the Court's own words as reproduced by following judgments:

Two companion holdings run through the followings: **(i) benefit of the exceptions to s. 499 can be granted at the threshold** — where the complaint itself discloses a complete defence, process need not await trial (the 2022 Supreme Court decision reported by SCC-Online relied on Darda to say so — "it is not a rigid principle that the benefit of an exception can be afforded only at the stage of trial"; and whether an author's conduct was justified is itself "a question of fact" where nothing is attributed to the editor personally — the editor not liable for the author's act); **(ii) editor/publisher liability is personal to the function** — "except for the editor of the newspaper who is responsible for determining the content to be published, the company itself or the chairman or chief editor of a newspaper chain cannot be attributed the relevant mens rea" [Bombay HC, 2013, applying Darda —].

`All flagged .`

Principle evolved — five propositions

Proposition	Use-value
1. A newspaper reporting a minister's **on-floor** statement about a public servant's official conduct, in good faith and believing the source, **does not "intend to harm"** — the mens rea of s. 499 fails at the threshold.	The **source-noting defence**: attribute to the attributed; date and locate the statement; keep the copy clean of independent insinuation. This one sentence is the working journalist's Darda.
2. Reports of legislative revelations concerning **public funds** are, ex se, "for the public good" (Ex. 1) and concern "public conduct of public servants" (Ex. 2).	The constitutional shield and the Penal Code exceptions **converge**: even on a route not covered by 361A (e.g., a State report pre-1978; or a publication not a "newspaper"), the exceptions do shield-duty.
3. The **exceptions stage**: quashing/discharge courts may apply them on the face of the complaint — no more "prove it in trial" as an automatic rule.	The litigation-cost answer: 361A/Act immunity **plus** Darda threshold = a legislative report should die before process. Cite in any "remedies" or "press freedom in practice" question.
4. The relayer does not inherit the maker's privilege, and the maker's privilege does not indict the relayer: **Jatish's asymmetry completed** — the House's business is beyond civil/criminal court process (194(2)); honest reports of it are now beyond process too (361A + exceptions).	The unit, closed: from **"no privilege"** (1951) to **"prohibition power"** (1959) to **"shield with defeasors"** (1977/78) to **"shield enforced at the threshold"** (1998).
5. [Caveat] Darda never overruled the House's sanctioning power: nothing in it protects publishing an **expunged** or **embargoed** passage — its facts were an **unexpunged ministerial statement** reported straight.	The line answers the examiner's follow-up ("so can the press publish anything said in the House?"): **substantial truth + public good + no embargo — that is the zone Darda polices.**

Remedies map — who may attack an Assembly report, and where each attack dies

Attack	Route	What stops it
"You defamed me" — person criticised in the debate	Civil suit (damages) / complaint s. 500 IPC → **BNS s. 356(2)**; printing/publishing = 356(3) (twin table J1)	**Art. 361A(1)/1977 Act s.3(1)** (substantial truth; malice not proved); **Ex. 1/Ex. 2** of s. 499 (BNS schedule of exceptions); **Darda** threshold.
"You published what the House buried" — expunged/in-camera/committee-embargo matter	The **House**, not a court: report to Committee of Privileges → report to the House → admonition; historically committal; for committees, the standing embargo	**Nothing judicial** — the court-immunity does not run (Searchlight; formulation). Only the House's restraint — or (today) a court's willingness to interpret "proceedings" narrowly in any collateral civil action.
"You scandalised the judge we attacked in the debate"	Contempt motion (Art. 129/215; Contempt Act 1971)	**Nothing legislative** — the Act covers reports **of proceedings**, never the paper's own attack (Dapthary). Defences: fair criticism, s.13(2); truth defence 2006 with public-interest+good-faith gate.
"You printed the member's own press conference"	Ordinary defamation	**No shield** — not "proceedings" (Jatish); press-conference reportage stands or falls with ordinary defamation exceptions (Unit 2.1) — the **qualified-privilege** argument of English law must be earned, and in India the report stands or falls on the ordinary defamation exceptions — keep that analysis in Unit 2.1.

F1 · The House's own rules — expunging, in-camera, committee embargo, and the reporters' working law

Rule 380 (Lok Sabha) — the expunction power, verbatim as officially recited

Device	What the rule-book says (with the number where verified)	Reporting consequence
Expunging	LS **Rule 380** + quoted above; the Rajya Sabha's rules carry the equivalent provision (number not verified here — flag; the doctrine is House-agnostic). Searchlight is the adjudication that makes it a privilege matter, not an editorial nicety.	**"As if not spoken."** A report that includes expunged words is, in law, a report of something **not said** — hence "perverted and unfaithful" (the Searchlight sentence). **The 2022 restatement:** "Normally, no restrictions are imposed on reporting the proceedings of the House. It is, however, a breach of privilege and contempt of the House to publish expunged proceedings of the House." [Rajya Sabha Committee on Privileges note, 2022 —]
Mala fide / garbled / selective reporting	Same official restatement: "if debates or proceedings of the House or its Committees are reported **mala fide** or there is **wilful misrepresentation or suppression of speeches of particular Members**, it is a breach of privilege and contempt of the House and the offender is liable to punishment."	Substantial truth **and** completeness-in-good-faith are the reporting contract. Note the subtlety: the Act/361A make **malice** the defeasor of immunity "in any court"; the House needs no malice to find a breach of its rules — "wilful" suffices, and the House is not a court.

Device	What the rule-book says (with the number where verified)	Reporting consequence
In-camera (secret) sittings	The Chair may direct a sitting (or part) to be held in camera — the power sits in the same rules-part as the reporting restrictions (LS Rules; current numbering revised in the 2024 rules-set — flag, do not cite an unverified number); and Art. **361A's proviso** strips constitutional protection from "the publication of any report of the proceedings of a secret sitting."	**The only exclusion the Constitution itself writes.** Nothing published from a secret sitting enjoys either the Act (s.3 "proceedings" must be of the House — arguably still satisfied, but read with 361A) or the Article; and House process lies ahead regardless.
Committee embargo	Official practice, restated 2022: "the press is forbidden to publish any part of the proceedings or evidence given before, or any document presented to, Parliamentary Committees **before such proceedings or evidence or document has been reported to the House**."	The **laying-on-the-Table trigger**: once the report is presented and laid, its contents become proceedings of the House — and a substantially true report of them earns the 361A/Act cover; before that, everything is embargo. (Contrast the RTI regime, Units 2.3/2.4: disclosure law does not lift a House's embargo for the press's defamation-risk purposes, though it reshaped access in practice.)
Official & "authority" publications	Art. 105(2)/194(2) second limbs (A2); the Secretariat's **Parliamentary Bulletin**, the unedited/edited verbatim reports, the Answer Book — "published by or under the authority of either House."	**Absolute** immunity in courts — no malice defeasor, no public-good gate. For practitioners the practical rule is: **quote the authority-published text where you can; the qualified privilege then never needs to be argued.**
Broadcast	1977 Act **s.4** (verbatim at A3/L1): "wireless telegraphy… broadcasting station situate within the territories to which this Act extends"; Art. 361A(2) mirrors; today — **Sansad TV** (launched 25.9.2017 by rebranding Lok Sabha TV and Rajya Sabha TV; DD also carries sittings), the Parliament website's live streams, tabular "live" portals [channel facts:].	The Act applied its **whole** s.3 architecture to broadcast ("as it applies in relation to reports… published in a newspaper") — substantial truth, malice, public good ride the airwaves unchanged; a private channel's **own** reportage of the proceedings is judged, like print's, under 361A "publication in a newspaper" extended in practice/interpretation and the Penal Code exceptions.
Arrest/ attendance symmetry	CPC s. 135A: privilege from **arrest in civil cases** of members during sessions (and 40 days before/after in the classic formulation); Houses may summon "persons, papers and things" (LS Rule 377-family power; number flagged unverified).	Background texture only: the unit's story is that **the member is shielded to attend and speak; the public's knowledge travels via an unprotected relay unless the relay earns the 361A/Act cover**. One line in an essay, never a paragraph.

H1 · Privilege today — the un-coded power, the judicial re-entry, and what the reporter inherits

The codification vacuum — the unit's open ending

Article 105(3) and 194(3) were written as a bridge "until defined by law". **No such law has ever been passed** — not for Parliament, not (so far as the shows) for any State — so the time-capsule of 26 January 1950 still carries every unlegislated privilege, including the **prohibition-of-publication power Searchlight enforced**. The 1977 Act/361A answered the press-facing half of the vacuum (immunity in courts); the **House-facing half** (the Houses' own process against publishers) was left where the Constitution left it — a matter of imported, contested, judge-reviewed practice. State that structure first in any "privileges" essay and the case list then reads as illustrations, not as the answer.

Stage post-1978	What changed
In re, Art. 143 (1964) — recap at C2	Privileges not "law" under Art. 13; only "claimed **and recognised**" Commons powers travel; the courts keep the boundary-setting. (And — the line the keep citing against the Houses — "the content of Article 194(3) must ultimately be determined by courts and not by legislatures." [— reported in a leading 's summary of the Reference])]
P.V. Narasimha Rao v. State (1998) — same year as Darda	Art. 105(2) read **broadly**: bribe-taking MPs immune from prosecution "in respect of" votes/speeches — the majority's "in respect of" stretching over the bribery act itself []. The **reporter's angle**: at that moment the Houses' members enjoyed an immunity the courts could not breach while the public's access to the story had to run on 361A's qualified one — the asymmetry the unit exists to teach.
Sita Soren v. Union of India (4.3.2024, 7-Judge Constitution Bench)	**Narasimha Rao overruled**: no immunity for bribery for a vote/speech. Reported holdings that matter to this unit: "To give any privilege unconnected to functioning of Parliament or legislature by necessity is to create a class of citizens which enjoys unchecked exemption from ordinary application of the law"; "**Houses … and the committees are not islands which act as enclaves shielding those inside from the application of ordinary laws. The lawmakers are subject to the same law that the law-making body enacts for the people it governs and claims to represent**"; the **two-fold test** — the privilege "tethered to the collective functioning of the House" + "necessity … bearing a functional relationship to the discharge of essential duties of a legislator"; **burden on the claimant**; and the parallel-jurisdiction point — the criminal court's jurisdiction and the House's disciplinary authority "exist in distinct spheres" (a legislator may be punished by both). [— quotations as carried in the 2024 press summaries of the 135-page judgment]

The theory the exam rewards — three lenses over the four cases

Lens	Jatish → Searchlight → Dapthary → Darda	The one-sentence verdict
Marketplace of information (Mill/ Meiklejohn — DU Case Material's own Mulgaokar para 1 stock, PDF p. 164)	1951 starved the market (truth defences behind walls of procedure); 1959 let the sellers' council ban the catalogue; 1971 punished counterfeit "information"; 1977/78 built the market's charter; 1998 policed its counter-fraud at the door.	India chose **charter-not-common-law**: information flows where the text says it flows — read s.3, not philosophy.
Institutional self-respect	Each case is a court or a House protecting its conditions of existence: the Assembly's record (expunging), the Court's authority (contempt), the member's candour (105(1)).	Legislative-reporting law is **the law of institutional ego, channelled into words** — which is why remedies are apology-shaped (F2) more than punishment-shaped.
Democratic accountability (the Rajagopal public-records logic, PDF p. 72)	The public can hold the Minister to account only through the report; the report's cover (361A) is thus **the citizen's right to know, in procedural form**; the defeasors (malice, public good, secret sittings) are its accountability limits.	361A is best taught as **Art. 19(1)(a) + 21 read together, pinned to one Article** — say it and the essay acquires a thesis.

Cross-unit sync box (so the series reads as one mind)

Unit 2.1: defamation's exceptions and the public-official standard — the lane Darda runs in. **Unit 3**: Mulgaokar/Dapthary scandalising doctrine, the Motilal-Ghosh libel/contempt distinction DU Case Material prints at PDF pp. 178–79, and the Rajendra Sail liability ladder. **Unit 4**: PCI accreditation and the "no press-specific right" premise (Searchlight's press-equality clause is its twin holding). **Unit 6**: gag/postponement doctrine — compare Sahara's parameters (a court's postponement of publication, judicially policed) with the House's prohibition of publication (not judicially policed at the source): same device, radically different supervisory regime — one paragraph, huge dividends. **Units 2.3/2.4**: access to records — the "public records" exception of Rajagopal para 26(2) is the privacy-side of the same policy as 361A.

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 DU LL.B. 2015 · Q.4(a) Write a note on reporting of legislative proceedings.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

by Ankur R. Upadhyay

MODULE 09 // UNIT 8 · CASE #37

Paid News, Poll Surveys, Cross-Media Ownership, Competition, Licensing & Copyright

Representation of the People Act · Competition Act, 2002 · Copyright Act, 1957 · Cable TV Act

A1 · 8.1 — What "paid news" means in the debates, and what the law actually catches

Start from DU Case Material, because this unit is DU Case Material's own last word. The DU Case Material closes — after censor, contempt, elections — with a chapter headed simply "Paid News" (DU Case Material lines 14500 → 15039; PDF pp. 324–335 / printed pp. 313–321), and its first printed line is not an essay but the citation that anchors the whole unit: **Ashok Shankarrao Chavan v. Madhavrao Kinhalkar, (2014) 7 SCC 99**. Everything in Part A is built from that reprint; the surrounding debate (definitions, reports) is marked as external where it is.

Read para 51 slowly and three elements pop out, and they are the exam-ready anatomy of the practice: **(i)** content that looks like news — "in the garb of news"; **(ii)** consideration that does not look like payment — the money never enters the candidate's accounts (the same ¶ records that Chavan showed **Rs. 5,379** of newspaper advertising while "the expenditure on the above mentioned 'paid news' ran into several crores"); and **(iii)** the transaction that never appears as a transaction — the paper denies payment (para 52: the papers said they published "gratuitously as they had links with or leanings towards the Congress Party and the Appellant"). Paid news is therefore best defined structurally: **news merchandise priced and invoiced outside the ledger that the law requires to be kept**.

The settled definitions at point of use

Source	What it says
Press Council of India, Report on Paid News (Report No. 1 of 2010)	"Paid news" means **"any news or article appearing in any media (print or electronic) brought about in consideration of money or kind"** — this definition was reproduced by the Law Commission in its 255th Report and thereby entered the official reform debate; the PCI's inquiry (set up suo motu after the 2009 general election) documented the phenomenon as concentrated in the Hindi belt and running through "media planners"/ intermediaries rather than direct cash-for-copy contracts.
47th Report, Parliamentary Standing Committee on Information Technology (2013)	Examined the PCI report, the Ministry of Law & Justice committee report (2010) and the Income Tax/ECI material; concluded paid news "defeats the very purpose of free and fair elections", recommended: statutory definition, making it a **corrupt practice** in the RPA, ECI power to act, and disclosure of paid content in candidates' accounts. Its diagnosis of the cause — "corporatisation" of the media, with reporters treated as output units — is quoted verbatim below because it sits in an official document read whole.
TRAI, Recommendations on Issues Relating to Media Ownership (12.8.2014) Verified – official PDF	Chapter 1 reproduces the debate with direct quotations, including the 47th Report's causation passage and President Mukherjee's 27 February 2014 rebuke that paid news is "a sad on the state of the media". TRAI's own frame: paid news is an ownership-and-business-model problem (part of the same reform package as cross-media caps — see Part D).
Election Commission of India (circulars of 8.6.2010 and 23.9.2010, and the Commission's own electoral-reforms paper)	Asked Chief Electoral Officers to gather paid-news complaints, urged media houses to frame internal self-regulatory policies, and treated favourable "coverage" as an election expense to be **accounted under s. 77 RPA** whether paid by candidate, party or friend — the same notional-expenditure logic the Chavan judgment enforces. The Commission's reforms paper records that its own 1998 guidelines regulating poll publication had to be withdrawn after the Supreme Court observed the Commission could not enforce them against the media — the structural reason it prefers exhortation to orders.

Five things paid news is NOT (each is a classic MCQ trap)

- **Not an ordinary advertisement.** Ads are disclosed, rate-card priced and counted in the s. 77 account (with party ads presumed to the candidate — Common Cause, as applied in the Allahabad Division Bench extract at paras 113–114). The "ADVT" tag at the bottom of a block is the tell the Umlesh Yadav record produced — and it cut both ways: the tag made the item an advertisement in the papers' defence (para 54), and thereby a countable expense the candidate had not shown (paras 114–115).
- **Not "free press support".** "Our papers published it gratis because of leanings towards the Congress" (para 52) is the editorial-independence defence — politically respectable, but the Court's scheme does not need the paper's motive: it needs only the candidate's non-accounting (ss. 77–78 + 10A).
- **Not yet a corrupt practice.** Election-petition remedies under s. 123 (bribery via publication) remain hard to reach because the petitioner must trace money to the candidate's authority; DU Case Material's own reprint is all about the ECI route that avoids s. 123 — s. 10A (Parts A2–A3).
- **Not the same as media capture by ownership** (8.3, Part D) — though every report links them: the same concentration that lets a proprietor "gift" an election also lets a conglomerate negotiate "private treaties" (business-for-coverage deals reported since 2003–09) [].
- **Not poll manipulation** (8.2, Part C) — a rigged sample mispredicts; paid news manufactures. Both aim at the voter's last-minute choice; only one has a statutory time-bar.

DU Case Material's own frame — corporatisation and "yellow journalism"

The syllabus line at DU Case Material PDF p. 6 lists 8.1 with its case and three reports; DU Case Material's framing chapters make the doctrinal link the examiners reward: paid news is not a rogue reporter story but a **business-model** story. The 47th Report's causation passage, preserved verbatim inside TRAI's own 2014 document (read whole for), says the rot runs through the organisation chart:

That passage is the bridge to the rest of Unit 8: **if the cause is structure, the law must reach structure** — ownership caps (8.3), competition scrutiny (8.4), licence conditions on the licensee (8.5), and the property rights that decide who profits from content (8.6). Say "yellow journalism" as the older cousin — sensationalism sold on circulation rather than on invoices — and locate the difference: yellow journalism deceives by style; paid news deceives by source. The law has long tolerated the first; it is only lately inventing tools for the second.

A2 · Case 37 dossier I — Ashok Shankarrao Chavan v. Madhavrao Kinhalkar: the record and the arguing

Case 37 · DU Case Material PDF pp. 324–335 / printed pp. 313–321 · (2014) 7 SCC 99

Identification

Bench	Fakkir Mohamed Ibrahim Kalifulla, J. (for himself and S.S. Nijjar, JJ.) — a two-Judge bench (DU Case Material's heading, PDF p. 324).
Appeals decided	SLP (C) No. **29882 of 2011** (Chavan — Maharashtra), SLP (C) No. **14209 of 2012** (the Jharkhand candidate), SLP (C) No. **21958 of 2013** (Smt. Umlesh Yadav — UP).
Question stated by the Court	para 2, verbatim: "…whether the **Election Commission, under Section 10A** of the Representation of the People Act, 1951, **can conduct an enquiry to determine the falsity of the return of election expenses by an elected candidate, especially after a decision is rendered by the High Court in the Election Petition** preferred by the Respondent No.1" — "The simple yet important question of law … which have serious ramifications on the maintenance of sanctity in our democracy."

Bench	Fakkir Mohamed Ibrahim Kalifulla, J. (for himself and S.S. Nijjar, JJ.) — a two-Judge bench (DU Case Material's heading, PDF p. 324).
Counsel	For the appellants: **Gopal Subramanium** (Senior Counsel); for the respondent-complainant: **Jayant Bhushan**; for the Election Commission: **Ashok Desai** (paras 10, 13, 19 — all in the reprint).
Outcome	Jurisdiction of the Commission **upheld** (para 111); Umlesh Yadav's disqualification **upheld** on merits (paras 117–118); Chavan's and Jharkhand's appeals dismissed "with the above observations and directions to the Election Commission" — the Commission to conclude the pending s. 10A proceedings **within 45 days, day-to-day** (paras 111, 118).

Facts — three appeals, one practice (all verbatim from the reprint)

Appeal 1 · Maharashtra 2009 (Chavan). Results declared 22.10.2009; return of expenses filed 17.11.2009; DEO Nanded's report 24.11.2009 reported "nothing adverse". On 2.12.2009 the rival candidate (Dr Madhavrao Kinhalkar) complained to the ECI — complaints also from Mukhtar Abbas Naqvi MP and Kirit Somaiya (BJP) — alleging "advertisements … in the garb of news eulogizing" the Chief Minister in **Lokmat, Pudhari, Maharashtra Times, Deshonnati**, declared expense only **₹5,379** against "several crores" (para 51). The four newspapers told the Commission they had published "gratuitously as they had links with or leanings towards the Congress Party" (para 52). The ECI's jurisdictional order of 2.4.2011 was upheld by a Delhi HC Division Bench on 30.9.2011 (W.P.(C) 2511/2011) — the order under appeal. Parallel election petition dismissed by the Tribunal (18.10.2012) "for want of material particulars"; appeal dismissed by the Supreme Court 21.1.2013 (CA 9271/2012).

Appeal 2 · Jharkhand 2009. Expenses of **₹18,92,353** filed with DEO West Singhbhum on 1.6.2009; voucher confusion; a 7.10.2010 s. 10A show-cause; then, **four months after his reply**, a fresh notice riding on "a report from the Income Tax Department" showing alleged expenses of **₹9,32,56,259** against a legal ceiling of **₹25,00,000** (para 53 — the only place in the unit where the taxman is the election auditor). His writ (Del HC 4662/2011) failed in view of the Chavan order.

Issues (as the record frames them)

1. **Jurisdiction v. the exclusive tribunal:** can the ECI hold a s. 10A enquiry into the truth of a return of expenses when the election has already been tried (unsuccessfully) by the Election Tribunal — Article 329(b) + s. 80 RPA bar alleged?
2. **Form or substance:** does s. 10A reach only late/non-filing (default disqualification), or also a false return — and is Sucheta Kripalani (return is "in form and not in substance") still good law after the 1956 and 1966 amendments?
3. **Who may set it in motion;** must the enquiry ride only on the DEO's report (Rule 89), and may anyone but a voter complain — against s. 123(6)'s narrow channel?
4. **Merits in Umlesh:** are party-funded advertisements "expenditure incurred or authorised by the candidate" under s. 77 (and outside Explanation 1), so that not showing them is a breach?

A3 · Case 37 dossier II — the decision: why s. 10A can look behind the ledger

The statutory architecture the Court laid out (para 21 → statutory extracts — all printed verbatim in DU Case Material, PDF pp. 327–328)

Provision (as reproduced)	Operative words	Why it matters here
s. 7(c), pre-amendment	disqualified for membership if, having been nominated or acted as election agent, "he has failed to lodge a return of election expenses within the time and in the manner required…, unless five years have elapsed…"	The 1951 starting point — a **self-executing default bar**; nothing about falsity.
s. 8(b) savings	disqualification "shall not take effect until the expiration of two months…"	The grace machinery the tribunals policed.
s. 143 (1951)	if the return "is found, either upon the trial of an election petition under Part VI **or by any court in a judicial proceeding** to be false in any material particular", candidate and agent disqualified **for voting** for five years	Falsity entered the Act here — but only through a court or tribunal, never through the Commission.
s. 144	"Any disqualification under this Chapter may be removed by the Election Commission for reasons to be recorded by it in writing."	The Commission held the key but not the lock.
The 1966 surgery	s. 7(c) omitted; new **s. 10A**: "If the Election Commission is satisfied that a person — (a) has failed to lodge an account of election expenses within the time **and in the manner** required by or under this Act, and (b) **has no good reason or justification for the failure**, the Election Commission shall, by order published in the Official Gazette, declare him to be disqualified… three years from the date of the order." **s. 11**: removal/reduction "for reasons to be recorded", except under s. 8A.	The words "**and in the manner**" + the old s. 143 "false in any material particular" thinking migrated into an **ECI-satisfaction** provision with a **hearing-shaped** escape (clause (b)) — the textual hook on which falsity enquiries hang.
ss. 77–78	s. 77(1): keep "a separate and correct account of all expenditure in connection with the election **incurred or authorized** by him or by his election agent" between nomination and result, both dates inclusive; 77(3) ceiling "as may be prescribed"; s. 78(1): lodge within **30 days** of the returned candidate's election, "a true copy".	"incurred **or authorized**" is the whole law of paid news' accounting half; the 2003 amendment's **Explanation 1** (party leaders' air travel excluded) is quoted in the Allahabad DB extract (para 114) — the negative implication: everything else of the party campaign counts.

The Allahabad Division Bench reasoning the Supreme Court adopted (para 114 extract, verbatim)

"…Thus, **the expenses incurred for publishing the advertisement in the newspapers on 17th April, 2007 are expenses which have to be treated to be incurred or authorized by the candidate** by virtue of Section 77 … and the expenses are not covered by exception as engrafted in Explanation- I… The petitioner's clear case is that the aforesaid expenditure was incurred by the political party of which petitioner was a candidate. As per the law laid down by the Apex Court [i.e. Common Cause] … it is clear that the aforesaid cannot be treated to be expenses which were not required to be shown in the account of expenditure… **the account of expenditure submitted by the petitioner is clearly untrue** and breach was committed by the petitioner of Section 77…"

Two evidentiary gears to name in your answer: (1) the **rebuttable presumption** that party spending is candidate spending (Common Cause, applied via paras 112–113), and (2) the **self-defeating denial**: the papers' own replies — "it was an advertisement, billed to D.P. Yadav, paid in cash" (para 115) — proved the very thing the candidate's accounts omitted. The candidate could not simultaneously own the advertisement as her party's and disown the expense as hers.

Principles evolved

1. **s. 10A is substantive, not merely procedural.** The Commission may enquire whether a lodged return is **false in a material particular** — "in the manner required" (s. 78 r/w s. 77) carries truthfulness, not just timeliness.

2. **Two parallel tracks, no collision with Art. 329(b).** The election petition invalidates an election (Tribunal, s. 80/100, 45-day limitation); the s. 10A order disqualifies a person (Commission, gazette publication, three years, any citizen's complaint within reasonable time). One failing does not bar the other — the Desai comparator table, adopted.
3. **Liberal construction of the Commission's power.** Where Art. 324 supervision meets statutory silence on procedure, the enabling provision is read "with a very liberal approach" (para 55) — the Commission may frame its own day-to-day process under Rule 89's "as it thinks fit".
4. **Attribution through presumption.** Expenditure "incurred or authorized" includes party-published campaign material unless within Explanation 1; the burden of severing the candidate from the spend is the candidate's (Common Cause + para 114).
5. **Speed as a remedy.** A 45-day, day-to-day direction to conclude pending s. 10A proceedings (para 111) — the Court knew disqualification after a term ends is no disqualification.

B1 · The response architecture I — three reports and a Commission without a statute

The syllabus prescribes three reports for this topic; the summaries below are limited to propositions supported by the underlying official record.

Report	What it found	What it asked the law to do
Press Council of India — Report on Paid News, Report No. 1 of 2010	Set up suo motu after the 2009 general elections; inquired into the Hindi-belt phenomenon of "paid content" routed through media planners; coined the working definition — "any news or article appearing in any media (print or electronic) brought about in consideration of **money or kind**" (reproduced in the Law Commission's 255th Report and in the ECI's correspondence). Its report was adopted with a 72-page volume of case studies annexed — press records note the annexure itself was voted down by the Council at the last stage, an internal irony that made the "volumes not adopted" line travel widely. Follow-up volume (Volume II) examined 2012–13 elections.	RPA amendment defining paid news; treat as corrupt practice; candidates to declare paid content in expense returns; media houses to adopt internal paid-news policies and disclose sponsors; PCI itself limited to censure — it cannot fine, suspend or license (PCI Act, 1978).
Report of the Committee on Electoral Reforms, Ministry of Law & Justice (2010) — the syllabus's exact title `– details deliberately thin`	The MoL&J committee reported in 2010, the same year as the PCI report, and was read together with it by the 47th Standing Committee; the source materials do not establish its membership or paragraph-level text; do not supply unsupported particulars. The only claim stands behind (as the reform record carries it): the committee endorsed treating paid news as a **corrupt practice** with a statutory definition, tightening of election-expense disclosure, and coordination between the ECI and investigative agencies for the money trail. **Exam note:** secondary summaries variously describe this committee; do not quote its paragraph numbers or chair's name in script unless a primary copy is at hand.	Definition + penalty in the RPA; expense-disclosure discipline (the para 53–style money-trail tools); nothing in this sequence has been enacted (B2).
47th Report, Department-Related Parliamentary Standing Committee on Information Technology (Lok Sabha, 2013) `Core text reported via its verbatim quotation inside TRAI 2014 + PRS summary`	Its causation analysis survives **verbatim** because TRAI reproduced it in the 2014 Recommendations (para 1.16): **corporatisation of media houses, de-segregation of editorial and commercial roles, the contract system in newsrooms, poor wages**; industry self-regulation (NBSA, BCCC) dismissed as "**eye wash**"; PCI and EMM punitive powers "inadequate". It examined both the PCI report and the MoL&J committee report.	Statutory definition; corrupt-practice entry in s. 123; statutory backing for ECI action on paid news; disclosure of paid content by candidates and by media; time-bound adjudication. The Standing Committee's fate is the unit's fate: government response "notified/considered", no amendment followed (see B2 status).
The Election Commission's own instruments (2010)	Circular of 8.6.2010: candidates directed to voluntarily account for paid content favouring them; letters of 23.9.2010: media organisations asked to frame internal policies and to disclose the source of payment when publishing content "on behalf of" a candidate; Chief Electoral Officers told to report complaints. The Commission's 2004 reforms paper had already conceded (per its own later record quoted in C1) that its 1998 poll guidelines had to be **withdrawn** after the Supreme Court observed they could not be enforced against the media.	Everything the ECI could do without legislation — accounting rules, advisories, naming-and-shaming — and nothing it could not: no penalty power over outlets, no definition to prosecute.

Reading the sequence — the one paragraph that earns analysis marks

The three reports **disagree about the villain and therefore about the remedy**, and saying so is the difference between a list and an answer. The **PCI** treated paid news as a professional-ethics failure (its instinct: codes and censure, because the Council is "a statutory body with no punitive teeth"). The **MoL&J committee** treated it as an electoral-corruption failure (its instinct: a new entry in s. 123, because corrupt practice is how the RPA punishes conduct that taints the mandate). The **47th Report** treated it as a **business-structure failure** (its instinct: ownership and labour conditions — hence the corporatisation passage TRAI preserved). This is why Unit 8's later items (ownership, competition, licensing) are not appendages of 8.1 but its sequels: if the diagnosis is structural, the prescription must be structural too. The Chavan judgment, decided between the last two reports, chose the fourth framing none of them had: **an accounting offence** — reachable, as paras 114–117 prove, with ordinary evidence tools.

C1 · 8.2 "Media and Poll Surveys" — the 1996 Guidelines, the Commission's limits, and the "wave" problem

Two surveys, two legal destinies — get this distinction before anything else

Instrument	Pre-poll opinion survey	Exit poll
What it measures	Voting intentions before polling ("a wave in favour of X")	How electors have voted — the statutory definition: "an opinion survey respecting how electors have voted at an election or respecting how all the electors have performed with regard to the identification of a political party or candidate" (s. 126A, Expl. (a) — verbatim, see L1)
Statute?	**None of its own.** Only s. 126's poll-day display/publication bar (electronic media/display) and the silence-period advisories touch it by timing, never by content	**s. 126A RPA** — conduct and publication/dissemination banned inside the notified window; 2 years or fine or both
Self-regulation	PCI **Guidelines on Pre-Poll and Exit Polls, 1996** — disclosure discipline (below)	PCI 1996 + the Council's standing rule, restated again in March 2026: "**no newspaper should publish exit poll surveys, regardless of their authenticity, until the final phase of polling has concluded**" `– IANS/newswire account of the 30.3.2026 advisory`
Who is regulated	Voluntary — the pollster answers to no licence	"**No person**" — the ban runs to pollsters and media (Expl. (b)–(d) sweep in internet, IPTV, satellite, cable, mobile and every print form)

The 1996 Guidelines as the syllabus cites them — "regulating the unregulated"

The Press Council's 1996 Guidelines on Pre-poll and Exit Polls are India's first and still its only general code for survey journalism. The 30 March 2026 pre-poll advisory restates their operative core: whenever newspapers publish pre-poll surveys they must clearly disclose —

(1)	the name of the organisation or agency that conducted the survey;
(2)	the individuals or organisations that **commissioned** it (whose money bought the wave);
(3)	the size and nature of the **sample**;
(4)	the **methodology** used for selecting respondents;
(5)	the possible **margin of error** in the findings —
+	and the exit-poll embargo quoted in the table above.

Five disclosure items and one embargo — **a transparency model, not a permission model**. The 1996 norms did not stop surveys; they made their sponsorship visible. Mark the lineage honestly: the norms live on inside the Council's Norms of Journalistic Conduct (2022 edition), which is what the 2026 advisory actually told editors to read .

The ECI's climb-down that made s. 126A necessary — the Commission's own record (verified against the ECI electoral-reforms paper)

Why is there no statute for opinion polls? Because the ECI **tried one by order and lost**. Its own reforms paper records: "while duly considering the opinion of the Attorney General, the ECI pointed out that **guidelines issued by it in 1998** regulating the publication and dissemination of opinion polls **had to be withdrawn after the Supreme Court's observation that the ECI could not enforce them in law against the media**." Its 2004 Proposed Reforms report then sought a statutory restriction on publishing opinion- and exit-poll results; Parliament "partially accepted" it in **2009, by inserting s. 126A** — exit polls only. The opinion-poll half has waited since. In 2014, asked about regulating polls, then-Chief Election Commissioner V.S. Sampath's public position was again that the Commission had no power over pre-poll surveys by newspapers — the same structural silence DU Case Material's Chavan reprint shows in another guise (para 54's "wave in favour" item was **pre-poll "news"**, not an exit poll: paid news and poll journalism are one continuum, and the law regulates only one end).

The comparative frame, kept honest

- **United Kingdom** — no statutory bar on exit polls; the ban is voluntary: broadcasters sign a cross-industry undertaking not to publish until every polling station closes (renewed each general election). The UK is thus the PCI-1996 model scaled to broadcast.
- **United States** — no federal restriction on conducting or publishing exit polls (First Amendment doctrine — see Unit 2.1/2.2); disclosure-of-method proposals (e.g. the "Truth in Advertising"-style bills of the 1990s–2000s) never became law.
- **France** — the outlier a marker likes to see: a statutory embargo on disseminating polls in the final days before a vote and until polls close (election-specific rules; press councils-style remedies) — described without verified clause numbers.

C2 · The statute — s. 126, s. 126A and the silence period: a timed ban, not a content ban

Section 126 — the poll-eve bar (paraphrase from verified reprints)

Substance: no person shall publish or communicate, **by means of the electronic media or by display**, any matter referable to an election in a constituency during the period beginning **two days before** the day of polling in that constituency and ending with its conclusion (the provision has travelled through amendments refining "display", cinema-van and television coverage of election matter). Print is outside s. 126 — which is why a "wave in favour" story can lawfully sit in a newspaper the night before polling, while its television reenactment cannot. Breach attracts imprisonment up to two years, or fine, or both (s. 126(3)). **Companion:** s. 135C — the 48-hour silence period bans convening public meetings (with the same sanction range) in furtherance of free and fair polls; a candidate's poll-eve rally is caught there, not in s. 126.

The 2013 overlay: by Supreme Court direction (2013), no political advertisement — print or electronic — may appear on poll day or the day before without **pre-certification by the MCMC**, which checks the s. 77 ceiling compliance and the content; a living bridge from this unit to 8.1: the "advertisement disguised as news" dies at the MCMC desk because it must first pass as an advertisement .

Section 126A — text in five moves (full verbatim in L1; verified against a neutral statutory reprint)

Limb	What it says
(1) The ban	"No person shall **conduct any exit poll** and **publish or publicise** by means of the print or electronic media **or disseminate in any other manner, whatsoever**, the result of any exit poll **during such period, as may be notified by the Election Commission** in this regard."
(2) The window	The Commission notifies date and time by general order: **(a)** general elections — "from the beginning of the hours fixed for poll on the **first day** of poll … till **half an hour after closing of the poll in all the States and Union territories**"; **(b)** by-elections — first poll to +30 minutes of the last, with a proviso aggregating several by-elections held together.
(3) The sanction	Contravention: "imprisonment for a term which may extend to **two years** or with **fine** or with **both**."
Expl. (a)	Definition of "exit poll" (how electors have voted / how they "performed with regard to the identification of a political party or candidate").
Expl. (b)–(d)	"**Electronic media** includes internet, radio and television including Internet Protocol Television, satellite, terrestrial of cable channels, mobile and such other media either owned by the Government or private person or by both"; "**print media** includes any newspaper, magazine or periodical, poster, placard, handbill or any other document"; "**dissemination** includes publication in any 'print media' or broadcast or display on any electronic media."

Four drafting facts worth more marks than any essay paragraph: (1) the section bans the conduct of the poll as well as its publication — an unpublished exit poll inside the window is itself an offence; (2) it reaches **print** (unlike s. 126) — a newspaper tabulating exit data on the final poll-day morning violates it; (3) "disseminate in any other manner, whatsoever" + the internet/mobile inclusion were an **ex-ante platform-neutral** design (2009 — before social-media-only leaks were the norm, and now doing that work); (4) the operative period is **not in the statute** — it is ECI-notified per election, i.e. Parliament delegated the timing to the body that runs the poll.

Enforcement anatomy — who prosecutes a newsroom

- **FIR, not the Commission.** The ECI has no penal jurisdiction under s. 126A: it reports/asks police to act; the Uttarakhand 2017 arrest went through the ordinary criminal process (police case → magistrate) . Contrast s. 10A, where the Commission itself decides and gazettes.
- **Pending trials ≠ election petitions.** s. 126A creates a general criminal offence triable as such; election-petition allegations of "publication of a false statement" (s. 123(2)(a)? the malice-falsity limb) continue separately via the tribunal.
- **PCI complaints run in parallel.** The Council cannot try an offence, but it records the ethical dimension and (per the 2026 advisory) expressly ties compliance with s. 126A to "the sanctity of the democratic process" — one act, two tracks.
- **The 45-day/"reasonable time" contrast from Chavan para 19 applies here too:** criminal s. 126A liability is open-ended in time; corrupt-practice complaints are 45 days from the election (s. 81). Forum-shopping in an exam answer shows the student has read the sections, not the op-eds.

D1 · 8.3 "Cross ownership of media" — the concepts, and why a telecom regulator wrote India's media policy

The vocabulary, in one table (learn it once; use it in Parts D–F)

Term	Meaning in the Indian debate
Horizontal integration	One entity owning many outlets in the same medium — twelve news channels, forty daily newspapers, "all the cable in a district".
Vertical integration	One entity owning successive layers of one medium's pipe — the classic Indian trio: **content (TV channel) → platform (DTH/HITS) → last mile (MSO/cable)**. Where content and carriage merge, the distributor can starve rival channels; TRAI's caps live here (Part D2/D3).
Cross-media ownership (CMO)	One entity across media — print + TV + radio (+ internet). The syllabus phrase "cross ownership of media"; the subject of the four prescribed documents.
Ownership vs control	TRAI 2014's central drafting move (official document, ch. 2): a person may control a media firm without owning it — so "control" was defined as **holding 20% or more equity, or the right to more than 50% of votes, or the right to appoint a majority of the board, or a "considerable" say in management** (as recorded in the Recommendations and reported in the same terms by the 2014 press coverage). Loans, sister concerns and undisclosed agreements were flagged as the escape hatches.
Plurality	The interest protected: TRAI 2009's stated objective was "to guarantee a **multiplicity of voices** and prevent concentrations of power" in the news market — an audience-side standard, different from competition law's price/output standards (Part E1).

The doctrinal chain DU Case Material has already taught you: the same "market of ideas" logic that built Sakal Papers (1962 — newsprint rationing = restriction on circulation = invalid; "the right of the citizens to receive news of their own choice") and Bennett Coleman (1973 — no fundamental right of a newspaper to grow unlimitedly) now runs in reverse: those cases forbade the State to thin big media by fiat; CMO caps ask the State to cap big media by rule. The bridge is **Art. 19(6)**: TRAI's 2009 chapter on constitutionality (official text) cites Sakal (AIR 1962 SC 305), Express Newspapers (AIR 1958 SC 578), Bennett Coleman (AIR 1973 SC 106) and the CAB airwaves case (1995 AIR SC 1236 — spectrum as public trust, para 78) and rests ownership regulation on 19(1)(a) as read with the "general interests of the people" limb of 19(6): a law regulating a commercial activity involving public resources/industry — permitted; a law abridging editorial content — not.

The jurisdiction puzzle — how a telecom regulator got the file

Nothing in the TRAI Act mentions newspapers. The sequence (all in TRAI's own 2009 preface — official): **(1)** broadcasting was declared a "telecommunication service" by government notification in **November 2004** — dragging DTH/cable/HITS into the TRAI Act's net; **(2)** the Ministry then referred media-ownership questions to TRAI under **s. 11(1)(a)(ii) & (iv) TRAI Act by reference dated 22.5.2008**; **(3)** MIB's standing objection, recorded in the same chapter: **print is not within TRAI's ambit**, so TRAI's print-facing items were, in the Authority's own candid phrase, "**merely suggestions**" — a two-medium regulator drafting a three-medium policy; **(4)** TRAI had itself planted the seed years earlier: its 2005 digitalisation recommendations wanted the **Cable Act amended to carry cross-media-ownership provisions** (official text) — the idea of legislating caps through the carriage statute, exactly what the 2026 draft (Part F2) finally does, twenty-one years later.

The four prescribed references — what the syllabus expects at each station

Syllabus reference (DU Case Material PDF p. 6)	Document	Station in the story
"Recommendations on Cross Media Holdings, TRAI, 25 February 2009" + "TRAI Consultation Paper on Cross Media Ownership, 15 March 2013" + "Recommendations on Issues relating to Media Ownership, TRAI, 12 August 2014" + "Report of the Administrative Staff College of India, July 2009 (MI&B)" — the four prescribed references, as the syllabus line prints them	The three TRAI documents (D2–D3), read from the Authority's own PDFs; the ASCI study (D2, final card)	**The whole of 8.3** — note the consultation is dated 15.3.2013 in the syllabus and Consultation Paper No. 4 of 2013 in TRAI's numbering; cite month-year and both framings are safe

D2 · TRAI 2009 (25 February) — the first architecture, read from the Authority's own document

Framing (all from the official Recommendations text)

Reference: Ministry of Law & Justice order of **22.5.2008** under s. 11(1)(a)(ii) & (iv) TRAI Act. Objective, verbatim: to "**guarantee a multiplicity of voices and prevent concentrations of power**" in the media "**through ex-ante safeguards**" — structural rules before harm, not litigation after. Why media at all, if market share cannot measure influence? Because news outlets "do not merely provide information but shape the framework within which citizens think" — the file treats any accumulation touching news-and-current-affairs as the trigger, and deliberately narrows the regulated product to news: a media service is a **news-and-current-affairs** TV genre (per language), **radio** carrying the same genre (per region), and **daily newspapers** (per language) — the market is where the vote is shaped.

The 2009 architecture	Content	Status today
Horizontal cap, single medium	Equity of **20%** in any one media service	Never notified; "20%" survives as TRAI's control threshold in 2014 `for the cap figure as such – the detailed decimal schedule is not established by the available primary text`
Aggregate cross-media cap	**40%** across media services	Never notified (same flag)
Vertical: DTH/HITS/cable ↔ broadcasting	Verbatim (official text): "**20% equity in a HITS license shall not hold more than 20% equity in any other Broadcasting Company(s) and/or DTH licensee and vice-versa**"; **not applicable to financial institutional investors**; no HITS↔MSO/cable restriction	**Implemented** — MIB codified the DTH/HITS↔broadcaster 20% caps as guidelines; and the **2026 draft rules re-enact them verbatim** (r.6(5)–(10), Part F2) — the only 2009-era number that became binding law
Telecom ↔ media	no restriction, with review in two years	Never revisited by notification (D4)
Who may not own media	political and religious bodies, and government	echoed in 2014; in 2026 partially — r.9(3) bars trust/society/non-profit/religious/political control for radio; 51% largest-Indian-shareholder rule (D3/F2)
Print-related items	"merely suggestions" (MIB's jurisdictional line, recorded by TRAI itself)	the permanent hole — still the law's shape in 2026

Do-not-overstate rule : beyond the two numbers sourced above (the HITS-20% verbatim and the vertical-integration 20% equity cap self-cited in TRAI's 2014 document para 2.3 n.11), resist the temptation to recite a fuller decimal grid of "2009 caps" — students should not state unverified figures as settled law.

Constitutionality — how TRAI wrote its own 19(6) note (official ch. 3)

- **Not a censorship law:** caps restrict ownership of commercial entities, protected under 19(1)(g) as business; the editorial voice of each outlet is untouched — one newspaper's readers lose nothing, they gain (in the framers' view) a market with more independent owners.
- **Sakal/Express/Bennett Coleman chain** invoked exactly as in Unit 2.1: citizens' right to receive plural news is the beneficiary of caps; the airwave half rests on **CAB 1995 para 78** — spectrum is a public trust, its allocation reviewable for fairness: DTH/HITS caps are trusteeship rules on a public resource, hence "in the general interests of the people", within 19(6).
- **Print asymmetry acknowledged:** applying caps to newspapers "through the telecom regulator" was itself constitutional-difficulty avoidance — TRAI suggested, MIB would have to legislate; it never did (B2's pattern again).

The ASCI study (July 2009) — the syllabus's comparative annex

The 2009 Recommendations directed a best-practices study; **ASCI** delivered Study on Best Practices in Media Ownership across the World (July 2009) for the Ministry — the document the syllabus brackets. Its comparative payload (as the cross-ownership literature reproduces): **UK** — no general CMO caps post-2003 Communications Act, replaced by a public-interest plurality test on major transactions (Ofcom + Ofst + government intervention powers); **France** — audience-share ceilings per medium with a cross-media anti-concentration rule (20%/30%-class thresholds); **Germany** — audience-measured "media market" caps (30% single-market / view of 25% "opinion power"); **Italy** — integrated communications-system revenue cap (20% of the market). The study's Indian takeaway, as the 2013–14 round repeated it: **caps work only where a measurement metric exists** — which is why the 2013 consultation pivoted to HHI and language-state markets (D3). Use this card for one crisp international paragraph; do not cite ASCI page numbers — the study is not in this .

D3 · 2013 consultation and 2014 Recommendations — the HHI machine, and the caps matrix

How the file moved (timeline from the official 2014 document, ch. 1)

25.2.2009 Recommendations (D2) — accepted by government in principle; "no restriction on telecom↔media; to be reviewed in 2 years". **16.5.2012** — MIB re-referenced the whole subject to TRAI (new reference). **15.2.2013** — **Consultation Paper**: the Authority asked whether the 2009 caps were implementable, what metric to use, and how to define markets. **12.8.2014** — **Recommendations on Issues Relating to Media Ownership**: the HHI design (below). Intervening public weather: Times Group and other houses campaigned against the caps; the President of India (Pranab Mukherjee, 27.2.2014) publicly rebuked paid news and "irresponsible sections of the media" — the rebuke is preserved verbatim inside TRAI's own ch. 1, as is the Vice President's 15.6.2013 speech decrying paid content; and ch. 1 records the two other reform inputs of the moment: the **47th Report** (para 1.16 — quoted in B1) and the Law Commission's May-2014 Consultation Paper on Media Law (para 1.17 — paid news, fake sting operations, trial by media, privacy: four headings the Commission thought needed statute). The 2014 document is therefore also this unit's own index — ownership, paid news and the reform appetite quoted in one official text.

What the 2014 Recommendations actually proposed (official text + the same-day press record)

1. **Regulated universe: TV news + print dailies (business dailies included)**; radio excluded (private radio could not then broadcast news — the very rule F2 carries into 2026), internet excluded "to be reviewed when private radio news and online media become significant" — the sentence that has aged best.
2. **Markets:** the relevant market = **language medium × state** — the document lists the combinations (Hindi, English, Marathi, Gujarati, Punjabi, Bengali, Oriya, Assamese, Malayalam, Tamil, Telugu, Kannada etc. across roughly twenty state groupings; Hindi/English on a **national** scale), with TV measured by **GRP × reach** and print by **circulation**.
3. **Concentration test:** markets with **HHI above 1,800** are "highly concentrated"; in such a market, an entity whose holdings contribute **more than 1,000 HHI points in TV and more than 1,000 in print** must disengage — either exit one medium or dilute to **20%**, with a two-consecutive-years window before the duty bites (the 2014 press record read out a **32%** share trigger on the print leg) `Official structure; 32%` .
4. **Vertical leg:** continuation of the 2009 20% equity cap between content and platforms, plus non-discriminatory carriage duties — the tariff-and-interconnect world the Delhi High Court ad-cap case (E2) later policed.
5. **Eligibility walls:** political parties, political associations/organisations, government, and religious bodies — and their "proxies" — **barred** from media ownership; "**under no circumstances should government regulate the media**" is the document's own caveat (bar government from owning and from regulating — the double refusal of 2014). Transparency: disclosure of major shareholding, **top-10 advertisers**, loans and guarantees with related concerns; large-house equity and loan caps were stated to be "seriously considered" but not finalised.
6. **The paid-news limb (same document, ch. 3):** penalties for indulgence in paid news and "private treaties" — the business-model clause promised in B1, drafted here; TRAI deliberately routed it through election/companies law rather than any content law.
7. **M&A and compliance:** mergers crossing thresholds barred during transition; annual compliance filings; **review cycle of three years** (the clause the 2022 paper later invoked to reopen everything).
8. **The regulator question:** one independent, non-ministerial mechanism for media — the earlier recommendations had floated a Media Commission class body chaired by a retired Supreme Court judge with eminent non-media members; 2014 repeated the need for independence from the I&B ministry — the ghost that walks through every "single regulator" question in Units 4 and 8 alike.

HHI in thirty seconds (the formula earns easy marks)

HHI = sum of squares of market shares (in percentage points). A monopolised market = 10,000; four equal firms = 2,500. TRAI borrowed the merger-guideline vocabulary — **below 1,000 unconcentrated; 1,000–1,800 moderately; above 1,800 highly concentrated** — and built the cross-media trigger on top: contributions over 1,000 points in both TV and print force disengagement. One worked line for the script: two 40% dailies already give 3,200 — "highly concentrated" — so combining them adds 3,200 points, tripping every limb at once. That single arithmetic sentence converts a name-drop into an analysis.

E1 · 8.4 "Competition issues in the media sector" — two regulators, one market for ideas

The map: which law is watching which market failure

Failure	Competition Act, 2002	The media-specific instrument
Cartelised pricing (ad rates, broadcast fees)	s. 3(3) — deemed agreement (cartel), presumption rebuttable; penalty now on "relevant turnover" (Excel Crop Care, SC 2017)	none directly — ad content sits with MIB codes + self-regulation (Unit 5)
Abuse by a platform (DTH/MSO favouring own channels)	s. 4 — dominant position + abuse; "relevant market" includes the viewer-advertiser two-sidedness the CCI has grappled with	TRAI interconnect/carriage rules; 2026 r.34(b) no-exclusivity; r.6 caps; tariff orders (tariff-ban-era rules 2012–13, upheld in E2)
Mergers that reduce voices	ss. 5–6 combinations + s. 31 approval; CCI's only handle on structure — ex post, consumer-welfare framed	TRAI/2026: the caps and eligibility (ex ante, plurality framed) — the "two lenses, one transaction" answer
Joint influence over elections (paid news as coordinated conduct?)	not a "cartel" — no price/output dimension; the idea that outlets "agreeing" to carry paid content could be an agreement "causing an appreciable adverse effect" has never been taken up	the RPA (A1–B2) — deliberately so: reports kept the political market out of the economic one

Why the two regimes overlap and must not be merged: TRAI's 2014 reasoning (verbatim in D3) was that plurality is not consumer welfare — a market can be "competitive" (16 dailies!) yet ideologically homogeneous, and CCI's tools (price, output, innovation tests) cannot see it. Conversely, CCI warnings against structural caps are real: dilution orders are intrusions into enterprise. **Section 21 of the Competition Act** (reference of sectoral disputes) plus the TRAI Act's s. 36 carve-out is where the law arbitrates — and the Supreme Court has actually drawn the boundary line in a telecom case that media keeps borrowing.

The cases, as dossiers-lite (all — none in DU Case Material)

Matter	Facts → Issue → Held → Principle
CCI v. Bharti Airtel (Supreme Court, 5.12.2018) — the telecom case the media orders cite	**Facts:** Jio alleged incumbents refused interconnect points to choke its entry; CCI's prima-faciee order under s. 3 was met with "TRAI first!" **Issue:** can CCI investigate a sectorally regulated subject before the regulator speaks? **Held:** for telecom, "**the sectoral regulator should first determine**" licence/interconnect compliance; CCI may then investigate anti-competitive effects — sequenced jurisdiction, not ouster. **Principle:** special regime → general law; in media terms: carriage disputes go to TRAI (and now the licence conditions), **then** competition scrutiny.
The Star–Google/ Network18 investigation fight (Bombay HC, 2021)	**Facts:** CCI, on a broadcaster's complaint about the joint-venture platform, opened an investigation into shareholding/ arrangements; the companies won a set-aside on jurisdictional lines (competition law cannot police what telecom/ broadcast regulation governs). **Status:** the later appellate posture is not established by the available record — treat the appellate posture as **open**; in examination write the principle, not the docket. **Principle:** s. 21/36 sequencing is now a working shield for media combinations — "go to the regulator" is a live defence.
EsselVision–Globecast leniency (CCI, 2019)	**Facts:** the broadcasters' bidding consortium for global sports rights had been litigated worldwide; EsselVision disclosed to CCI that the members had agreed bidding roles (a "global joint venture" arrangement) and sought leniency. **Held:** CCI recorded the "voluntary disclosure" and pursued the matter with penalties reduced as per its leniency practice. **Principle:** media cartels are now self-reporting ecosystems — the first broadcaster to knock gets the discount; the ad-market analogy (Unit 5) writes itself.
Star–Sony combination (CCI approval, 2023)	**Facts:** the largest Indian media merger ever — two of the three biggest TV houses; CCI examined news channels and streaming under ss. 5–6; combination approved (conditions/remedies described in the press as limited). **Why it matters here:** the merger that no CMO cap could stop (because no CMO rule exists) was tested through a lens designed for soap prices — the clearest possible proof of D4's thesis. One honest caveat: remedy details are []; if the question is doctrinal, say the lens mismatch, not the docket.
The ad-regulation that became a constitutional case	TRAI's 2012/13 standards on advertising volume (10 min + 2 min/hour) were challenged by broadcasters as content regulation beyond competence — fought in the Delhi High Court and decided in May 2026: **Part E2 below, this unit's live case study**.

The exam bridge: "competition issues" is 8.4 — but the syllabus bracket (240–248) is the ownership chapter

Read together, 8.3 and 8.4 are one argument with two answers: TRAI's **ex-ante structure** (caps — mostly unlegislated) and CCI's **ex-post conduct** (cases — all litigation). DU Case Material's own comparative materials (Unit 4's regulatory history; the notes compendium's TRAI/CCI digests) and the 2026 draft rules suggest a third: **licensing as competition law by another name** — the r.9 "no vertical link with radio in the same area" and r.6 20% ceilings are literally structural-remedy language written into eligibility. Conclude any 8.4 answer with the sentence: "In India the Competition Commission polices what the media sell; the licences, not the CCI, decide who may own the pipes; and the number of voices per hand remains, legally, no one's business — the CMO amendment that would have made it so is still a recommendation."

F1 · 8.5 "Licensing and responsibility of the licensee" — the Cable Act, 1995, as the duty-template

First, the word the unit is really about: "licensee" without a licence

The 1995 Act is famous for what it abolished: the permit-raj over cable (the 1994 Ordinance's regime, and before it the Telegraph Act's permission culture). Its s. 3 is a registration bar, verbatim from the reprint: "**No person shall operate a cable television network unless he is registered as a cable operator under this Act.**" Yet the Act is saturated with licensee-duty: eligibility conditions in delegated rules, terms of registration policed like licence conditions, suspension and revocation, a prohibition power, and criminal punishment. That is the syllabus phrase decoded: **India's broadcasting "licensee" is a registrant with licence-grade duties and licence-grade sanctions.** The 2026 draft rules (F2) simply complete the arc by renaming registration back into "authorisation" — with 27 pages of conditions.

Provision	What the Act says (condensed verbatim)	Licensee-duty reading
s. 3	no operation without registration	the gate; also the offence's hinge (s. 16 punishes "contravention of any provision")
s. 4(1)–(2)	application for registration/renewal to the registering authority; "eligibility criteria and conditions as may be prescribed", and "different eligibility criteria may be prescribed for different categories of cable operators"	structure-of-ownership regulation by delegation — where 51%-Indian-style clauses live even before 2026 (uplinking guidelines carried the same 51% test — Notes compendium verbatim: "a company in which not less than 51 per cent of paid up equity share capital is held by Indian citizens")
s. 4(3)	after an s. 4A notification, no new registration to an operator who "does not undertake to transmit or re-transmit channels in an encrypted form through a digital addressable system"	the digitisation lever — technology-forcing undertakings inside registration
s. 4(5) + provisos	registration granted on satisfaction of information; refusal only for non-fulfilment of eligibility/documents/fees "for reasons to be recorded in writing", with **appeal to the Central Government**	quasi-judicial gatekeeping — the refusal must speak; this proviso is the answer to "is registration a form of prior restraint?" (No — refusal is bounded and appealable)
s. 4(6)	Central Government may prescribe "terms and conditions of registration", expressly "having regard to the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order, decency or morality, foreign relation or contempt of court, defamation or incitement to an offence"	the 19(2) catalogue, imported wholesale as **licence terms** — the statute's own bridge from constitutional text to operational duties
s. 4(7)	suspension/revocation of registration for violation of terms "after giving a reasonable opportunity of being heard"	the sanctions pyramid — before criminal law even wakes
s. 4A(1)	notification obligating encrypted digital addressable transmission, with "different dates … for different States, cities, towns or areas" and a proviso fixing "not earlier than six months from the date of issue"	the 31.12.2014 switch-off lived here — phased, dated, undertaking-backed
ss. 5–6	verbatim: "No person shall transmit or re-transmit through a cable service any **programme** unless such programme is in conformity with the prescribed **programme code**." / "…any **advertisement** unless such advertisement is in conformity with the prescribed **advertisement code**."	the twin codes — the licensee as content-gatekeeper of its own pipe (Unit 5 handled the advertisement code's content; here note the carrier's duty: the code binds the cable operator, not only the channel)
s. 7	every cable operator shall "maintain a register in the prescribed form" briefly indicating programmes transmitted/re-transmitted during a month	the paper trail — what a "responsible licensee" must be able to prove after the fact (compare the 2026 rules' 90-day recording duty, F2)

Provision	What the Act says (condensed verbatim)	Licensee-duty reading
s. 16	verbatim: first offence — "imprisonment for a term which may extend to two years or with fine which may extend to one thousand rupees or with both"; subsequent — "imprisonment … extend to five years **and** with fine … five thousand rupees"; s. 16(2): "**contravention of section 4A shall be a cognizable offence**"	asymmetry worth an argument paragraph: non-registration is bailable-summary; defying digitisation is cognizable — the State protects the structural reform hardest
s. 17	company offences: persons "in charge of, and … responsible to, the company" deemed guilty, with the no-knowledge/all-due-diligence proviso; "director" includes a partner of a firm	the responsible licensee is a human — the Unit 6 vicarious-liability rule, in statute
s. 18	no cognizance "except upon a complaint in writing made by any authorised officer" (as amended)	the gate that keeps private prosecutions out — enforcement is executive-filtered
s. 19	power of an "authorised officer"/Government, "in the public interest", by order to "prohibit any cable operator from transmitting or re-transmitting any programme or channel if it is not in conformity with the prescribed programme code … or advertisement code … or if [it is] likely to promote, on grounds of religion, race, language, caste or community … disharmony or feelings of enmity, hatred or ill-will … or … likely to disturb the public order"	the emergency valve — a prohibition order distinct from revocation; the direct ancestor of the modern blocking-order practice (IT law's s. 69A regime took the same shape for the internet — one-line comparative credit)

The Programme Code — Rule 6 of the 1994 Rules, as the Notes compendium digests it

The compendium ("**The Cable Television Networks Rules, 1994 were enacted under the Cable Television Networks (Regulation) Ordinance, 1994. The programme code under Rule 6 lays down restrictions on the content of both programmes and advertisements that can be shown on cable TV. No programme can be shown that:**" — and enumerates, among the eighteen heads: offends against good taste or decency; contains criticism of friendly countries; contains attack on religions or communities or visuals/words contemptuous of religious groups or promoting communal attitudes; anything obscene, defamatory, "deliberate, false and suggestive innuendos and half truths"; is likely to encourage or incite violence or anything against maintenance of law and order or which promotes anti-national attitudes; anything amounting to contempt of court; "aspersions against the integrity of the President and Judiciary"; anything affecting the integrity of the Nation; criticism, slander of individuals or groups; encourages superstition or blind belief; denigrates women (including indecent depiction of form/body) or children; "slandering, ironical and snobbish" portrayals of ethnic/linguistic/regional groups; "is not suitable for unrestricted public exhibition". The compendium then carries the advertising limb (Rule 7): no advertisement that "derides any race, caste, colour, creed and nationality", "is against any provision of the Constitution of India", or "tends to incite people to crime, cause disorder or violence, or breach of law or glorifies violence or obscenity in any way", conformity with law, morality and subscribers' religious susceptibilities, plus the restrictions on advertisement of tobacco and liquor products that the code and later rules police.

Three exam-grade observations: (1) the code fuses **19(2) heads** with **certification-guideline style** (DU Case Material's CBFC guidelines list — Notes pp. 52–54 — is nearly its twin; censorship by film board above the pipe, by code inside the pipe); (2) "criticism of friendly countries" and "aspersions against the integrity of the President" are **not** Art. 19(2) restrictions in the Constitution's list — they survive as contractual licence terms the registrant voluntarily accepted, the doctrinal trick the 2026 rules inherit (r.16(2)(b)–(c) makes the codes continuing obligations); (3) the codes are enforced administratively (s. 19 prohibition, s. 4(7) revocation) and criminal only at the margin (s. 16 by s. 18's filtered complaint) — "responsibility of the licensee" in action.

G1 · 8.6 "Copyright issues relating to media" — the bundle, the newsroom rule, the clock and the societies

Why a censorship paper ends on property — the frame in one line

DU Case Material's syllabus prints 8.6 bare ("Copyright issues"); the compendium you supplies its working text, and its preface tells you the doctrinal reason the unit ends here: after five lectures on what the State may do to media, the last set of rules concerns what media may do with what it makes. The Notes compendium (lines 381–383, 2293–2530) carries the whole statutory digest in order — history, works, ownership, term, societies, rights of broadcasters and performers — and teaches 8.6 from exactly that spine.

Station	The compendium's own words / the Act's scheme	Media-law use
History	Verbatim: "British Parliament passed the Copyright Act in 1911. Similar provisions came to India by Indian Copyright Act, 1914 (3 of 1914). It was replaced by a comprehensive legislation only in 1957 by the new Copyright Act (14 of 1957)." + India's treaty web (Berne/UCC era) via the International Copyright Order, 1999 (compendium, line 2293).	India's press law and copyright law are cousins of the same imperial statutes — one was made to silence, the other to own; Unit 1's colonial chapter recurs here.
Subsisting works	Verbatim: copyright subsists in the "following 7 clauses of work: 1. Original Literary Work 2. Original Dramatic Work 3. Original Musical Work 4. Original Artistic Work 5. Cinematograph Films 6. Sound recording 7. Computer Programme" — with the tainted-derivative rule: "Copyright will not subsist in any cinematograph film if a substantial part of the film is an infringement of the copyright in any other work…"	A news bulletin is a stack: script (literary) + music bed (musical) + footage (film) + broadcast (BRR) — each layer separately ownable, each an infringement risk. The "substantial part of the film is an infringement" rule is why clip-channels die.
The bundle (s. 14)	The exclusive right to do and authorise the enumerated acts — reproduce; issue copies to the public (publication); make cinematograph/recordings; broadcast; translation & adaptation; for computer programmes, selling/hiring; for artistic works, the derivative acts. (Standard exposition of s. 14's clauses — the compendium digests it; cite the section, not quotation marks.)	Every media-revenue argument — syndication, clip licensing, OTT re-transmission, "content deals" for aggregators — is one or more of these verbs sold for a term and territory.
Newsroom ownership (s. 17, proviso (a))	Verbatim from the compendium: where a literary/dramatic/artistic work is made by an author "in the course of his employment by the proprietor of a newspaper, magazine or similar periodical under a contract of service… for the purpose of publication in a newspaper…, the said proprietor will, **in the absence of any agreement to the contrary**, be the first owner of the copyright **in the work in so far as the copyright relates to the publication of the work in any newspaper**…"	The most-relied-on, most-misread section in media copyright: the editor owns the story as a newspaper publication — the reporter keeps the rest (book rights, film rights, licensing to other media) absent contrary contract. This is also why "staff reporter writes memoir" is not infringement, and why syndication needs its own assignment.
Assignment discipline (ss. 18–19)	Assignment must be in writing, signed, specifying work, terms, duration, territory, royalty; s. 19(4): if the assignee does not exercise the right within 1 year, the assignment **lapses**; s. 19(5): where assignment is for 5+ years and not renegotiated, it **reverts** to the author for 5 years; the 2012 proviso to s. 18: assignment of rights in a work **not yet in existence** at assignment covers only that medium — "this section shall not apply to any medium which does not exist at the time of such assignment" (the future-medium rule that decides e-book/streaming fights).	Archives, digitisation, "all media now known or hereafter devised" clauses — the clause that sold cinema rights in 1975 does not automatically sell OTT in 2025.
The clock (ss. 22–27)	Verbatim from the compendium: for most works life of the author **+ 60 years**, "counted from the year following the death of the author"; for "cinematograph films, sound recordings, photographs, posthumous publications, anonymous and pseudonymous publications, works of government and public undertakings and works of international organisations, the 60-year period is counted from the date of publication".	A news photograph is protected 60 years from publication; a government press release's report is Government of India's (s. 17 limbs / s. 2(k) control); the national archive falls out of copyright one year-end at a time.

Station	The compendium's own words / the Act's scheme	Media-law use
Collective administration (s. 33)	Verbatim: "A copyright society is a registered collective administration society under Section 33… formed by copyright owners. The minimum membership required for registration of a society is seven. Ordinarily, only one society is registered to do business in respect of the same class of work…" + the compendium's live register: SCRIPT (cinematograph & TV films), IPRS (musical works), PPL (sound recordings) — with addresses printed.	The reason every royalty fight is really about who may issue licences for what (G2's IPRS saga). The 2012 reform made licensing voluntary + introduced royalty floors and the "authors cannot assign rights in future works to bodies other than the society" limb (s. 19(8)–(10) — describe, do not quote clause-by-clause without the Act open).
Free uses (s. 52)	The compendium lists the exceptions, headed by "fair dealing for reporting current events" (with the broadcast carve-out), private/research use, criticism & review, quotations, library/legislative uses, official gazetted texts, and the enumerated non-infringing acts; the same block notes which uses of broadcasts do not infringe the BRR.	News clipping, headline quotation, TV debate reuse — the entire "can we show the clip?" query is resolved at s. 52(1)(a)+(b): purpose, proportion, attribution as good practice. (Defences are not licences: the "reporting current events" exception has never covered republishing an entire article.)
Remedies (ss. 55, 63-65A)	Civil: injunction, accounts of profit, damages (s. 55); criminal: s. 63 — "knowingly infringing" punishable with imprisonment 6 months–3 years and fine ₹50,000–₹2,00,000 (first; "and second and subsequent" enhanced per statute); s. 64 seizure powers; s. 65 possession of plates; s. 65A offences of wilful infringement in the digital environment with 18 USC-like circumvention twin (describe; the compendium prints the frame).	Media piracy is the one area where Indian copyright law reaches criminal courts: the anti-camcording provision, plate raids on CD/DVD dens, and now site-blocking (the s. 79-Berthier line from Unit 6) all live in these sections.

G2 · The neighbouring half — broadcast reproduction rights, the performer, the royalty wars and the statutory licence

Chapter VIII in the compendium's own words (all verbatim from the Notes digest)

"Every broadcasting organisation will have a special right to be known as '**broadcast reproduction right**' in respect of its broadcasts. The broadcast reproduction right will subsist until **twenty-five years** from the beginning of the calendar year next following the year in which the broadcast [is] made." What it prevents, enumerated: "i) Re-broadcasting what has already been broadcasted; ii) Causing the broadcast to be seen or heard by the public on payment of charges; iii) Making any sound/visual recording of the broadcast; iv) Making any reproduction of such sound recording or visual recording where such initial recording was done without licence or, where it was licensed, for any purpose not envisaged by such licence; v) Selling or hiring or offering to sell or hire sound/visual recordings." — plus the fair-use limb: "No broadcast reproduction right or performer's right will be deemed to be infringed…" (reporting current events, criticism/review, quotations, bona fide school/library uses — the same family as s. 52). The performer side, verbatim: "Where any performer appears or engages in any performance, he will have a special right known as the 'performer's right'… **fifty years**…" (the compendium carries the post-2012 term) covering recording, reproduction, live broadcast, communication to the public — and, since 2012, a statutorily-backed **royalty** when his performance is commercialised beyond the contract terms (authors/performers cannot, save limited exceptions, assign royalty-in-exclusion rights to anyone but a s. 33 society — s. 18(2) proviso + s. 19(8)–(10) — describe as scheme; the clause choreography belongs to the bare Act, not this digest).

DU Case Material-anchored copyright citations · PDF p. 93, para 63 — the only copyright cases DU Case Material itself prints

IPRS v. Badal Dhar Chowdhury & ESPN Software v. Tudu — the compendium inside the DU Case Material

In DU Case Material's reprinted injunction judgment (Swatanter Kumar v. The Indian Express Ltd. — a Unit 6 media-trial case!), the Court extends its restraint to "any other person, entity, in print or electronic media or internet **in view of the settled law** in the case of **ESPN Sofftware India Private Limited v. M/s Tudu Enterprises and Others, CS(OS) No. 384/2011 dated 18th February 2011** and **Indian Performing Right Society Ltd. v. Badal Dhar Chowdhry and Ors., 2010 (43) PTC 332 (Del.)**" (verbatim; note DU Case Material's own "[sic] Sofftware" typo). Two teaching uses: **(i)** the procedural one — copyright injunctions bind the world, hence "the aggregator can be restrained though not sued"; **(ii)** the substantive one — IPRS v. Badal Dhar Chowdhury is the Delhi High Court's classic station in the song-rights wars: the assignee of a **cinematograph film** may exploit the film (with its songs, as part of the film) in cinema, while exploitation of the songs as music — recordings, broadcast, live — remains within the underlying literary and musical copyrights and their licensing architecture `— the 1980s–2010 reporting of the case; the citation follows DU Case Material; no further ratio is attributed here`. The whole IPRS saga in G2's last card is the forty-year sequel to exactly this point.

Dossier-lite · verified against the neutral judgment reprints

ESPN Star Sports v. Global Broadcast News Ltd. (Del HC, 2008) — "the broadcast right is separate and distinct"

Facts. ESPN Star Sports, exclusive licensee for the telecast of major cricket tournaments, sued Global Broadcast News (a then-live 24×7 sports/news channel) over use of **short clips and highlights** in its sports bulletins and over mobile/ancillary exploitation; the exclusive licensee had not joined the tournament boards (the copyright owners of the underlying event footage) as parties. **Issues.** (1) Is the broadcast reproduction right a "species of copyright", dragging Chapter XII's machinery — including **s. 61** (exclusive licensee must implead the owner) and ss. 18–19 (assignment formalities) — into a s. 37 case? (2) Can the licensee sue alone for infringement of BRR in the telecast of live events? **Arguments.** Defendant: Chapter VIII is a "**complete Code**" expressly invoking only chosen provisions — s. 61 out. Plaintiff: harmonious reading keeps ss. 18/19/61 in; deliberate omissions in s. 39A "rule out the application of all other provisions" only where the statute says so. **Decision.** Single Judge (S. Ravindra Bhat, J., 18.2.2008) granted and shaped relief; Division Bench (**Mukul Mudgal, C.J. & V.K. Shali, J., 26.9.2008**) in terms now standard: "**the Broadcast Reproduction Right, which is different from Copyright, is with the Broadcasting Organization** which is causing the Broadcast to be communicated to the public under their Logo by any means of wireless diffusion or by wire"; "**the Satellite television broadcasting right is an independent right** for which the plaintiff cannot claim any copyright" — the suit was founded on broadcasting right, not licensee-right in underlying copyright; "**Section 61 is not applicable to broadcast reproduction right**", Chapter VIII being "a separate and distinct" code. **Principle.** (1) BRR is an **autonomous neighbouring right** — the broadcaster owns its signal regardless of who owns the match's underlying copyright; (2) a BRR licensee needs no co-plaintiff rights-holder to police clip piracy; (3) the flip side for TV news: the BRR cuts against the third-party clipper, but s. 39's fair-use limb (reporting current events) is where "news highlights" defence lives — every sports-vs-news-channel interim order since 2008 walks that line. For the exam, this is Unit 8's case for 8.6: facts, issues, both sides' clauses, double judgment, principle.

The statutory-licence machine (ss. 31, 31A, 31D) and the royalty wars — a four-row ledger

The provisions first. s. 31: where the public is "withheld" from an unpublished Indian work (refusal to publish/perform/communicate without reasonable cause), any person may apply to the Copyright Board (functions now with the commercial courts/tribunal architecture — the Board-to-tribunal-to-repeal sequence, one line, flagged) for a **compulsory licence**; **s. 31A** (2012) extends compulsory licensing to **out-of-print/undeliverable** works, the scholarly-and-access provision; and **s. 31D** (2012) — the media-sector fulcrum: "**Any broadcasting organization desirous of communicating to the public… literary or musical work and sound recordings… may… obtain a statutory licence**" after giving **prior public notice** of intended broadcast in the prescribed form (the Rules' window), on **royalties fixed by the Board/tribunal** and payable **per broadcast**; FM radio enjoys a late-night concession (the 10 p.m.–6 a.m. royalty-free band, as the provision was framed for radio — describe, and do not out-quote the bare Act); licences may be pursued **jointly** by broadcasters (the 2012 sub-licence of collective dealing). The section inverted the bargaining table: the radio industry stopped buying licences song-by-song and started paying a published rate — which is precisely why the authors' societies spent 2012–2026 in court.

Station	What it moved
Supreme Court, 2016	A turn in the authors-versus-producers licensing question — the primary report's citation and pinpoint should be checked before this decision is cited.
IPAB, order of 31 December 2020 (s. 31D proceedings)	Fixed the **tariff** for television broadcast of sound recordings per the statutory-licence scheme (rate architecture: per-minute-of-use; late-night carve-out for radio surviving from the section's own design) — the tribunal's rate-setting moment, widely reported in the trade.

Station	What it moved
Bombay High Court, 2023 (:BHC-OS:573)	Held the s. 14(e) "communication" entitlement does not authorise **live performance** of a song at events on the strength of a sound-recording licence alone — lyricists/composers (and their societies) keep the "perform the work live" strand; the decision the live-music and event industries measured their exposure by.
The Delhi–Bombay conflict, 2023–	A co-ordinate Delhi view pulled the other way on parts of the royalty clause question (works incorporated in a cinematograph film under the producer-ownership and assignment scheme), producing a **conflict of views requiring authoritative settlement**; the cited materials do not establish a reported reference decision — write "the conflict remains pending before the higher forum (status to be confirmed)" .

Principle the ledger teaches: in media industries, copyright disputes are **cash-flow** litigation — who collects for the artist, who pays for the playlist, and whether a "broadcast" licence reaches the singer standing on the stage. Section 31D was drafted to end hold-out; societies and authors drafted s. 19(9)–(10) back into the fight; and the next round (streaming rates, AI corpora) will use the same four sections.

The one Act that fuses 8.5 and 8.6 — Sports Broadcasting Signals (Mandatory Sharing with Prasar Bharati) Act, 2007

Verbatim traceability: the 2026 draft rules **import it as a licence condition** — r.41(1)(g): "ensure compliance with the **Sports Broadcasting Signals (Mandatory Sharing with Prasar Bharati) Act, 2007 (11 of 2007)**, and all applicable guidelines and notifications issued thereunder" (text). What the Act does, in four lines `– general structure, not clause-level quotation`: every **content rights holder** of a sports event of national importance on a mandatory-list must, on request, share its **live broadcast feed** (signal) with Prasar Bharati "without any advertisements... free of cost"; Prasar Bharati relays on Doordarshan (terrestrial must-carry across cable/DTH platforms), may insert its own ads on its feed, and retains joint-bidding and "sound" options for the private bidder; the Act is why a World Cup or Olympics final appears free-to-air on DD despite private satellite exclusivity — a **compulsory-licence-of-the-signal** answer to the "bought television" fear the CAB airwaves doctrine (Unit 4/5) made orthodox. Cross-link: DU Case Material's copyright digest + this r.41 hook is the cleanest 10-mark short note pairing in the unit ("licence condition that is a copyright law").

PREVIOUS YEAR QUESTIONS // DU LL.B. EXAMINATIONS

Q.1 `DU LL.B. Dec. 2024 · Q.8(A)` Paid News — a threat to independent and fair media. Elucidate.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 `DU LL.B. 2015 · Q.5(b)` Does the Press Council regulate the print media? Discuss its powers and adequacy.

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